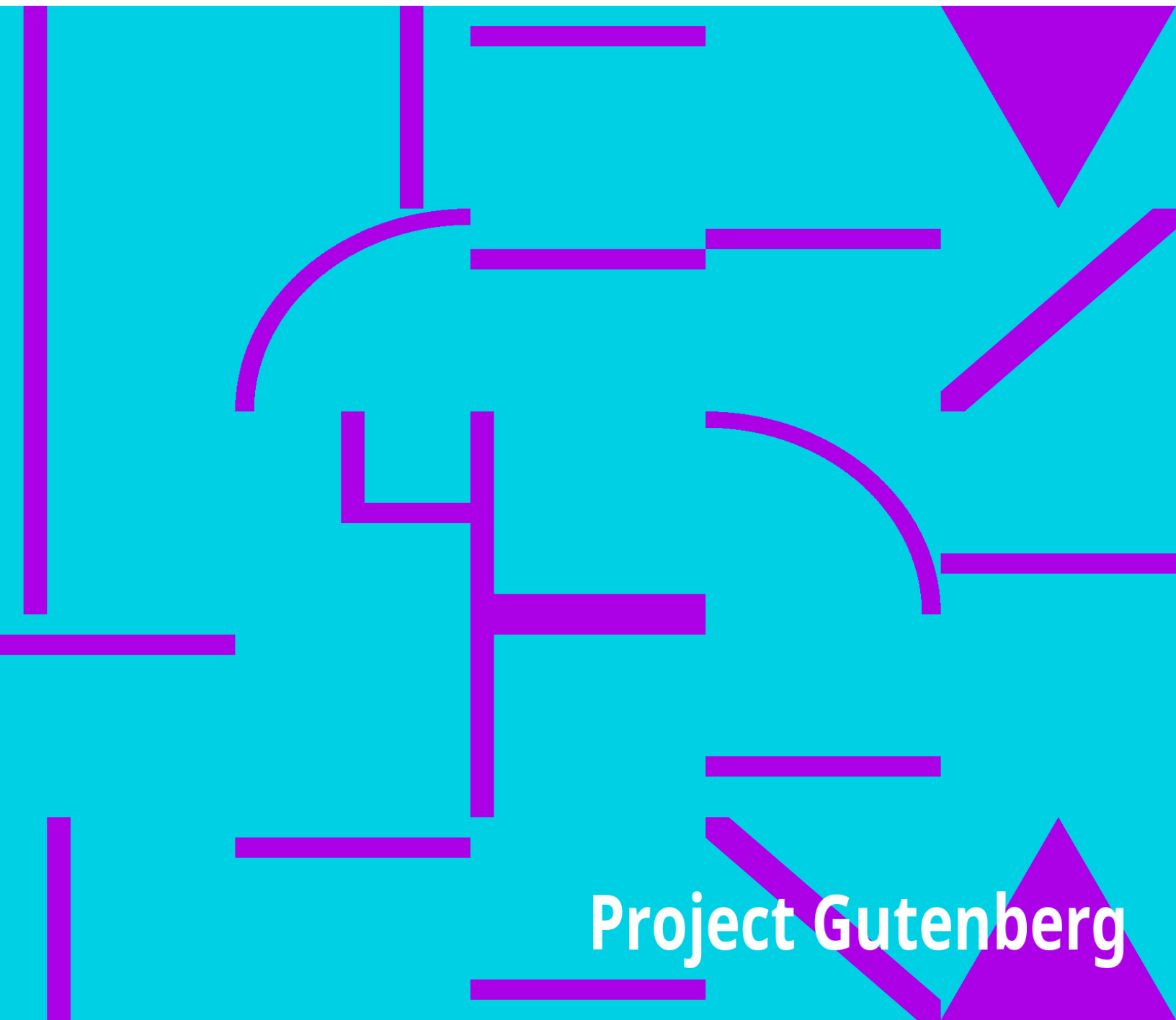


# The Student-Life of Germany

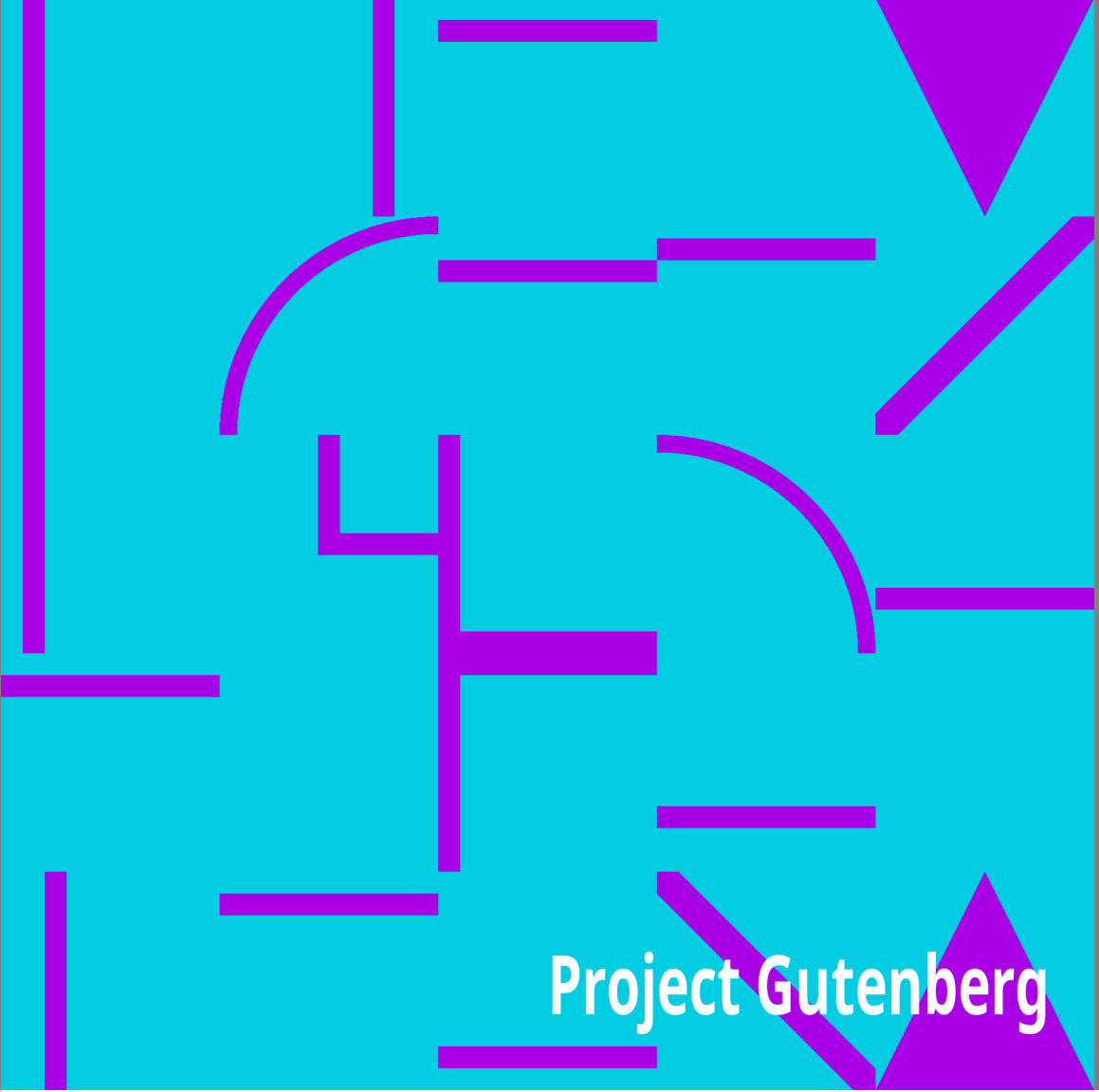
William Howitt

The background of the lower half of the image is a solid cyan color. Overlaid on this are various magenta geometric shapes and lines. These include straight lines of varying lengths and orientations, some forming right angles or T-junctions. There are also several curved lines, some forming semi-circles or arcs. In the top right and bottom right corners, there are magenta triangles pointing downwards and upwards, respectively. The overall effect is a modern, abstract, and geometric design.

Project Gutenberg

# The Student-Life of Germany

William Howitt



Project Gutenberg

## **The Project Gutenberg eBook of The Student-Life of Germany**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Student-Life of Germany

Author: William Howitt

Release date: July 1, 2011 [eBook #36576]

Most recently updated: January 7, 2021

Language: English

Other information and formats: [www.gutenberg.org/ebooks/36576](http://www.gutenberg.org/ebooks/36576)

Credits: Produced by Charles Bowen, from page scans provided by the Web Archive

\*\*\* START OF THE PROJECT GUTENBERG EBOOK THE STUDENT-  
LIFE OF GERMANY \*\*\*

Transcriber's Note:

1. Page scan source:

<http://www.archive.org/details/studentlifegerm02corngoog>

**THE**

**STUDENT-LIFE OF GERMANY.**

**THE**

# **STUDENT-LIFE OF GERMANY:**

**BY WILLIAM HOWITT.**

**AUTHOR OF "THE RURAL LIFE OF ENGLAND," "BOOK OF THE SEASONS," ETC.**

**FROM THE UNPUBLISHED MS. OF DR. CORNELIUS.**

**CONTAINING NEARLY FORTY OF THE**

**MOST FAMOUS STUDENT SONGS.**



THINK OFT, YE BRETHREN;  
THINK OF THE GLADNESS OF OUR YOUTHFUL  
PRIME,--  
IT COMETH NOT AGAIN,--THAT GOLDEN TIME!

The Commers Book.

**PHILADELPHIA:**  
**CAREY AND HART.**

MDCCCXLII.

C. Sherman &, Co. Printers, 19 St. James Street

"How shall I call thee, thou high, thou rough, thou noble, thou barbaric, thou loveable, unharmonious, song-full, repelling, yet refreshing life of the Burschen years? How shall I describe you, ye golden hours, ye choral-songs of brotherly love? What tone shall I give to you to make myself understood? What colours to thee, thou never-comprehended chaos? I shall describe thee? Never! Thy ludicrous outside lies open; the layman sees that; one can describe that to him; but thy inner and lovely ore, the miner only knows who goes singing with his brethren into the deep shaft. He brings up gold; pure, solid gold; be it much or little, it is still of high value. But this is not his whole booty. What he sees there, he may not describe to the layman: it were all too strange, and too precious for his ear. There are spirits in the deep that no other ear can comprehend; no other eye perceive. Music floats through those halls, which to every uninitiated ear sounds empty and unmeaning. But to him who has felt with it and sung with it, it gives a peculiar consecration; when he, moreover, smiles over the hole in his cap which he has brought back with him as a symbol.

"Old Grandfather! now know I what thou undertook when thou held thy annual, solitary, intercalary day! Thou too hadst thy companions in the days of thy youth, and the water stood in thy gray eyelashes when thou marked one in thy stambook as entombed."

*Hauff's Rathskeller in Bremen.*



## PREFACE.

We have had various peeps and snatches of the Student-life of Germany, from time to time, in our periodicals, but we have nothing like a complete, and faithful account of it. Some of those accounts too, are by English writers, who had at best but a partial and passing view of this singular state of existence, and could not, however much they might have seen of it, enter into it and comprehend it with the fulness of apprehension and feeling which a native possesses. When I, therefore, was thrown, on my first visit to Germany, into the midst of its students, I began to inquire for a volume written by a German, which should lay open the whole interior of that, whose surface was so strange and so picturesque. I was told that no such thing, of any value or completeness existed, and that, indeed, the students themselves were jealous of the laws and customs of their ancient Burschendom being laid open to the public. Yet, finding myself amongst those whose knowledge and talents most entirely qualified them for making this exposition, I did not cease till I had prevailed on one of the most gifted to undertake the task, assisted by the experience of friends, who, like himself, had passed through the mysteries of this singular life. The present volume is the result; and I present it to the public with the confident assurance, that whatever they may think of the portraiture, they may depend upon its faithfulness. Spite of what that young and popular writer, Hauff, has left on record in the extract which immediately precedes these remarks, we have now penetrated the depths of the Burschen-life; we have traversed its chaos, which he terms a never-comprehended one; and have made the music of its most hidden halls, audible and intelligible to all ears. I do not hesitate for a moment to assert, that, taken as a whole, this volume will be found to contain more that is entirely new and curious, than any one which has issued from the press for years. The institutions and customs which it describes, form the most singular state of social existence to be found in the bosom of civilized Europe; and what renders them the more curious and worthy of investigation is, that they are no recent and evanescent frolic of

eccentricity, but are as fast rooted into the antiquity of German mind and manners as the universities themselves. They have been modified and softened by time and advancing refinement, but are not a whit nearer being rooted out, apparently, than they were three hundred years ago. This state of things is here depicted by a German himself, who has passed through it; and with that peculiar feeling and appreciation which a German only can possess. It is in this light that they are to be regarded. I do not here present myself as an advocate or a caviller at this scheme of things, but merely as a spectator, who, beholding something strange and curious, brings it to the observation of his countrymen, in all truthfulness and simplicity of representation, that they may judge of it for themselves. It has been translated under the author's own eye, as it was written, and as he is also acquainted with the English language, it may be reasonably presumed to give a faithful transcript of his thoughts.

The two features of this Student-life which will meet with the most repugnance in the English mind, are the Beer-duel, and the Sword-duel. I have no desire to defend, far less to recommend either. I am, though no advocate of a watery suction, miscalled Temperance, neither a violent wine-bibber, nor "a fighting character." I do not even, like our worthy friend Sir Thomas Fowell Buxton, while planning Niger expeditions of civilization, brew XXX in London; nor, like many of my countrymen, while attending church, or chapel in England, insist on bombarding the Chinese because they wont be poisoned with my opium. I merely let the worthy and learned author tell his own tale; and he, in telling it as a German and fellow-countryman of those concerned, assures us that these features are daily becoming more diminished by the progress of refinement.

It is to be hoped that the publication of this volume may even hasten this desirable end, for no people are so much alive to the opinion of other nations as the Germans. One thing, however, as an Englishman, I may say, which the author could not say--and that is, that when reading of the beer and sword duels of these students, we must take into account what are the weapons and the perils in both cases. We are not to suppose then, that their beer is any thing like the XXX just spoken of, or their wine like sherry or port, three-fourths brandy. No; they who know German wine, know that it is a very gentle and innocent, rather acidulous, and rather cooling fluid, and

that their beer is far more mighty of the hop than of the malt. It is a well-bittered and amiable table-beer, which even Father Mathew might take as a healthy stomachic, and which one might rather expect, in Sam Welter's phrase, to make its swallows "swell wisely before our wery eyes," than grow riotous under its influence. When to this we add, that the sword-duel is rather a trial of skill in fencing than any thing dangerous, and that a scratch across the cheek, or prick into a stuffed jerkin, is in ninety-nine cases out of a hundred the worst of its accidents, fears on the subject diminish at a rapid rate. If, however, any one thinks these youths had better be at their books than crossing swords or swallowing choppins, I assure him I am quite of the same opinion; and I here exhort the students, as soon as they get this volume, which they speedily will, to forsake the Hirschgasse and the Kneip, and follow the advice, but not the *example* of the English. Shall I advise them to imitate the students of Cambridge? Let any one read "The Student-Life of Cambridge" in a late number of the *Westminster Review*, and say whether that would be reasonable. Shall I advise them to practise the vice and the mockeries which are practised there, by those who give the most public and prominent character to the social student-life of England--for it is not meant to assert that the generality of the Oxford and Cambridge students are of such a class? Why, Kneips and the Hirschgasse are heaven and innocence to them. Shall I advise them to quit their songs for the grossnesses sung by the wild portion of the students at Cambridge and Oxford? No! the songs of the German students, even when on no higher a theme than wine, and with the bold free-spokenness which is startling to our modes of thinking, are the effusions of the first spirits of their nation, and are sung to some of the finest melodies which ever emanated from that most musical of people. It is here that the tables must be turned, and that we must call on the English to imitate the Germans, and not the Germans the English. If the English will drink, let them drink wine as cooling, and beer as thin and bitter, as the Germans; if they will fight duels, let them abandon bullets that fly through a man and let the soul out after them, and be content with a scratched nose or punctured padding. If they will sing over their wine, let them not sing the vile trash that is heard in the haunts of our students, but the spiritual effusions of such writers as Schiller, Goethe, Körner, Arndt, Claudius, Hauff, Follen, Uhland, etc. No, one cannot read of English students--of their guzzlings and their songs--without feeling a sense of commonplaceness, a something low, gross, unimaginative and vulgar.<sup>[1]</sup>

On the contrary, amid all the follies and mad frolics and nonsense of German student-life--of which God knows there is plenty--he must be destitute of poetry himself who does not feel it there. If there be a man who can read through this volume and not feel its poetry, and not perceive the high and beautiful sentiment which pervades it; the profound love of nature, and the glorious love of country,--let that man march off to Cambridge or Oxford; let him give his suppers or his breakfasts; let him hurry in his nightgown to morning prayers; let him become a first-rower, or a senior-wrangler if he will; but that man is no more fit to take his stand by the student revellers of Germany, than Caliban is by Hyperion. No, in the student-life, which is entered into as a brief season of youthful hilarity, which in this world can come but once; a season in which knowledge is not only to be gathered, but life to be enjoyed--friendships for life to be knit up--love, perhaps for life, to be kindled--and the spirit of patriotism to be cherished to a degree which no after-chills and oppressions of ordinary life shall ever be able utterly to extinguish; in this life there is a feeling and a sentiment to which our student-life is a stranger. It is from the bosom of this life that some of the noblest poets, the profoundest philosophers, and the most devoted patriots which the world ever saw, have gone forth. It was from the heart of this life that Theodore Körner sprung, for the cause of his country and mankind, and sung and fought and died; it was from this that Goethe and Schiller, Hauff and Tieck, and a thousand others, have issued to glorify valour, or consecrate patriotism, or beautify the regions of the human soul by their songs and their imaginative prose. It was from this that the whole body of ardent youth arose, and quitting their Kneips and their Chores, called all their country to reassert its liberty, to drive out its foes, and at the people's head, fought with the spirit of the ancient heroes, and chased from their soil for ever, the tyrant and overrunner of humbled Europe.

And yet there are those who are continually forgetting these things; asserting that all the student songs, and student clanship, and student freedom, end in smoke and vapour, and without any permanent result, and that they depart at the termination of their academical career their several ways, and sink into obscurity and insignificance. What! would they not have them become good citizens, sober judges, domestic men? But they who say that no high effects remain, know nothing of the youth of

Germany. They cannot have seen how the new Rhine-song went through the whole country like an electric flash when France threatened to march to the banks of that noble river, and how every German student vowed if such a deed were perpetrated, they would go forth and fight to a man. They cannot know, as I do, that the loves and friendships formed by these youths are more permanent and indissoluble than any class of men with whom I have yet become acquainted; nor that in private society, where, and in my own house, I have seen much of them, they are amongst the most accomplished, gentlemanly, temperate, correctly-mannered, cordial-hearted, and intellectual men that European society possesses. But all such persons I willingly turn over to the perusal of this volume, the work of a young but learned author, who has recently passed, by a splendid examination, out of this student-life itself without having ever fought a single duel, or very probably got half or even quarter seas over. If the perusal of this volume should have the good effect of lessening amongst the German youth the tendency to the beer or the sword duel, and of inspiring our English youth with a more intellectual and poetical taste in their pleasures, certainly we may say, in the style of all good old prefaces, "that it will not have been written in vain."

*Heidelberg, April 6th, 1841.*

# CONTENTS.

## CHAPTER I.

General Plan, Officers, and Courts, of a German University--Charm of this life to those who have passed through it--Explanation of the term *Bursché*, or Student--Right to found or dissolve Universities, retained by the Sovereign Princes--Offices and mode of government--The Curatorium--Rector, Prorector--Senate, greater and less--Different orders of Professors and Teachers--mode of their remuneration--University Board of Finance--its Court of Justice--Academical freedom, and mode of matriculation--Inferior officers, and penalties for offences against the Academical laws--College terms--mode of Lecturing, and duties of Lecturers-- necessary Examinations of the Students, and consequent Certificates--Sciences taught--Privileges and endowments to enable young men without property to enjoy all the advantages of the Universities--the great extent to which this is made available, and great advantages to the State derived from it--Opinion of Goethe on this head--Great Men that this has produced--no German, however exalted in rank, can hold a high position in society, without making himself master of the knowledge thus opened to the people

## CHAPTER II.

General View of Student-Life.--Student-life an admirable field for bringing a young man speedily to a knowledge of life, and to a sense of self-government and self-dependence--Prejudice, especially amongst foreigners, that Students must become exposed to many unpleasantnesses--these groundless--every individual Student

independent, and at liberty to associate just as little, or as much as he pleases with the rest--Equality the law of the German Students--their opinion that the English are the slaves of the Aristocracy--their surprise at the Aristocratic prejudices of the English--Academic freedom dear to every German Student--its value acknowledged by all the greatest men--Influence of the associate life of the Students on their minds and manners-- including, as it does, the natives of so many Countries--Chores, or Unions--Landmannschaften--the Burschenschaft--Wearing of Union Badges forbidden--Public Processions, and Costumes of the Professors

### **CHAPTER III.**

The Chores, or Unions.--Their nature, constitution, and distinguishing colours--each Chore formed of the natives of a particular State--what is requisite for the formation of a New Chore--is acknowledged and recorded at the Allgemeine, or General Social Meeting of the Chores--Constitution of a Chore--its Officers, Code of Laws--its Beer-court, and Court of Honour--its Boon-companions, and various ranks of members--its Chore-Convent, or Board of Administration--the Proscription, or Bann, as exercised both against Members and offending Tradesmen, or even the University itself--Classes of Students termed Camels, etc. etc.

### **CHAPTER IV.**

The Burschenschaft.--The origin of this celebrated Society to be found in the patriotic desire to free Germany from the domination of Buonaparte--this feeling at first high and holy--quicken by the union of Learned and Literary men in the Poet-League of Göttingen, to advance the Language and Literature of the Country--the triumphs of Literature at their height under Schiller and Goethe, when the French Invasion took place--the indignant enthusiasm excited by this on the minds of the Students--the formation of Burschenschaften--these in different Universities united by

one general bond--their effect in rousing Germany to the expulsion of the French--these feelings immortalized in the songs of Theodore Körner--the People's Battle at Leipsic--the expulsion of the French followed by a demand for the restoration of the Germanic Empire--Act of Confederation of the German States signed--Formation of the Holy Alliance of Sovereigns-- Disappointment of the People--Agitations of the Burschenschaft-- Beautiful ceremonies at the celebration of the Peace Anniversary at Jena, etc. 1816--farther proceedings of the Borschenschaft--the celebrated Festival in the Wartburg in 1817, at which the Writings of Kotzebue were burnt--Congress of Universities at Jena in 1818, and Publication of the Constitution of the Burschenschaft--the influence of these events on the mind of George Sand, and its consequences

## CHAPTER V.

The Narrative of Sand.--His origin and education--his early enmity to the French--his conscientious but excitable disposition--the effect on his mind of the burning of Kotzebue's Writings--his personal appearance--Kotzebue in the pay of Russia, to give information of the popular movements and opinions in Germany-- Seizure and publication of one of his bulletins to that Government, and consequent popular excitement--Sand conceives the idea of putting Kotzebue to death, as a traitor to German freedom--his long mental struggles against this idea--the final surrender to it, and preparation for carrying it into effect--his paper called "Death-blow to August Von Kotzebue"--his letter to his parents, and brother and sisters, on setting out on this project--his perpetration of the deed, his trial, and execution at Mannheim--Consequence of this and similar attempts--The prohibition of the Burschenschaft, and persecution of its members--The Song "We Builded," etc, as sung at the breaking up of the Burschenschaft in June in 1819

## CHAPTER VI.



Ceremonial Introduction to University and Burschen Life--The Student youth of Germany, driven from the Burschenschaft, have fallen back on their Chore-life--Complaints of late years that youths coming to the University become involved in the dissipations of Chore-life, to the prevention of their studies and detriment of health and morals--these views combated by the Author--the existence of a temporary excitement on entering University-life accounted for--the Author, as one who passed through this life, testifies to its advantages--Every University its own particular tone and character--Peep at the past Life of the Universities, as revealed in Zacchariæ's "Renommist," and in a Drawing of 1730--Singular and rude Customs formerly practised on the admission of Students to the Universities--Freshmen or Brannen, then subjected also to many humiliations--the present condition of the Freshman, now termed a Fox--Curious Anecdotes connected with the condition of a Fox--Different ranks which a Student passes through who joins a Chore, or Verbindung--in the Gymnasium, or school preparatory to the University, he is a Frog--then successively a Mule, a Camel, a Fox, a Fat-Fox, a Burnt-Fox, a Young Bursch, Old Bursch, and Mossy Head--Satirical explanation of Student terms, by Herr Schluck--Initiatory ceremonies at a Union of the Chores on creating the different degrees of Foxes--Singing of "The Landsfather"--The Fox-Ride, and its accompanying song--Burning of the Burnt-Foxes, with the accompanying song, etc.

## CHAPTER VII.

The Duel.--This is a practice of the Middle Ages, that has firmly maintained itself amongst the Students--the Author's opinion of it--its actual good or evil in the system--to be regarded principally as a trial of skill in fence--mode in which these Duels are contracted, settled, conducted, and fought out--At Heidelberg these take place in a well-known house in the Hirschgasse--Duel Costume, and different species of Duel--Anecdote of a little Jew who fought one--the Duel prohibited by the laws--the Academical enactments against it--Attempts of the Beadles to seize the Combatants--their watchers--the Red Fisherman, their great champion--

Students' dogs sometimes join in the contest-- Penalties, and University Prison

## **CHAPTER VIII.**

Characters connecting themselves with Student Life.--The Hofrath Diehl--his History--the Flower-Boy, and Frau Gotlieben the Fruitwoman

## **CHAPTER IX.**

Private Life of the Student.--Visit of Mr. Traveller, the Englishman, to the room of the Student Freisleben--his surprise at what he saw--his friendly welcome--Description of the Room and its various Decorations--Student word for comfortable--the Boot-Fox-- Origin of the word *School Foxery*, or pedantry--Wages of a Boot-Fox--Expense of Living at the University--*Pendulums* and *Knoten*--origin of the latter term--the House Philistine and his duties--the Philose, the Besom, the House-Bursch, and Room-Bursch--What it means to "Tail a Lecture"-- Dissertation-on-Dogs--A visit to the annual Dog-Muster---Students' Dogs--their characteristics--one at a duel swallows up a Student's nose--the little Dog Tambourli--the Student's love for his Pipe-- Pipes of various kinds, and in all their parts, described--Origin of the word *Fidibus*--the philosophy of Smoking

## **CHAPTER X.**

Rural and Summer Amusements of the Student.--Beauties of the neighbourhood of Heidelberg--The Wolfebrunnen--the surrounding Woods and Mountains of the Odenwald and Black Forest--Historical associations--the Student sometimes takes longer excursions than into these scenes--Excursions in a one-engine--Water excursions-- Field sports--The Students' Shooting ground--Kirchweihs, or Wakes,

described--the Students there--Scenes which arise with the Handwerksburschen

## CHAPTER XI.

Winter Amusements of the Student.--He joins gladly Social Parties at the houses of the Inhabitants and of the English--finds much amusement at the Reading-rooms, Billiard-table, and Balls and Concerts at the Museum--Serenades--Song, "The Departure"--Skating --pushing Ladies on the Ice in Sledges--gaiety of these scenes-- sledging parties by Torch-light--Whims of the Students on such occasions--Instances of their schemes to satirize the attempts of the Senate to check their expense in such things--in the evening joins his Kneip

## CHAPTER XII.

The Student's Evening Party, with its Conversations, Discussions, Songs, and Customs.--The Student Hoffman entertains his Friends-- Description of his Rooms--his Friends Freisleben, Von Kronen, Eckhard, Enderlin, Pittschaft, Mr. Traveller--their opinion of Englishmen and English Ladies--Melancholy story of Krusenstern and Avensleben--The Radonen Cake--Sketch of the history of Universities, given by Von Kronen-- Discussion on Phrenology-- English and German Literature compared-- German Romance ludicrously described by Lichtenberg--the Students sing Schiller's song of "The Four Elements," also "There Twinkle Three Stars" from Körner--they sing a Roundelay--Anecdotes of Stambooks-- Drink to their Ladies--Drink and sing as a Roundelay the humorous song of "The Krähwinkle Landsturm"--sing a Lumpitus of the first verse of various celebrated songs in rotation--sing "The Binschgauer"-- Merriments before parting--The songs of "Ye Brothers, when no more I'm drinking," "The Pope," "Brothers, in this Place of Festive Meeting," "So crown with leaves the love-o'erbrimming Beakers"

### CHAPTER XIII.

General System of German Education.--Glance at the progress of popular Education, from the ancient Nations and Times down to the present-- Popular Folks'-schools of the Middle Ages--Gerbardus Magnus--his Institution at Deventer---his ideas followed out by Montaigne, Bacon, etc.--the Burger class erect Schools--the Reformation--School of Conrad Celtes, for the restoration of Classical antiquity--Services of Erasmus, Reuchlin, Dalberg, Agricola, Pirkheimer, etc.--the origin of the plans of Pestalozzi to be found in the writings of Ratich and Comenius--Services of Fenelon, Spencer, and Franke--Improvements by Ziedler, Hein, and Sulzer--Influence of Locke, Rousseau, Crousatz, in developing the modern School-systems--Description of the German School-system, and what is taught in each class of Schools, viz. the Elementary, or Proper Folks'-Schools; the Real Schools, called also Middle Schools, Higher Burger Schools, etc; the Gymnasia; the Universities

### CHAPTER XIV.

Song, an indispensable requisite to the Student, as to all Germans.--Song and Poetry a necessity to the German--the Germans rich in Popular Songs--Universal singing of the Common People--A popular Song at any crisis passes like an electric flash through the whole People--"Prince Eugene," a specimen of a class of Songs very common amongst the People--All classes, in town or country, have their peculiar Songs--the Student is affluent in Songs--the Commers-Book a collection of them--Sing in their Kneips--their Songs often heard on summer evenings in the open air with fine effect--one of the finest "From High Olympus," etc.--the Roundelay--the Student has his Songs of Love, Wine, Fatherland, and Friendship--Student-life regarded as a joyous season that comes but once, therefore they sing and rejoice in it--Accompany their Deceased Brethren to the tomb also with Song--"Gaudeamus igitur"

## CHAPTER XV.

Drinking Customs of Student-life, ancient and modern.--The Author's opinions on festive drinking--Song of Old Noah--Master Schluck's persiflage on the Burschen-Comment, or Student Code of Drinking Laws--Notice of some of the chief of the different classes of Student Songs--"The Maiden Song" as formerly sung--account of it in Zacchariæ's Renommist--Drinking Customs of a past age in the Universities--anecdotes of these--Phrases collected by Lichtenberg descriptive of a Drunkard--the General Beer-Code of Heidelberg

## CHAPTER XVI.

The Commers.--The Commerses, general and special--their social Festive Meetings, held on various occasions--Description of the General Commers--certain Songs sung, as "Heidelberg live thou," etc.--the Singing of "The Consecration Song, or Landsfather," and singular ceremonies attending it--the Ceremony of the Smollis-- Smollering constitutes a Brotherhood to last for life--Drinking Laws of the Commers--Herr Schluck's Comments on a Commers--the Excesses of the Ancient Commerses abandoned

## CHAPTER XVII.

The Special Commers.--Description of a train of Students going out to a Special Commers in the country--their arrival there-- description of the Room and mode of holding the Commers--Ceremony, and Song of "The Prince of Fooling"--Frolics and Gambols of the Students the next day in the village--An old ballad describing these in 1650--the Commers over, they return often by water, with music and fireworks--close it with drinking Crambambuli--the Song of Crambambuli--The Lumpin Bell

## CHAPTER XVIII.

New Year's Eve.--Spent by the Friends at the rooms of Freisleben--  
Conversation sallies--Glee-wine made, and the English song, "Down  
with the Sorrows," etc., by Mrs. Howitt, sung by Hoffmann to the guitar--  
"The Song of Wine"--"The Table-Song," by Goethe

## CHAPTER XIX.

New Year's Eve, continued.--Sketch of the History of Heidelberg  
University--A Salamander rubbed to the honour of the Professors

## CHAPTER XX.

New Year's Eve, continued.--University Stories--Singular Story of the feats  
of activity, strength, and eccentric humour of Von Plauen--his  
Banishment from the University--his Imprisonment and Escape--Story of  
the Student Schwartzkopf, who became the celebrated robber, "The  
Black Peter;" with his deeds, capture, and strange final escape--Story of  
the Student Stark--Fire-arms announce the entrance of the New Year, and  
the friends rush forth to witness the Procession of the Students to give a  
"Vivat" to their chief Professors--this described--Breaking up of the ice  
on the river--the exploit of the Red Fisherman

## CHAPTER XXI.

The Marching-Forth.--Modes in which the Student generally quits the  
University--The Marching-Forth when the Bann is laid by the Students  
on the University itself, and march forth in a body-- various instances of

this--the one which arose out of the building of the Museum in Heidelberg in 1827--the cry of "Bursch, come forth!" raised, and all the Students, in procession, quitted the city--the progress of negotiation and return of the Students-- Marching-Forth from Heidelberg on account of dispute with the Military--Marching-Forth from Göttingen in 1818--progress and event of it--Anecdote of a Student and an Actor at Darmstadt-- Noble instance of the cry of "Bursch, come forth!" being raised for the defence of the Jews--used in case of fires--in defence of the Prussian Students--Debts of the Students--their vengeance on an offending Tailor--the Manichæans or creditors--Mr. Traveller quits Heidelberg--Scene at his Rooms--Accompanied by his Friends to Weinheim--Meeting with a pedestrian party of Students from Wurtzburg--As Mr. Traveller departs they sing, "A Mossy Bursch now forth I wend"

## **CHAPTER XXII.**

The Student's Funeral, etc.--Hazards supposed to attend Student-life considered--Termination of the Student career by death--No class of persons so poetically testify their respect and affection for their deceased friends as the Students--Description of the whole Pageant and Procession of a Student's Funeral--with the final burning of the torches before the University, and singing of the "Gaudeamus igitur"--Funeral honours paid to a Professor

## **CHAPTER XXIII.**

The Comitatus, or accompaniment of a Student in procession on his quitting the University--Hard study of the Student as the day of Examination approaches--Degrees obtained--Description of the Comitatus procession of his Friends, as formerly practised and as at present--they sing the song of "The Mossy Bursch" at parting-- Ballad of "The Old Bursch"

## **CHAPTER XXIV.**

Summary of the actual merits and demerits of German Student-life--  
Arguments of Professor Ringseis against Duelling

## **CHAPTER XXV.**

A Review of the Political Aspect of Student-life

## **CHAPTER XXVI.**

A parting glance at other Universities German and Foreign

---

The General Beer-Comment of Heidelberg



# LIST OF GERMAN SONGS.

## TRANSLATED INTO ENGLISH.

1. [The Sword Song](#)
2. [The German Fatherland](#)
3. [The Union Song](#)
4. [Are German Hearts](#)
5. [We Builded Ourselves](#)
6. [The Fox-Ride](#)
7. [Free is the Bursch](#)
8. [The Wirthin's Daughter](#)
9. [God greet Thee, Brother Straubinger](#)
10. [True Love](#)
11. [The Departure](#)
12. [The Gallant Ship is going](#)
13. [The Four Elements](#)
14. [There Twinkle Three Stars](#)
15. [Roundelay](#)
16. [The Krähwinkler Landsturm](#)
17. [The Binschgauer's Pilgrimage](#)
18. [Drinking Song](#)
19. [The Pope](#)
20. [Drinking Song](#)
21. [Rhine-Wine](#)
22. [Prince Eugene](#)
23. [Commers Song](#)
24. [An Unbounded Jollity](#)
25. [Gaudeamus Igitur](#)
26. [Old Noah](#)
27. [Old-fashioned Bursch](#)
28. [The Travel Song](#)
29. [The Landsfather](#)

30. [Prince of Fools](#)
31. [Ways of the Students](#)
32. [Crambambuli](#)
33. [Song of Wine](#)
34. [The Departing Bursch](#)
35. [The Old Bursch](#)

**THE**

**STUDENT LIFE OF GERMANY.**

## **CHAPTER I.**

### **GENERAL PLAN, OFFICERS, AND COURTS, OF A GERMAN UNIVERSITY**

Jerusalem beautifully observes, that the barbarism which often springs up behind the loveliest and most richly-coloured flower of knowledge, may be a kind of strengthening mud-bath, to prevent the over-delicacy which threatens the flower; and I fancy that one who reflects how far knowledge usually climbs in a student, will allow the so-called Burschen life to the Sons of the Muses, as a kind of barbarous Middle-age, which may so far fortify them as to prevent this delicacy of refinement exceeding its due bounds.--*Jean Paul Richter's Quintus Fichslein.*

Student Life! Burschen Life! What a magic sound have these words for him who has learnt for himself their real meaning! What a swarm of recollections come over him who has once visited that land, however long it may be since he returned homeward to a safer haven! Youth flies on wings of impatience towards this happy time; age, though indeed it may smile over the recollection of many a folly, recalls its memory with delight.

We hear two old men, who in later life recognise each other in civil office, and loaded with honourable duties. They speak of those beautiful dreams of youth with enthusiasm, like two old veterans rejoicing themselves in the recollections of the campaigns in which they have served, and the battles which they have fought together. "To the old times!" cry they, touching their glasses together, filled with noble Rhein wine, and with their joy sorrowfully mingles itself the memory of the many companions of those times, who have already quitted this life; for it is a fine characteristic of the heart of man, that while enjoying the highest happiness of the present, or when joyfully calling to remembrance that once enjoyed, in such moments it feels most painfully the absence of distant friends.

The stranger who should hear the conversation of these old gentlemen; as he saw how they became young again in spirit, and how their forms, bent with years, they raised again erect as they conversed, would gladly linger

near them, and would certainly say, "Those must indeed have been delightful times!"

Yes, they were--and they are, for those who know how to enjoy them. Stranger, thou who hast never known this beautiful life; and thou who wouldst willingly experience more of it,--to you hope we to be able to reveal many an attractive feature, and you shall behold many a scene, as we venture to predict, snatched fresh and living from the heart of this existence. Follow us into the City of the Muses--to the strife-place of this passion-driven life; there will we teach thee more nearly to observe the peculiar constitution of this student state, and the habits of its citizens, which thou hast perhaps observed many a time with amazement. Many a foreigner has even probably been for a short period a citizen of this state, without having penetrated deeply into its constitution and all its peculiarities. To him also will these pages afford information and entertainment,

Plunge boldly into actual human life,--  
Every man lives it; few men know it well;  
And where you seize it, there you make it tell.

*Prologue to Goethe's Faust.*

We have here in the very outset used the expressions "student" and "bursché," and shall find ourselves necessitated still oftener to use them; we will, therefore, at once give a few sentences in explanation of their meaning. By student, we understand one who has by matriculation acquired the rights of academical citizenship; but, by bursché, we understand one who has already spent a certain time at the university--and who, to a certain degree, has taken part in the social practices of the students. How and when he acquires a real claim to this title, we shall hereafter have occasion to show. We will here only make one observation regarding the origin of this term.

In order to render a university education available to men of little or no property, in the twelfth century colleges were founded, where poor youths received free lodging, maintenance, and money, and lived under the strict superintendence of one or more teachers. This became extensively the case in the thirteenth century, and still more general in the fourteenth. Private

persons of wealth were mostly the benefactors, when such institutions were founded and endowed. In Germany such colleges were called *bursen*, whence comes the term *bursché*. This name, given at that time to such as dwelt together in such a burse, was, at a later period, restricted to those only who had for a longer time taken a more immediate part in the associate life of the students. The signification of the terms--student life, burschen life--thence derived, is plain enough of perception. Before, however, we conduct the reader into this burschen life, in order to give him a clearer understanding of it, we will say a few words on the constitution of universities; on the surveillance which the state exercises over them, and on the relation of teachers and university officers to the students.

The right to found universities--to dissolve them again--to unite them with others, and so on--belongs at the present time only to the respective sovereign princes, who have held these prerogatives from the dissolution of the German empire. Prior to this, they centred in the Emperor, and before the Reformation, in the Pope. The universities stand under the particular protection of the state, which superintends and conducts them by jurisdiction thereunto especially organized. The interests of the universities are protected by a representative in the Landtag, the second chamber of the state. Should a university have causes of complaint against the prince, it must appeal to the Bundestag, that is, the court established between the different German states, to decide all questions between those states, or between the prince and people of any one of them.

At the head of a German university stands the rector, or more commonly, the prorector, since the rectorate is generally retained by the sovereign princes in their own hands, as is the case in Baden. With the rector or prorector is associated the Academical Senate, as a permanent court of administration. The prorector is annually chosen at Easter, by the Great Senate, out of the body of professors. He is then proposed to the curator, formerly termed throughout Germany, the chancellor, and still so styled in Wirtemberg. On the motion of this officer, he is confirmed by the prince. His duty is to promote, as far as in him lies, the prosperity and object of the High School generally, and especially the moral and literary education of the students; the enforcement of the academical laws and statutes; and to watch over the official proceedings of the curatorship, and the resolutions of

the Senate. He thus presides over the Great, and Select or Lesser Senate, where he also exercises the right of proposition; opens all propositions or memorials; collects the votes; and, according to the majority, decides. He is entitled to be present at the assembly of the Ephorats. At the expiration of his prorectorate, he continues in the senate a year, where, in the absence of the prorector, he occupies his place.

The Senate is divided into the Select and Great Senate. The first consists of the prorector, the ex-prorector, and four ordinary professors, each section furnishing one. At the end of every half-year three members go out. Their successors are appointed from the curatorium--the office of the curator. The period of office is for a year. The Select Senate corresponds with the curatorium, and it is the business of the prorector to lay before this body all current communications from the curatorium: in ordinary cases, at its ordinary sittings; or in emergencies, at extraordinary ones. The Select Senate lays before the Great Senate all such concerns as have been brought under its own consideration, or such as at least two-thirds of its members shall deem of sufficient importance to require reference to this larger body. The Select Senate assembles regularly every fortnight. Extraordinary meetings are called by the prorector. In cases of an equality of votes, the prorector gives the casting voice.

The Great Senate consists of all the ordinary professors. To this senate belongs the election of prorector, and other officers of the university, so far as the university right extends, and the management of the affairs consigned to their care by the Select Senate. The Great Senate has, therefore, no fixed days of assembly. The four faculties of theology, law, medicine, and philosophy, which last includes in itself all that is not comprehended under the other three, as mathematics, political and states' economy, history, language, etc. etc., constitute the main learned and scientific fabric of the university.

The teachers are divided into ordinary professors; such teachers as occupy the established professorships, with the emoluments and duties thereunto belonging; and the extraordinary professors, such teachers as possess only such salary as the prince bestows. These do not always hold an actual professorship--and in this respect, resemble a third class, the so-

called *Privat Docenten*; that is to say, gentlemen who devote themselves to an academical career, who have taken the degree of doctor, and through a public disputation have acquired the right to deliver lectures on subjects connected with their particular department of science. The last receive no salary, but depend upon the remuneration derived from their classes.

This institution of private teachers forms a nursery, out of which the High School can advantageously recruit itself with able professors; and we shall have occasion presently to show the great benefit derived from this regulation, especially when compared with the arrangements of the French universities.

All the ordinary professors are members of the faculty by virtue of their office. Their rank in the faculty determines itself by the number of years during which they have occupied regular professorships, whether in that in which they reside, or in some other university of Germany. The oldest member of each faculty becomes, according to established rule, its head, with the title of Dean. To him it belongs to bring forward all affairs of the faculty; to superintend the examination of the students, as well as to issue the diplomas conferred on them.

The same honorarium which the docenten or tutors receive, receive also all the teachers of a university, from those students who attend their classes. There are regular receivers, quæstors, appointed for the reception of the honorarium, or charge for the attendance of lectures, to whom especially belongs the reception of all money belonging to the administration of the university, and attention to every thing connected with the financial department.

The universities possess funds of their own, which are derived from ancient grants from the princes, and from private legacies. To this fund the government adds an annual determinate contribution; and from this united income are defrayed the total expenses of the High School; as the salaries of teachers and officers, and the management of its subordinate institutions. Besides this financial administration of the university, it has also a building and economy commission. The building-commission has the superintendence of the new building and necessary repairs in the university, and under its direction is placed the building inspector with a yearly salary.

In the economy department of the university, the commission, in all that falls under its management, has to maintain a correspondence with, and receive the approval of the curatorial office. It assembles once a month under a director, who is selected from the members in routine. The cashier of the university has a seat in the commissions, and he is at the same time secretary, and draws up and signs the decrees of the senate.

As the university has its own Board of Finance, so has it also its Court of Justice. The peculiar life of the universities--their peculiar relation to the state--the members of such societies--flowing together, as they did and do, from such different countries, to combine themselves, so to say, into an *imperium in imperio*; into a small state, in fact, which must enjoy a certain, and, indeed, ample degree of freedom, and yet must be made subordinate to the great state,--all this made the princes in the times immediately succeeding the founding of the universities, feel it necessary to grant to them their own courts of justice. So received these institutions peculiar privileges. Individual laws were given, till their number became so great that it was requisite to collect them into a code. These laws, as they at present exist, have been revised by the government, in conjunction with the senates of the universities, and confirmed. They bear especially upon the following points. First, upon the acquisition and forfeiture of the rights of academical citizenship. Candidates for matriculation must, upon an appointed day, and at an appointed hour, appear before the board of matriculation, and lay before it their certificates of learning and morals. If these are found satisfactory, the board delivers to the candidate the printed academical regulations. Hereupon must he sign what is called the reverse; that is, an attached form of declaration, binding himself to take no part in any prohibited *verbindung*, or union, or in any designs of a demagogue burschenschaft, but to conform himself to the academical laws. The new candidate thereupon gives to the prorector what is called the hand-gelübde, or literally, hand-oath; that is, he gives him his hand, pronounces what is above stated, and then receives the matriculation certificate, or diploma, which confers upon him the enjoyment of all the rights of academical burgership. Through this he acquires a claim on the academical court of justice, on the protection of the academical laws, as well as the right to enjoy the benefit of the library and the learned institutions.



No one who has not matriculated can attend the public lectures, except the tutors, companions or attendants, appointed by parents or guardians to students--these, of course, also paying the regular fees--and such persons not studying in the universities as are so far advanced in life as to put matriculation out of the question. This right of academical citizenship continues five years, provided it be not voluntarily relinquished or penally forfeited. The laws extend themselves to the relations between the students and the heads, professors, and subordinate officers of the university, as well as towards other officers of the state or city. For instance, the penalties are stated, for offences against these various officers, as also the duties of the students in regard to their studies. A long series of laws defines the penalties for the peculiar offences of students, as for games of hazard, real and verbal injuries to one another, especially for the duel, under its various forms; for breaking the peace, drunkenness, tumults and uproars, interdicted assembling of themselves together, secret combinations of students, etc. It is further declared, that public processions are only permitted under certain conditions, and that the wearing of colours is forbidden. Further declarations regard the debts of the students; and lastly, the regulations under which the advantages of the university library are to be enjoyed are made known.

The oversight and penal jurisdiction over the students are exercised by the academical senate, the prorector, and the amtmann, or magistrate of the university. The ephorat is a peculiar board, consisting of select professors, which only in the sphere of fatherly and friendly admonition exercises its superintendence chiefly over the moral conduct of the students when occasion requires; exhorting them to diligence and good behaviour, and putting itself, if necessary, in correspondence with their parents. The magistrate exercises the jurisdiction in the first instance. In criminal cases, he draws the process, and sends it, not to the court of justice of the university, but to the ordinary tribunal of the state; in affairs of discipline he conducts the inquiry, and pronounces all academical penalties, with the exception of the *consilium abeundi*. The proceeding in the inquiry is summary, and, in cases where the ordinary oath is administered to people in general, is the *ehrenwort*, or word of honour of the student demanded. To the condemned it is neither allowed to look into the proceedings against him, nor is the name of his accuser revealed. He must even submit himself

to the judgment of the senate, without the power to insist that the ground of its judgment shall be made known. The appeal from the sentence of the amtmann, lies to the senate, which also pronounces the *consilium abeundi* and the relegation, on the motion of the amtmann. The appeal from the sentence of the senate lies to the minister of the interior.

For the administration of the academical laws and acts of justice, especial police officers, and beadles, upper and inferior, are maintained. The chief beadle in pressing cases, has the right to cite before him, and to arrest without warrant, but must immediately make announcement thereof to the amtmann.

The chief beadle, who lives near the college, has at the same time, the care of the prison, which is in the upper part of his house. Two beadles do duty in the university library. In the scale of academical punishments, first stands reproof, then pecuniary fine, then incarceration. The signing of the *consilium abeundi*, includes a solemn promise not to suffer himself to become guilty in future of any offence, even of smaller moment. He who, notwithstanding, breaks this promise, and becomes guilty of an offence which would draw upon another at least eight days' imprisonment, can meet with no lighter punishment than the *consilium abeundi*. This *consilium abeundi* consists in expulsion out of the district of the court of justice within which the university is situated. This punishment lasts a year; after the expiration of which the banished student can renew his matriculation. The relegation is the punishment next in severity. It has two degrees. First, the simple relegation. This consists in expulsion out of the aforesaid districts, for a period of from two to three years; after which the offender may indeed return, but can no more be received as an academical burger. Secondly, the sharper relegation, which adds to the simple relegation an announcement of the fact to the magistracy of the place of abode of the offender; and according to the discretion of the court, a confinement in an ordinary prison, previous to the banishment is added; and also the sharper relegation can be extended to more than four years, the ordinary term, yes, even to perpetual expulsion. Loss of honour is one of a class of severe penalties which can only be pronounced by a civil court of justice. Previous to any *consilium abeundi* and relegation, the university amtmann must send intelligence to all the German universities, and to the city magistrates, of

the cause of the prosecution, together with the signature of the culprit, and also must affix a copy of the sentence on the black board, that is, a black tablet, or board, in the university, to which all the announcements to its members are attached; and at the same time must advertise the parents, or those standing in their relation, of the same. Causes of complaint, which a student considers himself to have against an academical officer, must be laid before the academical amtmann, if such officer belong to the inferior class of the servants of the High School. When it affects a head or teacher, then before the academical senate; if it affects the prorector, or academical senate, then it must be carried to the curator of the university, who must receive it, and lay it before the minister of the interior.

---

Through these brief sketches we hope to have given to the reader a clear notion of the constitution of a German university, in reference to its financial and judicial administration. We have so far had Heidelberg in our eye, and may be allowed to do this, since however different the universities of Germany may otherwise be, in spirit and manners, in these respects they resemble each other. Upon the conformity of their present constitution to their purpose, we may leave the reader to make his own reflections. This is a subject upon which recently so much discussion has taken place, and so many proposals have been made; not indeed so jocose as that of Lichtenberg, where he says, "every university should have an ambassador at the other universities for the purpose of keeping up the friendships as well as the enmities;" we shall moot this point as opportunity occurs, we will at present make only a few observations on the constitution of the universities, as regards the course of studies.

The annual courses of instruction are divided into summer and winter half-years; betwixt come Easter and Michaelmas as vacations. The lectures, which in these annual courses are delivered, comprehend in themselves the whole doctrines which belong to the circle of the four faculties. The professors are bound by the state, by which they are paid, to deliver the necessary lectures, but they are allowed a certain freedom in the distribution of these lectures amongst the members of the faculty. Every teacher is bound during three times each week, to deliver a public lecture, gratis, on

which occasion he either makes an examination of the students on the subject of his regular course, or lectures on an interesting but generally minor topic of his branch of science or literature, which possibly the students would hesitate to attend were they obliged to pay for it, and which yet may be important to the creditable discharge of their future profession. Every lecturer is in duty bound to devote twelve hours per week to his regular course, that is, to the lectures for which he receives a proportionate honorarium from the students; these twelve hours being divided into two or three lectures, according as the extent of their matter may require. Besides this, it is the duty of each lecturer, so far as his other obligations permit, to be ready to deliver any lecture which lies within the sphere of his department of teaching, when, out of the ordinary course, such is desired of him by a number of the students, so soon as those who seek it assure him of a proportionate remuneration for his trouble. To these *Privatissimi*, as they are called, or especially private lectures, being once agreed upon, no other auditors can be admitted. Lectures are delivered every day, Sundays and holidays excepted; each delivery continuing only one hour, so that one may not prevent another. The majority of the lectures are delivered in German, partly extempore and partly from the written notes; the latter practice, however, becoming daily more rare. A certain time before the new course begins, a list is sent round, on which each lecturer puts down the lectures he intends to give. The hours of delivery are next added, in order to avoid collision. After its receiving the approval of the curator, it is published under the direction of a commissioner appointed by him. The list is in German. The commencement of each course, as well as other particulars connected with it, is made known on the black board. It is at the option of each student which course or courses of lectures he will attend during the current half-year, and he gives notice accordingly to the professor who has announced that course. Yet is the student in the German states obliged, within the period of his whole university study, to attend a certain number of lectures, if he wishes to be admitted to a state's examination. Those lectures which bear upon the peculiar profession at which he aims, are prescribed to him by the state to which he belongs. He must obtain from the respective lecturers, testimonies that he has diligently studied every lecture of that kind. A copy of these testimonies is contained in the so-called departure-certificate, without which no one can be admitted to the state's examination; and this certificate is sent directly by the prorector to the

board of examination. This departure-certificate is, in fact, on the student's quitting the High School, drawn up, and signed by the prorektor and amtmann of the university, and contains the date of matriculation, the continuance of his abode at the college--a certain term of abode being prescribed by the government for the student of each particular profession,--the attendance of lectures, a statement of his behaviour, what punishments he has become amenable to. The certificate expressly announces whether the student has taken part in any interdicted combination or not; whether he even were suspected of such participation, and on what grounds.

The university buildings themselves contain the lecture-rooms; and the greater part of those lectures which are likely to draw the largest audiences are there delivered. The warming of the rooms, and their lighting up for the evening lectures, are the care of the nearest dwelling chief-beadle. These buildings contain also a larger hall, in which the public celebrations of university affairs and events are held. In this hall, for example, are annually delivered, publicly and solemnly, the gold medals to those who have best answered the prize-questions propounded by each faculty. The professors also frequently lecture in their own houses. The medical and natural history lectures are mostly in these buildings, where those collections of specimens and subjects belonging to the university, which are necessary to demonstration, are deposited. Amongst these are the apparatus for the physical sciences, the chemical laboratory, the zoological and mineralogical cabinets, the cabinet of models, the buildings in the botanical gardens, and school of anatomy. The lectures also on pathology, surgery, and obstetrics, are delivered in the respective hospitals of these departments. Besides the professors in the university, also other teachers of physical exercises, as the riding-master, fencing-master, dancing and swimming masters, receive small salaries, that students may not lose the opportunity of perfecting themselves in these arts.

In order to make support at the university easy to those without property, many regulations are established. To those who can bring certificates of inability to pay, the lecture-fees are remitted. Besides this, in the different universities exist endowments, derived in part from an ancient period, for such as cannot support the cost of a university life. Many universities are rich in such endowments, or stipends. It is a popular joke, that any student

who arrives at Greifswald, well known as the smallest Prussian university, is asked at the gate whether he will accept a stipend; and if he declines, they hesitate to admit him; since, unless students enow will come and take them, the university does not know what to do with its endowments. The candidates to obtain stipends must submit to an examination, and then receive half-yearly a fixed sum, which however, in case of ill conduct, can at the end of any half-year be withdrawn. These endowments are in the management of several professors of the academy. The various seminaries possess the like; in particular, the preacher seminary, where the young theologians are prepared for their future calling. They live in a large building at free cost, and under stricter oversight than the rest of the students. Every student who is in circumstances to pay the college fees, must make half-yearly, a small contribution to the sick union, out of which sum such of the poor students as become ill are furnished with all necessary attendance in particular apartments in the hospital. For this union a commission is named, consisting of several of the professors, and some students.

These slight notices may be sufficient to give us a conception of the internal arrangements of one of the German universities, which proudly may the German say, though they may indeed have their defects, yet stand far above all foreign ones. What country can show an institution so well organized and ordered as our High Schools? Truly does it excite admiration and delight to see so small a state, even as Baden, whose peculiar aim is the diffusion of knowledge. On the one hand, teachers paid by the state, that they may, freed from all the pressure of affairs, be able to dedicate their lives entirely to the office of teaching; and on the other, scholars flocking from every country, to avail themselves of their instructions.

How many great men have already gone forth out of this school! What beneficent influence such an association exerts on the whole life with which it is surrounded, we see strikingly when we turn our eyes elsewhere, when we compare the fresh and living spirit which a university inspires, with the unintellectual existence of a mere mercantile city. Most true are the words of Goethe:--"That academical life, even if we cannot ourselves boast of participation of its peculiar diligence, yet in every species of accomplishment yields incalculable advantages, since we are perpetually

surrounded by men who either possess knowledge, or seek it, so that, from such an atmosphere, even while unconscious of it, we draw actual nourishment."--*Goethe's Leben Wahrheit und Dichtung*.

And this fountain of all high knowledge, we may assert it with joy, flows not only for the wealthy and the lords of broad lands. No! it stands open to the poorest amongst the people, that it may call forth talent and spiritual endowments to their highest accomplishment! Through this becomes it possible to the humblest individual, in the lowest condition of society, on the wings of merit to soar up, and that no heaven-gifted head shall be lost to the service of mankind. However high in Germany the advantages of a university education are rated, and as some may possibly imagine overrated, yet this fact has sprung from it,--that the richest and most independent must pass some years at one of the High Schools. God be praised! the number of those is few who look upon knowledge as a milch-cow, from which they may draw their daily living, and on the university as a stall, in which that useful beast is reared and cherished. Men have learned to perceive that the possession of knowledge is desirable to every one, even if he draw no direct worldly advantage therefrom. A noble rivalry to push discovery farther and higher, through the power of the human mind, and to dig after the truth, has diffused itself far and wide. The times are gone by, against which Rabener directed the fire of his Satires. I recollect where Sancho Panza in the discussion on proverbs says gravely--"Beside the watchman I know no one in our city who has attained his office in a creditable manner, and in passing must I also remember, that he is the only one in our place that had understanding before he had his office."

It is only by merit that a German can now acquire an honourable position in society; nay, the rich and the noble feel a pride in showing the world that in them these merits are not wanting. Here is an example of this honourable sentiment.

"Shall you soon depart to your estate?" inquired a foreigner of the Graf von Sch----, one of the richest nobles of Germany, who studied jurisprudence in Heidelberg.

"No," replied the Graf, "I shall first submit myself to a state's examination."

"Indeed!" replied the foreigner, "will you then really become a legal practitioner?"[\[2\]](#)

"No; but I will show to the world, that without my possessions I could have made my way by my acquirements."

And to this diffusion and recognition of the claims of knowledge, to the scattering abroad of science amongst the people, what has more contributed than the foundation of our universities? Out of them go forth the distinguished men who guide the helm of the state with circumspection; out of them the teachers of the pulpit and the folks-schools,--to diffuse light and improvement throughout society.



## **CHAPTER II.**

### **GENERAL VIEW OF STUDENT-LIFE.**

The word freedom sounds so sweetly that we could not be without it, even did it indicate errors--  
*Goethe's Leben Wahrheit und Dichtung.*

"Free is the Bursch!" exclaims a beautiful student-song--a song beaten so threadbare with continual singing, that now we seldom bear it sung by the student himself. And true is the cry; or tell me who is freer than he? Where see we the idea of freedom so beautifully realized as in the German student-life? He who has learnt to know this life, may even doubt the truth of that otherwise so true expression of Schiller's--

Freedom is only in the realm of dreams.

The life of the university is an admirable school, which brings the young man quickly to a sense of self-dependence, which in a few years brings him to manly knowledge, and builds him up to a fitness for intercourse with other men. The freedom which the student enjoys in a high degree, is truly a strong touchstone,--a dangerous rock, on which many a one splits,--but it is the only ground on which genuine knowledge can attain its noblest bloom. Suddenly liberated from the fetters of school, from the strict oversight of parents, steps the young man into this life. He is distant from the friends who, as it were, shaped his early being,--from his nearest relatives. His whole life's plan must be now fashioned after his own judgment; he may enjoy his pleasures with a freer choice, and pursue his studies in a great measure according to his own discretion. He stands free to choose his friends from his numerous fellows; and it is only by his own qualities and endowments, that he can convert them into friends. When entering on this new scene of life, may he never forget the words of Goethe--

No single thing can suit itself to all.  
Let each look to his ways,  
Where he goes, and where he stays;  
And he that stands, take heed he do not fall.

There is a prejudice which yet prevails abroad, that the student, especially the foreigner, is exposed to many unpleasantnesses through the necessary intercourse with his companions; the obligation to take part in their customs and amusements, which are often denounced as sufficiently rough and barbarous. This prejudice is totally groundless, at least in the present times. The necessity of intercourse, the compulsion, have no existence whatever. On the contrary, every one lets another act as he likes, and troubles himself no further about him, than as his society may be desirable to the individual himself. It is perfectly at the option of the new comer whether he will isolate himself, or in what society he will live; whether he will participate to a certain degree in the student life, or even enter into one of their Chores. If he seeks not the society of the students, he is perfectly secure not to be sought after himself. Nor let any one, especially the foreigner, imagine that he may claim distinction on account of his wealth, or his high birth; or that he may expect from his university acquaintance particular homage on that account; thereby would he certainly expose himself to ridicule and annoyances. Nobility holds in Germany no longer such absurd estimation; few Germans seek a man's acquaintance exclusively on account of its possession, and those few are despised. This is a necessary consequence of the constitutional structure of our German states; and hence are the Germans freer than the English, who pride themselves so much on their political liberty, and yet are such slaves to the nobility. This singularity of the English often becomes very ludicrously conspicuous in constitutional Baden, to whose cities they so numerously resort; and the students of Heidelberg have often made themselves merry over it, especially when the English families in a neighbouring city have, each term, picked out the address calendar of the university--a list of the students published each half year--those names which had any mark of nobility about them, and invited these *elite* to their entertainments. If this is a prominent feeling throughout Germany, it is in the universities, at least in the majority of them, the ruling one; and to make clear what I have here said, I may quote the following words of Lichtenberg. "An equality like that of the French people, exists amongst the students of the universities. The

poorest thinks himself as good as the Graf, and stoops not to him, though he freely leaves him to enjoy any advantages that he may possess. Should he set up haughty pretensions, that were the way effectually to ensure a denial of any claim. They are only proud assumptions, that are intolerable to the free man; for the rest, he is thoroughly disposed to allow to him every distinction that he deserves, and what these distinctions are, he has generally correct means of determining."

The academical freedom is a possession dear to the student. He has defended it with zeal from the ancient times; and a conceived encroachment upon his privileges has often occasioned general risings of the whole student body against the infringing power, which though they may not be wholly commendable as excesses, were always highly remarkable, and indicate vividly the spirit of student life. We allude to the marching forth from the university cities, and the denunciations which the students have sometimes pronounced, as a severe bann upon them. But of this more anon. This freedom has the most beneficial influence on the prosecution of the study, and the manifold accomplishments of the students. This has become perceived and acknowledged by the greatest men; and it has made itself conspicuous that exactly in those colleges which enjoy the highest degree of freedom, amongst which Heidelberg is numbered, there also prevails the most active pursuit of every academical advantage. This free associate-life of the students has, moreover, the most decided influence on the general cultivation of mind and manners. Flowing from different countries, these diverse elements meet in the most varied points of contact, and mutually impart their experience and their customs. The author of the article on Heidelberg in the Halle Year-Book, speaks of Heidelberg in this respect, thus:--

The variety of nationalities which meet in Heidelberg give an intellectual activity to the associate-life of that student-world; and preserve it, at least, from the eternal monotony of fixed conventional forms, stale jests, *fade* word-wit, and bookworm pedantry. The happy-spirited, practical, intelligent Palatine; the simple, honest Swabian, who has seen only the world which lies between his own mountains, but with his sound, clear intellect, penetrates through every thing; the open Rhineland; the pithy Hessian; the polite, socially-accomplished, well-bred, reserved North-German; and the

grave, self-confident Hanseat;--each brings a different style of accomplishments, a different view of life, different experience;--each race maintains its own natural character, without withdrawing itself, however, from the impressions of the other nationalities, and the equipoising influence of the common elements of their confluent existence. Add to these, the numerous foreigners--Swiss, French, Belgian, English, Spanish, who soon find themselves disposed to attach themselves in preference to one of the German races, and ready, through the common medium of social life, to receive somewhat from all, and give to all somewhat, as it may happen. And herewith is connected this important consideration, that these foreign frequenters of the university of Heidelberg are almost wholly connected by birth with the higher classes of society, and are impelled by their professional views towards the interests and the movements of social life. They all bring thither cultivated mind, and a broad grasp of observation of life and manners; for the increase of which, neither internal impulse nor external means are wanting. It is indispensable to good *ton* amongst the students of Heidelberg, more or less to have travelled. The vicinity of the Rhine, of France, of Switzerland, excite to still further excursions, for which the vacation affords a favourable opportunity; and those thus returning from distant regions, from Paris, from the Alps, or from the sea, bring with them new and very varied impressions,--whose communication, exchange, and turning to account, again for a long time fill up and refresh the intellectual life, not only of the individual, but of the meetings of the national Chores, the associations formed from the general body of the students.

He who would dispute the great advantages derived directly from the social life of the students--to which belong not only different nations, but different faculties, especially in rapidly developing the intellect--would deny the advantages of social life altogether; but wo to the man who is disposed to act upon such a notion, and lead an eremitical life in accordance with it; such one-sidedness of judgment must inflict upon him the severest penalty. The necessity for social union has always been the more sensibly felt, since countrymen and friends who pursue different studies, are thereby much separated from each other. The division into such unions, according to nations and landsmanships, was the dictate of nature herself. Their existence was acknowledged by the state, and honoured by it as a very

ancient arrangement. Out of these combinations sprung, about the end of the sixteenth, and beginning of the seventeenth century, the so-called Orders. When at length their aim began to appear not wholly pure, they met with government opposition; and in their place again stood forth the landsmanschafts, similar to the early national divisions, but so far different, that to the landsmanschafts belonged not only the students who were actually natives of the country whose name the union bore, but all who chose to enter the same, and submit themselves to its regulations, were received by it. All these landsmanschafts from 1815, amalgamated themselves into one common Burschenschaft; till the bloody act of Sand, in 1819, drew the attention of government upon that union, and became the occasion that the greater number of persons withdrew from the burschenschaft, and again resolved themselves into particular landsmanschafts; or, declining to belong to extensive unions, lived politically isolated. Those societies which had in the course of time assumed so many different forms, now began to frame their own laws, and to choose their own leaders. The members of each association had their peculiar badge of distinction, others wore their colours; and in the very nature of things, the constitution of such unions became more elaborate; their regulations increased in number; and ceremonies, in order to give to the whole exterior pomp and circumstance, could not be long wanting. The rulers of an earlier age saw with approval that the studentships showed themselves in the greatest possible splendour on public and solemn occasions; and the services which in times of war the student youth rendered to the state, increased their consideration. In those days, the carrying of weapons was conditionally permitted. So is it declared in an early ordinance published at Heidelberg:--"But it is expressly forbidden at evening, and after the tolling of the bell which calls the night-watch to their duty, to go about the city with arms." To which is added the menace, "that if any one dares to transgress this regulation, neither the rector nor the high school shall be allowed to liberate or to defend him."

The people, on all occasions, have delighted especially in investing public acts with pageantry; as for instance, in the conferring of the doctoral degree. This was attended with great ceremony, and without sparing of cost. The costume of professors and directors was a peculiar one; and the latter even in recent years, in many of the High Schools, were expected to appear

in black silk stockings, short breeches, a two-pointed hat, and a sword by the side. We see a remains of this ceremonial yet in the public solemnities of the universities, as in Heidelberg, on the birthday of the Grand Duke. On this occasion a procession, composed of the academical professors and of a deputation from the students, proceeds from the hall of the universities to a public solemn service in the church, and afterwards concludes the festival by a dinner.

But to return to the unions. Thus were these sanctioned by the state, and their rules acknowledged by it. This relation betwixt them and the state yet continues in Bavaria, where the Chores are bound to join themselves to the public processions in foil costume, in order to enhance their splendour. We have alluded to the original division of these into natural landsmanschafts; to their combination into one burschenschaft, or burschenship; but in all these, recent times have produced a great change. The greater part of the German governments have strictly prohibited the existence of any unions whatever, bear what name they may. The ground of this prohibition we will inquire more nearly into in another place. We will not here inquire whether the teachers of the universities were at all secretly concerned or concurrent in this measure; whether it be possible, at once, to extirpate, trunk and stalk, these unions, which are as fast rooted as the duel itself. We will not ask whether these unions do not yet continue to exist in secret; and whether in Heidelberg, with whose students we are seeking in these pages more particularly to make ourselves acquainted, this possibly be still the case. But, as in other universities, they actually do yet exist, and as it is so recently that they have been generally forbidden, we will, for once, regard them as existing, and notice more particularly their constitution.

This constitution is become by degrees very elaborate, and that necessarily so, in order to uphold the tottering fabric, since Chore life no longer retains the freshness of its early days. In the olden time, when every academician belonged to these unions, they stretched the authority of their laws over every student. But this is no longer the case. Now, the smaller proportion of the students only enter into these unions, which nevertheless represent, to a certain degree, the studentship; and wherever it becomes necessary to defend the interests of Studentdom, the whole body is ready to join them. Certain of their laws, whether descending from the early times,

and which are, therefore, faithfully maintained by the Chore members, or those which have been enacted in modern times by the Chores, yet equally extend to the whole body, and possess an influence which can be denied by none, since it is equally exerted by the Chores over all.

It is only through these greater organized masses that it is possible for studentship to proceed in its oneness. The internal arrangements of a Chore possess, on this one account, an interest, and deserve our attention the more, inasmuch as we have already said these Chores exert an influence over the rest of the students; and this renders it incumbent that before we speak of the students at large, we should acquaint ourselves more intimately with the present Chore life.

## CHAPTER III.

### THE CHORE.

Now first of all, to drive scholastic folly,  
I'll bring thee to a jovial set, and jolly.

*Goethe's Faust.*

The different Chores have adopted their names, exactly like the early landsmanschafts, from the different German nations. Yet are these, as we have already hinted, no longer so scrupulous in the reception of the new members as those were, to which none could belong but the actual natives of that country whose appellation the union bore. If any man would still persuade himself that the ancient practice is yet continued, he must construct in his own head a very peculiar geography. As these unions bear the names of the different nations, so the members of each wore publicly their respective colours, which, since the interdict against them, of course, is no longer the case. These colours were not only displayed on the cap, but also on a broad band which was worn over the breast. The prohibition of the Chore colours was a severe blow to the unions, and the students sought in various ways waggishly to surmount it. Instead, therefore, of one student, as before, wearing the three united colours, as it might be green, white, and black,--each Chore having, for the most part, like its nation, three,--now went three students arm in arm, each of them wearing one of the three colours, so that the whole three colours were combined in three friends. This attempt, however, led its authors no further than into the student-prison.

The principal of the regular Chores are--

|                                                |                          |
|------------------------------------------------|--------------------------|
| The Rhenish, whose colours are--               | blue, red, and white.    |
| The Hanseatic,               "               " | white, red, and white.   |
| The Westphalian,           "               "   | green, white, and black. |



|                                    |   |   |                                |
|------------------------------------|---|---|--------------------------------|
| The Swabian,                       | " | " | black, yellow, and white.      |
| The Nassau,                        | " | " | blue, white, and orange.       |
| The Swiss,                         | " | " | green, red, and gold.          |
| The Sachsen-Borussen, or Prussian, |   |   | white, green, black and white. |
| The English, in Leipsic only.      |   |   |                                |

Besides this, each Chore has its sign, or token; that is, certain letters curiously interwoven, with which it signs its documents, and which is known to all the other Chores. The number of these Chores is not always the same in the universities. Now one dissolves itself on account of the fewness of its members; and now a new one shows itself. When a number of students find themselves together, who regard themselves numerous enough to constitute a Chore, and are desirous to become such, the first thing which they proceed to do is to elect their leaders. These, as the representatives of the new union, appear before the S. C.--that is, the senior convent, or assembly of seniors--which is the highest tribunal of the students for the settlement of all affairs occurring amongst them. This tribunal inquires into the sufficiency of the aspirants, and if the result is satisfactory, gives its consent. The Chore appears as such at the next *Allgemeine*. By the *Allgemeine* is understood the meeting of the whole united Chores, which takes place from time to time in an *Allgemeine Kneipe*, or general drinking company, in the same manner as each particular Chore holds, every evening, its meeting, where the members drink, sing, and entertain each other. In this *Allgemeine*, or general meeting, the members of the different Chores have a fine opportunity to pick quarrels with one another,--in student phrase, to *touchiren* each other; that is, to give offence, so that the swords may not rust. The newly established Chore now takes the customary course. It strikes up a friendly alliance with one of the already existing Chores, in which its members find the greatest number of their acquaintances, at the same time that it assumes a hostile attitude to another. It falls into dispute with the hostile Chore, and what is called the *Chore-hatze*, a regular Chore-baiting, breaks out; that is, there ensues a general challenging between the members of the two Chores.

The duels thus originated are fought in succession, and the Chore is said to *pawk* itself out; that is, to drum or fight itself forward. Hereby it testifies

its mastership with its weapons, and intense is the interest which hangs on the result of the *Paw-kereien*, or fights, between the leaders of each Chore. The conquerors have their victory celebrated by their companions the same evening in the Kneipe, where they triumph over their antagonists. When a Chore has thus proved itself, it holds its *Antritt-Commers*--entrance, or opening commerce, or festivity, of which more hereafter; and to which the new Chore invites the leaders of the other Chores. The qualifications by which a member of a Chore can raise himself in it, are practice in the exercise of arms, bodily and intellectual dexterity in general; a good stomach, that he may be able to carry plenty of beer; and, besides these, a powerful voice is a grand requisite. As observed, the members of the Chore elect their leaders. The first of these is the *Senior*. He must possess the qualifications we have mentioned in a preeminent degree, and must have already passed through the other offices of the Chore, as here following. He possesses a great and scarcely limited power, and his duty in return is to advance every where the interests of the Chore, to exert himself for its credit in connexion with and in reference to the other Chores, and thus to maintain its respect, so as much as possible to raise its splendour and reputation; in short, he must, on every occasion, defend the honour of the Chore. He who possesses the next place of honour is called the *Consenior*, or *Zweiter Chargirte*, that is, holder of the second charge; and next to him stands the *Dritte Chargirte*, or third officer. The *Consenior* is, as it were, war-minister and general in the same person. All that relates to weapons and their use belongs to his department; he has therefore the care of the *Fecht-boden*, or fencing-school, and the weapons of the duel. He must be a good swordsman, as he is bound to act as second in every occurring case, when any one fights with the weapons of the Chore, and no other able swordsman is ready to do the duty of his office; he must be careful to have the weapons of the Chore, that is, an armoury of all things which belong to the different species of duel, always in the best condition. The *Dritte Chargirte* represents the finance-minister. He has to manage all the money affairs of the Chore, and the Chore treasury is under his superintendence. This is, in fact, a treasury, into which every member of the Chore pays a determinate sum, out of which all expenses of the union are defrayed. The remainder of the members of the Chore are styled Chore-Burschen, and *Renoncen*; and to these, lastly, add themselves the *Mit-kneipanten*, or boon-companions, who belong not properly to the Chore itself. These are such students as join

themselves to the Chore, frequent the meetings at the *Kneipe*, and take part in their other pleasures, without involving themselves with the affairs of the Chore. They maintain a friendly intercourse with the students of the Chore, augment the appearance of the Chore by their numbers, and in return enjoy from the union a certain degree of protection, with whose weapons they also fight. They pay less for the loan of the weapons than the other students and are allowed to use them for a fixed sum for a whole course, that is, for the half-year.

On the very lowest step of the Chore stands the *Renoncen*, who has neither seat nor voice in the *Chore-Convent*, or official meeting of the Chore. The *Renoncen* are for the most part harassed with menial services. They must convey the weapons--which are usually kept in the place of contest, locked up, those of each Chore in its own chest--in case of danger from the authorities, or of any necessity, to a place of safety; when there is singing in the *Kneipe*, they must hand round the *Commers-Books*, the song-books; and besides this, on occasion of every duel that is to be fought with the weapons of the Chore, they must go at night, after the *Kneipe* is over, to the house of the Pawk-doctor, the surgeon of the students, who is always in attendance at the duels--and announce to him the fact, with the time at which it is to take place. In all the Chores they are bound to appear at the *Kneipe*, on certain days, and failing in this respect, are mulct in a pecuniary fine. In different Chores this attendance of the *Renonce* is different: in some, it must be daily; in others, three or four times a week; and is not to be omitted without substantial reason.

Between the *Renoncen* and the *Chore-Burschen*, stands the *Fuchs-major*--the greater Fox--who is always the oldest *Renonce*, and has the right to go into the *Chore-Convent*, but is not entitled there to speak. If the *Renonce* will advance to the rank of *Chore-Bursch*, it is indispensable that he shall have fought three duels.

The *Chore-Bursch* has this peculiar duty; he must settle and determine with the strange *Kneipe*; that is, when a duel is to be fought with the weapons of his Chore, he must seek out him who has challenged, in his *Kneipe*, and announce to him the spot and hour at which the duel is to take place. One of the *Chore-Burschen* must always be present at every duel

which is fought with the weapons of their Chore. When the *Dritte-Chargirte*, that is, the treasurer, is unable, from any cause, to fulfil the duties of his office, the oldest *Chore-Bursch* must officiate for him; so also in cases of similar emergency, the *Dritte-Chargirte* steps into the place of the second, and he into that of the *Senior*. Besides the obligation to appear on the appointed *Kneipe* days, the Chore members must also, at the fixed hours, attend the fencing-school, or pay a pecuniary penalty. The reception of a *Renonce* into the Chore, as well as his advancement to the rank of *Bursch*, is accompanied by certain solemnities, and by the reading of the constitution of the union. This constitution is held profoundly secret, and cannot pass out of the hands of the three *Chargirten*, who received it at the opening of the Chore, from the *Senioren-Convent*, or official meeting of the *Seniors* of the different Chores--the so-called S. C. Every Chore has its weekly *Chore-Convent*, wherein the *Senior* presides, and the *Chore-Burschen* are present. Here the affairs of the Chore are discussed, and resolutions passed. The *Consenior* opens these resolutions to the *Renouncen*, in the likewise weekly held *Renoncen-Convent*, or official meeting of the *Renouncen*, which has to carry them into effect, without power to alter them.

As the *Chore-Convent* in each Chore is, so to say, its first board of Administration, so there is a supreme board over all the Chores, and thus, to a certain degree, over the whole body of students. It constitutes the highest court of honour of the students. It is composed of the whole *Chargirten* of the whole Chores. Each Chore possesses, in alphabetical rotation, the presidency; and the *Convents*, or meetings, held at the *Kneipe*-room of that Chore which at that time is in power. The presidency changes monthly, so that, as the court is held four times in each month, it falls four times in each Chore, which has to defray the cost of the beer that is therein drunk. The *Senior* of this Chore is president, the *Consenior* vice-president, and the *Dritte-Chargirte* secretary. Under the jurisdiction of this court fall general affairs, those which affect the interests of all students; and it passes all the resolutions, to which the whole student-body of the university must submit itself. It keeps what students call *Allgemeine Comment*, that is, the student code of laws. It addresses itself, to protect their rights from all encroachments. It hurls the terrors of its *Bannstrahl*, that is, of its power of excommunication, upon students or citizens, upon individuals or large

bodies. When a burger of the university city, or of the vicinity, whose trade derives benefit from the students--for example, an innkeeper, or a shopkeeper--treats a student harshly or unjustly, the complaint must lay his charge before this court. His memorial to the S. C. must be drawn up in due form, according to the nature of its contents, and established custom, and must bear the signature of one of the Seniors. The S. C. now makes inquiry into the guilt or innocence of the accused. If he be found guilty, it decrees the punishment, which consists in proscription, for a longer or shorter period. This state of proscription, or being under the bann, is very exactly determined in years, months, weeks, and days; and during this period no student, be he in Chore or not in Chore, dare to purchase any thing from the condemned, or enter his house, otherwise he exposes himself to the certain danger of being also laid under the bann, and the Chores regularly send their people to see whether any violation of their edict take place. For instance, should a proscribed innkeeper have a ball or dance in his house, the Chore emissaries will be there to see whether any student shows himself at it. The student falls under similar punishment who is accused and found guilty of refusing to give satisfaction by duel to another that he has insulted. Yet is no one compelled to the duel by this regulation. If a student will not fight, whether from a principle against it, or any other cause, he must, once for all, announce this fact to the S. C., and he stands exempt, only, he cannot be allowed to make any exception to the rule which he has himself thus laid down. If he commits assault or aggression against any student or students, having thus sheltered himself from the necessity of the duel, though he be no longer amenable to this particular law of the student world, he is still amenable to the laws of his country, and may be summoned before the amtmann to answer for his offence. Should he meanly avail himself of such a declaration against fighting, and yet permit himself to insult or annoy his fellow-students, so cunningly as not to come within the operation of any civil statute, and yet to be offensive and obnoxious to the rules and maxims of social life, he will be shunned and despised by the students, and will find himself pretty much in the same situation as he who is actually under the bann. The bann is chiefly launched against students for such offences as are considered to amount to loss of honour--such as one student giving another a box on the ear, or a student committing a theft; and therefore to him who lies under the *Verruf*, or proscription, on such account, there remains scarcely an alternative but to quit the university, where every channel of

intercourse would be closed against him, and where he would be shunned by all. Whole university cities have at times been laid under the bann, examples of which we shall give as we proceed.

The *Chargirten* watch over the institutions of the Chores and of the students in general,--or, in other words, over the so-called *Allgemeine Comment*. They settle also the time, place, and manner of all the public festivities and celebrations. They determine whether, and in what style, a torch-train, or a "Vivat," shall be got up; in what manner a deceased member of the Chore shall be interred; and how the studentship shall be represented in the public solemnities of the High School. They direct the choice of the ball directors, who take part in the direction of the public balls, as, for instance, in those at the Museum at Heidelberg. The presiding Chore fixes the *Allgemeine*, or general assembly, and announces it to the other Chores.

Besides this court of honour, there also exists a Beer court, which has to settle all contentions that arise in the drinking companies on points of drinking etiquette, which, as we shall hereafter find, are no few in number. To the constitution of this beer court, one man is chosen out of each Chore, and the oldest Chore-Bursch is generally elected for this purpose. It is held in regular routine at every Kneipe-room of the Chores in succession. Of the beer court generally we shall, anon, speak more particularly, and here need say no more than that before the principal Beer court, the accuser must have two witnesses, who must give their statements on their word of honour,<sup>[3]</sup> and the accused must in his defence be supported by two witnesses also. Thus constitute, as may be seen from what is already stated, these unions, an aristocracy amongst the students, which exercises a certain influence over the general academical class; which contributes to establish a principle of unity amongst them; and whose members are ready to give up some portion of their personal freedom, for the consideration and authority which they acquire in the social system; and so alluring is the feeling of the members of Chores in public processions, *Commerses*,--parties which they make to some place in the country for a day's jollification, and whither they go in a long train of carriages with outriders; and in *Comitaten*,--processions formed to accompany a departing fellow-student with public honour out of the city,--being enabled to play the gentleman, and to

*renommiren*, or in English popular phrase, "to cut a swell," that members are never wanting to these societies.

There yet remains to be mentioned the numerous class of students termed, in student phrase, Camels--amongst whom are again contemptuously distinguished those who live totally isolated and retired, and never on any occasion, or on any account, visit the Chores, their *Kneips*, or take any part in their festivities and processions, and are therefore ignominiously dubbed *Kettles*, Bookworms, etc. In conclusion, we must employ a few sentences on the early Burschenschaft and the modern fragments of its wreck.

## **CHAPTER IV.**

### **THE BURSCHENSCHAFT.**

But nothing comes up to our pleasant self-satisfaction, when we erect ourselves into judges of the high and the distinguished, of Princes and Statesmen; find public institutions clumsy and absurd; observe only possible and actual impediments; and acknowledge neither the greatness of the intention, nor the co-operation, which in every undertaking are to be expected from time and circumstances.

*Hauff's Memoirs of Satan.*

We have already traced the derivation of the word "Bursche," and observed that the first unions of the students were designated "Landsmanschafts" and "Orders." The origin of the first actual Burschenschaft is to be sought in the times when, on the establishment of the Rhenish Prince-league, which placed itself submissively under the sceptre of Napoleon, and the consequent abdication of the imperial throne of Germany by Francis II. in 1806, every heart that beat with a German feeling must have been seized with the deepest sorrow at the fall and dashing to pieces of the Fatherland. An earnest desire to be able to give help to the outraged country--the belief in a God who alone was able to free it from its oppressions--filled the heart of the patriot, and must have roused him to a tone of mind, than which nothing could be farther from that serene enjoyment of life, often bordering on actual frivolity, to which the members of academical unions were not rarely accustomed to resign themselves. A patriotic spirit, a zealous, earnest aspiration, had already proclaimed itself in the latter years of the former century. Already in its seventieth year had the Poet-league at Göttingen organized itself under Klopstock. John Heinrich Voss, the two Grafs Stollberg, Hölty, and others, belonged to it. At the same time tumbled that fabric which the Order of Jesus had artfully raised, and the German language was finally established in those rights, out of which it had so long been expelled. The lachrymose tribe of common tragedies, and the moving comedies with which Kotzebue and Iffland overflowed the



stage, were compelled to give place to knightly dramas, and Goethe's *Götz von Berlichingen* became for the hundredth time imitated. The German Muse attained a higher flight through Lessing, and finally displayed herself to the world in the two noble forms of Schiller and Goethe. The first, far from all lightness, full of deep earnestness and noble sentiment, sought chiefly to effect the moral elevation and intellectual accomplishment of youth; and the youthful freshness of his language gave to his often more philosophical than poetical reflections and sentences, an irresistible charm for young minds. Goethe moved in a contrary direction. With a predominant sentiment for beauty, and an eminent talent for imitation, he sported through every department of literature, and floated perpetually with the current of the intellectual tendency of the age. By such men the German language was speedily advanced to its point of perfection; the French language ceased to be the conversation language of the court and of the polite circles. Joseph II. introduced the German language into the court of Vienna; after the death of Frederick II. it became acknowledged as that of the court of Prussia. For a long time Weimar became pre-eminently the capital city of German accomplishment; and Goethe, Schiller, Wieland, Herder, and other distinguished men, found in the court of Weimar, a sphere of action as honourable for themselves as advantageous to the literature of their country. The French ascendancy in literature had thus ceased at the very point of time when the French political ascendancy came to lie heavy and oppressively on the nation; the literary honour sharpened that bitter feeling of political shame, and the more the German people learned to feel it, the stronger became its impatience to liberate itself from that condition into which it had been reduced by the French. But on whom must this feeling have seized more powerfully than on the student? To whom must the situation of Germany have occasioned more serious apprehensions than to him? On the one hand, sufficiently instructed to perceive the dangers which threatened the political and literary liberty of Germany; on the other, full of youthful spirit, and of desires to help the oppressed Fatherland,--such sentiments must have weaned the students from the trivial pursuit of Landsmanships and Orders, and accordingly those of the same sentiment united themselves into a *Burschenschaft*. The object of this first union was noble; namely, to rescue the Fatherland; and in order to be able to do this worthily, to raise up men strengthened to the utmost completeness of both moral and physical constitution. Thence came it, that bodily exercises,

especially gymnastics, rose into new existence; that the Burschen sought to invigorate themselves by hardships of every kind; thence, that they strove after the greatest possible purity of manners, and displayed a spirit of hostility towards the less pure tendencies of the yet existing orders. Germany's noblest sons belonged then to the Burschenschaften. These unions had their leaders and laws, much in the same manner as the Chores. Their leaders were the so-called *Rügemeister*, monitors, or judges, and had their speaker, who, in the assembly, made statement to the people of whatever affairs appeared of importance to them. In these companies ruled no aristocratic power, as was the case in those of the Chores, especially towards the younger members. To establish a thorough union amongst the students, was a main object of the Burschenschaft. On this account the duel was not permitted between the members of the union; and duels between the members of the orders were very much circumscribed, and only in cases of real injuries, or gross offences, and then under certain conditions, permitted by the court of honour. The Burschenschaften of different university cities stood in combination with each other, and members from one city were in the habit of making visits to the members of the other university cities. The Burschenschaften, as then constituted, were in most places allowed, or at least, tolerated. They celebrated often, and with the consent of the prorektor, their so-called foundation-day, or anniversary, with great banqueting, public processions, music, and torch-trains. The members of these companies conducted themselves so discreetly, that people willingly suffered them, and any little distinctions which might gratify youthful vanity--the wearing of the old German costume, the short coat, the broad out-lying shirt-collar, with the open breast, the cap which but scantily covered the long down-hanging hair, and which, as well as the coat, was mostly of black velvet--such old Germanisms and peculiar attire--were cheerfully conceded to them. Hitherto must the life and movements of the Burschenschaft be styled noble. With enthusiasm its members received the call to the fight of freedom, which resounded from Prussia in the year 1813; and from all the universities streamed forth volunteers, to join themselves to the German host, which was to do battle with the oppressors of the Fatherland. Theodore Körner has immortalized in his songs the feelings and sentiments of the German youth at that glorious crisis. Many Burschen died, like him, the hero's death, inspired with equal zeal for the good cause,

though it was alone permitted to the poet to flash radiantly forth, as from a mirror, the inner glow of his spirit in patriotic song.

### THE SWORD SONG.

Sword on my left side gleaming,  
What means thy clear eyes' beaming?  
Thou look'st with love on me,  
And I have joy in thee.  
Hurrah! Hurrah! Hurrah!

A soldier bears me dearly,  
Hence beam I forth so cheerly;  
I am a free man's choice,  
Which makes the Sword rejoice.  
Hurrah! Hurrah! Hurrah!

Good Sword! yes, free I hold thee,  
And in hearths love enfold thee,  
As if thou wert allied  
To me, a lovely bride.  
Hurrah! Hurrah! Hurrah!

Already it is tendered,  
To thee my life surrendered;  
Ah! were we so allied;  
When wilt thou fetch thy bride?  
Hurrah! Hurrah! Hurrah!

The bridal night's red morning  
Breaks to the trumpet's warning;  
When cannon peals begin,  
Fetch I the loved-one in.  
Hurrah! Hurrah! Hurrah!

O sweet embrace! untiring,  
I tarry still desiring;  
Then bridegroom fetch thou me,  
My garland waits for thee.  
Hurrah! Hurrah! Hurrah!

Why in thy scabbard ringing,  
Thou Iron-joy art springing  
In such wild battle-glow?  
My Sword, why ring'st thou so?  
Hurrah! Hurrah! Hurrah!

Ah! in the scabbard ringing,  
I long to be forth springing,  
Right wild with battle-glow;  
Hence, soldier, clink I so!  
Hurrah! Hurrah! Hurrah!

Wait in thy chamber narrow,  
What wouldst thou here, my marrow?  
Wait in thy chamber, wait;  
I'll fetch thee, ere 'tis late.  
Hurrah! Hurrah! Hurrah!

Leave me not long in sadness,  
Thou garden of love's gladness,  
Where blood-red roses breathe,  
And blossom flowers of death.  
Hurrah! Hurrah! Hurrah!

Unsheathe thee then, thou treasure,  
Of soldier's eyes the pleasure;  
Come forth, my Sword, come forth,  
On! to the father's hearth!  
Hurrah! Hurrah! Hurrah!

Aha! the glorious wedding,  
Here through the free air treading!  
How flames in sunshine bright,  
The steel so bridal white!  
Hurrah! Hurrah! Hurrah!

On, on, ye brave contenders!  
Ye German true defenders!  
And if your hearts be cold,  
The loved-one to them hold!  
Hurrah! Hurrah! Hurrah!

While on the left side sitting,  
Shy are her looks and flitting;  
But on the right, the bride  
Trusts God in all her pride.  
Hurrah! Hurrah! Hurrah!

To iron mouth love-glowing,  
The bridal kiss bestowing,  
Be every lip applied;  
Curst he who leaves the bride!  
Hurrah! Hurrah! Hurrah!

Now let the loved-one sing forth!  
The dazzling flashes spring forth!  
Fast dawns the marriage tide,  
Hurrah, thou Iron Bride!  
Hurrah! Hurrah! Hurrah!

The battle of the people at Leipsic, in the year 1814, freed Germany from its chains. For the complete liberation of Europe, and for the restoration of state relations on a firm foundation, a Congress was determined upon, which in the same year was held in Vienna. The task which this congress had to discharge was the more difficult, in that the people, inspired with a new spirit, in the consciousness of the mighty exertions that they had made, cherished hopes and desires whose realization did not coincide with the interests of Princes. The settlement of territorial relations, and organization of a new general constitution for all Germany, engrossed its deliberations. The restoration of the German empire, which was demanded by a majority of voices, was rendered impossible by the jealousy on the part of the kings of the Rhine-league of their sovereignties. As those states which had sprung up and become great under the former German empire, were now become independent, there remained no alternative, if they were to submit themselves anew to a paternal authority, but, instead of the old German empire, to substitute a sort of family compact. The return of Napoleon hastened the settlement of the fundamental principles of a German international-compact; and after eleven sittings, on the 8th of June, 1815, the *Bundes-Acte*, or Act of Convention, was signed and published.

With the rising of the people against Napoleon, a greater life and cordiality of religious faith had come back. This expressed itself in the Holy Alliance. For the maintenance of European peace, the three powers--Austria, Russia, and Prussia--not only renewed their alliance, but based it again upon a religious foundation. On the 26th Sept. 1815, the Holy Alliance was concluded by the three monarchs themselves, without assistance or advice of a minister. By this they bound themselves, the contracting parties, both in the management of their kingdoms and in their transactions with other states, to take alone as their guides the precepts of the Christian religion, the commands of justice, of love, and peace. They expressed a firm resolution, in accordance with the Sacred Writings, to

continue in the covenant of a true and indissoluble brotherly love; that national divisions and national animosity should thenceforward retreat before the consideration that their people were the common members of one and the same Christian empire; the princes themselves should acknowledge that the great Christian nation to which they and their people belonged, had in reality no other rulers than Him from whom alone power doth proceed, that is God, and the Saviour Jesus Christ. At the same time were all states solicited to give in their concurrence, and were assured that on recognition of these avowed principles of this Alliance, with alacrity and love they would be received into the sacred covenant. The Holy Alliance found numerous participants. Most of the European states sent in their formal adhesion in the course of the year 1816. One might imagine that all parties--princes and people--were about to co-operate in the sentiment so finely expressed in Arndt's famous song--

### **THE GERMAN'S FATHERLAND.**

Which is the German's Fatherland;  
Is't Prussian-land? Is't Swabian-land?  
Is't where on Rhine the red grapes hang?  
Where o'er the Baltic sea-mews clang?  
Oh no! oh no! oh no! oh no!  
His Fatherland must wider go!

Which is the German's Fatherland?  
Is't Styrian, or Bavarian land?  
Is't where the Marsen's herds do wind?<sup>[4]</sup>  
Is't where the Markers iron find<sup>[5]</sup>  
Oh no! etc.

Which is the German's Fatherland?  
Westphalian, or Pomerian land?  
Is't where the sand from sea-down blows?  
Is't where the Danube foaming flows?  
Oh no! etc.

Which is the German's Fatherland?  
So name to me the mighty land.  
The land of Hofer?--or of Tell?  
Both land and people love I well.  
Oh no! etc.

Which is the German's Fatherland?  
So name to me that mighty land.  
The Austrian land it sure must be,  
With glory crowned and victory!  
Oh no! etc.

Which is the German's Fatherland?  
So name to me that mighty land.  
Is't what the Princes' hollow theft,  
From Emperor and from Empire reft?  
Oh no! etc.

Which is the German's Fatherland?  
So name me finally that land!  
Wide as the German tree tongue springs,  
And hymns to God in heaven sings!  
That shall it be! that shall it be!  
That land brave German's giv'n to thee!

That is the German's Fatherland,  
Where oaths are sworn by grasp of hand;  
Where in all eyes clear truth doth shine;  
Where in warm hearts sits love benign.  
That shall it be! etc.

That is the German's Fatherland,  
Where foreign folly scorn doth brand;  
Where all that's base 'neath hate must bend;  
Where all that's noble name we Friend.  
That shall it be! that shall it be!  
That whole, the German land shall be!

That whole, the German land shall be!  
O God of Heaven! hither see!  
And give us genuine German soul,  
That we may love it high and whole.  
That shall it be! etc.

But with the peace which succeeded the second overthrow of Napoleon, the expectations of the German nation began to exhibit themselves more clearly; and out of the disproportion between them and that which was done to satisfy them, sprang the germs of mistrust between the princes and the people. The opening of the *Bundesversammlung*, or confederated assembly, Nov. 5, 1816, betrayed not only the imperfection of the constitution, which had been thrown together in a hurry, but also the uncertainty of the assembly itself, of the extent of its delegated powers. Its declaration that

Germany was not to be considered as a united state, but as a confederation of states--(nicht als ein Bundesstaat, sondern als ein Staaten-bund)--gave the less satisfaction, as it was just contrary to what was desired. The nation desired earnestly a common all-embracing bond of union and communion, and not merely a confederacy of their sovereign princes, which the interests of the moment, as they had originated it, would also dissolve again.

The general excitement in Germany received a palpable point of demand in the thirteenth article of the Act of Confederation. In most of the German states the anxiety for a representative constitution displayed itself in such a manner as rendered in the highest degree difficult an accordance between princes and subjects.

In Prussia especially, the constitution of the monarchy opposed so many difficulties to the establishment of a national representation, that its postponement was inevitable; and passionate discontent saw in the impracticability nothing but an evil disposition. In the other German states, the steps made towards the passing of a constitution conducted to as little result; the princes and popular representatives could not agree, since the first were as sparing in their concessions as the latter were unbounded in their demands. But the spirit which was in Germany striving after the constitutional organization of states, had not every where confined itself within due bounds. The secret unions which were formed during the ascendancy of Napoleon still continued. The excitement of the public mind, which at an earlier period had been favoured even by the government itself, so far from having subsided, had rather received a new impulse, and as it had now necessarily lost its outward tendency, it sought to take effect in the heart of Germany. The government saw with suspicion the drift of the secret unions, and their influence on the Gymnastic schools and universities; they heard with astonishment, the bold language of the rising generation approximating itself to political fanaticism. The German Confederation satisfied not these heads on fire with ideas of one and a free Germany. The restoration of the empire, in connexion with one of the prevailing theories of conformable national representation, was the master desire of a numerous party, which was spread wide through Germany, and rendered the universities the seminaries of their doctrines. The youth entered with pride into the idea, that they were called to work out their salvation, from the



circumstances to which their fathers had reduced them. Political notions of the Middle Ages mingled themselves in the heads of the student youth, with the revolutionary doctrines of modern times, and received, moreover, from religious enthusiasm, a dark addition. Thus degenerated the Burschenschaft, in a manner most deeply to be deplored, and demonstrated in a melancholy degree how near to each other lie the boundaries of truth and falsehood. Noble patriotism metamorphosed itself into a gloomy fanaticism,--zeal for religion and morals, into a hollow hypocrisy, and into a still more dangerous pseudo-philosophy. The landsmannschaften became continually weaker in the German universities, and the young men every day added themselves to the burschenschaft in greater numbers. Truly the greater number of them never dreamed to what lengths such a political fanaticism could lead them; and only by degrees and unobserved mounted the arrogance of an inconsiderate youth, till at length it persuaded itself that it alone had fought out the liberation war, and therefore was now called to give to Fatherland a new constitution.

These perilous imaginations grew continually faster and faster into that horrible avalanche which threatened to overwhelm every thing. What a difference between the years 1816 and 1817, when one compares the celebration of the peace anniversary of 1816, with that of the celebration of the October days of 1817!

On the 18th, 19th, and 20th of January, 1816, Jena, amongst other universities, celebrated the peace-festival in a style and manner, which, say the newspapers of the time, deserve to be published and handed down to posterity.

The report of this festival stands thus:--On the 16th day of January was issued from the grand-ducal police commission, and the city council of Jena, a public programme in regard to this festival. In pursuance of its ordinations, on the 17th, all the bells were rung at noon. Before and after the ringing, mortars and cannon were fired at the outer gate. At eight o'clock in the evening the Landsturm beat tattoo with music.

On the 18th, in the morning, solemn music sounded from the towers, with drum and trumpet, and firing of cannon. At nine o'clock assembled at the council-house, the clergy, the city authorities, and the elder burgers not

belonging to the Landsturm, whither also an hour later proceeded the whole body of school youth with their teachers. At ten o'clock, the assembled company moved thence in procession to the city church. A division of the Landsturm, as the procession arrived before the church, made way for it. Behind this division walked, as leader of the whole procession, the depositor, or master of the ceremonies, in a black dress, and next to him went the academical officials. Behind these came two beadles, with silver sceptres, and cloaks of red cloth, preceding the then prorector regens, Herr Hofrath Dr. Seidenstecker, the prorector being, however, as well as the prorector designatus, Herr Hofrath Dr. Voigt, who followed him, supported by two students. To the prorectors succeeded the deacons of the four faculties, two and two, and then followed the senate, the professors, the docenten, and the students, whose banner was borne before them. As the train came in front of the council-house, that of the city authorities joined it and proceeded with it to the church, in which each party took their respective seats. A second division of the Landsturm brought up the rear of the train. All conducted themselves with the decorum and dignity befitting this day, and the appearance of the whole congregation excited a lively feeling of something high and important.

When the service was concluded, the train quitted the church in the same order in which it had entered it. At the council-house, the procession of the city authorities, and those who had joined them, separated from that of the academicians, who directed their course again to the university, where they broke off.

The students now betook themselves to the market-place, and after the public appointed religious service which they had just attended, performed a private act of devotion, which in its simplicity and unostentatiousness was extremely striking and affecting. Ranged in a circle, the banner and the leaders of the procession in its centre with uncovered heads, they sung a hymn, written for the occasion by Herr Ullmann of Liefland, with such truth and depth of feeling, that Herr Hofrath Gabler, who with other professors, was present at this solemnity, seized with enthusiastic emotion by its power, thanked the students with heart-enkindled words for the elevation of soul that they had occasioned. A beautiful conclusion of all the religious and public solemnities of this day! for that many houses in the

evening, especially in the market-place, were found illuminated, was rather a testimony of individual joy, which took this way to display itself.

The following day, the 19th of January, only was left to the students to make their arrangements for their peace anniversary. And now once more, in how German, how brave, how noble a style was every festive preparation completed!

In the Rau-Thal, through which the haughty enemy of the German name had formerly led his robber-horde to victory, an Oak was selected, that, the witness of former overthrow, it might now, as a memorial of the achieved liberty of Germany--of new flourishing man's strength, be planted on that spot which, ten years before, on the most unfortunate of all days, covered with rubbish and ashes, had been consecrated to a dreadful remembrance. On the morning of the 19th, the oak was taken from its old location, and towards noon brought to the city, where it was received by the students with joyful hearts, and in procession of two and two, conducted with music to the square, the scene of former desolation. On the platz, a division of the Landsturm had stationed itself, and assisted to form the circle; a division of the mounted Landsturm had ridden in advance of the tree, A vast body of spectators stood round the platz! many of the professors, and those who took interest in the scene, stationed themselves near the oak.

When all was ready for the planting of the oak, a hymn composed for the occasion by Herr Goering, from Weimar, to a tune furnished by Herr Cotta, of Eisenach, was sung by the students, fervently and solemnly, with uncovered heads as on the day before; then stepped Herr Horn of Mechlenberg forth from the inner circle, and delivered a pregnant and powerful speech with equal animation and grace. The attention and silence of the vast throng of spectators during the delivery of this speech, testified the impression it produced, to say nothing of its subsequent influence. The speech ended; the planting of the oak was performed, accompanied by the singing of a hymn, also composed by Herr Goering, to a tune by Herr Cotta. The professors present testified their interest and delight in the transaction, by each of them scattering three handfuls of earth on the roots of the planted oak. But numbers of the maidens and young ladies bound ribands on the significant tree, eloquent with so many significations, thereby

proclaiming the strength, the desires, the sentiments, and hopes of their hearts.

As now the oak, to which we will all wish a joyful and prosperous growth, especially in its national indications, was planted, Herr Horn pronounced the iambics written for the occasion by Herr Ullmann, with the tone and feeling appropriate to their office and contents. The whole transaction was concluded by the singing of hymns, composed by Herr Neidhart, the elder of Ebersdorf in Voigtland, and breathing a noble, powerful spirit, for right and freedom, which animated the whole nation, and in its own language awarded to festival its high and significant value. The occasion thus brought to its close--a solemnity which our grandchildren may well hold sacred--the students marched in procession of two to the market-place, where they excited one another in brotherly union, with Arndt's thrilling hymn, to unity of spirit and faithful confidence in the sentiments then and there implanted.

## THE UNION SONG.

In happy hour have we united,  
    A mighty and a German choir!  
And hence from every soul excited,  
    Burst hymns of praise to God once more;  
Since we stand here o'er high things musing,  
    With feelings holy and profound,  
So the full heart its joy diffusing,  
    Must swell with all its chords the sound.

To whom shall first our thanks be pealed?  
    To God's most high and wondrous name,  
Who in our shame's long night revealed,  
    Arose before us all in flame.  
Who blasted all our foes' disdain;  
    Our strength and beauty all restored;  
Who on the stars for ever reigning,  
    Sits there from age to age adored.

Our second wish--to whom then flies it?  
    To Fatherland's high glory whole.  
Perdition seize all who despise it,  
    Hail! he who yields it life and soul!  
Through virtues pass it still be-wondered;  
    Beloved for honesty and right,  
Proud from year-hundred to year-hundred,  
    In strength and honour ever bright.

To joys of German men,--a measure!  
    One third--in clearer joy and thanks;  
For freedom is the German pleasure;  
    For freedom leads our German ranks.  
For it to live, for it to perish,--  
    Each German bosom burns for this;  
For this the hero-death to cherish,  
    Is German honour, German bliss.

The fourth--in solemn consecration,--  
    Hands, hearts aloft together go!  
Thou ancient truth--and of our nation,  
    Thou faith, united--"live ye hoch!"  
With these all doubts and fears we banish,  
    These of our bond are rock and shield;  
The world indeed itself must vanish,  
    When men their plighted word shall yield.

Close in,--the sacred circle throng now,

And raise the clash of triumph strong;  
From heart to heart, from tongue to tongue now,  
Like lightning send this joyful song:--  
The Word that knits our bond for ever;  
The Good no fiend can from us rend,--  
Nor tyrant villany can sever,--  
Believe!--maintain it to the end!

The afternoon and evening were dedicated by them to joyous entertainment at the Feurstenkeller, and with testimonies of love and respect towards their teachers, that remarkable and distinguished day terminated. The sacred celebration of the peace-festival on the part of the university, was held on Sunday, the 21st February. The church service itself was very simple, but highly solemn, and worthy of the high thoughts which the celebration of such a day could not fail to call forth. There remained nothing to desire, but that the noble spirit and sterling sentiments which had every where displayed themselves so luminously on that day, should continue to be the universal ruling ones.

So details a newspaper of the time, the celebration of this beautiful festival. But the concluding wish found not its fulfilment in the following year--for in the year 1817 was held the festival on the Wartburg; in the next year the congress of the Burschenschaft at Jena; and in 1819 transpired the bloody deed of Sand, a warning sign of the progress of political fanaticism from its innocent commencement, to that act which found its just reward on the scaffold.

In the year 1817 the celebration of the reformation anniversary falling in conjunction with the anniversary of the Leipsic Folksbattle, it was too exciting an occasion for the young state reformers not to seize on it for the demonstration of their views and aims. The festival was therefore celebrated on the 18th of October, by the students of most of the German universities on the Wartburg, in a manner which quickly excited the attention of the governments. The Prussian government, in particular, ordered the trial of all those who had taken part in the festival; and several professors who had been present, particularly Fries, came under judicial examination. From these trials it was made obvious that the few only were in the secret of the proposed auto-da-fé to be held in Eisenach, but that the majority regarded it as a desirable opportunity for drawing the

Burschenschaft into a more intimate and close union, so that it might the more powerfully operate against the landsmanschafts.

The festival was, like the prior one of October, celebrated with much enthusiasm, with sacred service, with singing of Fatherland hymns, and other solemnities: but speeches were delivered, on this occasion, which had not a thoroughly correct tendency, and must appear the more unfitting from the mouth of a teacher of youth. On the evening of the 18th of October, as formerly on that night, fires blazed up on every hill top; but those of the Burschenschaft who had stationed themselves around the fire on the Wartburg, cast into the flames the German History of Kotzebue, as well as some other detested writings. None of the professors, however, were present at this transaction, and none of the speeches connected therewith were delivered by them. That the acts of the Congress of Vienna had been also burnt there, was proved by the inquiry to be false.

The Wartburg festival was concluded on the 19th of October by the assembled participants, to the number of about 600, taking the sacrament in the church. The consequence of this festival was the promotion of the idea here conceived, of one universal German Burschenschaft; that the union of the whole body of student youth must pervade, and be the means of working out, the union of the whole Fatherland.

On the 21st of October, 1818, at Jena, a congress of students, from fourteen universities, was held; then and there the union of the Burschenschafts was discussed, and its constitution established. "One Empire, one Religion, Freedom and Equality!" This was the watchword of the combination, which, since the Wartburg festival, had exchanged its former colours, namely, green, blue, and white, for the union badge, black, red, and a metallic or embroidered oak leaf in the cap. To this circumstance alludes the following celebrated song--

### **ARE GERMAN HEARTS.**

Are German hearts with strength and courage beating?  
There to the clang of beakers gleams the sword,  
And true and steadfast in our place of meeting,  
We peal aloud in song the fiery word!

Though rocks and oak trees shiver,  
We, we will tremble never!  
Strong like the tempest see the youths go by,  
For Fatherland to combat and to die!

Red, red as true-love, be the brother token,  
And pure like gold the soul within imprest,  
And that in death our spirits be not broken,  
Black be the ribbon bound about the breast  
Though rocks, etc.

We know the strength in honest swords residing,  
Bold is the brow, and strong the arm to smite;  
We fail not, faint not, in the right confiding,  
When calls the Fatherland his sons to fight.  
Though rocks, etc.

So, on the German sword, to this alliance,  
In life and death let solemn faith he vow'd!  
Up, Brothers, up! the Fatherland's reliance,  
And to the blood-red morning cry aloud.  
Though rocks, etc.

And thou, Beloved, who in hours the dearest,  
Hast nerved thy friend with many a look and tone,  
For thee my heart will beat when death comes nearest,  
For unto true love change is never known.  
Though rocks, etc.

And now, since fate may tear us from each other,  
Let each man grasp of each the brother-hand,  
And swear once more, O every German Brother,  
Truth to the bond, truth to the Fatherland!  
Though rocks and oak-trees shiver,  
We, we will tremble never!  
Strong like the tempest see the youths go by,  
For Fatherland to combat and to die!

The laws of the Burschenschaft, or its constitution, bore the name--  
"Custom of the Burschenschaft." Amongst other things stand the following:

"In the German Fatherland we will live and move. We will perish with it,  
or die free in it, if God's great call ordain. Live the German speech for ever!  
Flourish the true chivalry! Let Germany be free!

"He who avows these ideas, and is willing to contend for their  
advancement, is our beloved brother. To accomplish these high endeavours,



there must be a universal free Burschenschaft throughout all Germany.

"There can no salvation come to our beloved Germany unless through such a free and universal Burschenschaft, in which Germany's noblest youth continues intimately fraternized, in which every one learns to know his duty--and which Burschenschaft shall always find the Gymnastic schools its defence and alarm-post.

"We will never apply the word Fatherland to that state in which we were born: Germany is our Fatherland; the state in which we are born is our Home.

"We will hold these principles firmly and honourably; spread them by every possible means; and with all our power, now as youths, and hereafter as men, labour to bring them into exercise.

"When we quit the High School, and are invested with any office, be it high or low, we will fulfil the same honourably, true to Prince and Fatherland, and in such a manner administer it as shall be in accordance with the spirit of these principles.

"The law of the people shall be the will of the Prince. Liberty and Equality are the highest good; after which we have to strive, and from which strift no pious and honest German can ever desist.

"Every student who maintains honour and virtue, shall be a free German Bursche: subject to no one; inferior to no one; all shall be equal, obeying only the laws."

From this time forward the union laboured actively at throwing out and determining the principles of a future civil and ecclesiastical constitution for Germany, and in the dissemination of revolutionary writings. But unfortunately, as in all times of high excitement, spirits of a reckless and darker character mingled themselves with the nobler ones of liberty: for the realization of their intrinsically criminal wishes, criminal means also were necessary, and the spirit of youth was thus unconsciously conducted by fanaticism into unhallowed and bloodthirsty principles, and in the bosom of the Burschenschaft union, formed itself a closer union of *The Unrestricted*,

whose name revealed sufficiently, that they would hesitate at no means by which they might arrive at their object. The misguided and blamable tendency of this spirit, to the horror of many who unconsciously implicated themselves in its criminal proceedings, was brought to light by some striking circumstances. On the 23d of March, 1810, the student Sand murdered the Russian Counsellor of State, Von Kotzebue, on no other ground than that he held him to be a spy of the Russian government, and an enemy of German liberty. He undertook the action with the full persuasion that it was a just and noble deed, and his trial revealed the horrible gulf of political immorality, unto the very brink of which was brought the youth of Germany. A somewhat particular account of this transaction, and of the circumstances of Sand's life, may fittingly here find a place: and which may be relied on, being derived from the relation published by the President of the Commission for the trial of Sand, the State Counsellor, Von Hohenhorst himself.

## **CHAPTER V.**

### **KARL LUDWIG SAND.**

Karl Ludwig Sand was born at Wunsiedel, a little town in the district of Baireuth, lying in the Fichtel Mountains, on the 5th of October, 1795. His father was pensionary officer of justice; and the family, which consisted of three sons and two daughters, lived in the most delightful domestic harmony. Sand grew up in his paternal city, under the most careful guidance of his parents, whose good and thorough education, and moral training, such are his own words, in comparison with that of many, he never was able sufficiently to praise. There lay in him the strongest and most delightful recollection of his birthplace. Its very situation, he asserted, in the bosom of noble mountains, in the midst of the great Fatherland, had wrought powerfully upon his disposition of mind, which, especially since much sickness in his early youth, had always been very still. In truth, Sand passed his years of childhood in great weakness and many bodily ailments. In his seventh year he took naturally the small-pox, and of a very bad kind, which left behind them serious effects, especially a dangerous ulcer in the head, of which the grisly scars always continued visible. On that account the physicians forbade all mental exercise, and his proper instruction could only be commenced at home in his tenth year. His father explained, that a dejection of mind which long clung to him was a consequence of the weakness which these complaints had left upon; and therefore, where parents in general would put restraint on young people of lively temperament, he, on the contrary, had always been anxious that his son's disposition should not be further depressed. After Sand had received his first instruction from the tutor, he was sent to the Lyceum, in Wunsiedel. He afterwards followed his teacher to the Gymnasium in Hof, there acquired the first elements of general education, and proceeded in the study of ancient languages. Even at this early period he entertained a vehement hatred to the French. As in the spring of 1812 a great military train passed through Hof, he would neither see the march of the French nor especially Napoleon, since he believed that he could not endure to be in the presence

of the arch enemy of his native land, without an attempt to rush upon him and destroy him.

He returned thence to his parents, with whom he continued till they resolved to send him to Regensburg, where he proceeded towards the end of the year 1812, with his tutor Saalfranc, and always called to mind with extreme pleasure his abode there. The testimonies of his life and habits during his sojourn in Hof and Regensburg, are greatly to his credit His good capacity, his restless diligence, his deep study, and not less his highly moral conduct, were greatly applauded. In his 18th year awoke in Sand the resolve to co-operate in doing battle with the common foe of his country. He may speak for himself.

"As in the spring of 1813 the French fled homewards, and Germany began to rouse itself to take vengeance for the shame inflicted on it, there awoke in me a new-born joy, a fresh mind, a new life; and from that hour I doubted no more of a complete liberation from the old slavery, although the heavens became so unpropitious to the Germans. With eager heart and yet with all possible circumspection, I lived in the newspapers of the time; and in the autumn of 1813, which I spent at home, I obtained the permission to join myself to the host of Germany, when in the meantime, came the intelligence of the battle of Leipsic, which rendered my going forth unnecessary."

Sand returned once more to Regensburg, and proceeded thence to the university of Tübingen. Here he passed quietly the winter half-year of 1814-15, and had begun the second half-year when Napoleon returned from Elba, and Sand felt himself called to stand forth with his countrymen in defence of Germany. His testimonies from Tübingen were highly creditable, yet they expressed suspicions that during his abode there he had been a member of a political union called Teutonia. Sand then first, on the day before his departure, announced to his parents his determination to enter into the army, and took farewell of them by letter. The style and tendency of his letter differ essentially from his subsequent compositions. We see in it only the youth full of zeal and fervour for his country,--who, pure, and without mixture of his subsequent political religious exaltation, avows his intimation to fight to the death for his country and kindred. "With an inward

struggle," wrote he amongst other things, "held I myself back the last time when the liberation of Germany was at stake, and it was only the conviction that many thousands then stood in the field, eager for battle and victory for the welfare of Germany, that could detain me." In another place--"The spirit at home and in Bavaria may be as it will, I hold it for the highest duty to fight for the liberty of my German Fatherland; of my dear parents, brothers, and sisters; and of all the good people who love me; and, should numbers gain the advantage over us, to contend to the very last gasp, and triumph over a tyrant in death. Ever shall your beloved images hover round me; ever will I have God before my eyes and in my heart, that I may be strengthened to bear with serenity all the fatigues and dangers of this holy war. Yet wherefore make the hearts of each other so heavy? We alone have the right, the sacred cause. There is a righteous God, and how then shall we not have the victory?"

The letter concludes with the words of Theodore Körner, which Sand had often in his mouth--

Though rages hell itself,  
God, thy mighty hand,  
Hurls down the tower of lies.

---

Perchance high o'er the slaughtered foes The Star of Peace shall rise.

Sand set out with two friends on the way through Stuttgart to Heidelberg, where he stayed some days, and then went on to Mannheim, where he announced himself to the general staff of Graf Rechberg, and was received as cadet in the volunteer Jägers of the Rezat Circle. Before his departure from Tübingen, a friend presented him with a small riband which he continually wore during the campaign, and afterwards, at his arrest, it was still found round his neck. It was green and white. The troops, which Sand's brother also had now joined, already in Homberg, met the news of the victory of Waterloo; they marched forward, however, to Meaux, and into the neighbourhood of Fontainebleau, but soon after drew into cantonments in Auxerre, and from thence marched directly back, and entered Anspach the 2d of December, 1815. Sand remembered his military career with the highest dissatisfaction, since, as he expressed himself, he

had never had the good fortune to kill a Frenchman. He had written upon his riband these words:--"With this dedicated I myself in 1815 to death. Was it not in earnest? Would I have recrossed the Rhine again except as a conqueror!"

Sand betook himself to Erlangen, and occupied himself there two years with the study of theology. Here it happened that in the summer of 1817, one of his dearest friends, while bathing, was drowned before his eyes, and he himself was in great danger of his life. This loss operated so strongly on his mind, that as he himself declared, he believed that the spring of life was now over, and that its summer had now shown itself. Consoled by his teachers and friends, he now gave the first proof of his talents for preaching in the High Church at Erlangen, continued there till the end of the half year, and then went to Jena. Sand conducted himself during his residence in Erlangen as exemplarily as before, yet he was at the same time an active member of the Teutonia there; in fact he was twice a leader of this union, and drew up a constitution for the Burschenschaft, under the title of the Erlangen Burschenschaft-Custom. From Erlangen and Jena he made several short journeys, and amongst them the one to Eisenach, which proved so influential on his future life. There he joined in the celebration of the festival on the Wartburg, on the 18th of October, 1817, and his part in this transaction he thus describes:--

"On the 17th of October I arrived in Eisenach, and was chosen on the festival-committee. I here helped to keep order; heard the speeches on the Wartburg, but did not speak myself; I went in the evening to the fire, and saw the books burnt. On the following morning I heard speeches for the reconciliation of the disputes of many of the student-quarrels of former years, and listened to the splendid orations on the Fatherland. I accompanied the Burschen to the church, and partook of the sacrament; then was the festival ended, and I returned to Jena." He adds, that it had been a festival simply for the elevation of the sacred cause, and that no determinate object besides had been contemplated.

In Jena, Sand continued to educate himself, in order, as he expressed himself, the better to look about himself, and to ground himself fairly in the different departments of knowledge; till suddenly the inner call for ever

summoned him away. His teachers there gave their testimony that he always appeared as a grave, quiet, and discreet man, zealously striving after excellence. That he was accustomed to speak little, since speaking appeared a difficulty to him; but that what he did say, was always prudent, well-considered, and sensible, and that his deportment had nothing displeasing in it, although it was energetic and firm. During his abode in Jena, he was a member of the so-called Burschenschaft, but at the same time also of another company, which he termed a Literary Union. He made from Jena a journey into North Germany, and visited many of the most celebrated battle-fields of both past and modern times. After his return he proceeded again with his studies with unremitting diligence, and had obtained permission from his parents to continue another half-year in Jena, when he suddenly broke off, on the 9th of March, 1819, at four o'clock in the morning, and set out on his last fatally eventful journey towards Mannheim.

We have thus followed the thread of Sand's history to this period with sufficient minuteness, and we have permitted ourselves to sketch it with the more exactness, since it is particularly interesting to trace all the causes which could conduct a character, otherwise so excellent, to such a crime;--as, moreover, conjectures respecting these causes can only be rightly founded on a real knowledge of the circumstances of the case, and from these only can those conclusions be drawn, which were, though without effect, employed in the defence of this singular man. In his history we behold the fac-simile of the history of the whole Burschenschaft to which he belonged. A description of his person, from that officially drawn up, may precede the relation of his unhappy deed. In the protocol it stands thus:--

"Sand was in age twenty-three and a half years; stood five feet six inches high; had strong black hair and eyebrows; a high forehead, gray eyes, longish nose, mouth of middle size, dark-brown very weak beard, ordinary chin, broad countenance, tolerably healthy colour, with some pock-marks in the face." His look was open, and for the most part friendly, but not eminently intellectual; his physiognomy good-natured, but not especially interesting; his visage might be termed an involuntary mirror of his mind. So painted themselves wrath and scorn upon it, when the speech turned upon Kotzebue and his connexion with Germany; so might be read in it a painful, or an hostile feeling, when the principles of his system must be

attacked; so that, in the end, very little attention became necessary to discern by it, when his answers did not contain the truth. The play of the muscles of his forehead was particularly strikingly acted upon by an internal feeling of resistance, which generally rose in him when he desired by some means to conceal the truth.

Kotzebue's writings had been long disliked by Sand. Many of his early assertions betray it. Such was his observation to his father:--"Of what use is the man's literary talent, when the German heart is wanting?" On the burning of his History of Germany, on the Wartburg, he became immediately watchful of him; but still more, when shortly afterwards his literary *Wochenblatt*, or weekly paper, appeared. In this publication, Kotzebue promulgated his opinions often and variously on the then state of German affairs, and many of his views must have given great displeasure. Thus, he contended especially against the promotion of a combined and constitutional government in Germany, and asserted that the loud demand for this was by no means the voice of the people, of whom he very much doubted, whether they wanted any constitution at all. For this bold assertion, Kotzebue was instantly attacked and ridiculed on all sides. A specimen of the missiles launched against him on the occasion, may be given from an article in the "*Zeitung für die elegante Welt*,"--News for the Elegant World, in the year 1818:--

This serious doubt (that of Kotzebue) has fallen heavily on the heart. We have, therefore, with eagerness undertaken the following proposal for its solution. In Kotzebue's right hand lies, in fact, the means to bring the matter to a tolerable certainty. If that gentleman will in future take the field against the clamour for a constitution in all his Plays with the same sober earnestness, and jibe and joke, with which he has powerfully and perseveringly attacked other follies, then will the success or the failure of his piece throw great light on the sentiments of the people; and the multitude who, Herr von Kotzebue so justly says, remain silent on the matter in debate--that means, *they print nothing on it*--will certainly, by applauding or censuring, clapping or hissing, speak out. Should the multitude, by hissing out anti-constitutional pieces, declare for a constitution, so might the theatre immediately furnish the government with a proof whether the declaration was worthy of notice. They might now, as



was done in Paris, after the acting of Germanica, march soldiers--actual soldiers--upon the stage, and let them present arms to the pit. If the multitude now applauded or ran away, it would be the height of the ridiculous to give them a constitution, since it would be manifest that they had not courage to maintain themselves against the hand of power. But hissed and clamoured they still, it would be time "to *prepare* the demanded *preparations* for the *preparation* of a constitution."<sup>[6]</sup>

Sand assigned the ground of his hate against Kotzebue, immediately in the opening of his trial, and he reiterated the same as his actuating motive at its close; namely,--in the evening after the murder, having lost his voice, and being only able to express himself by signs, he requested paper, and wrote with a blacklead pencil these scarcely legible words:--"August von Kotzebue is the corrupter of youth,"-- alluding to Kotzebue's frequently slippery writings, as 'Barth with the Iron Brow,' and such like,--"the slanderer of our people's history, and the Russian spy upon our Fatherland."

Sand asserted, that by the insight which he had obtained into the character and position of Kotzebue, he immediately perceived that it was impossible that he could much longer continue to live in that manner; but the resolution to destroy him with his own hand did not awake suddenly in him, it demanded gradual growth, and came not to maturity without a severe strife in his own bosom. The well-known history of the discovered bulletin at length threw unquenchable fuel on his burning hatred against Kotzebue.

Kotzebue was, in fact, commissioned by the Russian government to furnish it with full reports on the political affairs and relations of Germany, on the predominant popular opinion, and on its literary transactions. He could, in truth, no more be styled a spy than an ambassador can; but the reports which he delivered--the false and detestable statements regarding Germany which he made in them, deserve the severest condemnation. No one was aware of this secret practice of Kotzebue's, till, through the faithlessness of a copyist, such a bulletin was sent to the well-known historian Luden, then the editor of the Jena "Nemesis," a literary paper. The bulletin contained sixteen paragraphs upon Steffens (a writer on the state of those times), Schmalz, Crome, the Allemannia, an opposition paper, the

Nemesis, Jung Stilling, English newspapers, mischievous nature of freedom of the press, and, finally, a sort of apology for serfdom. Monarchy was panegyricized in this bulletin, and Luden was represented as a learned man, who, with others of the learned, longed heartily for a revolution, that they might play their parts as popular speakers, deputies, and representatives. Luden, enraged at these calumnies, published the bulletin in the Nemesis, and commented on it in the most amusing manner. Kotzebue, who had immediate information of this fact, procured an order from the Weimar government for the seizure of these sheets, at the moment they should be ready for issue: but Wieland, the editor of the opposition paper, had already received proof-sheets of the article, and caused it to appear at the same time in the People's Friend, which he edited, with still more biting remarks; since Luden, in the Nemesis, had expressed some doubts whether Kotzebue were really the author of these malicious calumnies. A long legal process took place between Kotzebue and the learned editors, and proceedings were laid before the Spruch Collegium--College of Arbitration of the University of Leipsic. These gentlemen were declared by this tribunal, guilty of a literary robbery upon Kotzebue, since the bulletin was not intended or delivered out by him for publication; but after the death of Kotzebue in the following year, they were declared free from all penalty by the High Court of Appeal in Weimar.

The fact, however, which finally and at once sealed the determination of Sand, was the appearance of the work of Stourdze, and Kotzebue's standing forth as his defender. Stourdze, a Russian, published a most odious and miserable volume, in which he lauded absolute monarchy, railed against freedom of the press, misrepresented the spirit of the German High Schools in the most abominable terms, and at the same time advised that they should be stripped of all their rights and privileges, and laid under the strictest discipline. The author was formally accused by the Burschenschaft of Jena for his calumnies, to the Grand Duke of Weimar, who laid the case before the *Bundestag*. Stourdze defended himself in the public papers; two youths, not students, but belonging to the Burschenschaft, afterwards challenged him to single combat, whom, however, he answered only with words in the newspapers.

Sand now brooded a whole half-year in irresolution over this thought--whether he should devote himself as the instrument for taking out of the way this, in his eyes, so dangerous an enemy of the weal of the German people. "The determination," said he, "must first progress in myself to a greater maturity, since I have partly to contend in myself with the natural shrinking from the performance of such a deed, and partly with the oft recurring thought that I am worthy of and qualified for something better, by the character of my mind, and my already acquired accomplishments. I have also waited for a third, since I had as good a right to wait for a third, as he to wait for me. But as I found no one, this was likewise a ground of determination for myself. Oft have I thought--'thou canst quietly live on, if but a third person undertake the deed.' This waiting was thus properly only a wish that another might step before me; for the rest, however, I knew no such third."

Sand often prayed to God that this requisition might be allowed to pass from him, and that he might be left to pursue his ordinary duties. But in this inward warfare, the inner voice perpetually returned, saying--"Thou hast promised so much, and hast yet done nothing." The projected work stood thenceforth so vividly before his eyes, that his imagination enabled him to sketch out a drawing of the murder-scene beforehand, which was found amongst some indifferent pen-and-ink outlines amongst his papers in Jena. Still he continued to waver, till the newspapers brought a report, that Kotzebue intended to return to Russia; and then stood forth Sand's resolution to murder the traitor, let it turn out as it would, and though he should himself lead the way to death for him. Besides this it was part of his plan to make a confession, to bring the Death-Blow to the knowledge of the people. His original plan was, after the accomplishment of the deed, to betake himself to his weapons, and to make his escape if possible, so that provided he effected his own retreat, self-destruction formed no part of the scheme. While he brooded over his enterprise, he prepared the instruments of his design. He made choice, to that end, of a smaller and a greater dagger. The latter he called the small sword, and had it made in Jena after a model in wax, prepared by his own hand, and from his own drawing. For the carrying of these weapons he made a hole in the breast of his waistcoat, in which on account of its weight, this dagger hung; but for the lesser one he had a small hook sewed into the left-arm sleeve of his coat, which by a

small eye secured the sheath there. Before setting out on his expedition of death, he completed his Death-Blow, or Confession, prepared the fair copy, which after the accomplishment of the act, he purposed to stick up in some public place; then the original of the same, as he called it, and numerous transcripts of the same. This Death-Blow was a document on which Sand long laboured, and for the promulgation of which, after the deed, he had taken measures. It was designed to be a call to the people to rise and assert their liberty. As this composition not only places in the clearest light the then overstrained state of Sand's mind, but also gives us glimpses of many ideas of the Burschenschaft at that period, which the government were afterwards obliged to hold in check, it shall here find a place.

## **DEATH-BLOW TO AUGUST VON KOTZEBUE!**

**"ONLY IN VIRTUE, UNITY."**

"Our days demand a decision for the law which God has written in flaming characters in the hearts of his men. Prepare yourselves! decide for life and for death!

"Open nightly profligacy is not the corruption which rages in our blood, but vice devours around him only the more hideously under the mantle of an accustomed pious politeness: falsehood masks itself under a thousand assumed holy forms; and the condition of the people should be the blossom of so many sacrifices, and is the state of the old miserable laxity.

"Half-accomplished fools, and the stunted overwise, for ever deride the truth, which unadorned and simple, throws itself on the human mind, and they cripple and distort her use in life. The moral strength of the Germans is split on the Babel of foreign affectation, and keeps itself no longer in the house-life. The will is wanting in us for the deed. The Fatherland fails the youth. Courtiers and money-service rule, instead of that honour-firm integrity which has resigned itself to the influence of time, and is become mouldy in it.

"The virtue of the burger class bends itself servilely at the nod of the great, and rushes, with already gripped clutch, at the gold-bag. The idleness of servants devours our bones; courage and hero-mind display themselves alone in paper panoply amongst the whole people in empty vapouring; and since they glow not as pure flames in every heart, we find them not even in ourselves.

"Deep based on equally vile sentiments in the people, stands the most sensual government; and unrestrained arbitrary power needs no other protection than these;--*the separation fraternal hearts by the means of jealously-guarded frontiers, of the leading-strings of strict and public surveillance; of cradle-songs, and the sermons of sloth;* and it rests itself as upon very sufficient props, on the wages and the oaths of police and soldiers. Many amongst the great German people may stand far before me; but *I also hate nothing more than the cowardice and effeminacy of this day.* I must give an example of this. I must proclaim myself against this laxity; and I know nothing nobler to achieve than to strike down the arch-slave, and *great advocate of this mercenary time, the corrupter and betrayer of my people--August von Kotzebue!*

"Thou, my German People, exalt thyself, to a higher moral worth of manhood; of the free spirit of man, and his creative strength! My German People! thou hast no realler nor nobler possession; it is thy highest good. Honour, guard this faith--this thy love to God. Let thy sanctuary no more be trodden under foot.

"Man, be he born in the most miserable and abject condition, is created to become an image of God. Rely on the promised Christian freedom. Honour and trust only the free man. Detest the traitors, the slaves in soul, the false teachers, who will not have this. Hate the dastardly poets of half-measures, the preachers of cowardice, the hirelings who hold thee back from every bold enterprise. Detest and murder all those who lift themselves so high in their villanous and despotic fancies that they forget the godlike in thee, and hold and drive thee, the mad multitude, in their high-wise hands, as a complex wheel.

"Free conscience! free speech! Man shall solace himself at his own free pleasure in the divine light, of which the fountain is in him. He shall strive

after the highest discoveries, and shall be able, unburdened by those of others, to prove and build up his own convictions. But man also shall verify these opinions; he shall live and act; he shall exercise his divine creative power--his will, and shall make it availing. It is for this that we have received the whole might of will--not that we may suffer others to decide what they please concerning us, as over a piece of a field, but that in every condition of life we may determine for ourselves; and therein all virtue demonstrates itself--that we, in every thing which concerns the people, shall take a lively interest, and so act upon our own resolves, each as we will, and not as another compels.

*"Finally, make free your wills!*

"This is the sole, purely human, this the necessary foundation for every human society: this must be won for the German Empire! Only when this sole and righteous condition is achieved, then only can be the discussion on further undertakings.

"My German people! win self-dependence, and that lofty mind, which already some of thy heroes have borne in them. This is the right, hallowed spirit of life, that thou dost that which the sacred Scriptures of Christendom and of antiquity teach--that which thy poets sing; and admirest or regardest them not merely as empty fables. Brother! proudly and courageously shalt thou win by high endeavour, that highest and holiest object which thy soul can conceive--the condition of a purified, and beatified manhood--

A Christ canst thou become.

"So learn, my People, the time in which, after long wandering, joy and unity shall come back into this life. The Reformation, begun three hundred years ago, sought to restore the life of our people after the image of God. It is not yet completed! for yet continue compulsion of conscience, servitude, tearing asunder of brothers in our country, and no one can rejoice himself after a Christian and purely human form. Brothers, break the ancient chains of the Popedom, the chains of arbitrary rule! We Germans,--one empire and one church! Let the schism betwixt spiritual and secular be annihilated!

Faith, learning, and action, shall unite themselves into one, and bloom anew in the Christian enthusiasm of free German citizens.

"The Reformation must be completed! Brothers, abandon not one another in the oppressions of the times. Sluggishness and treason blacken history with the hand of slavery! You have it before you!

"Up! I show you the great day of freedom! Up, my people, bethink thee; make thyself free!"

The writing of Sand "To the Burschenschaft in Jena," and the other "To my Friends of the true German mind," were completed only a few days before his setting out; and finally he composed also a so-called "Sentence of Death against Kotzebue." He left behind, in his desk, a statement of the debts which his parents should pay; and an order that his books and other things should be sent home. He empowered a student, to receive all current letters and money for him. He contracted for his lodgings with his landlord for the ensuing half-year. To those who asked whither he was going, he gave the double-meaning answer--"Home." A letter was also found addressed to his parents, as follows:

*"To Father, Mother, Brothers, Sisters, Brother-in-law, Teachers,  
and all Friends! True, eternally true souls!"*

"Why still more aggravate your pain? I thought, and hesitated to write to you on this business. Truly, if you received the intelligence of what has occurred at once, might the bitter sorrow the easier and quicker pass over; but the truth of affection would in that case be wounded, and this great affliction can only be wholly conquered by our emptying the whole cup of wo at once, and thus keeping faithful to our friend the true, the eternal Father in heaven. So from the shut-up bosom, forth thou long, great pang of the last speech; plain dealing can alone soften the agony of parting. This sheet brings to you the last greeting of the son and the brother! Much and continually have I talked and wished, it is now time that I left dreaming, and the trouble of my Fatherland impels me to action. This is

unquestionably the highest misery in this earth-life, if the affairs of God, through guilt, come to a dead pause in their lively developement; this is for us the most overwhelming disgrace, if all that beauty and good which would have been boldly pursued by thousands and on whose account thousands have joyfully offered themselves up, as dream-shapes, without abiding consequence, now sinks away into dark discontent; if the reformation of the old life, now in its half-way advance, stand petrified. Our grandchildren would have to bewail this neglect. The commencement of the restoration of German life was made with spirits animated by God, within the last twenty years, and especially in that hallowed season 1813. The paternal house is shaken to the foundations--forwards! let us raise it again, fresh and beautiful, a true temple of God, as our hearts long after it. They are but a few who oppose themselves as a dam against the stream of the evolutions of the higher humanity in the German people; why then do whole hosts bow themselves again under the yoke of these knaves? shall our once awaked salvation perish again? Many of the most abandoned traitors play their game without obstruction, with us, to the complete corruption of our people. Among these, Kotzebue is the subtlest and most malicious; the actual tool and mouthpiece of every thing base in our time, and his voice is exactly fitted to beguile us Germans of all bitterness and opposition to the most unrighteous usurpations, and to lull us into the old indolent slumber. He practises daily arch-treason against the Fatherland, and then stands there, protected by his hypocritical speeches, and artful flatteries, and wrapped in the mantle of a great political reputation, spite of his wickedness, as an idol for the half of Germany, which blinded by him, willingly imbibes the poison which, for Russian pay, he prepares for them in his daily publications. Will not the greatest disaster befall us? Will not the history of our day be blackened with everlasting shame? He must perish! I say continually if any saving influence is to arise, we must not shrink from strife and toil; the true freedom of the German people then only awakes in us, when challenged and dared by the brave,--when the son of the Fatherland in the contest for the right and for the highest good, casts all other love? behind him, and loves death alone.

"That this may be, who shall rush upon this pitiful fellow, upon this hireling traitor, Kotzebue? In anguish and bitter tears turned to the Almighty, have I waited a long time for the appearance of one who would



step before me, and release me, not fitted for murder, would release me from my pain, and leave me to proceed on the pleasant path that I have chosen. Spite of all my prayers, no one has appeared, and each has as good a right as myself to wait for another. Delay makes our condition continually worse and more pitiable; and who shall absolve us from the shame, if Kotzebue leave German ground unpunished, and shall enjoy in Russia a fortune acquired by his treason? Who shall help and save us out of this unhappy condition, if every one, and I in my province first of all, feels not the call to maintain justice, and to do what ought to be done for German Fatherland? So then boldly forward! I will assault him with a heart confident in God to strike down the calumniator and betrayer of our brethren--the horrible traitor! that he may cease from turning us from God and history, and plotting to deliver us into the hands of the cunningest enemy. Solemn duty compels me to it. Since I have discovered what a lofty prize our people have in the present time to wrestle for--and that he is the cowardly false villain that would prevent their destiny--it is become for me, as for every German who regards the well-being of the whole, a rigorous *Must!* May I direct the eyes of all active and public-spirited men, to where danger and falsehood threaten, and turn, in time, the fear of all, and the vigorous youth to the right point, that they may save the common Fatherland, Germany, the perpetually rent, the unworthy states-union, from an imminent danger. May I scatter terror over the base and the cowardly, and courage over the good! Writing and speaking effect nothing--it is action alone that now creates union. May I, at least, cast a brand into the present indifference, and rouse and augment the flame of popular feeling, that glorious struggle for the affairs of God amongst mankind, which burned in us in 1813--then were all my highest and holiest wishes fulfilled! On this account, though startled out of all lovely dreams of coming life, still am I calm, full of trust in God; yea, happy, since I see the path sketched out for me through Night and Death, by which I may pay back to my Fatherland all that I owe it.

"So farewell, you dear souls! This sudden parting falls heavily, and your expectations and my wishes are probably disappointed; yet may this have prepared us, and therefore now be our comfort--that what the necessity of the Fatherland demands, is the first of all things to be desired by us, and has always lived in me as the most inviolable principle. You may hereafter say

and think among yourselves--'Yet had he through our sacrifices learnt to know the whole of life on this earth, the joy there is in this human society; and he appeared to love this land, and his chosen profession heartily.' Yes, so was it; so did I under your affectionate guardianship. Through your countless sacrifices and cares for me, are my land and life become so thoroughly dear to me; you caused me to be introduced into the world of knowledge; I have lived in the active pursuits of a free spirit; I have glanced into history, and then turned back into my own mind in order to twine myself up by the tendrils of the spirit firmly to the pillar of faith in the Eternal, and through the free inquiries of my understanding, to acquire a clearer perception of myself and of the greatness of surrounding things. I have cultivated the sciences in the usual course with all my power, and reached thereby the position and capacity to oversee the district of human knowledge, and have thereupon spoken out my convictions with friends and other persons; have travelled the country, to learn, to know men and their doings. As a preacher of the gospel would I joyfully have spent this life, and in any possible overthrow of our social customs and of knowledge, by the help of God, would have discharged faithfully the duties of my office.

"But should all this have withheld me from warding off more imminent danger from my country? Must not your unspeakable love for me directly spur me on to set death at defiance for the common good and the object of all our endeavours? What numbers of the modern Greeks have already fallen, to liberate their people from the scourge of the Turks, and are yet dead without having effected any visible consequence, without any prospect of it; and hundreds of them also amongst us, preparing themselves by education, suffer not their courage to sink, but are immediately ready again to offer *their* lives for the good of their country, and would I not die for mine? And will not we, to whom the salvation and the working out of the highest blessings are so near and dear, will we do nothing to that end? And do I mistake your love, or would I wantonly sport with it? Believe it not. What should arm me for death, if not alone the love to you and the Fatherland, which impels me thus to testify it to you.

"Mother, thou wilt say,--Why have I brought up a son to maturity, whom I loved, and who loved me; for whom I have striven with a thousand cares and continual anxiety; who through my prayers became inspired with the

love of goodness, and from whom I fondly hoped in the last days of my weary pilgrimage to experience repose and filial love? Why forsakes he me now? Dear mother! might not the fosterer of another also thus lament, if he went forth for his Fatherland? If no other will do that, where will the Fatherland be? But certainly thou complainest not thus, but thinkest on these things too justly. Complain not, noble woman! Once already have I received thy call, and if no one now would step forward for the good cause, wouldst thou thyself send me forth to the contest. Still two brothers, and two sisters, all true and noble, have I before me--they remain to you--I follow my duty! The young ones will step into my place, they will be true to their country--they also are your children. In the world have we troubles, but in God we are able to overcome them like Christ. Oh that we may enjoy his peace in full measure! Forsaken on the solitary way which I tread alone, I have no dependence but upon the Eternal Father: in him, however, grasp I courage and strength to conquer the last terror, and to accomplish my solemn deed. I commend you to his protection and comfort. May he lift you to that joy which misfortunes are not able to disturb. Forget then the loss in the enduring joy in Him, and regard not my tears so much as the love which exists between us, and never can perish. Advance still farther for your country, and conduct your little ones--to whom so gladly would I have become the guiding friend--without delay, up into the mighty mountains, and let them there, upon that sublime altar in the midst of the Fatherland, dedicate themselves and swear, never to rest nor to lay down the sword till the Brethren are united in freedom, till all Germany as one people, and with one constitution for the whole empire, great before God and mighty against their neighbours, is knit into one complete whole!

"With joyful look turned toward Thee, Eternal God, stands my Fatherland! Blessed be the great host of the German people ready armed for the battle, who, recognising the high privilege to be allowed to promote the cause of a pure humanity, thy image upon earth, stands courageously resolved, and amongst those may I see them in whose love I shall glory till my end.

"Salvation lies--highest and solely in the sword;  
Press then the spear into the patriot heart,  
And make a way for freedom!

"KARL SAND."

On the 19th of March, as already stated, he suddenly quitted Jena without taking any leave of the people of the house. His travelling dress consisted of a black German coat, with red cloth waistcoat, black cloth trousers, laced boots, and a black velvet cap with a front. Over his dress he wore on the way, for the most part, a blue carter's frock. Amongst other things was found in his pocket, Körner's "Lyre and Sword," in which many lines were under-drawn with single, and others with double scores; as for instance in the poem "Through,"--

What wins this long delaying?  
The strong with fearless tread--  
The act alone, onstaying,  
Crushes the serpent's head.

And his favourite quotation from the poem "Call to Arms," "Salvation lies," etc. as given above. So prepared, Sand left the university city of Jena. His journey towards Mannheim was by no means hurried, but extended itself to fourteen days. He had read in the papers that Kotzebue would not set out for Russia till the spring, and the anxiety respecting the consequences of the deed produced procrastination, and occasioned him again an unceasing self-struggle. From Erfurt he travelled to Frankfort with two merchants, and when they came to Eisenach he persuaded his two companions to take their dinner on the Wartburg. On this occasion he is said to have asserted--"Here have sacred words been spoken, and from this place will yet go forth much good." He also wrote there in the Stamm-book for the students, these words:--"What wilt the old nightcaps (humdrums, dreamy but inactive people) do for you? Depend upon yourselves, and build up to God an altar in your own hearts."--Then his favourite quotation from Körner.

From Frankfort he went on to Darmstadt; where, as in the places already mentioned, he lodged with his kind friends. In Darmstadt he remained some days. He states that he had not been quite well, and had given himself up to his reflections. One of his friends accompanied him a part of the way thence, and at Sand's request, cut off his long hair, which attracted attention on the road. He arrived at Lorsch, and intended to have gone from there to

Wurms; but his reluctance to his enterprise became so great, that he determined on the following day to advance at once upon the danger. He now read once more the Gospel of St. John, which he carried with him in separate sheets, and Körner's poem "Through."

On the 23d of March he arrived in Mannheim, at half-past nine in the morning, and went to the Vineyard hotel. There he breakfasted without the host's perceiving any agitation of mind in him, and about eleven o'clock was conducted by a waiter of the inn to the house of Kotzebue. He then went back, on pretence of tying a handkerchief round his neck, as he found it too cold with open breast. Again arrived at Kotzebue's residence, he caused the waiter to retire, and announced himself through the maid who opened the door, as a gentleman from Mietau. Kotzebue, however, was not at home, and he was requested to call again at five in the evening. He therefore took a walk to the Rhine, and inquired where lay the wood of Neckerau, and its distance, and at one o'clock returned to the inn. He conducted himself during dinner with great equanimity, ate moderately, and drank a choppin<sup>[7]</sup> of wine. His companions at table were two clergymen from the Upper Rhine country, with whom he conversed partly on topics of general history, and partly on the Reformation and Luther. He stayed with the company till towards five o'clock, and then said that he must yet pay a visit to Kotzebue. This time he met his victim. He announced himself, and was shown into a room on the right hand of which lay Kotzebue's study, separated only from it by a small cabinet, while the nursery and the sitting-room of the family lay on its left side. On the proceedings in this room Sand himself observed,--"The servant spent some minutes in going about in the room or speaking; he then called me in, but still continued standing in the doorway, and spoke in a low voice towards the interior of the room. I was finally admitted, and Kotzebue stepped into the room from the door on the left hand. I saw him appear at the half-open door, and then enter as the door was quite open. I went about six steps forward into the room and greeted him. He stepped somewhat nearer to the door, and I then turned myself towards him on the side of the entrance.<sup>[8]</sup> The most fearful thing to me was that I must dissemble. I said that I had a desire to call on him as I travelled through the place, and, after some pro and con, I added,--'I pride myself'--which Kotzebue probably interpreted otherwise than as I meant,--then drew

I the dagger, and continued--'not in thee! Here, thou traitor to the Fatherland!' and with the last word I struck him down.

"I named myself Henry from Mietau, since I believed that Kotzebue would not admit me if I announced myself a native German. It was much more probable under the name of a Courlander; and Kotzebue actually said--'You are from Mietau?'

"How many blows I gave him I cannot say: as little, which was the first. It was quickly done. I drew the dagger out of the left sleeve, where I had secured it in a sheath, and gave him several stabs in the left side. Kotzebue spoke not a word during the attack, only uttered a cry of alarm, the instant that he saw me rush upon him with uplifted arm. He stretched out his hands, and fell immediately at the entrance of the room on the left hand, about three steps from the same. How I should have wounded him in the face I know not. Probably it may have happened through his holding his hands and arms before him, and moving them about. I held the dagger so that the edge was above the thumb and the fist, and struck directly out, neither from above nor from below. Kotzebue fell together in a sitting posture. I then looked him in the face to see how it was with him. I wished to ascertain the effect of the attack, and a second time looked him in the face. He continually winked with his eyelids, so that one could now see the whites of his eyes, and now nothing. I therefore concluded that he was not dead; but I interfered no further with him, because I was persuaded that enough had been done."

Sand having completed his act, turned towards the window in order to regain his old standing place, but that turn produced a deciding influence on his fate. "I saw," said he, "in turning round, a little child, which during the deed had sprung into the room from the left-hand door. Its cry produced in me such a mingled feeling that I was instantly determined to recompense it for the injury I had done it by stabbing myself with the small sword. The blow struck on the left breast, and went several inches deep. I drew forth the steel, and the effect was an instant gush of blood, which I perceived as I descended the stairs became, with the pain, more perceptible."

The cry of anguish of the victim under the hands of his murderer, brought in a few seconds thither the family and inmates of the house; but

the horrible spectacle must naturally so violently have affected them, that they scarcely retained a clear remembrance of the first moments which followed the discovery. According to Sand's own account, as they bore Kotzebue into the next room, the wild outcry and deep alarm sunk by degrees; the whole room as well as the open-standing door was left vacant, and he had time to descend the steps and reach the outer door. When, however, he came there, he found already many other persons collected by the outcry, and must then have despaired of his escape, and therefore sought to secure the publication of his "Death-Blow." His original intention, that of sticking it up somewhere with the small dagger, was prevented by his having let it fall during the action, and he therefore took the paper from his pocket, and delivered it to the servant, who was then rushing out of the house to call the watch, saying, "There, take that!" Then cried Sand with a loud voice, to the people who had run together,--"Live for ever, my German Fatherland, and we amongst the German people, who strive to advance the condition of a pure humanity!"

He then kneeled down, and said in a low voice,--"I thank Thee, God, for thy victory;" prayed, placed with both hands the small sword against his breast, and drove it directly and deliberately into it till it stood fast; then withdrew his hands and fell forward on his right side. The people who hurried to the spot, found him lying in his blood, drew forth the dagger, and washed the wound with vinegar. In the mean time the watch and the police had arrived, and the murderer under the usual guard was carried on a handbarrow to the hospital.

Kotzebue died in the arms of his daughter. It was probably the first blow, which, piercing the pericardium and the artery of the lungs, caused his speedy death.

Sand, on the day following the murder was in a greatly excited state. His features changed rapidly, his eyes now gloomy and wildly rolling, now soft and swimming with tears. His wounds were cicatrized in about a fortnight, but an internal extravasation of blood ensuing, made the opening of the cavity of the chest necessary, which the then Professor Chelius from Heidelberg performed. Sand submitted himself quietly to the operation, and afterwards begged the surgeon to excuse him for some exclamations of pain

during the operation. His behaviour during his whole imprisonment was praiseworthy. His frame of mind appeared calm and quiet, and he seemed to wait his fate with resignation. Only twice, in particular, was he seen to break out into passionate weeping; once, as he was conveyed from the hospital to the House of Correction, and the second time, as a letter from his parents was read to him, in which they gave him their blessing; but he sought anxiously to hide these tears, as evidences of weakness. He repented his attempt at self murder, as a cowardly act, and followed the prescriptions of his physician with regularity. He was thus soon so far restored that the trial could take place.

This was entered into with all possible gentleness; and he experienced generally throughout it a mild treatment. A visit which his mother and brother offered to make him he declined, on the ground of sparing to all parties the pain of such a parting.

The trial for the murder went on quickly at first, but afterwards became more complicated, on account of the documents which were found amongst Sand's papers, concerning the Burschenschaft and such matters. These occasioned an especial commission to be named, which put itself in communication with commissions afterwards named at Weimar, Darmstadt, and Giessen, and subsequently with the Ministry of Police at Berlin, so far as their inquiries might have an influence or throw any light on Sand's act. From the report of these inquiries we have drawn the preceding notices of his life, and it may yet be permitted us to say a few words on the force of some actuating causes which could lead so excellent a character, as Sand otherwise was, to such a deed.

Sand's early youth fell in a time when all Germany breathed hatred to its oppressors. From this source he drew the most glowing antipathy to the French, and enthusiasm for his native country. Traits of fanaticism, and a certain touch of religious enthusiasm, all must have remarked in him who have read the foregoing pages, and a degree of vanity which drove him to distinguish himself from the common herd by something peculiar. Thus he subscribed himself, as a genuine German, instead of Karl Ludwig, "Kerl Chlodowig," in the ancient style, and afterwards he used the signature, "German Brother of Fichtelberge." Then he made himself conspicuous in



Tübingen by a very singular dress. His desire, however, to serve his country remained ungratified, and he returned from his campaign as so many others, casting his glance forward, to see whether Germany, which had purchased its external peace through so much bloodshed, possessed internal peace and deserved happiness. At the same time, his proneness to mysticism was undeniable. In his speculations upon religion, morals, constitutions of states and laws, one finds many contradictions. Thus, he regarded the Divine laws not so much positive commands as monitory precepts, by which man, according to his conviction, can regulate his conduct. When he, whose favourite reading was the Bible and the writings of Thomas à Kempis, yet felt a certain disbelief in the revealed religion, it was truly a great inconsistency to desire that an immediate revelation from above should be made to himself. Thus, he says amongst other things:--"He prayed to God daily for knowledge and enlightenment. If he, through divine revelation, could learn that his act was wrong, he would repent it every hour; but hitherto nothing of the kind has happened." "My own conviction," said he, "is my law. I act right whenever I follow it. It guides me better than divine or human precepts." According to these principles he would only acknowledge laws except in so far as they seemed reasonable to him. Above all things displeased him, the division of Germany into separate states,--he would have one Germany and one church; but when he demanded--not for himself alone, but for the whole people--this freedom of thought and will, he was in contradiction to himself again, since he would, to a certain degree, force this reform upon all, in opposition to his conceived freedom; nay, held it as allowable, to take out of the way, with the dagger, whoever placed himself as an enemy in the path of this reform; yes, and called upon the people also to do the same. And this he did, without sufficiently understanding the laws and circumstances of his Fatherland, as appears by his declaration. It is to be supposed that the spirit which formerly actuated the Burschenschaft, had an influence upon the developement of his ideas; but it is false, when it is asserted that the Burschenschaft was privy to his deed, or approved it. Sand had misunderstood some doctrines of Schelling's philosophy, and had fitted these misconceptions into his system, as well as many others which he had drawn from the lectures of his teachers, especially those of the historian Luden. All his teachers praised his restless diligence, without ascribing to him either particular talent or great strength of judgment. He entangled himself in a system of sophistry which he

regarded as the firmest truth. When a man frequently pronounces any thing to be true, he comes at last to believe it so, however contrary it be to common sense. Thus Sand over-estimated the evil influence which Kotzebue exercised through his writings, without making himself sufficiently acquainted with these writings. Thus he imagined that the governments were not strong enough to repress this nuisance; and that the writers who contended against Kotzebue were powerless against this, literary tyrant. He therefore believed himself called to take the enemy of truth out of the way. He communicated his resolution to no one, and was so convinced of the meritorious nature of his action--which he, moreover, justified by his maxim, the "end hallows the means"--that to his last moment he never repented of it. For the rest, he endeavoured with all his power, to shield others from the evil consequences that might have reached them from his action, and therefore, when for their advantage he stated many things that were not true, he is on that account to be judged leniently. All these circumstances were well weighed by his judges, as ground of excuse so far as they might contribute to the mitigation of his punishment. Sand's counsel on the trial was the Licentiate Rüttger. The final judgment of the court condemned him to death with the sword. This judgment of the 5th of May was confirmed by the Grand Duke on the 12th, and arrived at Mannheim on the 17th of the same month.

At this latter period, the health of the culprit had so much improved that, according to the official medical report, he was in a condition to rise from his bed with help of his attendants, to continue some hours up, and to take his meals sitting in his room.

On the morning of the 17th of May, at half-past ten o'clock, the sentence of death was formally read to Sand, in the presence of two officers of the court, whereupon, permission being allowed, he dictated the following protocol:--"This hour, and the honourable judges with the final decision, were welcome. He would fortify himself in the strength of his God; since he had often and clearly made known his opinion, that amongst all mortal sorrows, none could so much afflict him as to live on without being able to serve the Fatherland, and the highest aims of humanity. He died willingly, since he could no longer work in love for the Idea--since he could no longer be free. So approached he the portals of eternity, with a glad mind, and with

the most thorough internal conviction, which he had always entertained, that the true good upon earth can only come forth from the strife of conflicting passions, and that he who will work for the highest and divine, must be a leader and a member of a party. He cherished the hope through his death, to satisfy those whom he hated and who hated him; and again, to content those with whom he agreed in opinion, and in whose love consisted his earthly happiness. Death was welcome to him, since he yet felt the strength in him necessary, by the help of God, to enable him to die like a man."

The 20th of May was appointed for the execution, and till this period the governor of the House of Correction was instructed to admit all proper persons that the prisoner might desire to see, especially the Protestant ministers, and to comply with all reasonable wishes of the condemned.

Sand displayed the same fortitude as on the publication of the sentence of death. He made the request that day, that it might be ordered that no clergyman should attend him to the place of execution, and gave as his reason, that the attendance of criminals to the place of doom, was a degradation of the clerical order and of religion. That religion must lie in the heart, and could not, especially amid such a tumult, proceed from external things. As all the representatives, even of the clergy present, could not alter his opinions on this point, it was conceded, and his request allowed.

At five o'clock of the morning of the 20th, Sand was placed in a low open chaise, within the court of the Bridewell, the door being still closed. He was attended by the superintendent of the prison, at his own request, that he might help to support him, particularly in mounting the scaffold. Two other masters of the House of Correction were ordered to keep near the carriage. Sand was clad in a dark-green great-coat, linen trousers, and laced boots, without any covering on his head. The carriage in which he sat, as well as the one following with the officers of justice, was surrounded by the officials of the House of Correction, and the squadron of cavalry ordered for the occasion. The train proceeded to a meadow lying a little without the city gate, in which the scaffold was erected, and which was guarded by a detachment of infantry.

The government deemed these precautions necessary in order to frustrate any attempt at liberation of the prisoner on the part of the students. In fact, it is yet often related, that a great number of the Burschen rode, in the early morning, from Heidelberg, well provided with swords and fire-arms, with the intent to snatch Sand out of the hands of justice; that the keeping secret the day fixed for the execution, had made it impossible for them to obtain sufficiently early intelligence; and that in consequence, though riding the whole way at the highest speed, they arrived too late on the spot, where, cursing their evil star, they discharged their pistols into the ground. The whole story, however, is a fable, and it is certain, that by the wiser, and probably the greater part of the Burschenschaft, even as little as by the rest of the public, was Sand's murder-deed approved; and if at the moment he was generally pitied, and it was wished that a better fate had awaited him, yet none but a few political fanatics could pronounce the punishment unjust.

Sand was lifted out of the carriage, and mounted the scaffold and mounted the scaffold himself, supported by the arms of the two Bridewell masters. Arrived upon it, he turned himself round towards the crowd, then threw the handkerchief, which he held in his hand, forcibly down, with rolling eyes; lifted his hand on high, as if he swore an oath, turned his eyes towards heaven, and then caused himself to be led to the chair of execution, where at his particular request, he remained standing till the preparations of the execution were completed. The sentence of death was thereupon read with a loud voice by the actuary, and then the hands and body of the delinquent fast bound to the pillar. As the executioner bound his hands, Sand said to him in a low voice, "Don't bind me too fast, or it will hurt me." After his eyes were bound the sentence was completed, his head being severed from his body at one blow, and hung only by a part of the skin, which was immediately divided by the sword.

The whole passed over with the greatest order, and with the deepest silence of the spectators, except that at the moment of the fatal blow, was heard exclamations of pity. Many students and other spectators rushed to the scaffold, in order to dip their handkerchiefs in Sand's blood, or to cut small pieces of wood from the scaffold as mementos.

Sand had addressed through the whole time nothing to the public. A short time before his execution, he was heard alone to speak as to himself,--"God give me in my death much gladness--it is completed--I die in the mercy of my God!"

He died with much fortitude and presence of mind, at half-past five o'clock. His corpse with the severed head was soon after laid in the prepared coffin, and this was immediately nailed up. The military then guarded the remains back to the House of Correction; and on the following night at eleven o'clock they were buried in the cemetery of the Lutheran church near the House of Correction.

Kotzebue's dwelling, and the chamber where the murder was committed, are yet shown in Mannheim; and it is said that the spots of blood on the wall have continually reappeared in spite of being many times painted over.

The scaffold, according to custom, became the perquisite of the executioner, who came from Heidelberg. The stranger may observe a small garden-house which was built out of this material, as he goes towards the Bierhälter-hof, by the way of "The Three Troughs," as it is called. To this house for some years, the Burschenschaft were accustomed to go on the anniversary of Sand's execution, in procession, and there with singing, and probably an oration, paid their respect to his memory. Even those who did not approve of murder as a mere political reform, yet were glad that Kotzebue was out of the way, and pitied and even honoured Sand as a devoted and high-minded, though misguided martyr to their cause.

If the act of Sand, perpetrated upon a man who neither in public nor in private life enjoyed its respect, excited in the public mind so much just displeasure, how much more must that have been the case on the villanous attack upon the life of one whom so many social virtues adorned. The attempt to murder Ibell, the President of the First Chamber of Nassau, in the following year, by the fanatic Löning, increased the consternation of the rulers and the credibility of the charge that Germany, and especially its rising generation, was seized with a revolutionary dizziness. It appeared clear that the spirit which had formerly arisen from the salvation of the governments, had now taken a decided tendency to their destruction; and instead therefore of attempting to conciliate by liberal concessions,

necessity commanded towards it a system of vigorous repression. The congress of sovereigns assembled at Aix-la-Chapelle in 1818, had already turned its attention to the critical state of feeling in Germany. Whilst France had become so quiet that the Congress ordered its evacuation by the army of occupation, Germany became a new subject of anxiety. It was Sand's mad murder-deed which first made this manifest, and produced this reaction on the part of the governments. In August, 1819, many German ministers and diplomatists met on this subject at Karlsbad. The excellent Karlsbad resolutions, which were framed at this meeting, were on the 20th of September of the same year, published by the Confederation of States, as the Confederation Resolutions. These, in order to prevent the aberrations of the youth, ordained a strict oversight over both teachers and learners in this respect, and that a government inspector extraordinary should be appointed to every university to observe the teachers, and to restrain the scholars within the bounds of discipline and order.

The Karlsbad resolutions in reference to unions, and especially the Burschenschaft, say:--"The long existing laws against both secret and unauthorized unions in the universities, shall be maintained in their greatest force and stringency, and particularly shall be the more vigorously exercised towards the union instituted within these few years, under the name of a universal Burschenschaft: as at the foundation of this union lies the totally inadmissible presupposition of a lasting association and correspondence between the different universities. The government inspectors shall make it a duty to exercise an especial watchfulness in regard to this point. The governments are agreed upon this, that individuals who, after the publication of these resolutions, shall be found to have remained members of such secret or unauthorized unions, or shall have entered into such, shall not be permitted to hold any public office." Thus, the act of Sand, as is uniformly the case with wild and fanatical deeds of violence, had the very contrary effect to that which he purposed, and instead of serving and establishing the Burschenschaft, hastened its public denouncement and suppression. In all the German states, the freedom of the press was, moreover, abolished, so that in no German state could a manuscript be submitted to the press without censorship. Finally, also, a central commission of inquiry was established in Maintz for the finding out of all demagogical schemes. The Prussian government in particular went to

work with pre-eminent energy and vigour, and, by its persecution of many distinguished men, forfeited a portion of that public respect which it had acquired through its strenuous exertions for the liberation of Germany from the French, and through other popular endeavours.

The repose of Germany during the political storms which in the following years shook foreign countries, at length put an end to the government alarms from demagogical agitations. The political inquisitions and persecutions ceased by degrees; the punishment suspended over the erring, became so much the milder as fewer aberrations, in consequence of the established regulations, arose to demand the care of the administrations. If therefore the impulse which the German spirit had acquired in the Liberation War had caused it to rush over its appropriate limits, the German nature yet returned speedily to its inherent morality and propriety; and by its unshakable loyalty to its hereditary princes, and relations, verified that old praise,--that in Germany good morals have more power than elsewhere good laws.

---

At the breaking up of the Burschenschaft at Jena, the 26th of November, 1819, the following song was sung; which we therefore give as one of the most celebrated.

### **WE BUILT OURSELVES.**

We builded ourselves a house,  
Stately and fair,  
And there in God confided,  
Spite tempest, storm, and care.

We lived there so trustful,  
So friendly, so free,  
'Twas hateful to the wicked  
Such honest men to see!

They wronged us, they charged us  
With treason and shame,  
They strove our fair young Freedom  
To curse and to defame.

What God laid upon us  
Was misunderstood;  
Our unity excited  
Mistrust e'en in the good.

They brand it as sinful--  
They cheat themselves sore--  
The form it may be broken;  
The love lives evermore.

The form has been broken,  
The ruins lie low;  
Yet what they have discovered  
Is merely smoke and show.

Our riband is severed,  
Of black, red, and gold,  
Yet God has it permitted;  
Who can his will unfold!

Then let the house perish!  
What matters its fall?  
The soul lives yet within us,  
And God's the strength of all!



## CHAPTER VI.

### **CEREMONIAL INTRODUCTIONS TO UNIVERSITY AND BURSCHEN LIFE.**

Great need hath man of brother man  
To reach his noblest aim;  
He moves but in the general plan.

Fly then the wolf-bewasted strand,  
And knit life's strong and social band.

*Schiller.*

The youth of Germany has awoke out of the dreams of Burschenschaft freedom; and the sounding rush of steam-engines will probably not permit them easily to fall again into this giddy trance. The bond of an universal Burschenschaft no longer embraces the whole body of German students, but the professors of every political as well as religious creed move amongst each other in manifold circles. Like *ignes fatui* flicker here and there yet, Burschenschaft ideas, but their flame has seldom strength to burn, and soon expires again for want of fuel, which, in fact, is diligently withdrawn: still has its flame, ever and anon, in recent times, hoisted on the mountain tops, streamed up a lightening fire-pillar of Freedom; but the rulers of Germany have speedily smothered it, anxiously watching lest the political fabric raised with so much toil, should become, with all its stockwork and timbers, a prey to the devouring element. They have also taken care that the youth shall not, forgetting his original duty, fall into this labyrinth. During his period of study, only too often is he reminded by the everpresent sense of the government examination, that he is a citizen of a German state. Is it to be feared, that we have fallen into the opposite extreme; that the zeal for the political and literary freedom of Germans is extinguished; and that a stupid and creeping slavery has taken its place? No, thank God, we are not yet come so far as that. A striking testimony of this, is the sentiment which just recently has made itself felt as the common spirit of Germany against

France, glowing with the enthusiasm of former years, and to which that new Rhine song of Bekker--"They shall not have it!"--owes its origin. So far as regards academical freedom, it is not to be denied that in some states an overstrained severity of government examinations of students begins to display a mischievous influence.<sup>[9]</sup> The young man having this image of terror perpetually before his eyes, prosecutes his studies in a manufacturing style, which crushes every freer, fresher aspiration after human improvement. Yet one comes back to one's self by this means, from that abortive condition of a false and overdriven anxiety for the common good; and, on the other hand, the governments were wise enough to perceive, that the freedom of the universities could not be too much circumscribed without damage to the pursuit of knowledge itself; for this freedom is universally recognised as the ground on which an active pursuit of science most flourishes. Experience has sufficiently proved this: those universities which possess that freedom in the most perfect degree, having always stood the highest in academical reputation. All mal-practices have been properly put down; many things have been necessarily held to be illegal because of their connexion with other things, and which yet have been tolerated, and thus in this middle way have the best results been arrived at. Strip the universities of all their privileges, and they will fall, together with the schools, to the ground, and no longer furnish so fine a bridge to the service of the state. Especially necessary to their free condition appears to be the possession of their own court of judicature, which has the peculiarity of leaving a wide scope of discretion to the judges; since it might be very unjust to punish a student, were it ever so slightly, who enjoys so much more freedom than a citizen, precisely according to the laws of the schools, as a citizen who is so little permitted to step over the laws is punished by the laws which relate to him. Germany may be proud of the constitution of its High Schools, and must feel grateful to the governments for this protection of academical freedom, as it is bound to be for its political constitutions, through which a beneficent and honourable freedom is secured.

Much complaint has in former years been made, that the young people who were just come from the schools, hurried on by *Chore* life and their companions, become so engulfed in a whirlpool of dissipation, that during the first half-year, or even the whole year, they never perfectly recover

themselves from this course of wild pleasure. This destructive and so much dreaded course, and a certain constraining influence supposed to proceed from the unions, and which uniting itself with the fascination of *Renommirend*, or playing off, determined *Die Neulinge*, newlings or freshmen, to enter into such unions, were made grounds for putting down such unions all over Germany; as if Chores were necessary to such a time-killing career of dissipation. Others have insisted that the newlings must be compelled, by stronger regulations and a certain school restraint, to a more diligent attendance of the lectures and of their private studies.

Apart from the question whether one may and can compel a young man of that age to unceasing application, it may be further asked, whether, after all, this half-year spent in the free enjoyment of life must be an actual loss, and to be reckoned an absolute deduction from the amount of study? By no means. Truly, if study consisted in learning a mass of facts by rote, then might we reasonably reckon literary and scientific acquisitions by days. But let any one reflect how a youth comes from school. There he had a daily task, which he completed as a more or less industrious day-labourer does his. He had also favourite occupations and favourite studies besides, but entirely apart, which he pursued as pleasant recreations, which had nothing in common with the tedious school labours. Not that there are no exceptions to the rule, but thus it is commonly. The time now approaches that he must undergo a rigorous *Abiturienten-examen*, or final examination, before the doors of the High School will open to admit him; an examination which he puts out all his strength during the last half-year to pass, as he sees with transport the university years presenting themselves before him. Suddenly he becomes a wavering skiff, abandoned by its experienced pilot, to drive forth into the midst of the agitated sea of university life. His whole existence must from this time forward tend to one ultimate object, of which he is not himself yet clearly conscious; even his recreations and pleasures shall only serve every day to accomplish him, or to give him new strength for toil. His intellectual labours shall henceforth bear the stamp of knowledge; but the transition is so sudden, the space in which he has to move is so vast compared with the narrow bounds which have hitherto circumscribed him! His sight must sharpen itself, that rapidly making himself master of the manifold objects that surround him, he may reduce them to one regular scale, and so magically diminish them as to inclose

them in his own bosom. And to this labour, which appears to him gigantic, he comes exhausted by the exertions of the time just past, wearied out with all the old school business. He exerts himself to comprehend that world of novelties, but sinks finally overwhelmed by their oppressive greatness, and probably exclaims with the scholar in Faust,--

All is confused, a stunning pain,  
As whirled a mill-wheel in my brain.

Despairing of science, he throws himself into the arms of pleasure. He drinks with full draught from the cup of joy, and finds himself with exultation again conscious of his youthful strength. Full of proud and lofty feeling, he now rushes forward in the new and open path, often bursting through all bounds. This is called the lost time. But it is not lost. If the man is not to be overwhelmed by the excess of external influence, if he is to be borne through all without loss of his independence, he requires in the mean time such a period of rest; in which, from an undisturbed point of view, he can look back into the past; can there weigh what he has so far accomplished; can look forward, and acquire a clear consciousness of his future purposes, and can gather strength for the necessary enterprise. Thus, in the transition from the school to the university, this introductory laziness is a necessary crisis for the majority, in order to shake off the old school dust, and to awake to a new existence. That very dissipation must throw the youth back upon knowledge. He has now learnt, out of the multitude of things, to choose and appropriate those which befit himself, his character, and designs; he has learnt to maintain his independence in the midst of the in-streaming outer-world; and, finally, by association with so many companions who, though equally with himself gay of heart and enjoying life, are still happily prosecuting the acquisition of knowledge, he has arrived at higher views of life, and of individual study. He is now first ripe for the university.

We have in other places spoken of the advantage which a young man derives from associate life with so many others. He who desires to rule or to exercise an influence over men, must first learn to live amongst many. He who studies a science will not perpetually confine himself to one work, though it be that of a most celebrated master, but will compare as many as

possible, that amongst all their theories he may select that which most meets his approbation, or may create a new one for himself. Of the numbers, moreover, who find themselves at a High School, if some lose sight of their true object, and sink in the slough of sensuality, yet the far greater portion pursue the path of knowledge with zeal, and push forward on the direct course, though they may occasionally diverge into the smiling and blooming fields that lie right and left, to gather odorous nosegays to bear with them on their earnest track. Every one of these wanderers has his individual theory of life, of morals, of religion, and of every department of science and literature; and it betrays a self-punishing conceit, when an individual regards his own views as so exalted that they need no comparison with those of others, and when he can learn nothing from this intercourse. Youth seizes upon every thing so freshly and with such force, and endeavours to defend it against the encroachments of strangers. Shall a young man only educate himself under the instructions of experienced teachers? Certainly not. He must live amongst those who will hereafter be his fellow-labourers in life. But as the age exerts an undeniable influence on the greatest men that it produces, and even, when in other respects they shoot forth far beyond their time, binds them fast to the time with the strong bonds of prospects and prejudices; so also place operates materially on men through the influences which are bound upon the place.

The ton which predominates in a High School leaves not its scholars untouched, or that ton could not otherwise perpetuate and firmly maintain itself there. But this ton is the product of many contingencies, and pervades every thing which comes in contact with it. We noticed the ton which distinguishes the university of Heidelberg when speaking of its advantages. This has always been the same; and those of Jena and Leipsic have been described, according to their individuality, at an earlier period by Zachariæ. In his comic-heroic poem, as Goethe himself has testified, every man will read with pleasure how his Renommist was conquered by the love of the gallant city of Leipsic:--

My song the hero sings, whom courage, sword and fighting  
Made terrible in Jena, in Leipsic quite exciting;  
Who oft whole hosts assaulted when his wrath was hot,  
As hero out of Jena went, but in Leipsic conquered not.

We have also a drawing of four universities of Germany, of about the year 1730, which was intended to indicate their peculiar characteristics at that period. In this drawing one sees first a student of Leipsic, a young gentleman very delicately and smartly dressed, who is turning as towards a maiden, and saying daintily,--"Dulcimene, thou hast made me quite in love with thee." Near him stands one from Halle--and let the reader call to mind that August Hermann Franken's<sup>[10]</sup> death had occurred about three years before that time--he is dressed in black; he speaks with depressed heart, and glancing at the former students, sighs forth, "Him will God chastise;" which at that period truly, here and there, many a so-called Waisenhausler--Orphan-Houser--out of an extravagant and fiery zeal, and on the principle of a false devotion, had continually in their mouths. To him succeeds a gay student of Jena in uniform, with huge cocked hat, and very imposing mustachios, high jack boots with pounded spurs. He grasps his duelling sword fiercely, and exclaims wrathfully, "The thunder shall blast him that dares an insult." At last, and completing the group, stands a Wirtemberger, with a full cup of the winking kukkuk (cuckoo)--that is Wirtemberg beer--with winking eyes singing, and dancing on one leg--ex pleno poculo.

We have already stated in what manner a newling is received as an academic burger, or is matriculated. This matriculation in the early and ruder times was preceded by a very peculiar ceremony, which was called the deposition. This deposition during the first half of the seventeenth century extended over the majority of the German universities, Catholic as well as Protestant. From the description which Arnold has given in the Appendix to the History of the High School of Königsberg, extracted from the dissertation "de Ritu Depositionis" of M. Sehme, we learn the following particulars. In the university where the deposition was customary, the newly-arrived student, the so-called "Branen," or Bacchant, announced himself to the dean of the philosophical faculty, and prayed that he might, through the deposition, be received amongst the number of the students. When the Branen or Bacchants amounted to a certain number, the dean appointed a day in which to celebrate the deposition, and summoned besides the Branen, the depositor with his instruments, and an amanuensis. They appeared on the appointed day before the dean. The depositor in the first place put on a harlequin dress, caused the Branen to attire themselves in the same style, and put on them other ludicrous articles of costume,

especially hats or caps with horns, and distributed amongst them the instruments with which the deposition should be executed; coarse wooden combs, shears, augers, axes, hatchets, planes, saws, razors, looking-glasses, stools, and so forth. When now the Branen were properly equipped, the depositor marshalled them in rank and file, placed himself at their head, and conducted them to the hall where the deposition should be performed, and there addressed a speech to the dean and the spectators, who consisted of students. The depositor commenced the deposition by striking the Branen with a bag filled with sand or bran, and compelling them to scamper about with all manner of laughable gestures and duckings in order to escape the strokes of the sand-bag. He then propounded to them certain questions or riddles, and they who did not answer them quickly and well, received so many strokes with the sandbag, that tears often started from their eyes. When this trial by question and riddle was finished, then must the Branen give up the instruments which they had hitherto held in their hands, and lie down on the ground in such a manner that their heads nearly touched each other. The depositor then planed their shoulders as they thus lay, filed their nails, pretended to bore through and saw off their feet, hewed every limb of their bodies into shape, cleaned their ears, knocked off their goats horns, and tore out of their mouth with a pair of great tongs, the satyr's teeth stuck in for the purpose. After the Bacchants were thus properly hewn, planed, unhorned, and unfanged, they were caused to seat themselves each on a stool with only one leg. The depositor put on them a dirty napkin, soaped them with brickdust, or with shoe-blackening, and shaved them so sharply with a wooden razor, that the tears often started from their eyes. The combing with the wooden combs was equally rugged, with which in some places the depositor commenced, and, on the contrary, in others ended. Their hair, after the combing, was sprinkled with shavings. After all these operations the depositor drove them out of the hall where these scenes had taken place with his sand-bag, took off his grotesque attire, put on his proper costume, and commanded the Branen to do the same. This being done the depositor reconducted them to the hall which they had just quitted, commended the young people in a short Latin speech to the dean, and prayed in their name for a certificate of the deposition. The dean answered in a Latin speech, declared the ground and intention of the custom of the deposition, and added all kinds of admonitions. Finally, the dean gave to each of them as a symbol of wisdom a few grains of salt to taste, scattered

in sign of joy some drops of wine over their heads, and handed to them the certificate of the accomplished deposition.

From this rude custom, which here and there expired in the beginning of the eighteenth century, is derived the circumstance that a new student, still, before he can be matriculated, must take out his certificate of deposition. In Altorf, the deposition was enacted for the last time so late as 1753, and was, in fact, to oblige a gentleman of high consideration who brought his son to enter him of the university, and wished to revive a lively remembrance of his own youth-time by seeing the deposition of his son.

If, in past times, while manners were so rude, the teachers of the High Schools could practise so barbarous a custom towards the freshmen, it may well be supposed that the students did not conduct themselves towards the Branen more gently. These had many hardships and indignities to suffer at their hands; and, as was the case in many of the schools in past times, must perform for them the lowest offices. Lycurgus himself could not create for his laws a more implicit obedience in his age, than the old Houses demanded from the new-comers, who are now no longer denominated Branen, but Foxes. As already observed, the name boot-fox was derived from this fact, that these freshmen must black the boots for their more advanced comrades, the old Houses of the Chores.

The freshman, or fox, is now bound to perform many little, but by no means degrading or injurious services. He must conduct himself discreetly, may not mix forwardly in the conversation of the old Houses, and his purse is laid under frequent requisitions. Amongst the students who belong to no union, this is not so much the case, and is restricted principally to this, that the fox conducts himself not too assumingly, and now and then *ponirt* something, that is--to give this slang phrase by an English one--*pods down* something; that is to say, he gives an excursion or entertainment to them, a *Kneiperei*, or occasion of social fellowship and enjoyment. This he can the better do, as the superior experience of the older students in all the regulations of University life, and in particular in the best laying out of his course of study, are of the greatest service to him. In the aristocracy of the Chores, this subordination is, indeed, more despotic. There is quickly heard,--"Silence, fox! speak not when old bemossed heads are speaking!"



We have mentioned the general services which the fox has to perform, but he has also to suffer at the hands of terrible old Houses. There comes perhaps, a bemossed head from a distant university, in a shockingly broken down condition, something like the student in Hauff's story, who travelled with Satan. Already known by his hero deeds, the moment that he arrives he is received with a jubilee of acclamation. "Würger! thou faithful old House! cry the sons of the Muses, and rush down the steps into his arms. The smokers forget to lay down their long pipes, the billiard-players still hold their cues in their hands. They form a body-guard singularly armed, around the arriver."--*Hauff's Memoirs of Satan*.

And now, scarcely has the old House made it understood that his trousers are not the best in the world, or that his boots are no longer waterproof, than it would be taken very ill indeed of a fox should he hesitate to supply his wants to the very best of his power. He must feel himself particularly honoured if he gets back the borrowed garments in a month or two, just in sufficient condition to be able to make a present of them to his shoe-black.

For a long time, a terrible swordsman belonged to one of the universities, whose mother resided in the place, and was what the students term a *Frass philister*, or eating philistine, or who in other words kept an eating-house for the students, as is very common in the university cities. Her table could promise very little satisfaction, even to the least delicate and artistical stomachs; in fact, it required a strong dose of active exercise before dinner to enable its frequenters to make an attack upon it, and another as active after dinner to conquer the dyspeptic symptoms that rapidly followed her viands. Yet this table was always crowded. The unhappy foxes had much rather try their teeth on the culinary productions of the mother, than fall under the pitiless sword of the son.

The same worthy was also accustomed to borrow ball-dresses, as he by no means approved of swelling the profits of tailors; and, at the end of the season, sent them back to their right owner in a condition fit only at the best to be forwarded to the Jew.

In earlier times, the foxes were expected by the old houses to write out their college notes; and hence arose the anecdote, that one of the most terrible of the old houses, observing a blot, which the poor copyist, in utter

fear, had made upon the paper, asked grimly, pointing to it, "Is that *Douche*, fox?" To *douchiren*, or *touchiren*, is equivalent in meaning to giving such an offence as will require a challenge. *Douche* is Indian ink, and perhaps it would be in vain to inquire how Indian ink came to be a synonyme for a challengeable insult; the horrified and innocent youth, however, who understood this meaning, answered with precipitation, "Pardon me, it is ink." That is, not *douche*, or Indian ink, nor any thing meant for offence.

When a fox forgets his part, he is, in their language, immediately sent to rest. Thus it happened that an old Bursche, who probably had two dozen college half-years on his back, at a Kneip, fell into a dispute with a conceited fox. The fox finally felt himself insulted by various expressions, and in student-phrases, gave him the *Dummer junge*--in literal meaning, *stupid youth*, but in their language a challenge. The old Bursche coolly replied, "*Stupid* I may be, but I am not *young*." A general laugh arose at this repartee, and the fox was so much pleased with it, that he instantly recalled the challenge.

Another anecdote connected with the same custom, is this. A fox suffered himself to become the bearer of a challenge; an office which, according to Chore laws, by no means belonged to him, but to the Chore-Bursche. He stepped, full of self-complacency on account of his important commission, but yet with some anxiety, into the lodging of the bemossed head, and spoke. "Watzman sends you a *Dummer junge*--a *stupid youth*." "Yes, I see him," coolly answered the challenged, glancing contemptuously over his shoulder at him, and proceeding with his writing at his desk without condescending to give to the dumbfounded fox another look.

The student receives different names, according to the duration of his abode at college. While he yet vegetated in the gymnasium he was a *Frosch*--a frog. In the vacation which lay between the time of his quitting the gymnasium and entering the university, he chrysalized himself into a mule, and on entering the university, he becomes a *Kameel*--Camel. This happy transition-state of a few weeks gone by, he comes forth finally, on entering a Chore, a *Fox*, and runs joyfully into the new Burschen life. During the first *semester*, or half-year, he is a gold fox, which means, that he has *foxes*, or rich gold in plenty yet; or he is a *Crass-fuchs*, or fat fox,

meaning that he yet swells or puffs himself up with gold. In the second half-year he becomes a *Brand-fuchs*, or fox with a brand, after the foxes of Samson. The fox year is then over, and they wash the eyes of the new-baked *Young Bursche*, since during the fox-year he was held to be blind, the fox not being endued with reason. From Young Bursche he advances next to Old Bursche, and then to Bemossed Head, the highest state of honour to which man can attain.

As the student has given to these different periods of the Burschen life different *termini technici*, so he has generally created new words for so many new circumstances; for the same cogent reasons that new Latin terms must be created for many modern things; and the creations of the Bursche stand very little in excellence behind those of the new Latinisms. We could readily furnish a small lexicon of those terms, which, however, we may very well spare the reader, as he can easily select such as please him out of the number of regular student expressions which will occur in these pages. We will here give a few examples from the learned dissertation of Herr Schluck, with his sagacious and humorous explanations.

*Burschen-Comment*--The rule of life which every honorary Bursch must follow. To live according to the *Burschen-Comment*, means to be bound by the laws of neither God nor man, and to consider oneself as better than all other men.

*1st Proof*.--Students are the sons of the Muses. The Muses are goddesses. Gods and goddesses are bound by no laws; therefore neither are their sons.

*2d Proof*.--It belongs to unlimited power to decide with the sword. But the students decide with the sword, therefore have they unlimited power. Unlimited power is one of the highest prerogatives. Princes possess only the highest prerogatives; therefore the students are princes. Princes are exalted above the law, so also are the students. This sentence is perhaps, strengthened by the old song:--

Burschen are kings,  
And the proof is here:  
They drink all their mothers'  
Pennies in beer.

which, however, were to prove, and not easily to prove, on which account I doubt not that every one will perceive the force of the reasons I have assigned.

They consider themselves better and greater than all other men. At least they are firmly persuaded of it. But a firm persuasion is the same thing as conviction. He who is convinced, speaks the truth; therefore the students are better and greater than all other men.

*To make a Randal*, or to open a Randal, means to kick up a row.

*Schisser*, from the French word *chasse*, one struck in flight, whence *Schasser*, or, in corrupt speech, *Scisser*, means a fearful and barefooted man. Hence also comes the technical phrase "to be in *Verschiss*," which indicates the most extreme condition of contempt. He who is in *Verschiss*, is shut out of all respectable society, and is compelled to go amongst the *Knoten*, or lowest of the low.

*Fuchs*, or *Fox*.--This name is derived from the cunning and slyness of foxes, since these look about as slyly and cunningly, and regard every one as their enemy and assailant, till they are rendered tame by necessity and habit. The term is not injurious as applied to a Freshman, but is an insult to an old *Bursche*.

*Mucker*, *Stubensitzer*, *Kopfhänger*, *Kessel*, *Wurzel*,--*Saint*, *Stay-at-Home*, *Head-hanger*, *Kettle*, *Root*.--These words are nearly synonymous, and indicate a man who scarcely dares to breathe, or to step over the door-sill; who from anxiety, or sanctimoniousness, goes with his head hanging down, or sits as continually over his books as a turkey-hen upon her eggs, or a kettle over the fire.

*Pflaster-treter*, *Pavement-treader*; *Quark*, *Curds*.--These are names of the men who are natives of the city or its vicinity. Pavement-treaders are those who were born on the ground and site of the university, and therefore, from youth up, have trodden the very same street-pavements. The pavement-treaders are also generally styled *Patent-schissers*, since they must conduct themselves in all propriety, being under the eyes of their parents; must go about in gloves, and frocks, or untorn coats, and not smoke

in the streets. *Curds* are so called because they come only a few miles from the city, and to whom, therefore, their mothers, as their darlings, can send, if they please, a dish of curds to their suppers.

*Kümmeltürk*.--Is a compound of *kümmel* and *türk*, and denotes the class of Braggadocios and Boasters, who, at the first onset, rush upon the enemy with furious outcry and riot, but at the smallest show of real danger leap back like Kummel, cumin-seed, which a person attempts to mix with melted lard. This name also has the same meaning as *Quark*, or Curds.

*Couche, Re-couche, Contre-couche*.--These are French terms, with which silence is commanded; but as they are terms commonly used to hounds, they stand properly amongst the verbal injuries.

*Dummer Junge, Stupid Youth*.--Is the highest and most cutting insult, since it implies a denial of sound manly understanding and strength of capacity of him to whom it is applied.

*Schuppen oder Rennen*.--To scale, as you'd scale a fish, or to run--meaning that poking with the elbows, when two meet and neither will give way. This is a real injury.

Dissertatio de Quomodone seu von den Burschen Comment edita ab renommita rerum Bursicosarum experientissimo eodemque intrepido horibilique Martiali Schluck.

---

If the newly arrived students are no longer subjected by their teachers to such uncouth customs, as this deposition was, yet they are by no means spared certain ceremonies by their fellow-students, if they wish to lay claim to, and arrive by degrees at, the titles of honour connected with the different degrees of standing in points of seniority in university life. Yet these are neither so barbarous as the deposition, nor is a single student compelled to take part in them. They consist of some merry formalities, to which those who choose submit themselves, and which, though solemn age may smile at them, may be readily excused in happy and careless youth. To these belong the *Fox-ride*; the burning of the incipient Brand-Foxes; and the drumming

in of the young Burschen, who then and there ripen, without further trouble, into old Burschen.

The celebration of the initiation of the Foxes, Brand-Foxes, and Young Burschen, takes place on one and the same evening, at a Commers appointed for the purpose. This Commers is always fixed for one of the special Kneip evenings, and the Chore to whom the Kneip-room belongs presides on the occasion. The candidates for initiation announce their intentions to this Chore; and the other Chores also assemble with it on the appointed day. Their place of meeting is one of the most spacious rooms used for such purposes, which is embellished as on other Commerses, and moreover also, graced with the insignia of the presiding Chore.

After the customary singing of *Der Landesvater*, the Land's-father, the assembled throng disperses itself in a circle on tables and chairs in order to greet the expected train. At the long table, at which they are accustomed to drink beer at their Kneips, sit others, especially those of the presiding Chore, and at their head the president, the drawn sword lying before him. All the spectators are well provided with beer and pipes, that they may be able to enjoy the spectacle the more agreeably. The doors of the hall now open, and an old Bursche, seated in a chair with its back before him, rides in. He is in white leathern breeches and jack boots, and wears also the hat of a postilion. He is commonly clad in a polonaise, and at his left side hangs the postilion's horn; in his right hand he carries his sword. Sometimes, as a variety, he rides in high gala dress, in frock and huge shirt-collar,<sup>[11]</sup> and seated on an ass, carrying also his highly-polished and glittering sword in his hand. With solemn assumption of grotesquely well-acted dignity, he thus leads up the procession of assembled Foxes, who, also in leathern breeches and jack-boots, ride on chairs in the same style, after the Old House. The moment that the leader of the train appears, the whole assembly breaks out singing:--

### **THE FOX RIDE.**

|                  |                                                                                                                                                                                          |
|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                  | What comes there from the height,<br>What comes there from the height,<br>What comes there from the leathern-a height,<br>Si sa! leathern-a height,<br>What comes there from the height! |
| The Chore--      |                                                                                                                                                                                          |
|                  | There comes a postilion; <a href="#">[12]</a><br>There comes a postilion;                                                                                                                |
| The Leader--     | There comes a leathern-a postilion--<br>Si, sa! postilion--<br>There comes a postilion.                                                                                                  |
| The Chore--      | What brings the postilion?<br>What brings the postilion? etc. as above.                                                                                                                  |
| Leader--         | He bringeth us a Fox; etc.                                                                                                                                                               |
|                  | Good evening, gentlemen:                                                                                                                                                                 |
| The Foxes Sing-- | Good evening, gentlemen:<br>Good evening, noble gentlemen:<br>Good evening, gentlemen.                                                                                                   |
|                  | What doth the Herr Papa?<br>What doth the Herr Papa?                                                                                                                                     |
| Chore--          | What doth the leathern-a Herr Papa?<br>Si, sa, Herr Papa--<br>What doth the Herr Papa?                                                                                                   |
|                  | He reads in Kikero; <a href="#">[13]</a><br>He reads in Kikero;                                                                                                                          |
| The Foxes--      | He reads in leathern-a Kikero--<br>Si, sa, Kikero--<br>He reads in Kikero.                                                                                                               |
|                  | What doth the Frau Mamma?<br>What doth the Frau Mamma?                                                                                                                                   |
| Chore--          | What doth the leathern-a Frau Mamma?--<br>Si, sa, Frau Mamma--<br>What doth the Frau Mamma?                                                                                              |
| The Foxes--      | She mends the Father's hose; etc.                                                                                                                                                        |
| Chore--          | What doth the Mamsell Sæour?<br>What doth the Mamsell Sæour?                                                                                                                             |

|             |                                               |
|-------------|-----------------------------------------------|
|             | What doth the leathern-a Mamsell Sæour?       |
|             | Si, sa, Mamsell Sæour?                        |
|             | What doth the Mamsell Sæour?                  |
|             | She cooks the Father's broth;                 |
|             | She cooks the Father's broth;                 |
| The Foxes-- | She cooks the Father's leathern-a broth;      |
|             | Si, sa, leathern-a broth--                    |
|             | She cooks the Father's broth.                 |
|             | What doth the Monsieur Frere?                 |
|             | What doth the Monsieur Frere?                 |
| Chore--     | What doth the leathern-a Monsieur Frere?      |
|             | Si, sa, Monsieur Frere--                      |
|             | What doth the Monsieur Frere?                 |
|             | He sits at home and oxt; <a href="#">[14]</a> |
|             | He sits at home and oxt;                      |
| The Foxes-- | He sits at home and leathern-a oxt;           |
|             | Si, sa, leathern-a oxt;                       |
|             | He sits at home and oxt.                      |
| Chore--     | And smokes the Fox tobac? etc.                |
|             | A little, gentlemen;                          |
| The Foxes-- | A little, gentlemen;                          |
|             | A little, noble gentlemen--                   |
|             | A little, gentlemen.                          |
| The Chore-- | And doth the Fox drink beer? etc.             |
| The Foxes-- | A little, gentlemen; etc. as above.           |

While this is singing, a pipe is handed to such of the Foxes as have not come provided with this smoke-machine, that every one may give proof of his ability. Glasses of beer are also assiduously handed to the poor foxes, in order to accustom them to the noble juice of the barley. The foxes in the end beginning to feel squeamish under the accumulated powers of smoke and beer, sing forth in the same style the sense of their uncomfortable feelings; on which the Chore, singing, gives them good advice, and presently afterwards they acknowledge in another stanza that they feel themselves better.



After the singing of all, or only some of the verses of this noble song, according to the decision of the president, he gives the sign that this ceremony is complete, and the new Foxes are perfectly initiated.

Then instantly commences the initiation of the Brand-Foxes. These have in the mean time made themselves fire-proof. They have put on great wigs of tow, thoroughly saturated with water. The moment that they appear in the hall, they are pursued by the assembled Burschen, who stand with huge spills ready lighted in their hands. Here and there fly the poor Foxes before their pursuers, who chase them like so many fiends from below with the flaming spills, and without mercy strike them over the head and face wherever it be possible. When the paper is burnt out, the fury of the pursuers ceases also, and the Fat Foxes are advanced to the rank of Brand-Foxes; a dignity which, in another half-year, they will change for that of Young Burschen. Then follow the ceremonies which they will at that time have to pass through, and which they who are already Brand-Foxes now pass through. It is this. Each Brand-Fox aspiring to *Pawk*, or drum, or fight himself into the rank of Young Bursche, chooses an old Bursche, who while officiating on this occasion is styled a Pawk-Bursche, and sitting down by his side, awaits the proceeding of the Commers. The president determines what song shall be sung; but he chooses one with numerous strophes. The following is the one generally sung in Heidelberg:--

### **FREE IS THE BURSCH!**

Stosst an!<sup>[15]</sup> Heidelberg live thou! Hurrah hoch!  
The Philistine to us most kindly leans;  
He sees in the Bursche what freedom means.  
Free is the Bursch!

Stosst an! Black--red--gold.<sup>[16]</sup> live ye! Hurrah, hoch!  
He who guides the stars where on high they glow,  
'Tis he who our banner bears below.  
Free is the Bursch!

Stosst an! Fatherland live thou! Hurrah, hoch!  
To our fathers' sacred customs be true,  
Yet think on our successors too.  
Free is the Bursch!

Stosst an! Country's prince lives he! Hurrah, hoch!

He hath promised to guard our ancient right!  
Therefore for him will we live and fight.  
Free is the Bursch!

Stosst an! Woman's love! live it! Hurrah, hoch!  
Who honours not woman and woman's mind,  
To friend and freedom is ill inclined.  
Free is the Bursch!

Stosst an! Man's strength! live it! Hurrah, hoch!  
He who can neither drink, love, nor sing,  
How scorneth the Bursche so mean a thing!  
Free is the Bursch!

Stosst an! Free speech! live it! Hurrah, hoch!  
He who knows the truth yet dare it not speak,  
Despised for ever remain the sneak. Free is the Bursch!

Stosst an! Bravery, live it! Hurrah, hoch!  
He who counts the cost ere the battle hour,  
Will basely stoop to the hand of power.  
Free is the Bursch!

Stosst an! Burschen-weal, live thou! Hurrah, hoch!  
Till the world is consumed on the judgment-day,  
Be true, ye Burschen, and sing for aye--  
Free is the Bursch!

---

After the singing of every verse they *stossen an*, or meet glasses, and whatever quantity of wine the *Pawk-Bursch* drinks, be it a half or a whole choppin, or even two choppin, the unhappy Brand-Fox must drink as much. Wo to him that falls into the hands of a thorough toper, who is inclined to run him hard. After the conclusion of these ceremonies the *Commers* is commonly held, so that many a young Bursche on returning home is pretty much in the condition of the Austrian who had been at a Bacchanal-party, and was seen, on its breaking up, by one of his companions standing in the middle of the square in which his house lay, with his house-door key in his hand, which he was swinging from one side to another in an extraordinary manner. "What are you doing there?" asked his friend. "Ah," said the man, "the houses are all running round the square, like mad, and I'm waiting till the right one comes. It has been here several times already, but somehow, it has always escaped me."



## **CHAPTER VII.**

### **THE DUEL.**

Shall I for fame and freedom stand,  
For Burschen-weal the sword lift free?  
Quick blinks the steel in my right hand,  
A friend will stand and second me.

*Crambambuli.*

The duel is one of the few institutions of the Middle Ages which have come down to our times. Club-law, shaken to its foundation by the unceasing exertions of the German Emperors, must give way before a pliant and cunningly calculating policy. We see only in the duel its still surviving sparks, and this we see more commonly resorted to amongst students, than amongst any other class, any other corporate body; and, moreover, we find the German students making use of it to do themselves justice more frequently than all others, and how can we wonder at it? Where a great number of young men live a long time together, there, ever and anon, will certainly disagreements arise. This we see to be the case every where, and it must the oftener arise amongst students, who, streaming from so many different places, with so many different views of things, which early education has implanted in each mind, many of them, moreover, placed high by birth, now find themselves placed as it were on a level, that they may enter into the necessary intercourse. "There is no love without strife," says an old proverb, and accordingly this gathering together, this dividing and coalescing into separate companies, which takes place more in the German universities than in those of any other country, must inevitably lead to more frequent disputes. Moreover, the free, developement of all physical and intellectual powers, in which the German students especially delight, must more easily occasion differences than is the case amongst other classes of society; and therefore we find the duel even more frequent amongst them than amongst the military class. But if it enjoy a legal toleration in the military class, as being considered to a certain degree

necessary, we must admit that amongst students, where it is punished by the laws, it wards off worse things, and as an unavoidable evil could not be very easily or speedily annihilated. Can we blame very severely rash and impetuous youth, which, in the feeling of its strength fancies that it can fight out and achieve any thing--which has not yet learnt to accommodate itself to the notions of strangers and the opinions of others--if it betake itself to other weapons than well-considered words and the discreet pen? And regarded from this point of view, the duel appears an evil small in comparison, and much to be preferred to the cudgel to which the *Handwerksburschen*, the journeymen artisans, addict themselves; and from which, we suppose, they have acquired the appellation of Knoten, which is contemptuously given them--as people who, to settle their quarrels, have recourse to a knotty stick--*Knotenstock*. It is very rare that a student degrades himself by the use of the cudgel, and this offence would be even more strongly punished by the laws, while it would be visited by the students' own court of honour with the *Verruf*, or Bann. Nor must we forget that in the interval between the offence and the duel, time is afforded for a more quiet consideration of the rashly-spoken words, and a possibility created for the withdrawal of them. But the duel, has many times grown in such a turbulent manner that it has required all the force of the laws to repress the rage for combat, which often surpassed all conception. As the tourney of the Middle Ages degenerated, so has this Middle Age practice now lost much of its original signification; and far the greater number of duels serve, not to terminate disputes between individuals, but to afford an entertainment to the Chore, which is rendered doubly attractive by the charm of danger. The origin of almost every duel would prove the truth of what we have here said.

Little matters often conduct to great evils; and though we are disposed to consider the duel, as ordinarily fought, no very great evil, yet the causes out of which it springs are proportionably still less. Honour is truly a thing which does not admit of much modification, or suffer much tampering with; and what will not a strong phantasy see in any thing with its microscopic vision? The delicate and exaggerating nature of these qualities, reminds one in fact of the sportsman who happening to put on a pair of spectacles of much greater magnifying power than usual, suddenly fired off at a fly which passed before his eyes, taking it for a partridge. Many a one vexes

himself likewise when others are pleased. He is not in good humour, and their satisfaction or equanimity is an offence to him. A country fellow was angry with a traveller for asking him whether the next village was far off, when its first houses were only a few paces further on. He knew that; but he did not consider that the stranger could not know it, and what was more, he had himself been thinking neither of that village nor any other, but only that he had just lost a lawsuit. In short, every one knows how it is accustomed to happen in such affairs. A son of the Muses is in a bad humour, and so any thing gives him occasion to call thee a *dummen jungen*; or he sends to thee a *dummen jungen*, and the business is settled. The conveyance of such a message is generally consigned to a student of some standing, who knows how to conduct himself in such affairs.

We above all things counsel him who is no friend to the duel to banish that little word "*dumm*," stupid, entirely out of his mouth; for if he uses it to a student in the presence of another, the student, were he his best friend, must challenge the user of the unlucky term to fight, unless he recall the offensive expression. Every duel drops through, where the challenger recalls his *dummen jungen*, and this he can do with unblemished honour, if he has convinced himself that the other did not insult him purposely. Yet no student is willing to do this frequently, lest it might appear that he would cut a swell with challenges, and yet has not really the courage to fight. Every duel must be announced to the convention of seniors, which, if the affair goes off in smoke, must see that the challenge is returned as null. In earlier times the insulted party, that is, the person who heard the above opprobrious name applied to him, sent immediately to the offender a cartel-bearer, to inform him that after what had occurred, he must fight him in this or that manner.

Come I athwart a proud *Pomadenhengst*,<sup>[17]</sup>  
Who with full sails of stale and puffed-up pride  
Draweth me near--I tread upon his toe.  
Thereat he wonders;--I tread on it again;--  
Then grows he wroth;--"Hark ye," he cries, "was that  
Foot on purpose set there?"--"No, it was the heel,"  
"The heel--So? Nay, that find I very strange."  
Then add I--"Oh, do me this only favour--  
Find *nothing* strange--*thou art a DUMMER JUNGE!*"

At the present day people spare themselves this trouble, and also hold the time not so exact that the duel, as formerly, must come off within three days. As we have before observed, the weapons with which all student duels are fought belong to the Chores. An insulted party now, therefore, addresses himself to one of the Chores--that to which he belongs, or to which he has attached himself as a friend, though not a member--and prays the use of these weapons. His request is granted; if he be not a member he pays a certain sum for their use; and at the time which is agreeable to him, the Chore sends a Bursche to the *Chore-Kneipe*, where it is expected the challenger will be found, to announce to him the appointed day and hour of the duel. It is not necessary to name the place, as that is almost always the same, at Heidelberg being the well-known *Hirsch-gasse*, or, in plain English, Stag-lane. The students term this "to fix one." If this hour is convenient to the challenger, who has thus been fixed or determined, the Chore the same evening sends a Fox to the *Pawk-doctor*, a surgeon who regularly attends all the duels.

In what manner the duel shall be fought, the insulted party need not yet make known. Up to this point we know nothing more than that it is to be fought with swords. The usual weapon amongst the students is a long two-edged sword, with a basket hilt, round which the colours of the Chore are wound. It is long and flexible, in order that the blade may throw itself over that of the opponent when he parries, as the duel is generally fought by cutting and not by thrusting. This sword runs not to a point, but is, as it were, at the end cut square off. In some few universities they fight in the Paris fashion, that is, by lunging with the rapier, as in Würzburg, Jena, and others. If the cause of offence or injury is heavy, they resort to the crooked sabre, or to pistols. In such cases, the person who gives the offence implying the challenge, does not style the insulted party a *Dummen jungen*, but an *Infamen*, an infamous fellow.

The crooked sabre is a dangerous weapon of great weight, resembling in its curve and length the dragoon sabre, and occasions the deeper and more dangerous wounds, in that the duellist having made his stroke draws it back with full strength, and is thus in a condition to cut through every thing which comes within the sweep of his curve. It requires strength to use it well. Student with student only can make use of the *Schläger*, or regular

duelling sword. With those who are not students he fights with the crooked sabre, or with pistols; with a military man, with the straight sabre, which also is a dangerous weapon.

By far the fewer number of duels spring out of actual insults or injuries, or rather we should say, the student seldom fights because he is insulted, but insults because he wishes to fight. Contests, on account of actual and genuine insults, are generally amongst the *Camels*, or those who do not belong to any Chore: seldom amongst the Chore members. When these, however, become, on any occasion, very hostile to each other, or have a particular desire to measure one another's skill, this is always fought in the Single Round, of which more anon. But that duels may not be wanting in which the Bursche may set his bravery in its true light, a fine opportunity is afforded by the so-called *Allgemeinen*, or general Kneips, which are held every Friday. We shall farther on, come to these again.

When the Chores are here assembled, each *kneiping* at its own table, it requires but a trifling spark to put two Chores, who for some time have already been in a state of electrical excitement, into thorough fire and flame. A Bursche comes over from one table to another, listens awhile quietly to what is here saying, but soon finds an opportunity to quiz or ridicule this or that; to make himself merry over the weapons of the Chore, or its last *Commers*. Like is compared with like: the conversation grows continually warmer; more and more from the other table keep coming over, and mix themselves in the strife. This becomes momentarily hotter; finally, the senior himself comes over, and challenges the other senior to a *Chore-hatze*. By this is understood a regular duel between the whole of the two Chores, man with man. In a similar manner a similar great contest springs out of the quarrel which two individuals seek with each other out of *special malice*. When these give the challenge at a general Kneip, then follows a general challenging, the friends of both the parties following the example.

And challenges by scores are seen,  
Because the wit is very keen.

The following persons are necessary to a duel, besides the two duellists; two seconds, two witnesses, an umpire, and the surgeon. The room in which



the duels are fought at Heidelberg, is the well-known room of an inn on the side of the Neckar opposite to the city, finely located in the valley of the Hirsh-gasse. Thither see we the Sons of the Muses often, betaking themselves in troops, to witness a contest between two of their most famous swordsmen. When a duel is determined, the room, or ball, as it is termed, must be secured for the appointed day. The room is regularly hired for these purposes by the Convention of the Chores, and its rent is defrayed out of the Chore-chest, as before observed, where also it was remarked that the use of it and the weapons is hired for particular occasions by the Camels. The Chore to which the challenger belongs, or with which he has associated himself, secures the hall by marking the Chore sign on the floor with chalk. By this it acquires the right to occupy it for two duels, and must then, if wanted, surrender it to another Chore.

"Solemnly," says Hauff, in the *Memoirs of Satan*, speaking of a duel, "was each individual conducted into a chamber, his coat taken off, and the Paukwicks, that is, the armour in which the duel is to be fought, put on." Each duellist is, in fact, conducted into a chamber by his witness and second, and clothed in the duel costume. Some trifling changes take place in this from time to time, but it consists, substantially, of the following pieces. A lesser and a greater cap, according to circumstances hereafter noticed, and which can be made tighter or looser, but which is generally worn loose, so that the blows may take less effect. A tall cravat, which protects the throat, and commonly reaches up to the nose, but this is put on in the hall immediately before the fight commences. The binding of the arm is particularly important, that it may afford it the greatest possible protection, at the same time that it does not impede the action of the wrist and elbow. For this purpose is used a fine leather glove, bound round and secured to the wrist with a silken riband. This binding of the glove must be very carefully performed, so as to defend the sinews and arteries which abound here, as much as possible from injury. The hand is protected by the basket-hilt of the sword. The duellist takes the end of the riband which secures the glove in his hand until a similar one has been passed round the elbow. The *stulp*, a thick and well-quilted cover for the arm, made of silk, is then drawn on, fitted down upon the glove, and being fastened there by the riband which also secures the glove, and at the upper part of the arm by other ribands. Another bandage, called the axillary knot, has frequently also

been brought under the shoulder to defend the axillary arteries from injury. The last piece of the duel-costume consists of the paukhosen, or duel-trousers. It is made of leather of uncommon thickness, and well stuffed, and comes up so as to form a sort of cuirass, though without iron, such as the soldiers of Columbus used to wear. High as it reaches, it yet leaves a good part of the breast uncovered. It is laced together behind by means of leathern thongs. A thicker glove is fastened to the paukhosen behind for the left hand, or should the duellist happen to be left-handed, for the right, to keep it out of the way during the fight. Before the combatant was thus attired, he had not only his coat, waistcoat, neckcloth and braces taken off, but his shirt sleeve also slit up from the wrist to the shoulder, so as to give full freedom to the action of the arm, on which account a duel-shirt is frequently kept for the purpose, and put on before going to the place of contest.

The whole of this duel-suit is calculated for a man of ordinary size, and therefore little fellows often cut a very laughable figure in it. They are more protected in it than larger persons, but at the same time are more encumbered. The second clothes himself in similar duel-trousers, and puts on a cap with a large front, or a hat, and the large leather *stulp-glove* covers his arm. The witness requires only a leathern glove on one hand, to enable him, if the sword of the combatant gets bent during the fight, to straighten it out again for him.

When the two duellists are equipped, they are conducted into the hall, and whilst the remaining particulars are adjusted, they walk up and down, each supporting the arm which has to wield the sword on his witness. The seconds now measure out the distance, and determine it by two lines of chalk. Within these two lines the combatants must fight, and behind which they are not allowed to retreat. If either of them does this three times, he is dismissed from the contest with shame and insult. The second of the person challenged has the right to choose the umpire, the second of the challenger commands. Now first has the challenger to declare in what manner he will fight; but till we have said a few explanatory words, must the antagonists restrain their impetuosity.

The different sorts of the duel progress, from the mildest to the most severe, in this order:

1. Twelve rounds with the great cap.  
    (a) With a conclusive wound.  
    (b) Without a conclusive wound.
2. Twelve rounds with the small cap.  
    (a) With, etc.      (b) Without, etc.
3. Twenty-four rounds with the great cap.  
    (a) With, etc.      (b) Without, etc.
4. Twenty-four rounds with the small cap.  
    (a) With, etc.      (b) Without, etc.
5. One round with (a) (b)
6. A round without cravat or bandage.

Before we proceed to the explanation of these terms, we may remark, that the same rules apply to the crooked sabre, but if it be used, the combatants generally fight what is called the single round, and that duels with pistols are conducted in the different modes in which other people fight those duels. The students commonly fire at twenty paces distance; the exchange of shots takes place at the word of the commanding second, and in such a manner that the antagonists can only at the moment that the command reaches the final word "three!" catch sight of each other. One exchange of shots is generally held satisfactory.

By a round is understood the duration of a contest till one has planted an unparried blow on his antagonist; it may be on his person or only on his defensive paraphernalia: of such rounds twelve at least are made. The small cap indicates the ordinary cap which the student wears; and the large one, a cap with a very large front or shield. The theological students fight in the large cap, since a scar in the face would amount to a termination of their professional career, of which Hauff gives an example, in the *Memoirs of Satan*, to which the reader may refer if his curiosity so far prompts him.

The most customary duel is that with twenty-four rounds and the small cap. Is it fought in the ordinary manner, that is, twenty-four rounds with a conclusive wound? then the duel is ended when a blow falls which is considered a conclusive one, namely, of two inches length, and deep--according to student phrase--to cut through the two skins. The duel of twenty-four rounds without conclusive wound proceeds thus. If a considerable hit is made, the doctor must decide whether the duel can proceed or not; in the latter case, the fight is continued, however, as soon as the wounded party is sufficiently restored, which in the twenty-four rounds with a conclusive stroke as observed, cannot happen. In either kind of duel, however, it must terminate with the twenty-four rounds, though neither has lost blood. In this case, both the antagonists remain unconquered, and give their hands in reconciliation. When a wound is given, which in its own nature or by the rules of the duel proves decisive, the second of the wounded party puts an end to the contest with the words "Remove him!" Distinguished swordsmen generally fight the single round. In this case they fight for a quarter of an hour. The umpire stands with his watch in his hand, marks the pauses which are made for rest when the combatants become weary, and counts them off from the actual time of fighting. So long a time as has been consumed in resting, must the duel extend beyond the quarter. The sixth and last mode consists in fighting without coat, waistcoat, and cravat, and without the usual defensive costume. This, of course, is the very worst species of all those which have been enumerated.

When all is ready for the duel, the two combatants confront each other. The second stands at the left side of each, holding in his hand the so-called *Secondir-Prügel*, or second's cudgel, a weapon consisting of a strong rapier fixed into a basket-handle. The witness stands at the right side. His business is to put in order again the duel costume of the combatant when it becomes deranged, and to support his arm when it is become weary. The umpire stands at some little distance, between the two combatants, and before him is a chair, on which he marks the end of each round with a chalk line, forming the one side of a square, so that at the end of twelve rounds his marks have completed this figure....



At the end of the twenty-four, this....



The swords have been ground sharp in preparation, on the grindstone in the court below. The spectators have assembled themselves. These can only be students; and even these, if the combatants require it, evacuate the hall. In that case the cry is made "All must quit the place."

"We planted ourselves in the ancient attitude of combat; the swords were crossed; the seconds cried 'loose!' and the swords whirled in the air."--*Hauff's Memoirs of Satan*.

The commanding second cries--"Upon the measure." Both combatants step forward upon the measure; the seconds station themselves at their posts; the witnesses step back. "Bind the sword!" cry the seconds; the combatants put themselves in attitude, crossing their weapons. The seconds become more earnestly observant. "Loose!" they cry, and the swords flash in the air. On the style of fighting we shall say what need be said, below, under the head of the Fencing-school. We often see two practised swordsmen long circling round within the measure, watching keenly every movement of each other's eye, every turn of each other's hand, while the seconds follow all their movements with the same short and quick steps. Suddenly an unguarded part is espied, and stroke upon stroke falls with lightning speed. Quickly a blow is planted; the seconds dart between, and with the word "Halt," strikes the swords aside. The moment this word is given, the combatant must cease to strike: if he do not this, he has made an after-stroke, and where this is done three times, the offender must quit the measure with shame and contempt.

The second must be an expert swordsman, or he would not only run great danger himself, but be unable to give to his combatant the necessary protection. This office, as already stated, falls to the second *Chargirter*. He must exert all his skill to protect his combatant as much as possible, without holding his second-cudgel so as to prevent the blows of the antagonist reaching him. He must take heed that the opponent does not present his sword so horizontally that his combatant in rushing forward shall run upon its point. We have stated that it is a disgrace to the duellist if, before the round is ended, he goes backwards off the measure. This the student calls to "nip," or to "nip out," and says "he is nipped." A laughable circumstance of this kind once took place in Göttingen.

A little Jew had a quarrel with a renowned Schläger, or duellist, of great stature, who had maltreated the little Hebrew. When they stood upon the measure, the little fellow who had never before entered this arena, awaited with wrathful impatience the word "loose," and made a spring in the moment, whereby he gave the opponent a tremendous *quarte* in the face, crying, "There, thou'st got something!" The tall fellow, who expected nothing so sudden, was horribly enraged at this inroad upon the honour of his swordsmanship, and so much the more as every one laughed heartily at the droll occurrence. Spite of all outcries and commands to "halt," the student pursued the Jew with terrible strokes, so that he, unable to maintain his ground, stepped continually backwards till he at length actually took refuge behind the stove. The seconds were seized with such a paroxysm of laughter at this scene, that they were unable sooner to run to the aid of the little Jew, and then first placed themselves as a wall between the stove and the enraged swordsman.

When a round is ended, the seconds and the witnesses, who come to their aid, often contend the point, whether an after-blow was made or not, whether one or other of the seconds forwarded, that is, exceeded his duty in protecting his protégé to the prejudice of the opponent or not; which last act, if often repeated, entitles the other second to demand that he be dismissed from his post. But most frequently of all, the dispute is, whether the blow took or not. All these points of dispute have to be referred to the umpire, against whose decision there is no appeal. When the single round is fought, the seconds do not stand at the left side, but so that they make a cross with the duellers, as here that frequent springing in between them is not necessary. So goes the duel forward till terminated in one of the aforesaid ways. In the mean time the doctor has, from the very commencement of the fight, had his bandages in readiness, his needles threaded, and water set at hand, prepared at a moment with a skilful hand to afford assistance to the wounded.

The duel with swords is, as may be inferred from what we have described, not very dangerous, and thus it proves itself, since from the great number of duels which annually occur, so few serious consequences follow. There are now students, who, during their career, have fought from thirty to forty, and even sixty times, and yet have come out of them all with a few

slight wounds in the face. Yet tragical consequences are by no means wanting. Noses and eyes are sometimes lost, and even fatal terminations are now and then put to them.<sup>[18]</sup> The wounded are nursed with great care by their companions; and those who distinguish themselves with their weapons, speedily mount to the head of their Chores. It is said that two brothers were such strong and perfect swordsmen, that they disabled a whole Chore, with whom they came into contention for further exercise of their weapons for the whole half-year. The duels with the crooked sabre, are the most frequently attended by unhappy results.

The duel is distinctly prohibited by the laws. The enactments of the academical senate concerning it are as follows:--

1. If any one is slain in a duel, or is deadly wounded therein, or so wounded that he finds himself in danger of his life; or that a lasting disadvantage, through mutilation or internal injury, is occasioned him; or if the duel has been with pistols, with the fleuret, or with the crooked sabre; and even when the duel with pistols, with fleuret, or with the crooked sabre, has not been completed, but only intended, the affair can no longer be regarded as a mere violation of discipline, but to be penalty treated, a trial constituted against the actors, and all the aiders and abettors, before the university magistrate, and all the minutes and evidence to be handed over for the decision of the civil courts of justice.

2. Shall the duel with sword or crooked sabre have been followed by none of the aforestated consequences, without making any further distinction between the relative position of challenger and challenged, both parties shall, under ordinary circumstances, suffer a punishment of from four weeks incarceration to the enforcement of the *consilium abeundi*. On account of more serious circumstances, in especial, on account of a wilful seeking after contention, of gross insult, of rejection to offers of reconciliation, neglect of the summons of a surgeon, or of fighting the duel under unusually dangerous regulations, shall, according to the circumstances of the case, punishment of a higher kind be inflicted on one or both parties, as may appear right, even to the extent of the sharp relegation.



In milder circumstances, and towards that party who shall have made sufficient offers of reconciliation, or who has been injured or insulted in a gross degree, the lighter penalty of imprisonment from eight days to four weeks may be inflicted.

A duel is held to be perpetrated from the moment of its commencement.

3. Seconds and so-called umpires may pass without punishment, or according to circumstances, may be imprisoned not exceeding eight days: shall the duel, however, have been effectuated under unusually dangerous circumstances, they shall be punished with greater severity, even to the *consilium abeundi*. The witnesses, spectators, cartel-bearers, or those in whose house the duel has been allowed to take place, or who have contributed towards it by other means, shall be imprisoned from eight to fourteen days.

4. Those who have been guilty of exciting others to fight a duel, shall suffer the *consilium abeundi*, or in some aggravated cases the simple or sharper relegation.

5. He who is aware of an appointed duel, shall make it immediately known to the university magistrate whereupon those concerned in it will be, without delay, confined to their houses, or, if circumstances require it, be arrested.

6. After inquiry, reconciliation of the parties is to be attempted; but if this cannot be effected, both parties must sign a declaration, with which they must be satisfied. But in both cases must both parties give their word of honour that they will fight no more during the remainder of the term of their academical rights of citizenship, and sign the protocol for that purpose presented by the magistrate of the university. Whoever refuses to do this shall immediately receive the *consilium abeundi*; and whoever afterwards breaks his word of honour and again fights, shall be visited with the sharper relegation, also he who fights with him.

7. Those students of medicine or surgery, who shall, at any time, undertake the bandaging for a duel, shall, after the first bandaging and performing of what was immediately necessary to the wounded, instantly

give information thereof to an authorized surgeon; and if they fail to do this, they shall, according to the degree of danger of the wounded, suffer a proportionate imprisonment; and if the case warrant it, the *consilium abeundi*, or relegation.

8. The punishment for duels between students and persons of another class, shall be regulated by the principles here laid down, unless attended with contingencies of particular aggravation.

9. The beadles who have detected duels in the course of the year, and he of them who through the discovery of appointed duels shall have contributed the most to the prevention of the fighting of duels, shall each, according to the evidences and degrees of zeal, receive a reward of forty, sixty, or eighty gulden,<sup>[19]</sup> and the academical senate, through the curator, shall determine the relative sum.

10. The weapons and other things necessary to a duel, which shall be found upon the place chosen or appointed for a duel, shall be seized, made useless, and so converted, as much as may be, to the benefit of the university treasury.

---

The beadles strive with all diligence to entitle themselves to the proffered reward; but, on the other hand, the students exert all their ingenuity to defeat the vigilance of these Arguses. In their behalf numerous persons are employed, who, through signs, give intelligence of the approach of the beadles, or, as they are termed by the students, Poodles. Amongst these, at Heidelberg, stands prominently forth the Red Fisherman, distinguished for his Herculean strength, and an inventive spirit not a whit inferior to that of Ulysses. That brown sunburnt countenance, whose features announce a rude bravery--that red hair--that solid build of limb--that mighty chest spread like the breastwork of a battery, and which the wide out-lying shirt is too proud to conceal, and the fantastic cap--the man is not a moment to be mistaken. He belongs to those creatures of the students which are to be found in every university city, and who, living by the students, are to them indispensable. So the Red Fisherman renders the

most important services, both connected with the duels and otherwise. At night when the Lumpen-bell<sup>[20]</sup> sounds, he makes the round of the *Kneips*, and if he finds any of the sons of the Muses whose legs Bacchus has lamed, he throws one over each shoulder, like two sacks, and hastens with them to their lodgings. He is present at all Commerses and Comitates: like a true hound he partakes of all the enjoyments of his lords, and grimly defends them in their difficulties; as in the villages, where it often happens at the holding of a Commers there, that through their exuberant pranks they get into skirmishes with the peasants, who will assail them in troops with tremendous cudgels, and are, when their blood is up, on such occasions, merciless antagonists, beating, treading on, and even stamping on the faces of those whom they have knocked down. The Red Fisherman, in such emergencies, is another Ajax, and wresting their weapons from them, lays prostrate hosts of Bauers before him with their own cudgels. On all occasions he patiently bears the wanton whims and insolent humours of his own lords in their barley-cornish hours. On the other hand, the police treat him in trials and inquiries which come before the magistrates with all possible lenity and forbearance, as by his courage and skill in swimming he has already saved the lives of six or eight persons.

When a duel is about to take place, the Red Fisherman is generally posted on the Neckar-bridge, to give thence the first alarm signal. The moment that he perceives the beadles hastening that way, he gives the sign by a handkerchief, or in some other way, to a servant-girl, who is stationed for that purpose below the Hirsch-gasse, and on receiving it, hastens in and gives the alarm. The combatants are hastily stripped of their duel dress, their own garments thrown on, the fighting apparatus thrown into some place of concealment, and all fly out by windows and doors, and plunge into the woods, where they return by a circuitous route to the city. If the surprise is too sudden to allow the *Pawkant*, or duellist, to divest himself of his inconvenient costume he runs, in full battle-habit, to conceal himself as he is, in the garret of the house, or in a neighbouring corn-field. The little garden-house which stands just above, called by them *Tusculum*, has afforded many a one shelter; indeed, at one time, two students regularly hired it and lived in it, so that when the surprised combatants ran in thither, they became only visitors, stepped in to see their friends. The police, however, soon prohibited their abode there.

The beadle has little chance of approach by the open highway; but he endeavours to cross the Neckar by a boat, at a distant spot, and so by hidden footways over the hills, to come slyly upon their rendezvous; or he lounges as a Bauer or a sportsman through the neighbouring vineyards; or he comes riding up as a gen-d'arme.

But come the beadle however he will,  
The wit of the student's too much for him still.  
He may think himself certain to pounce on his game,  
But he's still more certain to fail in his aim.

One of the most common punishments of the duel is confinement in the university prison; and a few words on the permitted fencing usages may here precede a short account of that. There is one regular fencing-master appointed in the university, who gives his instructions at his own house. Every Chore has here its place of practice; that is, a large room in the house of the fencing-master is hired by each Chore at a fixed hour of the day, where they meet together and practise fencing, the fencing-master often being present. Others who wish to accomplish themselves in the art of fence, join themselves to these Chore members, but it is forbidden to lunge, lest under the pretence of fencing the duel may be concealed. Of the German mode of fencing there is truly as little to say as if we should describe to any one how he should waltz. The customary weapon, and whoever has wielded it knows well the meaning of high and low, guard, quart, terz, high and low quart, prim, second, and so forth. The German rapier fight is not so ornamental as the French lunging with the fleuret. It requires greater strength, and the movements are only in the wrist; for the rest, it may be recommended to any one as a strengthening exercise. The rapier is similar to the Schläger, but, of course, blunt; a thick leather stulp covers the arm, and a mask the face. The German student, it is well known, arrives at a great dexterity in this practice, as he distinguishes himself in all bodily exercises of strength and dexterity, and as the Burschenschaft members did in the more useful gymnastic schools, where they often performed astonishing exploits. The gymnastic schools, as the rendezvous of the Burschenschaft, are unhappily cried down, and are thereby fallen completely into neglect.

It is an inspiring sight to see able swordsmen contending with powerful strokes in the fencing-school; and sometimes all seem mad together, when a couple of the great dogs of the students having found their way in, each rushes to assist his master with yells and merciless bites. All in the room retreat to tables and chairs, and the wrath of the hounds is then turned against each other. They take the place of strife instead of their masters, who, in their individual ornature, in all corners of the room stand guarding themselves with their swords.

The *Carcer* is the prison of the students, and consists of three or four rooms in the house of the Chief Beadle, immediately under the roof. It is secured with iron grating, and contains as furniture only a bed, a small table, and a wooden chair. These small chambers have received different names from the students, as the Solitude, Bellevue, Recreation, and the Hole. The last is the dark place into which the nightly disturbers are thrust, that they may here, undisturbed and undisturbing exercise their fancies till morning. They are under the care of a beadle, who supplies the necessities of the prisoner. The captive may not for the first few days quit his durance on any account. Afterwards he may attend his college lectures, or he goes about during the time that he ought to attend them, taking care to avoid meeting the officers of police. He must also return to the prison at night. During the days that he is in close confinement, he can entertain himself with reading; he plays or drinks, smokes and chats with his acquaintance, who are allowed to see him by an order from the Amtmann. His food he procures from one of the regular eating-houses, by means of his boot-fox. If all visits to him are prohibited, in accordance with the severity of his sentence, and if he be not inclined to study, he lies in bed and consoles himself with his pipe the greater part of the day, which he finds far more agreeable than sitting in that hard and uncomfortable chair. Thus we see, that this punishment is not excessively cruel, though it has the property of promoting considerably the transparency of the purse; since this agreeable lodging must be paid for, and the services of the beadle during the day are nothing near so responsive to love as to money, and for which, at all events, he must pay a specified sum. In some universities, as in Giessen, the incarceration is more rigorous. There, all visits and books are denied. The prisoner is not allowed to leave the prison; and even the bedstead is carried out in the morning, so that nothing is left to the poor wretch the whole day

but to pace his small apartment, or to sit on that hard chair, and pour out his complaints to the four bare walls. Certainly the stranger will not select a place where such barbarous sentiments are retained, and refinement of mind has made so little progress, for the scene of his university life, but will rather turn his steps towards the more humane and polished *Ruperto-Carolo*<sup>[21]</sup> or some similar university.

## **CHAPTER VIII.**

### **CHARACTERS CONNECTING THEMSELVES WITH STUDENT LIFE.**

The appearance of the Red Fisherman in our last chapter has brought before our mind's eye some other of the creatures of the students, to whom we cannot better devote a brief chapter than in the present place. These are the *Binsen-Bube*, the *Hofrath Dieh*, and the *Frau Gottliebin*. And we would have the renowned Red Fisherman to understand, that we mean not in bringing these personages into connexion with his name to bring his dignity into question, nor for a moment to place in comparison with him the two former of these individuals, over whose heads he looks down from the clouds of fame. The *Binsen-Bube*, or as he is also called, the *Blumen-Bube*, that is, the Rush-boy, or the Flower-boy, will figure in another part of the volume, and therefore must first stand forth the Herr Hofrath Diehl, or in pure English, the Privy Counsellor Diehl, an individual on whom many foreigners must have stumbled in Heidelberg.

This individual has served for some thirty years to amuse the rackets young men by his original nonsense; and we lament to be obliged to say that the students of a former time were not wholly guiltless of originating the condition in which he now finds himself. He is a melancholy example of a student scathed in his career; and who has, from one unfortunate hour, sunk continually deeper and deeper into the depths of misery and insignificance. What part he played as a student we are not able precisely to state; but this must be certain, that he never could have been enlightened by the sun of reason as men on the average are, and now it is with him an everlasting eclipse. According to the opinions of some, he must unluckily have been walking under a great umbrella when reason was rained down from heaven. He thus early became a plaything in the hands of men who were base enough to abuse his simplicity. He received a forged letter,

containing the intelligence that he was appointed a privy counsellor of the Hesse Darmstadt court, and the scoundrels who deceived him advised him to use some peculiar kind of pomatum, which should give to his head a look of official dignity. The upshot of this infamous business was that he lost nearly all his hair by this application, and was brought back from Darmstadt, whither he had gone to take possession of his office, to the university a crazed man. From the consequences of this lamentable history he has never recovered. His mind, weak before, has since remained hopelessly confused. He has continued to occupy a small chamber, where he employs himself busily in scheming and maturing plans for the improvement of the world; for the maintenance of the European balance of power; for the better pursuit of philosophy, and for bringing it into a better connexion and alliance with other branches of education; and in the discovery of an elixir of longevity. The results of his profound meditations are laid down in vast masses of manuscripts, which, alas! like the Journey from Stolpe to Danzig,<sup>[22]</sup> have never been able to find a publisher. Yet they are by no means useless to their author, if they are unappreciated by the world. He employs them as mattresses and pillows for his bed; and he busies himself with scattering great quantities of water out of his window in order to dissipate those heavy vapours which have prevented the booksellers from perceiving what would be so greatly to their advantage. During the day, this singular man traverses all the streets, and goes round to all the Beer-kneips. With short and measured steps he walks about clad in an old coat which he owes to the kindness of some student. Now it is a polonaise, now a velvet frock, and anon it is a mackintosh. He wears, like the student, a little cap, from below which hangs his scanty and white hair. His countenance has a singular expression of mixed pride and humility, of friendliness and melancholy; and in his right hand he carries a light stick, in such a manner as if every moment he was about to raise it in the act of demonstrating some of his cosmopolitan propositions. This moment he picks up from the street some worthless fragment, and even a bit of wood for his fire; the next instant he whistles his little dog, a faithful companion to which he is most fondly attached; and now he is greeting this person and the other, with the words "How goes it, my friend, to-day, with thee?" for he stands on the *Smollis* with every body, that is, he puts himself on the familiar footing of thee and thou; to another, "Good-day, my dear son."



In the Kneips he seeks to attract attention by an harangue, or by his remarks on the affairs of the day. He then waits with quietness till the landlord, in requital for the drawing together of hearers, sets before him a small refreshment, or till a compassionate guest treats him to a choppin of beer, or presents him with a few kreutzers. Formerly he had a stall in the half-yearly fair, where he sold partly pins made by himself, and partly other wares, as knives and scissors, and such like, at double the price at which the man at the next stall, who furnished him with them, did. That our readers may have some idea of the character and quality of the worthy privy counsellor's compositions, of which he says he has at least eighteen thousand sheets by him, we give a specimen which was written expressly for us, and which the reader may or may not, just as he is disposed, try his teeth upon. We have, however, no doubt but that those sagacious and penetrating people who have put in the mouth of Jean Paul Richter so many things which he never thought of, will also do our Hofrath the same most obliging kindness, and wish right heartily that he may have the good fortune to find at least one such commentator.

A TREATISE, composed at Heidelberg the 29th of October, 1840; and styled, a "Little Memorial and Gift of Friendship, from Friend von Diehl, Grand-ducal Privy Counsellor of Baden, and State Counsellor of the Mysteries of Heidelberg, to such of his friends as love the so-called Strictly Right, out of which every thing reasonable by degrees continually developes itself."

Now an author, who sees himself busy at his writing-table upon a composition, has to give to them that, as an inoculation of every thing, whatever it may be, which he has in his spirit consecrated to all worthiness, and so that it shall not be difficult to hear and understand, since it contains many incredible things. As he never in his time was so far advanced that he could learn to understand so much as he was striving after, as he was so poor, so very poor, therefore he was obliged to thrust back every thing of that kind to the period when finite things shall no longer be finite. It is to be desired that his inquiries should be continued either by himself, or by others of the student class who go forth as teachers, accompanied by the necessary

academical freedom, that is without all enactments and restraint. Let the pen have its course, as his thoughts for the most part have unfolded themselves, the spirit and the eye running through the right hand, and his ideas thus walking forth upon paper. Spirit, eye, and hand! hands pressed together! then draws the eye every thing so through it, as the sucking babe draws milk, that it must burst forth in some shape, as that milk in the babe, if obstructed in its natural current, will spring through in eruptions. But the Princes should take care of this, who have power, to advance the wise, so that they may be able to live, that they may be safe from the claws of an old wife's company, and may not be thrown about as feathers in the world, called also the great city street,--that in the University cities those of the grade of witches may not wash away all that belongs to the liberty of the duel in general. Especially shines this out of the Bible, out of the Testament--where the Dutch prescribe the gospels as well as the epistles, like physic, that they may preach upon it as the Bauers to their servants, when they have cleared out their stables, "You must make a bee-hive; set about it, make it quickly with a dung-fork and the handle of a flail." Preaching such nonsense do the Dutch divines wring themselves out as an old woman wrings out a wet cloth, yielding only that which men have no occasion for, and without which they would be more of men than with it. Thus money and the necessities of life are continually decreased, or rather are rolled out thinly till they overspread and cover up the spirit of man, as a surgeon spreads out his plaster to the extent of two and twenty yards.

Two and twenty years have I laboured incessantly to defeat these drifts of the old wives, for the good of all states, but the more I labour the more enemies spring up. Still must I of necessity stand up for the princes, since that dwells in me which man styles duty. During the half of that two and twenty years, I have written treatises for the guidance of students of jurisprudence and criminal law, adapted to all cases and occasions, after which, however, no man inquires. Students diverge continually farther and farther from my views of law, being influenced by the city clergy, who warn them against them through means of the post. I live in privacy with the great Director of the whole world; yet have the malicious city old wife gossips calumniated me. And this led them to the base action, for many a base deed is brought about through medicaments. The most grievous evils not only arise but continue--I will point out only a few of them. To injure a

man in his eyesight irreparably,--to damage his hearing,--to cause his hair to fall off,--to induce epilepsy,--to make his very spirit stand still! Instead of that office of important study to which I believe myself advanced, thus came I to sit there where inexpressible pains are given, which make every thing in man, that is of the nature of man, cry out. But the hardest of all was to become a maniac! To keep off this, I wrote from nine to ten thousand sheets, drawn from life itself, to throw out and express the very kernel of knowledge, which must yet be printed. But I am so poor, that I am always on the point of starvation; for many years I have belted myself more tightly in. I lodge at Widow Ueberlin's on the Freisenberg, who could, if she pleased, from the Great Frederick of Prussia, turn herself into the Grand Turk himself. She was not, however, aware of this; therefore, I assumed the crown of human misery, and wrote this year six hundred and fifteen hefts (each about six sheets of paper). Think only of the diligence in my dwelling!

It were well if a learned man in Baden would set himself upon a winter's work, in writing out my manuscripts, in translating them, and sending them to the press, and to make an extract for each faculty, of such matter as relates to them. I am so poor that I am quite unable to defray the cost of such printing.

I am the life--I have rent the great secret out of the bosom of Nature. I am the sun, the love, the goodness, a secret that the common class of men have to thank the learned for. From year to year I have continually learned more thoroughly the contents of the surface of the earth. I am, however, only allowed to divulge certain glimpses of this knowledge, and I show it to true friends, wearing knowledge at my side, as the soldier his sabre.

THE TRUE FRIEND FREDERICK VON DIEHL.

---

Poor Hofrath von Diehl! A more melancholy and affecting history than his is not readily to be conceived; and amid the ravelled skein of his ideas, the memory of his grievous wrongs stands clear and imperishable. It would be difficult to refer to language more vividly descriptive of the surprise and anguish, and despair, to which a human spirit may be subjected by the base

wantonness of others, than that which breaks forth amid the strange wanderings of this document of his. The injured eyesight and hearing--the hair burnt from his head as by lightning--the shock of astonishment when he finds himself, instead of advanced to the post of honour which had been delusively promised him, thrust "there where inexpressible pains are inflicted; pains which make every thing in man which is of the nature of man cry out;" a prey also to epilepsy, and above all to madness. Poor fellow! yet amid the smarting sense of his irreparable injuries he retains all his own humanity of feeling. He cherishes no hatred against mankind. His heart is sound; that is not injured, though his brain is; and he employs himself through the long years of his mental eclipse, with the perpetual hope and endeavour to benefit, not only his friends, his town, his countrymen, but all mankind. It is well that the gallant student in the spring-days of his career, while he runs on the green and gay path of Burschen-life, is kind to him. That he makes daily amends to him, for the crimes and follies of those in a day gone by. May the brave youths of Ruperto-Carolo long cherish this kind feeling to the unfortunate Hofrath! may they smoothen the few years of his earthly course to him! While he lives in the dreams of literary fame and of boundless philanthropy, may they blunt the tooth of that poverty of which he so painfully complains; and, finally, may the brave hands of the sons of the Muses, one day lay that weak but worthily-meaning head, on which some of their precursors heaped wantonly such a fearful calamity, peacefully and honourably at rest.

---

But amongst those who derive principally from the students their support, we must not forget the respectable, discreet, and amiable woman, who is to be found stationed every day at the corner of the university platz. Here the worthy Frau Gottliebin displays her treasures for sale,--cherries, grapes, plums, whatever fruit in fact the season affords, and of the finest quality, separated into small baskets-full. Every change of the season marks itself upon her stall by the apparition of some new luxury, and at Easter it is gay with many-coloured Easter-eggs for the children. In Germany, it is said, "sixty kreutzers make also a gulden," and the wisdom of this proverb has proved itself on this good woman. She not only possesses a small house of her own, but her son has studied at the university, taken his degree, and is

already advanced to the dignity of a curate in the church; yes, the worthy old dame yet hopes, and that soon, to be able to congratulate him as pastor of a parish. Her daughter is married to a surgeon in the Upper Rhineland, and when from time to time the stand of the old lady is vacant, in front of the well-known Pfalz-hotel, nobody is afraid that it is because she is ill, or because the weather is too severe for her; for summer and winter, in the hottest sunshine and the bitterest frost, there she is at her post,--no, there is a new grandchild expected, and Frau Gottliebin has disappeared to pay a visit to her daughter. She has numbered many of the present teachers of the university amongst her customers, and takes a lively interest in the members of the institution. She is also very free with well-meaning advice when the course of life of any of the sons of the Muses is not to her satisfaction. The stranger who has not tasted of her wares we may well advise to cast an observant eye on her stall as he passes it, and can promise him, if he chooses from it, a luxurious refreshment.

## CHAPTER IX.

### THE PRIVATE LIFE OF THE STUDENT.

The reader has hitherto only seen the students in their public life. Their private life, in comparison with their public and out-of-door proceedings, withdraws itself so much from general observation, that it is not likely that it should so soon, or so forcibly, strike the general eye, as that does by its bold and prominent features. Yet we are confident that we can present to the reader many an interesting picture if he will allow himself to accompany us into the lodging of one of our heroes. "In God's name," Mrs. Trollope will exclaim, "what are you going to do? Are you mad, that you would seek the bear in his den?" We can, however, only beseech the foreigner not to be deterred by the often wild exterior and carriage of the student, from paying a visit to one or another of them. Without further hesitation or precaution he may follow us, and make himself certain of a friendly reception, especially from the South German. Should any one yet be incredulous, let him only inquire of Mr. Traveller, who has now resided half a year in Heidelberg, and made his first acquaintance with the student-world in this manner. One of my friends told me that he had introduced him to the student *Freisleben*. "In his smoking-room?" asked I, in astonishment. "Yes; why not? The English," said he, "have strong nerves, and I wished to fortify his against all weaker impressions, in fact, to make him smoke-proof; an experiment which I hope even the learned Mrs. Carleton herself would not disapprove of."

"Well, and how did he like it?" inquired I farther.

"We had scarcely made our escape out of the snow-storm of a wild December day into the house, when the Englishman remarked that the whole abode had a peculiar look, which he could not for his life describe or particularize, but which had a strong smack of the student. I had purposely brought him into a genuine student *kneip-house*, and in the entrance, that white painted board on the wall, on which, with their respective numbers,

hung the keys of the different rooms, caught his eye. The narrow passage and steps by which we made our way through the house appeared strange to him. We at length reached the right door; I opened it; the Englishman looked eagerly in; but imagine his amazement as he saw nothing but a monstrous cloud of smoke. 'Where are we?' he demanded. An instant yell thundered through the smoke towards us--a whip whistled in the air, and a tremendous voice cried, 'Down! down!' 'We shall get no good here,' said the Englander. 'Courage, courage,' said I, and we pressed forward into the midst of this smoke-vomiting volcano. In the meantime a portion of the reek had made its escape by the open door; it became tolerably light, and we saw the great spaniel, who had withdrawn himself howling into his basket, and friend Freisleben standing with his riding-whip in his hand."

"That confounded dog of mine--the uncourteous rascal," said he, "does not understand how he ought to receive a stranger. Mr. Traveller, it rejoices me to see you in my abode. My friend has already made me acquainted with your name." He requested us to be seated, and offered us each a pipe, which he himself had well supplied with tobacco, in the kindest manner.

"But, my God," whispered the new guest to me, "every thing looks here pretty much as with other well-bred people. All so human. Ah! I am very sorry that I am so undeceived." Yet a closer observation conducted the sufficiently quick eye of the Englishman to the various peculiarities there, and served to enrich his sketch-book with sundry notices, which he has been obliging enough to communicate to us.

The student knows how to live here. He has fitted up his room very commodiously. The sleeping-room certainly is somewhat small; often, rather an alcove, in which, besides his bed, his wardrobe, his dressing-table, and a large trunk, there is little to be seen. But one might almost pronounce his sitting-room comfortable, were it not distinguished by rather too much of a lyrical disorder. Books, pipes, rapiers, clothes, coffee, and writing apparatus, are somewhat too little assorted; and the stove, standing in the room itself--but Germans in this respect know no better. Yet one must admit that those little machines, which look like an adiaphory, between a Roman urn and a German beer-jug, and which one might take by the end of the long pipe and carry with one along the streets, are very well adapted to the

needs of the student, who commonly only wiles away an hour at home, and then hastens again to the college, since they quickly warm the room, and as quickly let it cool again. They are readily made hot, so that you may easily when at full heat light your pipe at them.

There are not wanting tables, chairs, a commode, a writing-table and book-shelves, and a sofa that is pretty well used. Our host, at first sight looked, to my fancy, somewhat Turkish, as at our morning visit he sat enjoying his pipe and coffee, in a coloured plaid morning-gown and showy slippers. But the legs--no, they were not crossed in Turkish fashion, but stretched out at will from the sofa in true English style, and seemed to feel themselves very much at home in the room. He had a handkerchief thrown loosely round his neck, and the small, round, and embroidered cap sat not inelegantly on his head. These caps, as I learned in course of conversation, are termed *cerevis*, or beer-caps. What especially struck me in the apartment, were the various decorations which adorned the walls in gay rows, and the signification of which our host politely explained to me. Upon one wall was displayed a long line of profiles, all under glass, and in small gilt frames. A coloured Chore-band falling from above, wound about them, and comprehended them, as it were, in one great family. "These," said he, "are in memory of the friends who have contributed to embellish my six semesters at the university:" and I learned that it was the practice, especially of those who belonged to the same Chore, mutually to honour each other with those little likenesses.

"We have here," said he, "in Heidelberg, the Herr Münich, who executes these things in first-rate style, and derives almost a livelihood alone from this branch of business. It is the same in other places. I have already passed some time in Jena, Berlin, and Bonn, and have enjoyed the friendship of many a brave Bursche. There, you see the views of many a city through which I have travelled. They will to the latest hour yield me delightful recollections." These, with the well-executed portraits of many professors, filled a second wall. Amongst them proudly displayed themselves several printed duplicates of the doctoral diplomas of his friends.

"And whose likeness is this which hangs in the midst?" I asked. "That," he replied, "is the portrait of our famous Pawk-doctor, which cannot be



wanting in any kneip."

On the third wall I beheld pipes of all forms and sizes, from the meerschäum to the clay pipe; and my polite host promised me at the next opportunity, to give me a lecture, as he expressed it, on these articles of furniture. My eye was now caught by the garniture which I beheld about the looking-glass. It was hung round with ribands of various colours, and above it appeared the remains of garlands. As I noticed them my host said--"See, those are flowers out of the mourning garlands which deck many a departed friend who sleeps in the cool earth; which we carefully preserve."

"And the ribands with the many inscriptions and the dates?" I asked. "Those," said he, "are my Chore-brothers; and the date indicates the foundation-day of our *Verbindung*."

On the fourth wall were to be seen a Schläger with the Chore-colours; a chore-cap and a guitar, with several coloured rosettes. There stood also a little table, and upon it apparatus for drinking and smoking; a large Deckel-glass with a lid, having upon it an engraved inscription, "Traumansdorf to his Freisleben, 18th July, 1838;" an elegant little casket with tobacco, a spill-vase, a study lamp, a vessel denominated the Pope, to receive the ashes of the tobacco on emptying the pipe, and an incombustible spill, or Fidebus, a new discovery, and certainly one of the most useful of the nineteenth century. This consists of a small strong coloured glass tube, which is partly filled with spirits of wine, and closed with a cork; through which a wire is thrust, and to the bottom end of which wire is secured a small knob of wood wrapped in cotton wool. This wire has a ring at the top, by which it is pulled out, and the knob ignited at the lamp when it is wished to light a pipe--a convenient piece of machinery, and also forming an ornament to the table.

As I continued to observe these mysteries, my host took up the guitar, and touching the strings, sung,--

He who can neither drink, love, nor sing,  
How scorneth the Bursche so mean a thing!

"I can guess, and therefore ask not," I observed, "what your rosettes mean." "It was a delightful August ball," said he to his friend significantly. "And this glass, too, I see, is the gift of a friend," I added. "Certainly, you are quite to be envied." "That is nothing extraordinary," he remarked; "it is the custom amongst students to compliment each other with, or to dedicate to each other, as we express it, such things. The inscriptions which you see on you pipe-heads, on those ribands, on this glass, we term dedications. They bear the name of the giver, and the day which is the most distinguished in our lives through some remarkable event, on which day such a gift is generally given. Let us add to the so-called gifts the silhouettes and the sword, and you have altogether what the student is accustomed to dedicate to his fellow-student. But be seated. The coffee will be cold, and my pipe is actually gone out. If you will have a morning-gown, I have another, and I am always sorry to see any one squeezed up in an uncomfortable schnippel (student term for a dress coat). Would you think that a German had so much regard to comfort? Ha! ha! Much more than you imagine. Fancy yourself before an English fireplace (opening the door of the stove); since, without that, I know you don't feel yourself comfortable; and that we also are aware of the pleasantness of a fireplace, is shown by our frequently having the stove open into the room. And do you know that we have an equivalent for your word *comfort*, of which you are so proud?"

"If you will tell me what it is," I answered, "I will believe it; but I have hunted through every dictionary for it in vain, since your words *behaglich*, *gemüthlich*, *bequem*, don't express the actual thing."

"*Pomadig*," cried he, laughing; "that's the lordly word! but it is only one of our *termini technici*, and is not yet sanctioned by Adelung."

"I will swear from this day forward," I exclaimed, "that the students are *pomadig*." "Have pomade," said he, correcting me, "for we are no *pomadenhengste*. When I am laid up some day," he continued, "I will make you a vocabulary of our terms with their synonymes, and shall felicitate myself thereby on contributing to a more perfect knowledge of the German language in England. You will take care to publish it?" "Assure yourself of that," I replied.

"But what has the Boot-fox brought?" asked my host of his friend, who during this time had been in conversation with a queer-looking fellow. "A duplicate diploma from Schmidt," he replied. "What has the old boy then bitten of the sour apple at last!" "Yes! he has worked like a dragon--he has *geoxed* tremendously during the last year, and has now taken the highest degree."

Freisleben sings:--

Therefore lets he fall a tear,  
And thinks--ah! but youth was dear!  
And gives me an examen summa cum laude.

"I am very curious," said I, "to know who the man was that walked in without knocking, and whom you styled Boot-fox. He looked like a servant that, instead of livery, a man has stuck into a student's coat; and what a cap he had on! And besides that, he had such a curious voice that one could have thought it belonged to some other person, or that somebody else was in the room when he spoke."

"Ha! ha! I will explain that to you. This odd fellow belongs to a class of ministering spirits who live entirely by the students. We dub them Boot-foxes, because they clean our boots and clothes. They are bound to run also on our commissions, and must figure in processions and public pageants. As the poor devil must turn out very early in the mornings, his voice snaps and cracks huskily from the effects of the raw air, like that of a youth in the transition-state from a hobbledehoy to a man, till by degrees it balances itself in one key. For the rest, he is a respectable father of a family, and his wife is generally a washerwoman for the students."

"All that is easy enough to understand," I replied. "Why do you call him a boot-fox?"

"Ah, I forgot to observe, that in earlier times the foxes, who, as you know are students just come from the schools, and whom we yet play many a joke upon, were frequently obliged, very improperly, to perform those offices which our Famulus now discharges, and thence this name dates itself."

"I have made myself acquainted," said I, "with a new species of foxes. The other day I heard a professor spoken of as a school-fox."

"Yes, yes; this name is given contemptuously to one of those teachers who, without penetrating into the spirit of knowledge, turns into his scholars, by hogsheads, the unfermented deluge of material, and reckons a man learned if he has only piled up in his hollow skull a chaos of things merely gathered by rote. God be praised, these scarecrows become scarcer from day to day. Yet, alas! there lies in the German word *Gelehrter*, the idea of one who has been *taught* without our being able to say whether he has actually *learned*. The French say not *les enseignes* but *les savants*; and the English not *the taught ones*. but the *learned*."

"But," said I, "your *Gelehrter*, of the present day, we may also certainly style the learned."

"By all means; and, thank God, but with few exceptions."

"Knowest thou," asked friend Eckhardt, "whence comes the term school-fox?"

"Not clearly?"

"Then hear! M. Just Ludwig Brismann, born at Triptis, in Voiglande, who had been schoolmaster in Hof, Zwickau, and Naumburg, and who died Professor of Greek in Jena, on the 19th of August, 1585, was accustomed to wear a greatcoat lined with fox-skin. This sort of clothing, which he had been used to wear before he came to live at Jena, he still continued to sport there. The students in Jena looked upon this raiment, which was then quite out of date and very singular, as so odd that they made game of it, and those of them who had previously known him as schoolmaster, dubbed him School-fox. Thence sprung the name of school-foxery, which comprehends every thing pedantic, contemptible, and degrading."

"And may I ask," I added, "what you pay this precious Bursche for his important services? I ask, since I think of staying here this winter, and would therefore willingly enlighten myself on all matters of housekeeping."

"He receives a gulden (twenty-pence English) monthly."

"A servant for a pound a-year! Was the like ever heard!"

"You must recollect," said Freisleben, "that we are for the rest of the day attended by the house-besom," the student phrase for housemaid, who also in Berlin is styled *schlavin*, or she-slave.

"Hast thou heard the anecdote," interrupted Eckhardt, "of Schmidt's answer to our boot-fox the other morning?"

"No; let us hear it."

"The Famulus came very early to Schmidt's bedside, and said, very laconically--'the Geheimrath Forst is dead to-night. Have you any other commands?' 'Yes,' answered Schmidt, still heavy with sleep, 'I command the Geheimrath Langsam (a very rich and miserly old gentleman) to die too, and to make me his heir.'"

"Famously answered!" said Freisleben; "but, Mr. Traveller, you would know more of our household regulations. Our House-Philistine must provide for all our domestic necessities, bringing in the account monthly, which, however, we are not obliged so very exactly to pay. They furnish us with wood, lights, etc. Breakfast we commonly brew for ourselves, in its proper machine. For the lodging, consisting of two rooms, we pay perhaps from thirty to forty gulden, and the house-besom receives besides, each semester, two kronen thaler--nine shillings, English."

"Upon my word, you live right reasonably in Heidelberg."

"Not quite so much so as you imagine. If you take into the account the expense of the college lectures, you cannot well, at least pleasantly, live under 800 or 1000 gulden. There are universities where you may live much cheaper, but few where you can live so agreeably as here. You know how Lichtenberg has divided the sciences. So I might here divide the universities into such as where a man may live cheaply and well, to which class Munich and Vienna particularly belong; where he may live cheap and badly, as in many of the smaller universities, particularly Halle, which affords only

nutriment for the hungerers after knowledge; where he may live well and somewhat expensively, as at Heidelberg; and finally, where he may live dearly and ill, of which the great Berlin is an example. I speak here only of the material life, apart from which, every university has its peculiarities in many respects; in short, has its own *ton*. When you have learnt thoroughly to understand Heidelberg, and then afterwards visit other German universities, what a variety will you not find."

"I would gladly learn," said I, "the differences of these various universities which you say are so characteristic. It is a very interesting subject."

"But a long one," said my friend, "which we must reserve for another occasion. But," turning to Freisleben, he added, "I forgot to tell you something which the Boot-fox has communicated."

"What is it?" asked Freisleben.

"The Widow Mutch begs that she may be allowed to speak with thee."

"And what wants she?"

"O, she creeps humbly to the cross, and prays earnestly that we will again take our meals there."

"Well, if she behaves herself, we will see what the S. C. can do."

"That," said I, "if I remember right, is the woman whom you said had been put into *verruff*, or under the bann."

"The same."

"And are all the students, then, accustomed to take their dinners there?"

"O, no. Part of them at the Gasthouses (inns); part here and there, with private people, who keep a table for us, and even send us, if required, our meals up into our chambers. About thirty of us took our dinners at this aforesaid widow's, and paid each twenty kreutzers the day (not quite seven-pence). But towards the conclusion of the last semester, it was no longer to

be endured! simply and eternally cow-beef--and at last it grew still worse. Thereupon it was absolutely necessary to give Madame, the Philistine, a lecture."

"Excuse me," I interrupted, "but I must first beg for a solution of the term Philistine, which you so often use."

"We comprehend all who are not students under the name of Philistines. In a more restricted sense, we understand by Philistines, inhabitants of the city, and distinguish them from the Handwerks-Burschen, by giving to the latter the title of Knoten; and the shopkeepers' young men that of Schwünge, or Ladenschwünge, that is, Pendulums, or Shop-pendulums. Others write the word Knoten, *Gnoten*, and say that the artisans and journeymen were so called from *Genossen*, *Handwerks-Genossen*, comrades or artisan-comrades, thence corrupted to *Genotten*, and finally to *Gnoten*. We have already stated that *Gnoten* was supposed to be derived from their fighting with *Knoten-stöcken*, or knotty sticks. Thus, as in most cases of philological derivation, a fine dispute might be raised; it would be an interesting subject, and the author might be rewarded for his pains by the impressions of some dozen bludgeons on his back. But, not to lose sight of the object of your inquiry--our domestic arrangements--I here remark that the Philistine in whose house we lodge, is styled house-philistine, and his wife, the Philöse. The student who is quartered with us in the same house is our House-Bursche; and he who shares with us our apartments, is to us a Stuben-Bursche, or Room-Fellow."

"I thank you," I added. "I have certainly put your commentatorial patience to a severe trial."

"One speaks of oneself," he replied, "generally pretty willingly. We have that feeling in common with all mortals."

"But," I interposed, "it seems to me that you enjoy your comfortable room very little, spite of all its comforts, if you neither dine nor take your tea there of an evening."

"Tea!" he exclaimed, "tea! yes that is a right good beverage, but for daily use a little too sentimental. Look you--our course of life is this:--In the

morning we pursue our studies over a cup of coffee, and a pipe of tobacco; then we go to the classes. About twelve o'clock we dine; then to the coffeehouse; and how much we study after that, or how we otherwise employ ourselves, you will presently see. But in the evening, we resort to the Kneip, and drink no tea, but beer; and to the Kneip we now cordially invite you.

"But don't think we despise what may be called your national beverage; for that also, comes a time. When in the long evenings we sit behind our books, and the anticipation of the examination stands like a spectre at the door, and bars it to our egress, then, praised be tea! and its black brother, coffee; it is then they who must cheer us, when the spirit of life threatens to faint, quiver, and expire. But excuse me, I must now unto the college, which I cannot to-day very well *schwänzen*. So fare ye well!"

And thus we parted.

N. B.--The expression Ein Kolleg schwänzen--to tail a lecture--means, to put off its attendance. The term is derived from an earlier meaning of the word *schwänzen*, for which the term *durch-brennen*, to burn through, is now used, and is equivalent to the English phrase, "to give leg-bail to your creditors." In the persiflage on the *Burschen-comment*, entitled "*Dissertatio de Quomodo*, etc.," by Martial Schluck, from which we have before quoted, it is said, "an honourable Bursche has the right not to pay his debts; that is, he may *schwänzen* and *squiscion* himself, make a *squis* in his shoes,--meaning that he may sacrifice his tail like a fox, who will rather lose his tail than his life; and thus will the student rather leave behind him his trunk and cloak-bag, than wait to be clapped into prison."

When a student attends a lecture which ought to be paid for, but does not pay for it, he is said to "hospitiren;" and he is allowed twice or three times to hospitiren. If, however, he does this for a whole semester, in order to devote the price of the lecture to some other object, the students call this "to shoot a lecture." The description of this term, is also thus explained by Schluck. "The student has the right to seize upon other people's property, that is, to shoot, to prefer, to lay the charge upon another. This is a new mode of putting oneself into possession of something; that is, to commit a theft of a life-and-soulless thing, and call it only a half-theft. Shooting



distinguishes itself essentially from stealing. First, by the student privately conveying it away at once; and secondly, by giving the owner of the property notice of what he had done, after it is done. This mode of taking possession is not so much according to our customs as those of the Lacedæmonians, which brought no shame to any one by the statutes of Lycurgus, but rather honour and fame, to him who unobserved and in a clever style carried off any thing."

The principal objects of *conveyance*, are pipes, sticks, spurs, chore-tassels for the embellishment of pipes, riding-whips, and money to the amount of a *doubel*. What is more than that must be merely taken in loan, if it be there to take.

Friend Freisleben has, in this chapter, given us some notifications of the manner in which he amuses himself in his hours of relaxation. Yet we must hope that these are not all the fountains of enjoyment, that are flowing for his refreshment, when he finds himself exhausted with such arduous battles in the field of science. Our care indeed, is unnecessary, since the inventive head of the student has, in all times, least of all neglected this portion of his life.

But before we speak of other diversions, which our hero, partly in his own and partly in other Kneips enjoys, or without, in the free air, we must devote a few lines to that faithful companion, his dog. Some will, perhaps say, "What! is it not enough that we have to do with the wild student, must we also encounter his unmannerly hound?" But good reader, recollect yourself of the words of Wagner in Faust:

E'en the wise man, howe'er profound,  
Loves, when well trained, the generous hound,--  
And well deserveth he thy favour too,  
The student's scholar, apt and nobly true.

It is true, that a monstrous deal has already been said of the dog; but by no one has he been more graphically described than by the immortal Linnæus. He says, amongst other things, "He is the most faithful of all creatures; dwells with man; fawns on his returning lord; bears not in his memory the strokes he inflicts upon him; runs before him on his journey;

looks back at a cross-way, and seeks obediently that which is lost; holds watch by night; announces the approach of any one; and guards the property."

How much do we desire the eloquence of Demosthenes, that we might pronounce a fitting panegyric on the dog, already made illustrious by so many pens. We can, however, only sketch the character and manners of the student's dog with simple colours, nevertheless we hope to do the dog-family some service, and to amuse the reader with some new anecdotes. Various as are the young people which are blown together, as it were, by the winds out of every climate into a University city, as various are the dogs which the spectator will see following at their heels. They are seldom brought with them from home; but the fancy which the student has for the beast, has created a class of men, who make a trade in dogs a distinct branch of business. These people also, for a moderate honorarium, superintend the toilet of this creature, which care is particularly demanded by the luxuriant growth of hair of the shock. This dog, sometimes, when he comes new washed and shorn out of their hands, in the loss of his monthly crop of hair, scarcely knows himself again.

If one reflects too, that every individual student, out of the multitude of dogs, selects that one which seems to assort itself most completely with his pleasure and humour, one sees probably therein the ground of the observation which we once heard made by an intelligent English lady, who asserted that there was always visible a great likeness between the dog and his master. We can only corroborate the justice of this remark, and it must strike every one, that the dog continually picks up first one and then another of the peculiarities of his master.

He who desires to take a general glance at the different races of dogs which inhabit our city, I counsel him to attend the annual dog-muster. This is held in an appointed place on an appointed day, whereto all the dogs of the city, both those of the students and the citizens, must be brought. These all pass, in succession, under the inspection of a beast doctor, and such as neither through disease nor old age fall under a sentence of death, are redeemed by the payment of a certain tax, and have a tin label hung on their necks, which they wear for a certain time. I add here, in passing, a

refutation of those who assert that the Germans are ungallant, in the fact that the ladies of the canine species are charged only a gulden each for their redemption, while the gentlemen of that race are mercilessly mulcted to the extent of a gulden and a half.

Great and small, tall and short, thick and thin, one or many coloured, all meet here together. On the one side, you see the heavy house-dog, and the butcher's dog, how humbly they follow their masters; the multitude of yaffing turnspits, prized as true watchers; on the other hand you descry a line of boot-foxes, who have conducted hither the dogs of the students.

Hither come hastening with throngs and with pride,  
Lots of proud fellows from every side.

*Reineke der Fuchs, by Göethe.*

There is the poodle with his thick, round head, with the stumpy nose and hanging ears; he is propped on his short, stout leg, and his knowing eye blinks forth from amongst the crisp woolly hair. He permits himself good-humouredly to be adorned with his new order. Grimly steps forth at the call, the colossal bull-dog, with black, thick, split nose, and slavering chops; but over him towers the English mastiff, in hairy coat of one uniform hue. The hunting dog, in a place where all worthy exercise of his powers is denied him, has stretched himself out calmly, supporting his strong head with its long drooping ears, on his vigorous foot. The slim greyhound, constantly trembling, has cowered down in a corner. Here and there you discover a fretful thick-bodied pug, with his upthrown snub nose, which the popular speech styles a saddle-nose. There is the bandylegged Dachs too, with his deep sweeping ears, dark colour, and eyes full of intelligence.

The dog of the university leads a wholly peculiar life, not unlike that of his master, since he accompanies him every where. The saloon and the College hall only have closed their doors against him. Hence it is said--

If at home thou would'st me find,  
Pray thee leave thy dog behind.

During the time that the student spends in these places, his dog is confined to his chamber. Here he fills up many hours with his dolorous lamentations, or at the window watches with envious impatience the passing of his brethren along the street, and challenges them with savage yells. Whether he avails himself of the books of his master to advance himself in science, we will not venture to say; yet we have ourselves seen them fly through the window of their abodes that were not at a great height from the ground, and seeking their masters in the College hall, there, as very attentive Hospitanter, stay out the remainder of the lecture. One of my friends had a white poodle, who was accustomed regularly to accompany him to the indifferently attended lectures of a certain professor, where he sat quietly on the bench by his side, and looked solemnly into the note-book of his master. One day the dog was absent, when the extremely short-sighted professor, in opening his lecture, remarked, "Gentlemen, it would be well if you all wore coats of one colour; and were they dark ones they would be not so much observed by me, but it struck me immediately that the gentleman in the white coat was absent to-day!" The great aptness of this creature to be taught, often furnishes the students with much entertainment. He readily learns to carry his master's stick and portfolio to the College hall, whence on his command, he returns quietly to the house. He is the best of chamber attendants, bringing in the morning his master's slippers and pipe. If he returns home at night rather inspirited by Bacchus, he accompanies him as a safe conductor, often bearing things which he has unwittingly dropt, after him.

A dog at one of the universities was well known as an excellent guide. He led his master home every evening; if he turned into a wrong street, he seized him by the coat, and pulled him back; if he fell down, he barked loudly till he rose again; and when they arrived at the house, the sagacious animal knew very well how to ring the bell.

They are also made use of in many a prank or piece of waggery. Thus it is said, that once in Leipsic, the students accustomed their dogs to the most frequent Christian names of the ladies of that city, and so soon as they came readily at that unusual call, the ungallant sons of the Muses allowed themselves the unpardonable joke of shouting aloud those names in the public walks, so that it is said, the fair sex in surprise quitted the field.

In one of the university cities, two dogs also furnished this spectacle. An order had been issued, that, to avoid any serious accidents from them, no students' dogs should appear in public except led in a band. Presently was seen a student with two dogs in cords. The one was a little pug scarcely two spans high, which was led in a rope about as thick as a man's arm, whilst the other, a huge and monstrous creature of the kind which the students call *Doggen*, apparently half mastiff, half bull-dog, stalked near it, led by a piece of twine.

We still see these creatures made co-workers in many a frolic. At the dinner table, in the public walk, in the fencing-school, and in the evening at the Kneip, every where must the dog attend his master. He must eat with him in the same house; the master, indeed, in the chamber, the dog in the kitchen; for which repast, however, is allowed on the dog's behalf two kreutzers a-day. Neither are combats wanting between them, whereby they may the more resemble their masters, and to which the masters, in fact, conduct them. In these dog-duels it goes often much worse than in those of their lords, for they seize each other so furiously that it is often difficult to separate them.

"The dog," says Linnæus, "remembers not with resentment the blows of his master." The student's dog is a striking example of the truth of this remark. How often, when the Bursche returns home from a drinking company, must this faithful servant do penance for the wild humours of the evening. It goes not better with him on such occasions than with many a poor German wife, who yet bears her lot with patience. She still loves her rough commander, even while he treats her with unmanly rudeness, and seeks to hide his weaknesses. So this true creature. Is his lord in danger? he defends him to the last, and often renders him the most signal services in skirmishes with the Knoten; yea, he hesitates not to attack the sacred person of the beadle. He is denied admittance to the duel, because he would speedily, as an uninvited second, spring between the combatants, and as some assert, on account of such accidents as the following. A duellist had his nose cut off, and a large bull-dog which was in the room--perhaps they had forgot to give him his dinner--greedily swallowed it; so greedily, that it was impossible to prevent it! Whether the unnosed Bursche had a new one

made for him by Geheimrath Gräfe, or whether he afterwards wore a silver one, I am not prepared to say.

The student dog extends his student life far beyond that of his master, who turns him over into the hands of another on his own departure. It thus happens that many of these creatures travel from one hand to another, till, finally, they belong to no individual possessor but to a whole Chore, and live a free, unrestrained life. They then kneipe in rotation with the brethren of the Chore, all of whose dwellings they are acquainted with; and if they appear a little lost during the rest of the day, yet they are regularly found at the places of public meeting for social enjoyment. There was, for instance, the little Tambourlé here, which for many years lived only on sugar, which it received from the coffee-drinkers in a well-known coffee-house. At every fresh cup it demanded two or three pieces of sugar, as its established toll.

It is also gratifying to see, when these welcome guests are grown old and weak, how the other dogs receive them, and stand strictly by these Bemossed Heads when they are attacked by the vulgarer dogs of the streets. The cultivated dog is no longer a merely carnivorous animal, he has accustomed himself to a variety of food; but it is perhaps the peculiar characteristic of the student's dog that he drinks beer. Once used to it, it becomes his greatest enjoyment to empty a few choppins, and he seems not at all to dislike the phantasies of a half-fuddled state. To him by no means applies what Voigt has added to Linnæus's characteristic of the dog--"he draws himself back at the sight of a glass."

---

The son of the Muses can as little be without his pipe as his dog. The enjoyment which it affords him, is at once single and manifold. It embellishes his pleasures, it comforts him in trouble, it warms him in the cold, it cools him in the heat of summer. Should ennui seize him, he fills his pipe, turns to his study, and what a fulness of thought comes over him as he gazes into the clouds of smoke, which, curling up from his mouth, shape themselves into mysterious forms! There lies in it a power of inexhaustible reproduction. And how shall his wine and his beer smack without his pipe? In short, it is a discovery which wonderfully unites in itself all opposite

qualities. With all the parts and attributes thereunto belonging, it constitutes, when displayed upon his walk, his room an armoury, which the tender hands of the ladies do not even disdain to embellish.

Of the continued changes which pipes in the course of time undergo in their fashion and construction, many cabinets would convince us, did they only contain a collection of ten years' duration. We have no intention to weary the reader with the description of such a cabinet; but he will allow us to state of what members a modern pipe consists, and what is necessary to its complete use and enjoyment.

The essential portions of a pipe are the mouth-piece, the tube, the water-sack, and the head. The two last pieces are united in the meerschaum and the clay-pipe into one. The mouth-piece, at the upper part, is wrought out of horn. It is made thicker or thinner, longer or shorter, with a greater or less bore, as it may be required. The long mouth-pieces, having various partitions, or members, as they are called, are so finely wrought that they are quite elastic, and are sold at a proportionate price. The mouth-piece is commonly united to the tube by an elastic portion called a Schlauch, which is constructed of elastic wire and silk. If the pipe is intended to be a very handsome one, there is still another piece interposed between the schlauch and the tube, which is made of roe's-horn, and styled the roe-crown. The tube itself is manufactured from various materials; the coarser ones out of juniper-wood, or cherry-tree, the finer ones out of beech and ebony; but that which is most highly valued, on account of its durability and agreeable odour, is the Turkish weichsel, or agriot, a kind of wild cherry. The tubes are, again, of different lengths and thickness, from a span in length to some yards. The Turkish pipes are the longest.

To the tube is generally affixed the water-sack, called also by the northern Germans the sponge-box; a little reservoir, of wedgewood or porcelain. For elegant pipes still more beautiful, but less useful ones, are made of horn.

The pipe-head is, however, the part on which the most cost, art, and ornament are bestowed. The lower part of it, which, tapering away, is fitted into the water-sack, is called the boot. The head is adorned with a variety of paintings and inscriptions. We see upon them, as upon snuff-boxes, many

humorous occurrences perpetuated. They are enriched with the portraits of handsome women and celebrated men, and the painting is sometimes so beautiful as to raise their price to several *Louisdore* each. The students are accustomed to compliment each other with presents of pipe-heads, ornamented with their coats of arms, and a dedication on the reverse side.

All the various sections of the pipe are so fitted to each other that you can readily separate them, in order to clean them; but they are prevented from separating when in use, by silk cords which pass through small metallic rings, and are secured at top and bottom. These cords serve also to hang them up by. On the pipes of the Chore-Burschen the cords proceeding from the head to the mouth-piece, are not only secured but continued, and hanging down at liberty, bear the coloured Chore-tassels.

The student uses in the course of the day, different pipes. In the morning he gladly smokes out of a Turkish pipe, if such a one is at his command. This has a small mouth-piece, a long tube, and a meerschaum head, which gives it its greater value. It is on this account so highly esteemed; the student asserting that no pipe smokes so pleasantly; but its price, if it be genuine, varies from two to six, or more, Louisdore. The material out of which the real meerschaum head is made, is dug in Spain, Portugal, and the ancient Thebes, and consists of a silicious clay, in chemical combination with water. The other heads are made of various materials, and the most usual are of porcelain or wedgewood.

The meerschaum, called by the Turks (Myrsen, Keffekil), the material out of which the ancient Samian vessels were made, is yet used in Turkey for the manufacture of pipe-heads; of which only the smaller kinds are allowed to be exported. It is chiefly dug in ancient Thebes, and is by no means employed in its crude state, but undergoes a manipulation, similar to that of the porcelain paste. It is exposed to a certain process of fermentation; the softened mass is diluted and washed, then half dried, pressed in moulds, and bored whilst in them. The heads thus formed are then dried in the shade, and afterwards hard burnt in the furnace. After this they are boiled in milk, then in linseed oil or wax, and finally polished with Dutch rush (*equisetum*) and leather. The finest formed heads--washed ware--may not be exported, although the Turks on the whole prefer the heads



made from burnt Bole. As the Turkish heads are not considered handsome in shape, and have too narrow a bore, they are again turned and rebored at Ruhia in the district of Gotha, and being brought to a more modern form, are then boiled in tallow or wax, and again polished. The turnings are used in the preparation of imitation meerschaum heads, which are more brittle and less lasting than the real ones. In these heads manufactured in Lemgo, there is no real meerschaum clay used, but a mixture of clay, chalk, and egg-shells. These heads are heavier and more frangible than the genuine; they more readily become rough and unclean, and take a metallic streak from gold or silver, which is not the case with meerschaum heads.--*Leonhard's Oryktognosie.*

A new pipe requires great care in bringing it into use, till it is as it is phrased, besmoked, or seasoned; that is, till the inside of the pipe-head is coated with a black crust of finely cemented-together tobacco dust. Till this is effected the pipe has not a good flavour, and it requires to be well and vigorously smoked out. To promote this seasoning, it is customary to smear the inside of the head with sugar-water, before it is filled with tobacco. This seasoning of the meerschaum head is particularly difficult. While it is warm, during the first time of smoking, it must not be touched with the fingers; it must be suffered to cool slowly, and must be protected from being touched or rubbed by any thing.

The long pipes, called house-pipes, serve the Burschen usually at the Kneips; the very short one, on their walks, or when out shooting, as a long one might then be inconvenient. That there are people who extravagantly carry their luxury so far as, from year to year, at all times and seasons, to smoke genuine meerschaum pipes, any one may, to his astonishment, read in Bulwer's Ernest Maltravers.

The white clay pipes, which were formerly in general use, are no longer used by the student; but they may be daily seen in the mouths of countrymen.

Thus we have put together a right noble pipe, and will now take a peep at the apparatus requisite to its enjoyment. The most indispensable, certainly, is tobacco. To lecture on the various qualities of this article, we want both patience and sufficient knowledge. How many descending steps are there

between the finest Knaster, and the weed which fumes up rank and qualmish from the pipe of the wood-cutter! The worst sort is jocosely called "three times round the body for a farthing," which may fittingly be smoked over that liquor called "three-men wine," because it would require two men to hold a man while the third forced this Tartarian wine down his throat.

Much luxury is expended over that little ornamental repository for the preservation of this precious commodity--the so-called tobacco-casket. Abroad the student carries the narcotic herb with him in a tobacco-pouch, which is often ornamented with embroidery by some fair hand. The long and thickly-piled together strips of paper (spills), which are used to light the pipes, are in Germany known by the name of "Fidibus," and its derivation from "fidelibus patribus," the jolly monks, shows that these good fellows did not despise the enjoyment of tobacco, when they could in private breathe its beatifying fumes.

Another yet similar derivation is the following. At the time when the students were forbidden to smoke tobacco, they had private smoking-companies, where the host sent round a Latin bill with the following contents, which the student who agreed to go to it, undersigned not with his real, but with a purposely assumed name:

Fid. Ibus.  
S. D.    N. H.  
Hodie hora vii. a. v. s.

That is, Fidelibus fratribus salutem dicit N. hospes. Hodie hora septima (apparebit in museo meo, herba Nicotiana) abunde vobis satisfaciam. As soon as they all were assembled, they placed themselves in a circle, and each lit his pipe with his bill, as a Fid....ibus offering--whence arose the term Fidibus.

The inconsumable Fidibus is a new invention with which our English friend, Mr. Traveller, was struck in the lodging of Freisleben, and in his notes thereon very graphically described.

When we have smoked a while, it is necessary to press together the mass which has expanded itself proudly in the pipe head, and for this purpose is used a sort of stamper, or stopper, also furnished with a knob of wood. This instrument has received a variety of names. In Heidelberg it is called *Dentsch*,--a name coined for the cogent reason that it will rhyme with *mensch*, without which the poet would find himself in what the Americans call, an "eternal fix." Another name is Melibocus, after the mountain on the Bergstrasse. In this instrument there is generally contained a wire, which you can draw out in order to give air to the clogged up part of your pipe. It is thus at once a stopper and an opener.

The process of smoking is a species of distillation, whereby the water-sack, as a receiver, takes off the fluid product, while the fume passes into the still-head, and is thence conveyed to the mouth, where it achieves its narcotic purposes, and thence is again discharged into the air. It is to be expected that this chemical apparatus will from time to time require cleaning; and for this end is used a small feather for the shorter tubes, and for the longer ones the fine clear stalk of a peculiarly tall and strong kind of grass (*Luzula maxima*) which grows in the woods. Some poor imp, unfit for other work, undertakes to furnish the smoker with this necessary article, and those who gather them in the woody hills round Heidelberg, even extend their trade in them as far as Mannheim and Karlsruhe. When the stranger mounts up to the ruins of Heidelberg castle, he is often accosted by this *Binsen-Bube* or *Blumen-Bube*, Rush-boy or Flower-boy, as he is called, who, with most graceful obeisances, presents him with a small nosegay, and patiently waits for a substantial token of its acceptance. This is the great gatherer and furnisher of the *Binsen*, or rush, as it is unbotanically called, for the fumiferous public.

The cigar, which we must not forget, is much less affected by the student. Yet he sometimes prefers it to a pipe, over a cup of coffee; and then is he accustomed, with great satisfaction, to drive forth the smoke through his nostrils, in order to make himself thoroughly conscious of his luxury.

If the reader has held out actually to the end of this dissertation on smoking, then we are very certain that the general and determined smoking in Germany has arrested his attention. We do not pretend to offer a reason

for the remarkable growth of the practice of smoking amongst us during the last ten or twenty years. It seems to us somewhat far-fetched to assign as the cause, as has been done by a learned German writer, that it is a natural necessity to dull and modify to a healthful degree the all too dominant nervous sensibility and imaginative susceptibility of the over-refined, and especially of the learned, man.

We may remark, in conclusion, that, amongst the students, snuff-taking is much less common than smoking: and, having thus sufficiently described, to our fancy, the two most constant companions of the Son of the Muses, his dog and his pipe, we may now, without further care, leave him to follow his labours, and amusements in such good company.

## **CHAPTER X.**

### **RURAL AND SUMMER AMUSEMENTS OF THE STUDENTS.**

The natural beauties of Heidelberg are well known abroad. Who is he who has looked upon its picturesque environs with a healthful mind, and has not been enraptured with them? Therefore, the son of the Muses, who is here passing his student years, eagerly hastens out in the lovely days of summer into the free regions of nature that lie around. The walks in the immediate vicinity of the city are diligently trodden by him. Above all, the castle enjoys the frequent visits of the student youth in thronging numbers. The student is to be met here every hour of the day, but he still more loves to survey here the beauties of a moonlight night. Leaning over the terrace, he looks down upon the city as it lies in its solemn silence stretched along the bank of the Neckar. Its inhabitants, with all their troubles and pleasures,--his companions, with all the pursuits and passions of restless youth, are hushed into deep slumber. He only wakes, but the hours which he steals from sleep are not lost. He glances wide over the plain of the Pfalz, which, illuminated by the moon's uncertain light, offers to the eye no longer its boundary of hills. Opposite to him, the castle rears its gigantic pile, and varying its outlines with every change of the moonlight, challenges the imagination to equal its bold features in its highest flights. The moon now advances from behind some envious cloud, and the windows of the palace of Otto Heinrich appear magically lit up, and it seems again to stand in all the splendour of past ages. But the solitary watcher has unconsciously wandered forward till he finds himself standing close to the spot where Matthieson sung his elegy. Suddenly all falls back into shade, and before him stands a sublime image of the wrath and passions of man--the rifted tower--one part blown up and hurled, in one mighty mass, into the moat. In the vaulted chambers of the yet standing portion, the mysterious forms of heroes long gone down to the dust, seem to erect themselves, and to cry wo

over the desolating fury of the French. The wanderer feels a momentary shiver pass through him--but he glances up to heaven, which expands above him in its glorious clearness--an image of divine peace and rest; the owl, with its dismal shout of joy, brings him back from his dreams, and in silence he descends to the silent city.

How sweet 'tis in the air!  
No hateful tyrant there  
Scathes Nature's fair reign.  
No base adulator,  
No slanderous traitor,  
Empoisons the plain.

*Salis.*

The cool shades of the Wolfsbrunnen afford the student a delicious retreat in the heat of a summer's day; and many another spot of the vicinity are sought by him with equal delight, which have been already often sketched and described.

This is not the place to attempt it, and were it, we should despair of saying any thing more on the natural beauties of Heidelberg; but we cannot resist quoting a few passages from a very popular article on Heidelberg in the Halle Year-Book.

After the author has described the view from the balcony of the castle, he says, "While in the youthful mind the sentiment of an infinite fulness of life springs up from those rich and wide prospects, the stiller and more secret charms of the environs of Heidelberg allure it to thoughtful and more intimate observations of nature. The dark shadowy paths of the casile gardens invite to solitary walks. Every where on all hands hidden glens lead away into the mountains, and winding pathways provoke to farther advances, and conduct to continually fresh discoveries of charming valleys and woods, new views in the distance, and more romantic places of repose. At one place we quit the view of the ruin and the plain, where serene but busy life displays itself; a few steps forward, and the most profound solitude receives us; instead of the laughing fields and sloping vineyards, solemn thick beech woods, in which for hours we meet no trace of human existence, engulf us. We bury ourselves in the depths of the Odenwald--then

suddenly we stand on the airy peak of the mountain, or a wide ravine rends itself out of the hill-side before us, and there again lies in our view the whole magnificence of the Rhine-plain at our feet! We see in the distance the ancient Worms, and the towers of Speir, and of Trifells, where King Richard sate in captivity; and yonder the ruins of the castle of Hambach; and in this one glance comes before us a vast fragment of history--the Niebelungen Lied, and the old holy Roman Empire, with its secular and spiritual Electors and Princes under the Emperor, and Luther before the Diet. And then sweep before us the Crusades; and then again the times in which the wild troops of Turenne came hither from behind that Rhine-stream, the French soldiers playing at ball, as they came, in the Dome of Speir, with the skulls of German kings; and finally, the latest scenes of the past, when upon that castle of Hambach the German and the French tricolour flapped on the same standard staff. And these histories which we have lived over again in this one view, are not yet dead and worn out, but still plant themselves in the very heart of the present, and intertwine themselves beneath our feet there, in many an intricate winding. A network of boundaries lies before us; every fresh glance falls on a fresh territory--upon a different race of the German people. There, towards the south, the ancient Swabia shadows itself forth; here, northward, Hesse divides itself from the Pfalz; there, beyond the river, contends the active French spirit against the strict old Bavarian discipline, and nourishes itself with its beloved traditions and daring hopes. Still farther off can we look into this very France itself, which for centuries has been so fatally disastrous to us. Those steam-vessels which cover the Rhine, and bear in them travellers of all nations, are ready to convey us upward to the foot of the Alps, or downward to the sea; and the busy and restless traffic, which moving between these points daily rushes to and fro, past us, there presses itself into the very centre of our field of vision."

The reader must pardon us that we have permitted ourselves to be seduced by the charms of nature to inweave here what might perhaps have found a place in one of the last chapters; where indeed we propose to consider what influence the student life has on the spirit and mind of the pupil of Minerva. He will allow us now to return to our present subject.

The more distant places the student seeks by means of a horse or carriage. The riding horses for hire are truly, for the most part, wretched jades. Even the means which the Renommist of Zachariæ used would prove unavailing here; and what he thus describes, on such Rosinantes as these could not come to pass.

A spur-stroke and a curse gave wings unto his horse.  
The crack of ponderous whip, and rib-thumps, sans remorse,  
Sent him all foaming on, till almost, in a minute,  
The country lay behind him, the next, he was not in it.

A peculiar class of equipages are let out in the university cities, and are hired by the student partly on account of their cheapness, but more especially, because he can charioteer himself. He styles these little chaises with one horse, a one-span, or one-engine. With one of these he undertakes journeys which, especially on Sundays, stretch themselves as far as Mannheim, to the Hardt mountains, to the Melibocus, or even to Karlsruhe and Baden-Baden. The persecuted horse who drags these vehicles, knows the way from Mannheim and other places, much better than his temporary master; and when in dark nights a one-engine goes wrong or comes to any accident it is for the most part because his driver will not let him have his own way. Many a time the poor beasts are so weary that the student can no longer urge them forward with the whip, and is obliged to have recourse to stones that he picks from the road.

Water excursions are seldom undertaken, because the ill-constructed pleasure-boats do not allow him to guide them himself. The neighbourhood of so many beautiful countries incites the student to more extensive excursions, and he travels during the vacations, into Switzerland, the Rhine country, and other places, chiefly in company of a few friends. We may suppose it to be on some incident connected with one of these excursions that Uhland has founded his beautiful ballad of

### **THE WIRTHIN'S DAUGHTER.**

Three students crossed over the Rhine-stream one day,  
'Twas to a Frau Wirthin's they wended their way.



"Frau Wirthin, hast thou good beer and wine,  
And where is that lovely daughter of thine!"

"My beer and wine are fresh and clear;  
My dear daughter lies upon the death-bier!"

And as they stepped to the innermost room,  
There she was lying robed for the tomb.

The first he withdrew then the veiling screen,  
And gazed upon her with sorrowful mien:

"Ah, wert thou living, fair flower of earth,  
How should I love thee from this day forth!"

The second he covered the pale, dead face,  
And turn'd him round and wept apace:

"Ah, there thou art lying on thy death-bier,  
And how have I loved thee for many a year!"

The third he lifted once more the veil,  
And kissed her upon the lips so pale:

"Thee I loved ever! yet love thee to-day!  
And still shall I love thee for aye and for aye!"

That the student is not totally debarred from field-sports either, the number of game dogs that he keeps sufficiently testify. A tract of land lying along the Neckar, between Handschuhsheim and Dossenheim, is assigned to him as his sporting ground; yet he is forbidden by the law, to take any game-dog thither with him. This is probably to prevent damage to the autumnal and winter crops of the peasants; which would otherwise be sorely overrun by men and dogs. This regulation, and the high cultivation of this tract, are the cause that the solitary student, wandering thither with his gun, thinks himself lucky if he returns home with an odd hare or partridge. But he has also frequent admittance to other hunting-grounds which lie in the farms of different citizens. The amusement of fishing does not appear so very attractive to the German as to the Englishman, and one seldom now sees an isolated son of the Muses, who patiently watches the line which is thrown into the Neckar-stream, till a little fish befools itself with the bait. The student loves not that sort of fishing, which according to his German notion, seems at once a phlegmatic and tedious business; and there is a

caricature of an Englishman made by the students, which represents him as sitting patiently watching his float so long, that a spider had spun his web in the angle of the rod and line, and had already caught several flies there before the fisherman had hooked a single fin.

Before we quit the summer pleasures of the student, we must say a few words on the *Kirchweih*s--wakes. The reader must not alarm himself with the fear that we are going to bore him with an essay on church solemnities--we allude only to those popular festivities with which the anniversary of the dedication of a church is celebrated. As is often the case, this feast has lost its original intention; scarcely any one thinks of the meaning of the word, which in the mouth of the ordinary people is corrupted to *Kerve*. Every little nest, much too poor for the possession of a church, yes, many an individual public house, even, has its particular Kirchweih. By what authority it has usurped this name and holiday, nobody troubles himself to inquire. People are quite contented that, through these Kirchweihen, of which one or more fall out within their reach every Sunday during the summer, they find occasion to dance, drink, and sing. From every city gate then presses forth a motley group; the worthy burger, the Handwerksbursche, the alert young dressmaker, the homely housemaid, all are crowding forward in a promiscuous throng. Amongst them one descries companies of a higher grade, which rejoice themselves in the splendid summer's day.

So gladly each sans himself to-day!

\* \* \* \* \*

Out of low houses, with damp, dull rooms;

Out of the bonds of labour and trade;

Out of the crash of the narrow alleys;

Out of the church's reverent night,--

They all are brought forth into the light.

See! only see! how nimbly sallies

The multitude, scattering through garden and field;

How it gaily again on the broad flood rallies,

Alive with all joys that boats can yield.

Who has not called to mind these lines of the great master, when he has looked on the stream of the popular throng that has swept on towards one of the resorts of holiday pleasures. In the midst of this tumult the students are also to be seen following the current of the great stream in smaller or

greater companies. If in modern times the singular attire less distinguishes him from the crowd, yet the practised eye readily singles out the student from the Handwerksbursche and the shop assistant. On the countenance of the Handworker we see displayed the joy which he feels to find himself once more for a day able to flee from the dusty workshop, and the pride of showing himself in his Sunday bravery, in the astonished eyes, as he believes, of the world. This holiday array he has truly often thrown upon his back in a queer enough style. In black frock coat, white trousers, high cravat, and glittering boots, stalks he clumsily along, and his rude taste extends itself to the very pipe which he carries in his hand. On the contrary, the Pendulum has clad himself after the newest French fashion. All is smoothed and polished off to a nicety. He looks like a dish that the hungry Nero has licked into the most elegant cleanness. Scarcely dare he turn himself in his beautiful clothes lest he should crumple the ornate and artistical knot of his neckcloth; lest he should derange the nice tornure of his locks. He wheels himself aside only to see whether the admiring gaze of the fair sex is not following him. "Nöthig," would the student say--that is, "it would be well for him if it did!"

The student disdains, Knoten-like, to beautify himself on a Sunday. One day is like another to him; he can devote it either to study or to pleasure. So, as on other days, he lounges carelessly along. His attire is not studied, but it is convenient; and according to individual taste, more or less excellently chosen. A short frock-coat, often of a peculiar cut, and the little cap, are all that distinguish him. Formerly, indeed, the costume, one entire singularity, and the coloured Chore-ribbands, the variegated cap, and the tri-colour of the Burschenschaft, were worn openly. But in spite of all this, nothing is so easy as to recognise the student by his free and self-possessed carriage. Saucily, often haughtily, he observes the groups of onward-pouring people, without turning a step out of his track; careless whether he be an object of notice, being only too secure that he is. So leaves he the city Besom to the Handwerksbursche, nodding, however, a passing greeting to this and the other as they go by, assured that, arrived at the dancing place, they will speedily forsake the Knoten to fly to the arms of the more favoured dancer.

I catch the hamlet's stir and cheer,  
The people's genuine heaven is here!

Here great and small shoot glad and free,  
Here I'm a man--here may one be!

The Kirchweih which in the neighbourhood of Heidelberg are the most noted, are those of Neckarsteinach and Kirsheim. Thither, some years ago, some of the most conspicuous burger families were accustomed to make an annual rustic pilgrimage of pleasure. This glory is gone by; yet we would recommend the latter still as the best place in which for the stranger to witness this folks'-feast, if so we may term it. We follow the sound of obstreperous music, and enter a garden, where a motley multitude presents itself to our sight. All the tables are filled; people eat and drink, chatter and smoke, laugh and sing, all in one chaos of merry confusion. Hither and thither, where an impatient guest thumps vigorously on the table with his glass, run the waiters--in the student's tongue, *Faxe*. At one table an honest burger company has planted itself, and over a glass of wine, weigh seriously whether the European balance of power can be maintained, and criticise the government of the city.

No, no, I like him not; our span-new burgermaster,  
As he's so bold already, he'll come it thick and faster.  
And for the town, what doth he, pray?  
Gets it not worse then every day!

Certain youngsters have seated themselves beside them in a state of considerable perplexity, whether they shall be held fast by the wise conversation of these elders, or shall follow the bewitching sounds of youthful merriment.

At the next table, a knot of Bauers carry on a zealous discourse, of which one catches these syllables in passing,--"Oney think o'that, now; that the thing can run so wi'out bosses. It's got the divil in't's body, an' that the outlandish folk have fun' out again!" It is the railroads that have thrown the fat farmers into such a heat, and they raise themselves into such a fidget with talking of the steam-engines, that they blow as much smoke out of their earthen pipes, called by the students *earthly* pipes, as the engines themselves can send out steam.

But at another table we behold the dear image of youth. The Handwerksbursch, who treats his maiden with wine and cakes; the school youth who is there playing off the bursche before them, but looks round, ever and anon, lest the original that he is counterfeiting be near, or his teacher, who walking this way might reprove his presumption; the fresh country maiden, and the gay damsel of the city, all desire to make themselves amiable, and seek by their tittering and laughter, to let every one observe that they are capitally entertained by their swains.

One table is occupied by the students, who, revelling in a rich repast, now look up at the beauty of the Neckar-Thal, and now mix themselves in the throng, whispering with this and that maiden, to whom their shepherds cast frowns like thunderclouds. But careless of this, the sons of the Muses conduct them forward to the dancing-floor:

And all already dance like mad--  
Juchhe! Juchhe!  
Juchheisa! Heisa! Ha!  
So goes the fiddle-bow.

Faster and faster goes the music, and ever madder whirls the waltz. In complete equality and freedom seem here the most opposite elements to be mingled. The atmosphere is already smothering hot, and clouds of dust fly up. But that matters not. He that finds it too hot flings off his coat, and dances in his shirt sleeves; he that does not find the music keep time, helps it with the stamping of his foot. All seems totally happy--all unity. But the wine has, meantime, heated their heads, and suddenly in one corner of the hall rises a terrible hubbub. The strife has arisen about that maiden who, there weeping, endeavours to part the combatants. "What would the silly Knoten?" cries a student Then springs wrathfully forth a brisk tailor. "What be we? Knoten be we? dirt be we? Who says that, is an ass, and I say it!" A swarm of students that have rushed into the saloon raise a burst of hearty laughter. Then blazes the wrath of the Handwerksburschen; "Brother Hamburger! brother Leipsicer!" they cry. Numbers of them rush together, and strike with sticks, chair-legs, and bottles, at the little knot of students furiously, who grimly stand on their defence.

The Bursche shouts--

"Let each man arm himself like me, with sturdy stang,  
And chase unto destruction the beastly Lumpen gang."  
'Tis said and it is done! Bellona storms on high,  
And the battle is renewed with menace and reply.

*Zachariæ's Renommist.*

But bravery must yield to multitudes.

They now begin to quit the bloody battle-field,  
Yet slowly draw they off, and scarcely seem to yield;  
And loath unto the base their noble backs to show,  
They whirl their last club at them, as from the ground they go.

*Ibid.*

Even the fair ones have divided themselves into two parties, and one detachment wheels off with the overpowered body that they may enjoy the happiness of wandering homewards on the arm of the Bursche.

This burlesque student song on the Handwerksburschen is very descriptive of these scenes:

### **GOD GREET THEE, BROTHER STRAUBINGER.**

God greet thee, Brother Straubinger,  
I'am glad to meet thee though;  
Perhaps it is unknown to thee,  
That from Heidelberg I go.  
The master and the mistress,  
Of them I can't complain,  
But with these gents, the students,  
No mortal can contain.

I lately bought me in the fair,  
A band, red, black, and golden,  
And hung my watch to it, that there  
From falling 't might be holden.  
Fierce as a horse a Bursch appears,  
And at me right he batters;  
He dashed the watch about my ears,  
The riband tore to tatters. [\[23\]](#)

And as I in the Faulen-Beltz<sup>[24]</sup>  
Was with my sweetheart sitting,  
He nicknamed me a Knotenpeltz,  
For such fat Besom fitting<sup>[25]</sup>  
As in the dance I whirled about,  
They 'gan to stamp and rumble;  
The Senius stretched his leg so out,<sup>[26]</sup>  
That I must o'er it tumble.

I'll off by Zurich unto Berne,  
And there I think to stay, so;  
And if my sweetheart false should turn,  
She may write to me, and say so.  
I must be stupid as an ass,  
Or as three oxen, fully,  
If I should suffer such a pass  
From this Studenten bully.

We, in conclusion may mention among the summer pleasures of the student, the game at nine-pins, to which the son of Minerva devotes many an hour. Yet to describe the various kinds of this game, would prove, probably, a little wearisome. The student uses the same as all the other classes of people in Germany, and which are, perhaps, already familiar to the foreigner.

## **CHAPTER XI.**

### **WINTER AMUSEMENTS OF THE STUDENT.**

He who lives out of himself, always does better than he who lives in himself.

*Seume.*

Let us now devote a few pages to the pleasures of winter. If we give a distinguished place amongst these, to the amusements which the Museum, and many private circles afford, we must at the same time admit that particular circumstances prevent the students to any great extent seeking the latter. But as these circles are easy of access to the well-bred student even without letters of introduction, if he is at the pains to seek that introduction himself, we can by no means omit their mention. In the houses of professors and other leading families of the place, the student is hospitably received. Reading, music, social games, and the dance, here furnish an inexhaustible source of entertainment. Here he finds an opportunity to accomplish himself in social habits, and by polishing the rough outside to discover that solid interior which can best be strengthened and perfected by a union of active intercourse with knowledge; and who will deny that this desirable condition is alone to be attained by the society of refined and accomplished women?

With softest persuasion and gentlest prayers,  
The sceptre of manners sweet Woman still bears;  
Extinguishes discord, which ragingly glows--  
Teaches wild powers that malignantly fight.  
Themselves in her own lovely form to unite,  
And combines what in nature else separately flows.

*Schiller's Duties of Women.*

The student the more gladly joins these circles, as he is sure always to find some of his companions already there, for the dance-loving host



continually recruits its members from the sons of Minerva. On the other hand, the Museum presents manifold points of contact between the students and higher classes of the inhabitants of the city. We again avail ourselves of some remarks exactly to the point, out of the Halle Year-Book. The author of the article says, "Heidelberg is only a city of moderate size, but it contains sufficient elements for a superior society. In the next place, it has formed itself into various small circles, into which also the student of good disposition and accordant taste readily procures admittance, and where he finds himself received with simple cordiality. Most of the professors, are very accessible to individual students, and throw in their way opportunities for a more close literary intimacy; many of them thereby frequently collect round them large social circles.

"In the next place, many English families, which have taken up their abode for a time in Heidelberg, offer desirable points of union to various lively social circles there; and with them vie other strangers, possessors of estates in the immediate vicinity of the city, amongst which in this respect is particularly well known the hospitable Stift Neuberg. Many of the substantial burgers of Heidelberg also endeavour to furnish those students that seek their acquaintance by letters of introduction, or otherwise, with the amenities of social exhilaration and improvement. These opportunities for a worthy enjoyment of life are accepted by a great part of the students in the best spirit, and to evident advantage. Walks in company and excursions into the surrounding country in summer, and musical entertainments in winter, bring the students into amalgamation with city society, subject their freedom of thought to the wholesome restraints of good manners, and give to their enjoyment of life at once scope and modification. But all these different circles find themselves included and brought together into a comprehensive social unity, in the Museum. This establishment founded as a joint-stock property by the inhabitants and professors of the city, is of high value both to the social life of Heidelberg in general, and in particular to the student world. For a moderate yearly subscription, the student becomes a member of this union, and through that a partaker of its social pleasures; enjoys the advantage of access to a rich collection of political, scientific, and literary periodicals, and new works; and is even entitled to a certain co-operation in the affairs of the union; a portion of the ball-directors, for instance, being elected from amongst them. The spacious and

handsome suite of apartments in the Museum, which are always open to the members, give the most preferable opportunities to the students for having a common table, and for other social meetings, and by this means brings about a more extensive intimacy and acquaintance amongst these young people. But especially is the independent manner and estimation with which they see themselves received in such a union, an incentive to them to maintain this position with urbanity and moderation; and the social equality with their teachers which here prevails, far from diminishing their respect for them, serves only, through the confidence reposed in them, to elevate and ennoble them. Inconceivable is the auspicious influence of the Museum on the conduct of the students, and their good understanding with the professors, and with the whole of the best society of the city; and the cases are rare in which any one by a wanton disturbance of the general enjoyment, loses sight of that discretion which the company expects from him. Truly not all the students have the taste for these nobler social pleasures, which are offered to them in so friendly and disinterested a manner. They who regard the established rules of social manners as a restraint, incompatible with the enjoyment of their academical freedom, seek less select circles, where such rules are more freely dispensed with. The society of the middle classes of Heidelberg, though decent and lively, yet wants that higher finish which elevates the young man, while it compels him to watchfulness over himself. The student feels himself above the society of such circles, and, as only too frequently happens, he makes them feel his superiority in an unbecoming manner, making them the butts of his wit, and the objects of his wanton humours. The Heidelberg citizens have had repeated occasion to rue this overbearing spirit of the students, and they have never, and can never be able to establish a more satisfactory and secure relationship with such society."

But the life of a large city comes near enough to the Heidelberg students. The Mannheim theatre is chiefly filled by persons from Heidelberg; the saloons of Mannheim society, in which the exclusiveness of English high life, and of German aristocracy, appear softened by French urbanity and South-German good-nature, are not impassable to him; and the more favoured may, in the little court of the widowed Grand Duchess Stephanie, become acquainted with the fine yet easy manners of a circle distinguished by birth and accomplishment.

Many a romance weaves itself here in the intercourse of the social circles--in the crowd of the ball-room; and strong chains of love often become fabricated, which conduct the maiden far from the walls of Heidelberg, and teach her to forget, on a distant hearth, her beautiful native home. If on a lovely summer's night we linger late on the castle height, we often, as we return, become the partakers of the enjoyment of a serenade, the offering which a son of Minerva brings to show to his chosen one his watchfulness. At a distance we listen to a beautiful song, whose delivery, full of tenderness and feeling, is supported by the accompaniment of a guitar.

### TRUE LOVE.

When in the gloomy midnight deep  
My solitary watch I keep,  
I think on her I left behind,  
And ask is she still true and kind.

When I was forced to march away,  
How warm a kiss she gave that day;  
With ribands bright my cap she drest,  
And clasped me to her faithful breast.

She loves me well, to me is kind,  
Therefore I keep a cheerful mind:  
Through coldest nights my bosom glows  
Whene'er on her my thoughts repose.

Now by the dim lamp's feeble light,  
Perchance upon thy bed to-night  
Thy thoughts to thy beloved are given,  
With nightly prayer for him to Heaven!

O, if thou weep'st by grief distressed,  
To think of me with danger prest,  
Be calm, God keeps me every where,  
A faithful soldier is his care!

Or we follow with insatiate ear the accord which sends to us through the stillness of the night a full concert of wind music. There, under the window, see we scattered light glimmer, and by degrees perceive the separate music-desks, round which the dark figures have ranged themselves. But the third piece is ended, and all sinks back into the stillness of night. Many a son of

the Muses is detained in Ruperto-Carolo, fast bound by bonds of gentle witchcraft, till the father's stern behest compels him to tear himself from this paradise.

### THE DEPARTURE.

What rings and what sings in the streets so down there?  
Open the windows, ye maids so fair.  
'Tis the Bursche, away he windeth,  
The Comitatz him attendeth.

The others go shouting and wave their hats round,  
With ribands and flowers all glowingly crowned;  
But the Burschè, he loves not this riot,  
In the centre goes pale and quiet.

Loud clash now the tankards, bright sparkles the wine,  
"Drink out, and again drink, dear brother mine!"  
"With the farewell-wine there outfloweth,  
What so deep in my heart now gloweth."

The very last house which they go by--  
A maiden looks down from the window so high;  
Fain hides she her tearful gushes  
With wallflowers rich and sweet rose-bushes.

The very last house that they go by  
The Burschè there lifteth up his eye;  
Then sinks it, his pain betraying,--  
His hand on his heart now laying.

"Sir Brother! and hast thou then no bouquet?  
See, flowers there are nodding and waving so gay!  
Hillo! thou loveliest dear one,--  
Of thy nosegays now fling us here one!"

'Ye Brothers! what can that nosegay do?  
I now have no loving Liebschen like you.  
In the sun it will droop and wither;--  
The wind blow it hither and thither!"

And farther and farther with clang and song!  
And sadly listens that maiden long.  
"O, wo! and the youth removeth,  
Whom only my heart still loveth.--

"Here stand I, ah! in my love profound,  
With roses and with wallflowers around--

And he for whom all I would sever,  
He's gone--and gone for ever!"

So marches he forth, and--"other cities, other maidens!"

If the stranger suffer himself, by his hunger after fresh air, to be led away, in the days of a strong winter, to the hills above Heidelberg, how monotonous and wild appears to him there nature in her funeral robes. The mountains, the valleys, all wrapt in that white winding sheet, are silent. From a distance only comes a heavy sound, as the ice-covering of the Neckar is heaved and rifted by the combating flood that rushes beneath it. That feeling of solitude seizes him, and he follows the course of a small stream which will, however, conduct him again to the banks of the Neckar. The water, whose course he has followed, has wonderfully wrought the leaves and the grass into fantastical ice-forms; while, above him, hang from the rocks enormous icicles, glittering in the wintry light like crystal daggers. Again he finds himself by the mirror-like surface of the wintry flood, and behold! the uniformity of nature has only enabled man to multiply his pleasures. A glad multitude here is full of life and activity. With delight the eye follows the skilful skater, as he now, with wonderful rapidity flies right forward, now winds in graceful sweeps and circles through the human mass. He moves so freely and easily, that his art would appear quite destitute of art, did we not see the learner in his first attempts tumbling at every trial, till exhausted, he stands and watches, with envious eye, the evolutions of the practised student. The ice-field becomes every moment fuller and fuller, till the strongly congealed surface can scarcely support the hundreds which crowd upon it. And there comes a troop of blooming ladies, hastening down the steep bank of the Neckar. They descend the narrow path, slippery with frozen snow, cautiously, and a troop of their worshippers fly to receive them, place them triumphantly in the chair-sledges, and pushing them before them, vie with each other in sending them, with flying speed, over the crystal ice-plain far away.

Nothing can well make so vivid an impression on the foreigner, especially on the Englishman, as the sledging processions, which, as soon as the snow is trodden hard enough to bear, may be daily seen issuing from

Heidelberg. Sometimes we see individual sledges, which are of striking appearance, gliding rapidly through the streets; then greater sledge-parties, which the students make amongst themselves, or in association with some of the inhabitants. A troop of fore-riders, with the thundering cracks of their heavy whips, announce the approach of the sledge of the lady of honour, drawn by four horses. Then follows a long train of sledges, each with two horses, and each containing only one lady and gentleman. These sledge-parties afford much amusement to the students, and opportunities for many a frolic, and the Chores vie in outshining each other in ingeniously planned and splendidly achieved processions. In earlier times masked sledge-parties were the order of the day; but, in consequence of many well-known and distinguished individuals of the university city being represented, or rather misrepresented, they are now formally forbidden. Even the ladies, and the venerable heads of the senate, were not secure from the caricaturing of the students. Thus a stranger related to me, with great horror, that he had met a great company of ladies and gentlemen in sledges; all the ladies had wafted to him hand-kisses, and, *horribile dictu!* at the very next confectioner's, the ladies, with evident delight, had each drunk a glass of brandy!

We recollect a winter, some years ago, that was particularly distinguished by these pranks. In the first place, one of the Chores set out a sledge procession, which was imposing from the number of its sledges and the brilliance of its torches, which were carried by the whole assembled body of Boot-foxes. But this was speedily cast into the shade by another. The second Chore celebrated a Bauer's wedding, riding and driving in numerous sledges, in the Sunday attire of Bauers and Bauerinen, the country people and their wives, old and young, masked, into a neighbouring village, the sledge of the feigned bride and bridegroom being richly garlanded, and there, this fictitious pair--a couple of disguised students--were solemnly conducted through the ceremony of a marriage. A third Chore then, in order to strike out something more piquant, undertook a voyage by land. A number of Neckar boats were secured on sledges. They were all bravely rigged and equipped with sails, masts, and cordage, and sailors were in full activity, each crew zealous to maintain the honour of their ship. Some of them were seen with huge spy-glasses looking out ahead in the streets, to descry any dangerous rocks that might lie in their track, which might obstruct or fatally terminate their voyage. And behold! all was

suddenly at a stand--the sign of a Beer-Kneip was the rock on which they struck. All hands were now busy in trying to rescue the ship from this perilous situation, and the way they went to work was to blow it with a vast number of pairs of bellows, in order to send a very tempest of wind into the sails. The captain gave his commands, in masterly style, through his huge speaking-trumpet, and at length the vessel heaved off, and all was quickly again under sail, the whole body singing--

### **THE GALLANT SHIP IS GOING.**

The gallant ship is going,  
The strong east wind is blowing,  
The far-off fading strand  
Shows no longer,  
Yet glows stronger  
Love unto my native land.

Billows dark blue foaming,  
Tell me, are ye coming  
From that dear distant strand?  
Let them flow then,  
Since they go then  
Back unto my native land!

And as the billow breaks there,  
Love's heart and ear yet wakes there;  
O speed to her away!  
Kindly meet her,  
Kindly greet her?  
For of me you've much to say!

Seas from thee may tear me,  
But my thoughts still bear me  
To thee in that dear land;  
What I sing now,  
Winds shall wing now,  
Till it reach that far-off strand.

When high the waves are rearing,  
And wild the storm's careering,  
Then think I but on thee;  
Who dost change not,  
Who dost range not,  
And no storms can trouble me!

All the songs I yet may sing thee,  
Other, nearer winds shall wing thee,  
Soon the port will lie in view;  
These I'll sing thee,  
These I'll bring thee,  
And with them a heart that's true!

Another winter the luxury of this amusement had advanced so far that, from beginning at first with one horse, the students had now arrived at having from six to eight in each sledge, and the academical senate felt itself called upon to put a stop to this extravagant proceeding. It forbade them in future to sledge with so many horses. What a set-out was seen the next day! An old superannuated hack was harnessed to the most miserable sledge that the city could furnish, and dragged it along with the last remains of his strength. In this neat equipage were packed together a dozen students, almost upon one another's shoulders; and if the wretched beast, scarcely capable of putting one foot beyond another, was disposed to stand still, he was urged to further exertion by a horribly ugly, humpbacked, and limping ostler, going before him, and holding before his nose a most fragrant and ravishing lock of hay. At length they reached the first inn, where they called for a choppin of beer, had it divided into twelve glasses, and thus, with about a spoonful each, attempted to quench their thirst. Here they were encountered by the inexorable beadle, or poodle, as they style him, and commanded to withdraw so flagrant a satire on the worshipful senate's decree. On the following day a modest sledge was drawn slowly through the street where this stern enforcer of academical laws resided, in which sate a poodle, whose mouth a student held close with his hand, while another offered him a crown dollar. Not content with this significant emblem, which held up the *official* poodle to suspicion, as though he too might have his mouth stopped by a sufficient motive, in the evening came a crowd of boys, following, in wonder, two students, who, to avoid falling under the stringent restrictions of the senate, had adopted a new mode of sledging. One lay down on his back sledgeways, and being drawn to some distance, by his legs, by his companion; then arose, and drew his comrade in the same fashion, the whole being attended by a train of torches, so that all the world might see it. But enough of these mad pranks; these were in past times. The sons of the Muses are now contented to distinguish their sledging-parties by their numbers rather than their extravagance, and



instead of writhing under senatorial restraints, put on themselves, the pleasant restraint of reason and good taste, and furnishing a holiday spectacle to the city, enjoy themselves a day of social hilarity.

We have stated that after dinner the student seeks his coffeehouse, and is not ashamed with a billiard party or with a game of cards to kill an hour or two. The last amusement particularly will many of them only too passionately pursue; and indeed Play, at the bank, as in Wiesbaden, or Baden-Baden, whither they make excursions, has plunged many of them already into great trouble. The student has invented many games at cards, which are played, partly for money, partly for beer, and bear peculiar names, as Cerevies, Pereat, Schlauch, etc. When the student has in the evening visited his kneip, whither we will presently join him, he has then brought his day's work famously to a close, and the reader will join in the chorus when he sings--

Thus we students,--you may see so,--  
Daily fun-fall, blithe, uproarious,  
Burschen ever, could it be so!  
For the Bursche is ever glorious!

## CHAPTER XII.

### **THE STUDENT'S EVENING PARTY, WITH ALL ITS CONVERSATIONS, STORIES, DISCUSSIONS, SONGS, AND CUSTOMS.**

My spirit with pleasure now fain would I fill,  
And blithe little images gather at will:  
Understand--all poetic--I'm young but the while,  
And most actively study the humorous style.

*Renommist of Zachariæ.*

At the time from which we seek to borrow these pictures of student life, there lived in Heidelberg the young musician Hoffmann. He had taken refuge in Ruperto-Carolo from the petty intrigues of the theatrical world, in which occupying a place in the orchestra, he had moved long enough in a neighbouring greater city to become thoroughly weary of it. His creative spirit, his glowing fancy, a certain poetical style, marked him out and gave promise that he would one day enrich that noble art of music, into whose depths he strove enthusiastically to penetrate, with no ordinary performances. The means only had been wanting to ripen in him, taking, as he did, the most lively interest in every artistical and scientific pursuit, to the most beautiful developement, the rich abundance of his talents. How could it then be otherwise than that he should now find himself so happy in the midst of the congenial life and movement of that university city, and in the enjoyment of its natural beauties; that he should be transported to find so many points of agreement between himself and the student youth. He felt the truth of Goethe's words:--"This academical life, even if we cannot boast ourselves of having partaken of its peculiar diligence, yet affords incalculable advantages for every species of accomplishment, since we are perpetually surrounded by men who either possess knowledge, or seek it, so that in such an atmosphere, even while ourselves are unconscious of it, we draw actual nourishment."--*Wahrheit und Dichtung*.

The amiability of the young Hoffmann, and his social talents, soon gathered a circle of friends around him, and now they all came together to celebrate joyfully his birthday. His invitations, which he clad in various forms of doggerel rhyme, having been sent round, were received with gladness, since every one felt that he had never known ennui in the house of Madame H., No. 9, since Hoffmann had resided there.

The room itself was of so handsome a size; the platform which raised it in one part, gave it a peculiar aspect, and on this elevation he was accustomed to solace himself with his solitary music. It also afforded Hoffmann a particular pleasure to preserve all memorials of friendship and pleasant times carefully, and to decorate his room with them. Thus, therefore, many such things as masks, bouquets, ribands, and sketches made by himself and by his friends, tastefully adorned the room. In a word, the apartment was so agreeable, that every one speedily felt himself at home in it. The tea-table was ready set out, the pipes filled, and a cheerful fire flickered in the stove, round which the already arrived guests had grouped themselves, and heard with pleasure the dismal northeast wind whistle and roar without.

The reader has already been made acquainted with the student Freisleben, and with Eckhard likewise, under the name of the Friend. We shall therefore only remark, that they and the greater number of the other guests had appeared in their morning-gowns; we restrain ourselves from describing their exteriors farther, lest we should fall under the suspicion that we have in our eye actual and particular persons.

Freisleben was in his behaviour grave, and somewhat introverted, especially in large companies; but he became, amongst familiar friends, especially when he was upon favourite subjects, open and lively. His views of life were serious; and he was accustomed to conceal them diligently from the eyes of others, and if any sought to look into him a little more than was agreeable, he would sometimes set on and chatter a good deal of mystifying nonsense. What others had no conception of, either in him or concerning him, his familiar friends, however, knew right well, amongst whom was Hoffmann. They knew that under his quiet exterior, lay hidden a mind peculiarly alive to all that was good and beautiful; yea, that his outward

coldness was at the greatest in the very moment that his spirit was the most deeply stirred. If he hated or loved any one, that knew he very ill to conceal. For the rest, he was tolerably firm in his principles, and knew how at the right time to act for himself and his friends; and his failing was only in the time of inactivity a too great weakness of resolve, and a certain romantic turn of thought, which in the company of amiable ladies brought his peace too easily into danger. He had pursued the study of medicine by no means with a onesided view.

His neighbour, the Herr von Kronen, a native of H----, was to a certain degree, his opposite; and yet the two agreed right well together. Kronen had something formal and reserved in his disposition, without being unfriendly. He carried himself with secure tact in all society, and his sagacity enabled him to see through every one, and treat them aright, without seeming for that purpose in the least to have altered his own behaviour. He was far from troubling himself about the approbation of others, and there were very few people of whose good opinion he was desirous. He was a searching inquirer, and permitted no impression to fix itself upon his mind till his understanding had examined it on all sides. He was cautious in his judgment, and was thoroughly candid towards every sufficiently intimate acquaintance. He had met with many bitter experiences in life, and was once cruelly deceived by a lady. Thence originated his dislike of all women, which, however, he gratified by making court to them all, and turning the most foolish of them into ridicule. On this head he came often into contention with Freisleben, who, on his side, ranked women very high, and had a great opinion of their general worth. His favourite study was history; and he had obvious talents for a good diplomatist.

On the contrary, Eckhard was a jurist, good, true, honest, and had a practical look. He was always joyous, and never averse to the enjoyments of life. He stood freely and firmly by his friends, especially when it came to a duel. His failing was an all too-great Pfalzish bluntness. He promised one day to become a right able man of business.

This was the company which had seated itself round the stove, and waited the arrival of the rest. They entertained themselves with scientific subjects, and had got down so deep into them, that they scarcely noticed

how two new guests came rattling up the steps. With much bustle and noise appeared now the Jurist Enderlin, and the student of medicine Pittschaft, whom at first it was not very easy to recognise, so famously had he wrapped himself in coats, morning coats, cloaks, and fur cap, against the cold.

As to Enderlin, every one knew that he was a good, inconsiderate fellow, who was constantly merry even almost to dissipation; with a piercing voice and a Pomeranian gibberish of a dialect; was perpetually disputing, and only too ready to rush into a quarrel. His study, jurisprudence, occasioned him no sleepless nights.

ENDERLIN.--Good evening, gentlemen! I have the honour to present to you the great physician from Petersburg. I must beseech you to help me to free him from some of the ballast that he has loaded himself with, lest the disrespectful wind should so hurry his slow and reverend steps that he might have been taken for a locomotive engine.

Eckhard now assisted Enderlin to wind their friend out of his wrappers, as an onion is stripped peel after peel. Rind after rind was abstracted, till it was feared that nothing at all would be left. But the fear was vain, for what of Pittschaft finally was rolled out, it required no microscope to discover.

Pittschaft far exceeded his friend in good nature, and was accustomed often to become his joke. Yet he was one of the few, who, although they often become the object of much merriment and laughter, yet never sink in the liking and respect of their friends thereby. New schemes and plans were continually running through his head, and his especial pleasure was to reconcile again to each other, friends between whom any distance or misunderstanding had arisen. He treated all matters with great importance; had many especial friends; and decided upon things even when he knew very little about them, in the most learned manner. Wavering in his opinions, he followed willingly the counsel of his friends, and with as good will gave counsel to others, and that even without ever being asked. It often sorely troubled him that, though he had always the very best intentions, he seldom could bring to bear what he attempted, yet he soon comforted himself again, through the natural and acquired endowments and talents which he was conscious of possessing.

HOFFMANN.--Where then have you left our Briton, who is seldom so dilatory when a cup of tea is in question?

PITTSCHAFT.--He is so busy now studying the art of smoking that he is gone to a bookseller's to purchase a compendium upon it.

ECKHARD.--How do you like our new protégé, Mr. Traveller, then?

PITTSCHAFT.--O, that is a regularly clever fellow. He seems so very desirous to strike up a friendship with me. We have already exchanged our views upon many weighty matters.

HOFFMANN.--Without doubt thou hast been the only winner by the exchange, for the Englishman is a really amiable fellow. He takes a much more ready interest in every thing than his countrymen are wont to do; and he pleases us especially in this, that he knows how to value what is foreign; that he does not, as his countrymen commonly do, estimate the worth of a thing entirely by its resemblance, or dissimilarity to what is English. He has a sound judgment, and puts his questions in that manner, that one has a pleasure in answering them.

VON KRONEN.--Yes, I wo'nt have the English inveighed against. They are an able people, of good kernel, and one must pardon them their singularities.

HOFFMANN.--Only it is a pity that the taste for music is nearly lost to them. I have often been vexed with it. When they admire a musical performance, it generally happens that it is only because it is by some celebrated master.

ECKHARD.--They must be excused in many cases, because they are so completely the slaves of ceremonial; but if they only come awhile amongst us, they soon can unlearn that, and become in society as free a people as they are already a political one.

ENDERLIN.--They are famous fellows these English, and box like the devil. Nothing would give me so much pleasure as to have a round with one

of them for once. We would see, however, whether I could not upset him with my Pomerlandish head.

FREISLEBEN.--I have made the acquaintance of many of the Britons, whose society afforded me a genuine pleasure. Their noble independence, the cool courage, the practical eye, their love of freedom, their straightforwardness, make them worthy of esteem, although one sometimes sees these shining qualities disfigured by egotism and indifference. Of the women, I will not speak. "On the Rhine, are the ladies very fine." "In Saxony also, the lovely maidens grow." That is all very good; but in England, I believe, were I there, I should fall in love at least once every day.

VON KRONEN.--Ah! now we're off on the high road to sentimentality! It will not be long before he will give it you line and verse--"how man can only be ennobled by intercourse with most-to-be-adored woman." He will sing you "the joys of the beloved;" "the noble resolves, which out of an heart," etc. etc., and other such nonsense. No, these women are wicked creatures, that play with us, as Master Flea in Hoffmann says--as the cat with the mouse. But when thou hast learned to reverse that play, then art thou the true master. Recollect what Lichtenberg says,--The expressions--"to give a heart," "to give favour," are poetical expressions. Maidens don't give their hearts away, they sell them for money, or honour, or they exchange them for others, in which exchange they either have, or fancy they have, the advantage.

FREISLEBEN.--He who honoureth not woman, and woman's mind to----

VON KRONEN.--Phoh! cease all that. If thou dost not give over I shall run into the street that the wind may blow the stuff out of my ears. This is the consequence of thy associating so much of late with that Krusenstern, who makes such an everlasting sentimental face, like a goose that has had the feathers plucked out of its living body. They should stuff him with Indian corn, and hang him in the smoke, that they might grow him a good liver, with its appendage, a gall-bladder.

FREISLEBEN.--Thou judgest to-day, contrary to thy wont, rashly upon my friend. Thy judgment is false and unjust; but that arises from thy knowing his history. The poor fellow is deeply to be pitied.

PITTSCHAFT.--Freisleben, let us hear the story. We are all curious; and thou knowest it will remain amongst us friends.

HOFFMANN.--See there! At length appears Mr. Traveller! Good evening. Take off your things. Seat yourself by the stove: here is a pipe, and here the Fidibus.

MR. TRAVELLER.--Best thanks! Ha, it is savagely cold without; but here, thank God, it is warm and comfortable. But I have disturbed the gentlemen!

HOFFMANN.--Not at all. Freisleben is about to tell the story of an unfortunate student. I fancy you would take an interest in it too.

MR. TRAVELLER.--I am all ear.



## STORY OF KRUSENSTERN AND AVENSLEBEN.

FREISLEBEN.--Krusenstern, whose pale and wasted figure you now see passing silently about, was not always so. Once he was one of the handsomest students that the walls of Ruperto-Carolo ever enclosed. Every endowment that honours man, adorned him; that, even his envier must admit Nature had richly crowned him with her gifts; and the education he, sprung from one of the richest mercantile families of the city of N----, enjoyed, had brought those gifts to their highest perfection; but he had one shadow-side, and this was his choleric temperament; a failing sufficient to plunge him into ruin. Similar studies, similar sentiments united him in a strong bond of friendship with Von Avensleben, the only son of a house of ancient nobility. It was now in the year before his examination that he first saw and became acquainted with the sister of his friend; a most amiable lady, who then resided some time with her parents in the city of Heidelberg. His manly nature, free from all rudeness; his attractive demeanour, which a fine feeling of propriety pervaded; and his finished education, won him the heart of the damsel, and he testified to me that he had found in her that ideal which he had before continually sought in vain. I had the happiness to know the amiable family of the young lady, and recall with a melancholy joy the time which I spent amongst these good, and then so happy, people.

The widow Von Avensleben was as much distinguished for her high accomplishment as for her most unassuming disposition. She was well acquainted with the master works of German and foreign literature; and her knowledge of the world, and her nice tact, gave to her conversation a peculiar charm. She embraced her children in her innermost heart, her constant care was to smooth out every slightest trace of discord between them; and if she had a failing, it was her too great indulgence of them.

Amalia was the eldest daughter. She might be compared to one of those noble metals, which, because not vainly glittering on the surface, escape the eyes of ordinary men: but the noble ore conceals not its peculiar qualities from the knowing eye, which the more he observes, the more beautifully they discover themselves, and satisfy him that the pure metal requires no

further refinement. In personal beauty inferior to her sister, the maiden had earlier advanced to a reflection upon herself and others, and her clear understanding enabled her to arrive at noble and free views of the true worth of outward things, and of her own mind. Thus she had early demonstrated that she was capable of the greatest sacrifices for her friends--for her friends, who were chosen after mature consideration, and in which choice womanly sagacity and fine feeling were her guides. Her youthful timidity gave place, as she first became conscious of her worth, to a noble assurance. She judged others with indulgence, but hesitated not to speak out what was an acknowledged truth, even when that truth was not flattering to another. Thus showed she herself constantly as a noble and true soul, which one must continue to love more and more.

The little Maria was not so circumspect as her sister. As a lovely butterfly, she fluttered from flower to flower, extracting from each the best honey. Her vivacity led her to embrace whatever was good and beautiful with heartiness; but exactly because every thing is not good and beautiful, was indispensable to her a change of the flowers from which she drew nourishment. She knew how to show herself friendly and full of kindness to all who felt themselves compelled to pay to her the tribute of her love-worthiness, without tyrannically abusing her magic wand. But, when she sometimes saw that the lovely and brilliant side of a thing had too much biassed her frequently too predominant feeling; when she found herself deceived in and discontented with what she had, in her too enthusiastic fancy, taken up, would she painfully lament over the dark side of life. Certainly, every one who had once seen the little elegant being, as she charmingly and sweetly moved in society; every one who had glanced on her fine and noble features, and into her speaking eyes, must have loved her; and when she, moreover, sung with the clear metal of her voice, one of the beautiful songs which my friend accompanied on the piano, every one was enchanted.

Thus were they happy people; and the rapidly approaching completion of his university life, his rare acquirements, and the protection of men high in the government, gave my friend the promise of a near and a yet happier future. Ah! who could have thought that the peace of this happy family should be so horribly destroyed; that this lovely bond should have been so

cruelly rent asunder! An inconsiderate action of the young Von Avensleben converted this paradise into a hell.

He had accidentally received intelligence of a serenade which Krusenstern proposed to give to his loved one. This excited him to an ill-considered joke. As his friend glided near to the house with the nocturnal music, and standing near in the shade of another house, delighted himself with the imagination of the joy that his attention would give to Maria, Avensleben showed himself at the window, clad in a woman's night-dress, and threw a hand-kiss to Krusenstern. The wrath of Krusenstern at this foolish exposure of his lady to the ridicule of the musicians was furious, and a challenge to a duel with pistols was the consequence. No representations were able to bring him from this terrible resolve; and a journey which the family of Von Avensleben made, in order to spend a few days on a neighbouring estate of theirs, afforded the sundered friends an opportunity to compass their unhappy intention.

They drew in the early morning to the appointed place. Krusenstern with his seconds was first there--a spot well known to travellers by the name of the Engelswiese, or Angel's Meadow, lying up in the woods above the Neckar, on the opposite side to the city, and showing its pleasant green area belted in by the forest, to wanderers about the castle, though invisible to the valley below. He walked in silence to and fro, and gazed down upon the city, which lay gloriously illuminated by the morning sun. He could even distinguish the house where he had enjoyed the purest and deepest pleasures; he thought over the happy past; and anxious forebodings of a dark and perdition-blasted future rose up before him. The curtain was only too soon to be drawn aside, which his eyes were not yet permitted to penetrate. His antagonist appeared on the ground; the old resentment drove out every softer emotion; the seconds measured out the distance, the pistols were loaded, the word given--Von Krusenstern shot--but it became night before his eyes, as in the same moment he saw his antagonist spring on high, and then fall to the ground. He had received his death-wound.

Who shall describe the situation in which poor Krusenstern found himself!--who the misery of the friends of both! He was immovable to all persuasions to flight, and was committed by the magistrate to whom he had

surrendered himself of his own accord, to the university prison until further inquiry.

The family of the fallen youth were immediately written to, to tell them, that, on account of some degree of indisposition, he would not be able immediately to follow them, as had been agreed, and a friend of the house undertook the sorrowful task of opening to them the dreadful intelligence. But the most terrible part was yet to come. Von Avensleben was highly beloved amongst the students, and it was resolved to attend his funeral with a torch-train; and that the wretched prisoner, who, during all this time had sate brooding in a stupor of grief without listening to any one, might not perceive it, they determined that the funeral should take place a day earlier than usual. I was with the unhappy man on this eventful evening, endeavouring to comfort him, and to withdraw his thoughts from the dark pictures of his imagination. The shutters of the little room were closed, but a tone of the dismal mourning music struck his ear as the funeral train passed by the end of the street, along the Hauptstrasse, or High Street, of the city. "My friend! they bear him to the grave!" cried he with a terrible voice, and rushed to the window. I endeavoured to hold him back, but he tore himself loose from my grasp with giant strength, and bursting open the shutters struck his head against the iron grating. There flared the sullen glow of the torches, and the tone of the trumpets quivered through my vitals. With ghostlike, terrible, and distorted countenance, he gazed after the melancholy train;--"I--I have murdered him! the good, the true friend! There! I see him with the bleeding wound, crying, 'Wo!' over me! Oh God! Oh God! thou has cast me off! Maria! Maria! what have I done to thee! Seize me, ye spirits of hell! Tear me away from the pure angel-form!" So he raved on, till, exhausted, he fell back into the chamber.

He passed the night in the most horrible delirium; and for many days it was not dared to leave him a moment alone, lest he should effect his desperate endeavours at self-destruction.

But if the train left horrors behind it, it met yet still greater as it approached the end of the city. The letter had reached the family of Von Avensleben, but the friend had missed the sisters in the darkness of the night, as they hastened back to town to attend their sick brother.

"Whom do they bury there?" asked the trembling Maria, as their carriage, passing in at the Mannheim gate, was detained by the mourning procession.

"The student who was shot in the duel," answered an old man, who did not know the young lady--"the Herr Von Avensleben."

The cry of horror and misery in the carriage, as it wheeling round again rolled away through the dark night, I attempt not to describe. Maria only too soon became aware of the whole terrible secret. She fell into a long and severe nervous fever, and only arose from her sick bed to die a more weary death from the sure poison of incurable sorrow. She had written to her former lover a most moving letter, which assured him of her pardon, and in which she exhorted him to listen to the consolations of religion.

The kind girl had not desired the return of the little admonitory tokens of happy days; she had also retained his gifts, memorials of a pure and beautiful love, which a dreadful fate had destroyed.

Krusenstern, who spent two years in prison, is now come back again, and--you have seen him.

All had listened in silence to the recital. Of some of them, the pipes were gone out,--others blew powerfully clouds of smoke around them.

"Poor Krusenstern!" said Eckhard. "I revoke all that I have said against him."

"A most sorrowful history," said the Englishman.

"And false notions about women is the cause of all," said Von Kronen. "The poor Krusenstern would never have gone so far if he had not regarded his love in too romantic a light. This mischief would never have happened if he had only read my favourite author, Lichtenberg, where he says,--"That the irresistible power of love can raise us, through its object, to the highest pitch of happiness, or plunge us down to the lowest gulf of misery, is poetical nonsense of young people, whose heads are yet only growing;

which have no voices in the counsels of men; and for the most part are so constructed that they are never likely to have any."

"We must have no more such stories," said Hoffmann, "or the pleasures of the whole evening will be destroyed. The tea is ready; take your places, gentlemen."

Mr. Traveller, tasting the tea, pronounced it capital; and declared his astonishment that the Frau Philistine could prepare so excellent a beverage; but the host gave him to understand that he had brewed it himself. "It is my favourite beverage," said he, "and when I spend the evening at home, serves me for supper; or I cook a beefsteak and potatoes in the little machine which stands yonder, and which is a good deal in vogue amongst the students."

"So, so!" said the Englishman, "that is very sensible now."

While they thus chatted, the House-besom entered, and set upon the table a handsomely-shaped tart, which is called in this part of the country, a Radonen-cake, as a gift from Herr Schütz, in whose house Hoffmann was familiar. The cake was admired, and the host addressed himself to cut it up scientifically, when--zounds! the whole cake was nothing but a snow-ball, which had been made in a proper mould, and which had received the requisite colour from an ingenious powdering with brick-dust. "So shalt thou return to the water out of which thou wert made," exclaimed Hoffmann, as the whole company laughed heartily at the deception.

When tea was over, the company divided itself. The Englishman and Von Kronen plunged deep into a game at chess. The other four played at whist, and Hoffmann, as master of the house, did the honours, wandering first to this and then to that table. The whist party continued long; after the first rubber they obliged the host to join then, and so spun out their play to the fifth rubber. In the meantime the two others had terminated their game at chess, and seated themselves by the stove, smoking their pipes, and chatting over this and that.

"Has your pipe a good chair-way?" asked the Englishman, whom this student expression amused.

"It goes like a flute," answered the other. "Why you have made yourself master of the art of smoking, even to its very technical terms."

"You can scarcely believe," said Mr. Traveller, "how much I am interested in every thing, that is German, of which smoking is one thing, and especially in all that is connected with its university system. So long as I continued in England, I did not trouble myself much on this head, but now I use all the endeavours I can to acquaint myself with the present constitution of your universities. You must recommend to me a book in which I can find some notice of the origin of universities in general, and of the earlier fortunes of that of Heidelberg in particular."

"The best book on that subject," said Enderlin, who had come from the whist-table, "is Von Kronen himself. He can give you such a lecture upon it, that all the rats in the house shall run out; for which reason they wished to appoint him, in Westphalia, to the office of chamber-hunter. *Tres faciunt collegium*, so let us erect him a *cathedra*, whence he may pronounce his lecture."

These arrangements were speedily made. In the meantime Von Kronen had put his visage into a very learned form, and begun:--

## **SKETCH OF THE HISTORY OF UNIVERSITIES.**

Gentlemen,--Let us, as true sons of Minerva, exhibit an agreeable contrast to those people yonder, who have given themselves up to the burthen of play. May the honey of my words drop into your ears, and turn you into true disciples of wisdom. But the subject of our present lecture is the earlier fortunes of universities in general, and in particular of Ruperto-Carolo, that ancient fountain of knowledge, out of which we have drunk deep draughts.

"The sup of wisdom," interrupted Enderlin, "that we have eaten with a spoon, is a more beautiful metaphor--"

I warn the indiscreet hearer--said the *pro tempore* professor, Von Kronen, sternly frowning,--of Tit ii. section 27, of the academical laws, where it is declared that--'insults towards persons who are placed in authority in the university, or towards the persons connected with them, shall be strictly punished; if they are offered from revenge, so must the punishment be made the sharper, and, according to circumstance, may be even penally amerced.' After this, let no man insult or interrupt.

Our European universities, as they at present exist, are the production of a comparatively late period, since, though we find institutions resembling them in very early times, yet they were essentially and wholly different to ours. History shows us how, through the continually progressing culture of a people from age to age, institutions for the fostering and diffusion of knowledge formed themselves; and thus we find, at first, the so-called Priest-Schools in Egypt, Persia, India, and amongst the Hebrews; amongst the Celtic people the cloister-like unions of the Druids, which in caves and solitary woods, imparted to the most distinguished of the youth oral instruction.

The business of teaching was confined to expounding of the laws, of the holy books, and so forth, and was communicated in verses. The educational institutions of the Greeks were of a higher grade. The first and most celebrated High School was Athens; which also in still later times, maintained a high rank in this respect. We must here only remind ourselves of the gardens of Plato, in which he imparted his instructions in philosophy. The Cynosarges, where Antisthenes taught; the Poikyle or Stoa, where Zeno assembled his disciples; the gardens of Epicurus, and afterwards of the museum at Alexandria. Philosophy was the great science: as to them the Faculties, as well as the so-called Bread sciences (sciences made a trade or profession of) were totally unknown. The Greeks also possessed public libraries, as those at Alexandria and Pergamus. The educational institutions of the Romans were modelled essentially upon those of the Greeks, and enjoyed the most extensive influence from the 607th year after the building of Rome; and the highest veneration was shown to professors from Greece, who taught in them philosophy and the arts. The Romans also held it indispensable to visit and study in the schools of Greece, and their young nobility especially resorted to Athens, Rhodes, Alexandria, etc. The



Romans, moreover, were not acquainted with the division into Faculties, and every man of standing studied the liberal arts--studia humaniora--in their whole compass; and libraries, and collections of works and remains of art, were much more numerous and richly at their command. The study of philosophy was not the less zealously prosecuted than in Greece; but the grammatical philosophy of the Greek and Roman tongues, combined with rhetoric and poetry, were the highest objects of education. The continually increasing numbers of the immigrating Grecian professors, led to the founding of many other schools in Italy. Amongst the most important was the Athenæum, founded by the Emperor Hadrian, afterwards called the Schola Romana; those of the capitol, and other temples. Vespasian was the first to establish public professors of political science with fixed salaries. Antoninus Pius raised the so-called imperial schools, as did Valentinian those of Rome generally, to the higher distinction, by a thorough and salutary reform. Athens, however, still continued to maintain the highest reputation, down to the tenth century, to which people flocked from all countries.

With the fall of Rome fell also the schools, and all the higher institutions for the diffusion of knowledge; but with the spread of Christianity they began again to rear their heads, but with a very essentially different character. Their tendency was preeminently theological,--as the theological seminaries, and the catechetical schools, especially at Alexandria, testify; which latter maintained the highest celebrity, from the second to the fourteenth century. This theological tendency manifested itself still more in the episcopal and cathedral schools, where indeed the so-called Seven Free Arts were also taught, but in the most miserable and imperfect manner. Theology, growing every day more sterile, yet exercised a perpetually increasing lordship over philosophy, and formally subjected it to tutelage, as the monastic schools from the sixth to the eleventh century most strikingly show. These institutions sought the immediate protection of the hierarchy, and the result of their labours was the School Philosophy.

Charlemagne and his friend Alcuin again first comprehended the idea of a general humane accomplishment. The former founded the Schola Palatii, for princes and young men of condition, and Alfred in England established similar ones there; but with the death of these remarkable men, all seemed

to fall back again into the old track. These cloister schools, however, in the ninth century, merged into the so-called Faculty Schools; which again in the twelfth and thirteenth centuries lived anew as Universities. Thus, in consequence of the schools of Charlemagne and Alfred, a free spirit of scientific inquiry evolved itself from the cloister schools, which found a corroborating co-operation in the Rabbinical schools of North Africa, in Spain, and France, and still more, in the schools of the Arabs. There, such Faculty Schools stood forth with especial prominence; the one for medical science at Salerno; for jurisprudence at Bologna, which possessed distinguished privileges as the gift of the Emperor Henry I. through the *Autentica* of the year 1158. The scholastic theology soon separated itself from the Aristotelian-Arabic Philosophy, and the seat of the latter became Paris. Amongst many precious privileges, which these three institutions received in consequence of the *Autentica* of Frederick I., that of Philip Augustus for Paris was the most remarkable. It freed it from the civil jurisdiction, and placed it under the jurisdiction of its own teachers. Paris was also the first university in which all branches of education were taught; yet even there, still theology continued to be the prominent study, and none of the universities could confer all kinds of academical honours. So, doctors of theology could only be created in Paris; of law, only in Bologna, and so on. As these schools now became actually universities, they ceased to bear the names of *scholæ*, *studia*, *studia generalia*, and the name of universities was adopted, and has ever since continued in use.

The teachers of the universities received originally no stipend from the state. Frederick II. paid to the teachers of the newly-founded university at Naples in 1224, the first fixed stipend. The great advantages of a university education becoming, by degrees, generally known, occasioned many cities, which saw these advantages, to endeavour to become university-cities themselves, so that from the thirteenth century the number greatly increased. Universities were founded in Montpellier in 1220; in Orleans in 1312; and in Prague in 1348; the last in particular formed on the model of that of Paris. Independence of the state created, especially in Prague, a most beneficial freedom of doctrine in the teachers, which was often directed against the prince, and often against the church, with the most distinguished consequences.

We are once more conducted by the mention of Prague back to the universities of Germany, and it must be, in the first place, observed, that this university for a considerable period was, and continued to be, the only one. But as knowledge penetrated more and more into Germany, and especially as it was cherished and promoted by the princes, the want of such higher educational institutions was more and more felt, and thus arose in the German territory, previous to the end of the fifteenth century, fifteen universities,--of which Vienna was founded in 1365; Heidelberg in 1387; Cologne in 1388; Erfurt in 1392; Leipsic in 1409; Rostock in 1419; Freisburg in Breisgau in 1452; Greifswalde in 1456, 1472; Trier in 1454, 1472; Basle in 1460; Ingoldstadt in 1471; Tübingen in 1477; Mayence in 1471. At the beginning of the sixteenth century arose Wittenberg in 1502, and Frankfurt on the Oder in 1505; Marburg in 1527, the first Protestant university; Königsberg in Prussia in 1544; Jena in 1554, 1557; Altdorf in 1675, 1678; Helmstadt 1575.

At that period, however, the Protestant princes only could be justly praised for their care to provide able professors; the universities which continued Catholic, or which were newly-founded by Catholic princes, as those of Dillingen in 1613; Paderborn in 1615; and Molsheim in 1618; were occupied by the Jesuits. In consequence of the unfortunate 'Thirty Years' War, many of these universities fell; many suffered much from the chances of war; and these circumstances incited neighbouring princes to found new universities. So arose the university at Giessen in 1650; at Duisburg in 1655; at Kiel in 1665. The Elector Frederick III. of Brandenburg--King Frederick I.--changed in 1694 the Ritter School at Halle into a university. A general improvement of the instruction given in all the universities in this century is observable: but spite of all endeavours at improvement in this respect, the sciences all continued to be taught in a very unphilosophical manner, and in the Latin tongue.

The necessary advance from this wretched state of things began with the eighteenth century, through the universally restless activity of the philosopher Leibnitz. Christian Wolf taught first in the spirit of Leibnitz and in the German tongue. George II. seconding the better spirit of the time, founded a new university at Göttingen in 1734; Margrave Frederick of Brandenburg-Anspach one at Erlangen in 1743; and a Catholic one arose

through the Prince-Bishop of Dalberg in 1734 at Fulda, but was dissolved again in 1804. The good spirit continued to work on through the remaining half of the eighteenth century, and thus in 1760, Duke Frederick of Mecklenburg founded a university at Bützow, which was in 1789 united to that of Rostock. The Duke Karl Eugen of Würtemberg in 1770 founded that of Stuttgardt, which was, however, again dissolved in 1794. Bonn also at that period received the foundation of its university. More recently was founded that at Landshut, whither the university of Ingoldstadt was removed in 1800, and again in 1827 removed to Munich. Wittemberg ceased in 1816, being united to that of Halle; and in 1810 a new university was founded at Berlin.

We have now, gentlemen, taken an historical glance at the German universities, and at their foundations, so far as is necessary. They were called forth by the ruling circumstances of the times, and established themselves now in this manner and now in that. But it is especially interesting to us to have seen that the university of Heidelberg was one of the earliest, and continues one of the first; its rank no one will presume to contest. She has raised her noble head amid all the storms of time, and no state revolutions or other political epochs could make her bend. Ruperto-Carolo shone like a morning sun on the horizon of scientific endeavour, and we now shall take with particular pleasure the opportunity----

"To invite the honourable listeners politely to partake of a modest supper;" interrupted Hoffmann. "Thou mayst finish thy learned lecture another time."

VON KRONEN.--Far be it from me to throw any obstruction in the way of so praiseworthy a proposition; especially, as the favourite adage of our city of the Muses has always been--the *utile dulci*.

MR. TRAVELLER.--So postpone we then the continuance of the discourse to a future day.

## **PHRENOLOGY.**

The little collation was in the mean time brought up, and the company, under the conduct of the musical artist, made the most successful attacks on the ham and veal cutlet. The Göttingen sausage, moreover, an imitation of the renowned Sulzer, was as little spared as the potato-salad, and the scattered remains soon alone marked the battle-field. A noble Rhine-wine recruited the muscles of the jaw, and loosed again the tongue of the brave combatants. The affairs of the day became the subject of discourse, and occurrences in Hanover, which then appeared likely vitally to affect the interests of all Germany, were eagerly discussed by all. Mr. Traveller, as the representative of England, stated the strong feeling which there prevailed against the King of Hanover, and so they came to talk of the prevailing views and theories in England, on many subjects, and Mr. Traveller speedily entangled himself in a discussion on Phrenology, which he endeavoured to defend. Freisleben, a determined opponent to the theory, immediately took up the subject zealously.

FREISLEBEN.--They are now signs on the skull that man will expound, formerly they were signs in the heaven. What unpardonable presumption, from certain deviations from the regularity of the outer form, to infer an analogical change of the soul. A leap which, according to my opinion, is not less than from comets' tails to war. What presumption, from the body to seek to form conclusions upon the spirit, whose mode of connexion with it is to us totally unknown! It strikes me exactly as if any one should infer or assert the possession of a fine sense of smell, from the existence of a huge nose, or, as dancing is a function of the foot, that he who has a great foot must be a capital dancer.

MR. TRAVELLER.--Throw the matter into ridicule as much as you please, but take along with you at the same time the evidences which experience furnishes.

FREISLEBEN.--These evidences have long been shown to evidence nothing, and it astonishes me that this doctrine of Gall and Spurzheim, this ephemeral structure, can find so much acceptance in England.

MR. TRAVELLER.--I know the thing only by popular representations. But the principles which are herein derived from anatomy and physiology, to which Gall and Spurzheim have rendered much service, the grounds which

pathology and comparative anatomy also furnish, appear to me worthy of all attention.

PITTSCHAFT.--That nobody denies; but Gall having rendered essential service to the anatomy of the brain, by no means justifies his doctrine.

FREISLEBEN.--His theory must fall, when it is assailed *a priori*, or by experience. Above all things, unphilosophical, not to say ridiculous, is his distribution into twenty-seven senses. By what right has he only so many set forth; and why is a boundary drawn here?

MR. TRAVELLER.--Though many things may be said against this distribution, yet it is often seen in life that an individual sense as marked out by Gall, is pre-eminently developed and frequently almost exclusively predominates; I remind you of his five-sorts-of-memory sense.

FREISLEBEN.--Certainly. But what is the cause of this? Is it not to be sought rather in external influences, which especially develop this kind of memory? And if we leave this out of view, then must we go still farther. So there is a painter who can paint only landscapes; and I recollect in Matthisson's Reminiscences, to have read of a Cretin in Berne, who could paint cats, and cats only, but them most excellently. How much farther must Gall's artistical faculty be subdivided, till it reaches down to the cat-painting faculty!

MR. TRAVELLER.--The artistical faculty is probably in this painter, but we must assume that it is prevented from unfolding itself in all directions.

FREISLEBEN.--But there you knock yourself down. Since, if we assume that there is no necessity for the faculty, which the external elevation of the skull indicates, to develop itself, then the whole pile of Phrenology tumbles to the ground. But does it develop itself, and is this acknowledged as necessary, what incalculable and horrible consequences must this have! All moral responsibility ceases: the criminal escapes punishment, since he can show on his skull the irresistible murder-sense. But I will not pursue this farther, since, happily, we have nothing to fear from it. Scarcely in a single instance do the outer plates of the skull-bones correspond permanently with the inner ones, and therefore not with the brain. I call to

your recollection only the skulls of certain animals, in which, between the two skull-plates, is to be found a large hollow, as we, indeed, also find in man; as, for instance, the hollow of the forehead--the frontal sinus--which is, in different individuals, very differently developed. Then again the most recent physiological experiments show, that in occurring injuries, they are not by any means of so much consequence in the external portion of the brain, in the hemisphere, but that it is exactly the inner portion which is of the most importance, and which also has a much more determinate shape. In injuries of the head too, cases have occurred, where whole spoonsful of the hemisphere of the brain have been taken out without the slightest diminution of the actively intellectual powers. Object not to me that the convolutions of the hemisphere of the brain have been particularly developed in distinguished men--here it was also the case with the inner portion: one part does not develop itself without the other. Object not that the anatomy of beasts gives no secure result, since if this is the case, how can phrenology itself dare to hope to give more certain judgments? The firm and immovable part--the form of the bones especially--is delusive: in the first place, since they have long acquired their form and consistency before every species of improvement of the improvable creature takes place, which comes long after the complete fixidity; and secondly, since this form depends so little upon our will, while the influence of external causes is so unavoidable, and a single pressure or stroke can gradually work a change, whose progress no art is capable of restraining. Moreover, even could any thing be deduced from this, still the firm parts yet constitute but a certain and perpetually fixed proportion, a single and insignificant link in the chain of countless circumstances, which go to the formation of the human character.

MR. TRAVELLER.--My God! my head is in a whirligig with all this--with all this rapid German.

FREISLEBEN.--One must not allow one's-self to speak of the outer form of the head in which a free spirit dwells, as one would of a pumpkin; as little must we calculate circumstances which depend upon it, as we would calculate an eclipse. Others assert, with equal probability, that the character of a man lies in his countenance, whilst they appeal to the capability of drawing a conclusion on the whole from the indications of a part; as others,

supporting themselves on this sufficient ground, assert, that man must act as a machine. And to this class of reasoning belongs--"in a handsome body dwells a handsome soul."

Ridicule majis hoc dictum, quam verè æstimo,  
Quando et formosos sæpe inveni pessimos,  
Et turpi facie multos cognovi optimus.

*Phædrus.*

PITTSCHAFT.--Ah, if we could but first rightly understand the changes in the brain itself. But a great visible change in the brain may be a very little change for the soul, and *vice versa*. And how will people draw conclusions from the very vault of the brain?

MR. TRAVELLER.--But, gentlemen, recollect how often phrenologists, from the outward form of the skull, have drawn correct conclusions. Recollect the allocation of distinguished heads as they are to be seen in plaster in the English and German museums.

FREISLEBEN.--Yes, they have drawn some very neat conclusions, but we know very well how that stands. The false conclusions have been carefully put out of sight; and yet sufficient of them have come to the daylight to render the phrenologists ridiculous. They are, indeed, often still more innocent, the worthy demonstrators only seeing that which they knew very well before. Recollect also what a sagacious German naturalist says:--"The proof of the demonstration which the phrenologist makes is, in most cases, as superficial as the demonstration itself. Let a man eat a shovelful of salt, according to the prescription of Aristotle, with the person upon whose head and heart he makes so superficial a judgment, and he will then find what will become of his former judgment. But to err is human, and that not exclusively, for it is sometimes the fate of angels." Talent, and the endowments of the spirit, generally have no signs in the solid portion of the head. To prove this, let the selected casts of thinking heads, and selected ones of fools and not-thinking men, be placed side by side; and not the head of the learned man, of a careful education, be placed in opposition to that of the worst specimen of the totally uneducated country booby. Bedlam is peopled with inhabitants, who, if they did not stand staring as if chilled into



stone, or smiling at the stars, or listening to the song of the angels, or would blow out the dog-star, or stood trembling with folded arms,--if, in fact, they were not judged by these aberrations, but by the shape of their heads alone, would command the highest respect. Still less can we draw correct conclusions from the shape of the living head than from the bare skull itself. A skilful artist, without exceeding the bounds of the probable, would be able to cast in wax a covering of muscles and skin for the head of any skeleton, and give it an expression which should possess any aspect that he pleased. And thus may the skull of a living person be, in reality, so covered with an irregular mass of muscular and cuticular integuments, as shall give an equally delusive effect.

VON KRONEN.--whose attention had become excited by this illustration--here interposed. What an immeasurable leap from the exterior of the body to the interior of the soul! Had we a sense which enabled us to discover the inner quality of bodies, yet would such a leap still be a daring one. It is a well established fact, that the instrument does not make the artist; and many a one with a fork and a goosequill would make better sketches than another with an English case of instruments. Sound manly sense soon sees into this; it is only the passion for innovation, and an idle sophistry, soothing itself with false hopes, which will not see it. If a ship-captain answered a fellow who offered himself to his service with enthusiasm--"Thy will is good, but, nevertheless, thou art of no use to me. Thy shoulders are too narrow, and thou art too small altogether for the service," then must the good fellow probably put his hand on his mouth; but if the captain said, "Thou actest like a worthy fellow, but I see by thy figure that thou constrainest thyself at this moment, and art a scamp in thy heart;" in truth, such an address would, in any place, to the end of the world, be answered by any honest fellow with a box on the ear.

MR. TRAVELLER.--You will make me in the end suspicious of the whole circle of physics, or otherwise I must believe that you allow no place to the phrenologist amongst natural philosophers.

FREISLEBEN.--I permit him freely to class himself amongst the naturalists; but he must attempt to take no greater rank amongst them than the *soi-disant* political prophet does amongst subtle statesmen. But one can by no

means class the genuine natural philosopher and the phrenologist and physiognomist together. The first err often humanly, the others err continually and monstrously.

While this discussion had grown warm, amongst the others a lively conversation had arisen on recent literature. They gave their opinions on the recent English romances of Bulwer and Marryat, which then were the order of the day. They condemned some of the later productions of the French. They contended for and against the influence of the young Germany; criticised Gutzhow's newest romance; and soon were upon a general theme, the different tendency of the public in England and Germany. There the preference for popular representation; the neglect of scientific reading, together with the very superficial school education; here, on the contrary, reverence for science, and over-driven grasping after scientific things, and a passion to be learned, which especially shows itself repulsively in the ladies, when they are carried away into the scientific vortex; they bewailed the wretched mass of rubbish that was now read, and especially that the Germans by reading too much did themselves injury. That, in particular, in the schools the children were held more to learning by rote than to thinking; at the same time thankfully acknowledging that it was sought with all diligence, to correct this error in the new Folks' Schools. "In England," says Freisleben, "one finds more original character in company, and amongst the common people, as may be seen in the English writings. In Germany it is totally different. And if any one stumbles on an original discovery, how long it continues, till his discovery, and till he himself become known. In Germany the greatest discoveries have been made, but they weighed them, and doubted so long whether they were new and would be useful, that their neighbours the French or the English seized on them, and secured the advantages of them to themselves."

ECKHARD.--No nation feels so much the worth of other nations as the Germans; and yet is, alas! so little regarded by most of them, even for this obeisance.

ENDERLIN.--I think the other nations are quite in the right. A nation that would please all, deserves to be despised of all. This has been pretty much

the case with Germany, and it is only just now that other people have learned to estimate her properly.

VON KRONEN.--Lichtenberg in his time said justly--"The character of the Germans lies in two words: patriam fugimus."--*Virgil*.

HOFFMANN.--Yes, Lichtenberg--*that* is an original character! I have learned to prize him properly from Von Kronen. Yesterday, for the first time, I read his famous essay on the state of the German Romance of his time. It pleased me so much that I must read it out to you. It is short, and will at least be finished before the Phrenologists and Anti-Phrenologists there have finished their discussion.

## ON THE GERMAN ROMANCE.

Our mode of living is become so simple, and all our customs so little mysterious; our cities are, for the most part, so small, the land so open; all is so simply true, that a man who is desirous to write a German romance, hardly knows how he is to bring the people together, or to lay his plot. Then, as the mothers now in Germany suckle their own children, there is an end of all exchanging them, and a fountain of emotion is thus stopped, that is not to be purchased with money. If I would persuade a maiden to come out in man's clothes, that is immediately discovered, and the servants betray it, before she can get out of the house; and besides, our ladies are educated in such housewifely notions that they have not the heart in them to do any thing of the kind. No, to sit fine by mamma, to cook and to sew, and to become themselves cooks and sewing mothers, that is their business. It is undoubtedly very convenient for them, but it's a shame to the Fatherland, and an invincible obstacle to the romance writer.

In England, people think that if two persons of the same sex sleep in the same room, a fever is unavoidable, on which account the people in one house are by night, for the most part separated, and a writer has only to take care that he sets open the house-door, and he can let who he will into the house, and need not fear that any body will awake sooner than he would

have them. Furthermore, in England the chimneys are not merely the channels of smoke, but the especial windpipes of the chambers, and afford at the same time such an excellent way to come down into any room of the house, at once and unheard, that I have often been told that he who had once gone up and down a chimney would prefer it to a staircase.

In Germany a lover would make a pretty journey if he were to come down a chimney! Yes, if he had a mind to fall into a fire-hearth, or into a wash-kettle with lye, or into an anti-chamber with two or three stoves, which one probably could not open from within at all. And suppose one should let the lover come down into the kitchen, the question then is, which way would you bring him first upon the roof? The cats in Germany can take this way to their loves, but not men. On the contrary, in England, the roofs make a kind of street which sometimes are better than those on the ground; and when a man is upon one, it costs him then no further trouble to get upon another than to run across a village street in winter.

People will say that those contrivances have been hit upon on account of fires; but as these scarcely occur once in one hundred and fifty years in any house, so I conceive that they have rather been found advantageous to lovers driven to extremity and to thieves, who very often take this way, when they might have chosen others, and certainly always when a hasty retreat is necessary, exactly as the witches and the devil are wont to do in Germany. Finally, a right powerful prevention of intrigues is that otherwise fine and praiseworthy conceit of the post-directors in Germany, by whom a vast amount of the virtues of the times are preserved, since instead of the English coaches and chaises, in which a princess in the most delicate condition would neither fear nor be ashamed to travel, they have substituted those so-beloved open Rumpelwagen. For what mischief the convenient coaches and the most excellent highways of England may occasion, is not to be expressed by words.

For, in the first place, if a maiden goes out of London with her lover of an evening, they may be in France ere the father awoke, or in Scotland ere he has come to resolve with his relations what he shall do; therefore, a writer has need of neither fairies, conjurors, nor talismans in order to bring the beloved into security, since if he can only bring them to Charing-Cross

or Hyde-Park Corner, they are as safe as if they were in Weaver Melek's chest in the Persian Tales.

On the contrary, in Germany, if the father misses but his daughter on the third day; if he only knows that she is gone by post-wagon, he can mount his horse and seize her again at the third station. Another mischievous circumstance is the, alas! much too good company in the commodious stage-coaches of England, which are always filled full of beautiful and well-dressed ladies, and where--a thing which parliament ought not not to suffer--the passengers so sit, that they must gaze upon one another; whereby is endangered, not only a highly dangerous bewilderment of the eyes, but sometimes a highly shameful, and on both sides a smile-exciting bewilderment of the legs of the opposite traveller; and finally, as frequently as dissolving a bewilderment of souls and thoughts arises, so that many an honourable young man who was proposing to travel from London to Oxford, has instead of that travelled to the devil. Such things, thanks to heaven, are impossible in our post-wagons; since, in the first place, no genteel ladies could possibly seat themselves in such a conveyance if they had not in their youth been after climbing hedges, magpie-nesting, apple-gathering and battering down of walnuts; since the spring over the side-ladder requires a remarkable nimbleness, and no lady can do it without setting the coach-master and the ostler-fellows that are standing round, laughing. In the second place, the passengers so seat themselves, when they at length do seat themselves, that they cannot look each other in the face, and in such a situation, whatever may be said to the contrary, cannot very well begin an intrigue. Conversation loses all its spice, and one can at the most only understand what another says, but not what he desires to say. In short, one has something else to do in a German post wagon than to gossip; one must hold one's-self fast when we come to holes, hold ourselves in readiness for a spring in case of accident; must keep an eye on the boughs, and duck at the proper time, that one's hat or one's head may be left in its place; keep an eye to the windy side, and keep strengthening the clothing on that quarter from which the attack comes; and if it rains, why then one has the property common to other creatures that live neither in the water nor on the water, of being silent when it is wet; and thus the conversation stands at once stock still. If one at length reaches a Wirthshaus (inn,) thus passes the time amongst other things--one dries himself, another shakes himself, one

sucks his lozenge, another blows up his cheeks, or enacts whatever other child's megrim he may be in the habit of on such occasions. And hereby comes a circumstance into notice which makes all friendly intercourse in a Wirthshaus impossible; to wit,--that since so many miseries are bound up with post-wagon travelling, so care has been taken that the Wirthshausen shall be made so much worse than is necessary, in order to render a return to the post-wagons the more tolerable. And nobody can imagine to himself what an effect that has too. I have seen people who were pounded and knocked to pieces, and sighed ardently for repose, that when they saw the Wirthshaus in which they were to refresh themselves, with the courage of heroes, have resolved to travel on, which was similar to the fortitude of Regulus, which drove him back to Carthage, although he knew that they would there put him into a sort of German post-wagon, and so let him roll down the hill.

So fall through altogether the stage-coach intrigues with the stage-coaches themselves, those true hot-houses of episodes and declarations. But, it will be said, there is now a stage-coach in Hanover. Good, I know it; and one quite as good as an English one. And must we, therefore, begin all our romances on the way between Haarburg and Minden, which we now leave so swiftly behind us that we have hardly time to see it? All that the travellers do there, is to break out in praise of the king who has ordered this coach, and to sleep; for they are generally so wearied before they get into this coach, that they then fancy they are got home, or that they lie in bed. But those are proper objects truly to fill a romance with! To introduce five sleeping merchants, all snoring; or to fill out a chapter with the praises of the king! The first is by no means a fit subject for any book, and the latter for no romance.

But through this exception, I have wandered from my proper business. Yes, if there were not left yet a monastery or two, to which we can bring a loving couple for refuge, I should not know how to carry on a German romance to the third page; and when, in fact, there shall no longer be a cloister left, there is an end of German romance.

---

The majority of the company paid their tribute of approbation to this satire. The observations which they made upon it were interrupted in good time by the appearance of a steaming bowl of punch. When the guests had filled their glasses, Hoffmann seized his guitar, and accompanied the voices of the rest, who sung Schiller's famous song.

### THE FOUR ELEMENTS.

Four Elements all thoroughly blent,  
Build up the world, our being cement.

Press ye the juice of citrons, and pour;  
Harsh is of life the innermost core.

Now let the sugar's tempering juice,  
Softly the fiery harsh strength reduce;

Now let the water bright gushing fall;  
Peacefully water embraceth all.

Let drops of spirit therein be thrown;  
Life to the life it giveth alone.

Quaff it off quickly ere virtue goes,  
Only revives the well while it glows.

Freisleben arose, and said, "Let us drink to the prosperity of our friend. May many happy years find him still young in his spirit, and in the love of his art. May future generations lament that he did not live amongst them. May he be continually surrounded by friends who love him as we do! May he only know sickness that he may learn more vividly to enjoy health. May so much earthly good fall to his lot, that he may live contented. To his prosperity let us give a three times thundering Live-hoch! Vivat!--vivat!--vivat!"

HOFFMANN.--To the prosperity of my dear friends! May you--if in the autumn of our lives we should meet again--say to me, "All that we once wished thee on thy birthday, has had its fulfilment in ourselves. But may there never come a winter in your lives!" Let us sing something in company.

## THERE TWINKLE THREE STARS.

There twinkle three stars, oh! so friendly!  
I' the darkness of life do they shine,  
These stars, oh! they sparkle so kindly,  
We call them love, music, and wine,  
We call them love, music, and wine.

There lives in the sweet voice of singing,  
A heart sympathizing and true;  
Song giveth new youth to rejoicing,  
And barreth the heart to all rue!

But wine unto song is united,  
A joyous and wondrous thing;  
With glowing rays clothes itself brightly,--  
To earth a perpetual spring!

But glitt'ring and joyfully winking,  
When brightly the third star doth shine;  
It sounds in the spirit like singing,  
It glows in the bosom like wine.

Then fill, ye three cordial planets,  
Our breasts with your glory divine;  
In life and in death our companions,  
Be love, and sweet music, and wine!

And wine, and sweet love, and singing,  
They honour the festival night;  
Then live! who in kissing and loving,  
In wine and in singing delight!  
In wine and in singing delight!

HOFFMANN.--Gentlemen, don't drink yet. I must yet once more animate you; so then sing:--

Roundelay and barley-wine.  
Love we them for ever;  
Grasp them bravely where they shine,--  
Cup's exhausted never!

(To Mr. Traveller.) Brother, thy beloved is called?--

MR. TRAVELLER.--Georgina.



ALL.--Georgina, she shall live-o! shall live-o!  
Georgina, she shall live-o!

ALL.--Roundelay and true grape wine,  
Love we them for ever.  
Grasp them bravely where they shine,--  
Cup's exhausted never.

(To Von Kronen). Brother, thy beloved is called?--

VON KRONEN.--Rapunzel.

ALL.--Rapunzel, she shall live-o! shall live-o! shall live-o!  
Rapunzel, she shall live-o!

So goes the song in this manner round; and each one names the actual or feigned name of his lady.

MR. TRAVELLER.--Where, then, have you found the name of Rapunzel, Von Kronen?

VON KRONEN.--Look into Grimms' "Kinder und Haus-Märchen;" there you may read the moving history of Rapunzel, which has so seized upon me that I have without further ado made the poor Rapunzel my beloved.

ENDERLIN.--I hope that thou correspondest with her. How touchingly must the subscription of the letters sound:--"Thy faithful Rapunzel," or "Thy affectionate Rapunzel."

PITTSCHAFT.--But do procure me the favour of thy Rapunzel writing something in my Stammbook.

VON KRONEN.--In thy bore of a Stammbook? But O yes! yes! for she is quite at liberty to write in what she will.

PITTSCHAFT.--And what, I wonder, will she write?

VON KRONEN.--Instead of an answer, which perhaps after all may not come, I will give thee an anecdote.

Every body knows how great was at one time the rage in the universities to have Stammbücher. Every student kept one; and all the inmates of the house, the numerous members of the landsmannschaft, the whole body of the teachers and other acquaintances who approached him, each and all found their place in it. A student even came once to Dr. Semmler in Halle, with the request that he would have the goodness to write in his Stammbuch. Semmler, who, spite of his well-known and highly praiseworthy economy of time, could not repress his curiosity to turn over the leaves of the Stammbuch, found, to his great amazement, almost on every page such sentences and sayings as were not the most calculated to give him a high idea of the morality of the friends of the gentleman Stammbuch-holder. Finding a clear page, he therefore wrote--Matt. viii. 31. "Lord, suffer me, that I go amongst this herd of swine."

PITTSCHAFT.--If Rapunzel could say such stupid things as thou dost, I should set her down for a very conceited person, and would not trouble her with my Stammbuch, more particularly that she might not get a wicked notion of the morality of my friends, and amongst them of her beloved.

HOFFMANN.--Away with all personalities. Let us have a roundelay.

There goes a drinking-law our table all around, around--  
There goes a drinking-law our table all around:--  
    Three times three are nine-a,  
    Ye know well what I opine-a.  
There goes a drinking-law our table all around.

What a jolly time the damsels have though--  
They're not compelled to the war to go.

[Here he drinks out his glass, as each one does in his turn, after having song.]

### THE KRÄHWINKLER LANDSTURM.

But march you slow there before, but still march slow there before,  
Or the Krähwinkler Landsturm can follow no more.

What a jolly time the maidens have though,--  
They're not compelled to the war to go.

PITTSCHAFT-- Dame hostess, cook you Millet-bree,  
When the Landsturm comes it will hungry be.  
CHORUS-- [As above, and repeated after the singing of each  
strophe.]  
FREISLEBEN-- Our captain is from Rudolstadt,  
He eats a deal, but hungers for all that.  
VON KRONEN- Sir Captain! my follower goes so in trot,  
- That scarcely a scrap of heel I have got.  
ENDERLIN-- At Leipsic, in the People's-Fight,  
We had nearly taken a prisoner quite.  
ECKHARD-- The artillery would have fought right well,  
But of powder it can not bear the smell.

HOFFMANN (for MR. TRAVELLER)--The cavalry stout doth charge amain,  
And is always in when the dumpling's slain.

HOFFMANN.--Still farther goes our Lumpitus yet once more around!

At Hamburg burst a dreadful bomb,  
Potz Wetter! how ran we there all and some!

And as the foe came galloping fast,  
We hid in the grass till they were past.

The Krähwinkle Landsturm hath courage high,  
The baggage it always standeth by.

Our Captain is a most valiant wight,  
'Tis only a pity he can not fight.

They gave us a banner moreover to show,  
Which way the wind did chance to blow.

Run, run, brave comrades, run left and right--  
A French sentry-box stands there in sight!

This song was written originally in ridicule of the Austrian Landwehr. It has almost endless strophes, of which a few only are here given. It is very frequently used as a Round-song or roundelay, in which each person must sing a fresh verse, and when the known verses are at an end, some one extemporizes, so that every day it becomes richer in strophes. The sixth strophe is then usually sung as the conclusion.

HOFFMANN.--I fill the glasses, and then let us sound a still greater Lumpitus.

HOFFMAN.-- My brethren, when no more I'm drinking,  
But faint with gout and palsy lie,  
Exhausted on the death-bed sinking,  
Believe it then, my end is nigh. [Repeated as a Chorus.

FREISLEBEN-- A lordly life the Pope doth hold,  
He lives on absolution gold;  
The best of wines still drinketh he--  
The Pope, the Pope I fain would be.

VON KRONEN-- Brothers! in this place of festive meeting,  
God in goodness hath us thus combined;  
Let us every trouble now defeating,  
Drink here with the friend of honest mind.  
There, where nectar glows--Valleralla!  
Sweetest pleasure blows--Valleralla!  
E'en as flowers when the spring hath shined.

PITTSCHAFT-- So crown with leaves the love-o'erbrimming beakers,  
And drain them o'er and o'er;  
And drain them o'er and o'er;  
In Europe far and wide, ye pleasure seekers,--  
Is such a wine no more!  
Is such a wine no more!  
Is such a wine no more!  
Is such a wine no more!

ENDERLIN-- Ca, ça, carouse it!  
Let us not fiery-heads become;--  
Who won't here now sit,

Let him stay at home!  
Edite bibite, collegiales  
Post multa secula, pocula nulla!

MR. TRAVELLER sings "The Old English Gentleman."

God greet thee, Brother Straubinger,  
I'm glad to meet thee, tho-ough;  
Perhaps it is unknown to thee,  
That from Heidelberg I go-o.

ECKHARD--

The master and the misteress,  
Of them I cant complai-en;  
But with these gents, the studi-ents,  
No mortal can conta-ien

CHORUS.--

The master and the misteress, etc.

Hoffmann, in the mean time, had seated himself at the harpsichord, and drew a quodlibet from the most varied Burschen songs, leaping from one to the other, and interweaving phantasy-pieces between them. The platform in the chamber enabled the company to sing the Bavarian Folks'-song, "The Binschgauer." One chorus placed itself on the platform with the punch-glasses, the other remained by the steaming bowl. Hoffmann accompanied them on the harpsichord.

### **THE BINSCHGAUER'S PILGRIMAGE.**

The Binschgauer would a pilgrimage go,  
Fain would they go singing, but how they did not know,  
Zschahi! Zschahe! Zschaho! etc. etc.

The Binschgauer have got there,  
Now take heed that ev'ry one his knapsack bear,  
Zschahi! Zschahe! Zschaho! etc. etc.

The Binschgauer far from their homescenes have gone;  
They saw many cities, and far around were known.  
Zschahi, Zschahe, Zschaho! etc. etc.

The Binschgauer long through joy and sorrow run,  
Till high the holy pinnacles glanced i' the evening sun.  
Zschahi, Zschahe, Zschaho! etc. etc.

The Binschgauer wended about that dome renowned,  
The vane-staff was broken, yet still the vane turned round.  
Zschahi, Zschahe, Zschaho! etc. etc.

The Binschgauer entered the holy dome within,  
The saints were all asleep, and woke not with their din.  
Zschahi, Zschahe, Zschaho! etc. etc.

The song was ended. The company became continually more jovial, and began, on the platform, to dance a most singular quadrille, to which their musician played on the harpsichord in the most extraordinary style. Von Kronen, of a tall and strong figure, stood there exactly as if he had been turned in wood, but an electrical stream seemed to run now through this, and now through that limb, and twitched him hither and thither. His motions were those of a puppet which is drawn by strings attached to every member. When the dance was become right wild, then darted he suddenly forwards, so that no one knew whence the movement came, and all squandered in astonishment. His partner, the little Enderlin, made a graceful spring, and, as the tall fellow stretched wide his legs, darted boldly between them, and then danced round him with the newest steps. The other dancers had again seized each other's hands, and made such a desperate leap that they sprang almost to the top of the room. The music rushed on more wildly--the dance grew madder and madder, and with more ringing laughter of the spectators, as the pair, suddenly making a high side spring, sent a pane of glass from the window jingling down into the street. Great snow-flakes came whirling into the room through their new-made way. "It struck two!" cried several voices. "It is time to break up!" exclaimed others. All prepared themselves for departure, even the host himself, who would accompany his guests a little way.

The glasses were emptied--"To a speedy and as happy an evening!" and the farewell cigars lit.

The wind without had laid itself, but the snow-flakes chased each other rapidly through the air, and a deep snow covered the silent streets. In a few moments the merry home-goers were clad in a thick covering of snow; and being once thus besnowed, they separated themselves into two parties, and began to bombard each other with snowballs. One party prevailed and put

the other into flight. The fleers espied a Bauer's sledge; one jumped in, the other two seized its pole, and thus rushed rapidly along the Hauptstrasse, pursued by the other party with snowballs. When they now reached one of the principal squares, the madcap chase came to an end. The sledge remained standing in the square to the amazement of the Bauer, who the next morning, after much hunting, found it there.

Now sounded a general "good-night," and every one hastened home. Hoffmann reached his chamber, which filled him with that feeling of desolation, so often felt in places which a moment before were all alive with the presence of those we love. But the delightful consciousness of having enjoyed an evening to the uttermost, the still more delightful consciousness of having afforded such an one to his friends, absorbed all other thoughts. He called to mind again the good wishes of his friends, and his last thoughts in the night were, "May God, if he denies me every thing else, never, to my life's end, deprive me of the sense which renders me capable of enjoying worthily such delightful hours."

### DRINKING SONG.

Ye brothers, when no more I'm drinking,  
But faint with gout and palsy lie,  
Exhausted on the sick bed sinking,  
Believe it then, my end is nigh.

And die I this day or to-morrow,  
My testament's already made;  
My funeral from your care I'll borrow,  
But without splendour or parade.

And as for coffin, that remanding,  
A Rhenish cask for it shall pass;  
Instead of lemon placed each hand in,  
Give me a brimfull Deckel-glass.

Into the cellar then convey me,  
Where I have drunk whole hogsheads dry;  
With head unto the tap then lay me,  
My feet towards the wall may lie.

And when you're to the grave me bringing,  
As follow all then, man by man;  
For God's sake let no bell be ringing,

And clinking glasses be your plan.

Upon my gravestone be inscribed,  
This man was born, grew, drank, and died,--  
And now he rests where he imbibed  
In lifelong joy, the purple tide.

---

## **THE POPE.**

A lordly life the Pope doth hold,  
He lives on absolution gold;  
The best of wines still drinketh he;  
The Pope, the Pope I fain would be.

But no! 'tis but a wretched lot,  
A German maiden loves him not.  
Alone in his great house lives he--  
The Pope, the Pope, I would not be.

The Sultan lives full blithe and crowse,  
He liveth in a golden house,  
With lovely ladies liveth he--  
The Sultan then I fain would be.

But no! he is a wretched man,  
He liveth by the Alcoran.  
No drop of wine may drink--not he;  
The Sultan then I will not be.

Their separate fortunes, howe'er fine,  
I'd wish not, for one moment, mine,  
But would to this right glad agree,  
Now Pope, now Sultanus to be.

Come, lovely maiden, yield a kiss,  
For this my reign as Sultan is.  
And faithful brother send a fee,  
For now I choose the Pope to be.

---

## **DRINKING SONG.**

Brothers! in this place of festive meeting,  
Let us every trouble now defeating,



God, in goodness, hath us thus combined;  
Drink here with the friend of honest mind.  
    There, where nectar flows,  
    Sweetest pleasure blows,  
E'en as flowers when the spring hath shined.

Golden time! oh revel we it through,  
    Hanging on the friend's devoted breast;  
From the friend a blissful warmth we'll borrow;  
    Of our pleasure cool in wine the zest.  
    In the grapes pure blood,  
    Drink we German mood,  
    Feel we of a higher strength possessed.

Sip ye not when Bacchus' fountain floweth,  
With full beakers to lips faintly bent;  
He who life by drops yet only knoweth,  
Knoweth not of life the full intent.  
Lift it to thy mouth,  
Drain it in thy drouth,  
For a God from heaven it hath sent

On the spirit's light accustomed pinion,  
    In the world the youngling plunges bold;  
Friends to win him, as his best dominion,  
    And whom fast and faster he will hold.  
    So remain mine all,  
    Till the world shall fall;  
    Round their friend truth's arms eternal fold.

Let ye not the strength of youth be wasted;  
    In the wine-cap doth the gold-star shine;  
From sweet lips be honeyed sweetness tasted,  
    For of life is love the heart divine.  
    Is the strength gone forth?  
    Lose the wine its worth?  
    Follow we, old Charon, nor repine.

---

### **RHINE-WINE.**

So, crown with leaves the love o'er-brimming beakers,  
    And drain them o'er and o'er,  
In Europe far and wide, ye pleasure-seekers,  
    Is such a wine no more!

It comes not out of Hungary nor Poland.  
    Nor where they French do speak.

St. Vitus, he may fetch wine from such wo-land,  
Ours there we do not seek.

It is from Fatherland's abundance rendered,  
How were it else so good!  
How could in it such noble peace be blended,  
And yet such bravest mood!

Yet it grows not upon all German mountains;  
For many hills we trace,  
Like the old Cretans, dull and sluggish fountains,  
Which are not worth their space.

The Ertzgebirge, ye need not explore there,  
If wine ye would behold;  
Thüce spring but silver and the cobalt ore there,  
And mischief-making gold.

Thüringia's mountains, for example, bringing,  
A growth which looks like wine,  
But it is not; o'er that there is no singing,  
No glad eyes round it shine.

The Blocksberg is the lengthy Sir Philister,  
As windy and as drear;  
Dance the cuckoo and his wild sacrister,  
Upon him here and there.

The Rhine! the Rhine! 'tis there our vines are growing!  
O blessed be the Rhine!  
The slopes by which that noble stream is flowing  
They give this precious wine.

So drink! so drink! let us all methods trying,  
For joyous hours combine.  
And if we knew where one in wo were lying  
We'd give him of this wine!

## **CHAPTER XIII.**

### **GENERAL SYSTEM OF GERMAN EDUCATION.**

All our educational institutions form, of many members, an existing ring, which embraces the inhabitants of Germany so thoroughly, that every one of them must, according to his station and capacity, receive the benefit of a humane education. The university beams on this ring like a noble jewel set in gold, and while it closes the ring, as the noblest member of the whole, it touches again on the commencing portion, over which its beneficent splendour shall be diffused. So Mr. Traveller regarded these institutions, and regarded them therefore with approval and admiration. Von Kronen, who had already delivered to him a short history of the universities, promised to give him a brief notice of the general German educational system, which he had prepared, at another opportunity:--and here it is.

A glance into the evolution periods of the continually ascending spiritual and material interests of an age; a glance at the state of improvement even of this time, and our latest posterity, must unite in the judgment,--with truth was the nineteenth century called "*the enlightened!*" The spirit of man lies no longer in a lethargic sleep; the nations of the *tempus novi* appear no more the slaves of superstition and of absurdity; manhood feels its worth; discerns its destiny; and strains towards the highest limit,--towards an ennobled humane accomplishment, with all that strength which nature so affluently pours out upon it. Art and science embrace with giant arms the awakened spirit of man; they will be, and they are become, the common property; and every one seeks to make himself a partaker of them, according to the measure of his individual ability. Trade and commerce flourish; the activity of the common man, of the greater part of mankind, has therethrough acquired a nobler direction. Increasing population brings new necessities; and these, again, elicit a zealous wrestling for the means of satisfying them, whereby the spirit of man sees itself compelled continually to a persistence in the most strenuous activity. And does not all this contribute to a perpetually advancing improvement of our human heart and

mind most essentially?--Does a thistle here and there thrive amongst the wheat? still the field is well cultivated, and the farmer knows very well how to separate it from the crop.

If we seek now the ground, the cause, of the condition of our time in all its connexions, we find the germ laid in the primordial point of union of every kind of cultivation--in education and instruction. Where and at what time has more been done for the education of the people than now? Where and when have the Folk's-schools, those primary institutions for the accomplishment of manhood, acquired a higher and more beautiful position than at present? This interesting circumstance we shall observe somewhat more closely in these pages.

Perhaps nowhere can a close inquiry into the innermost essence of a thing be more entwined with the historical developement of the same, than exactly here, when treating of schools, and their peculiar conduct and condition; and although it is by no means our intention to give here a regular history of such developement, yet we cannot avoid casting a hasty retrospective glance on the schools of a former age, since we shall thereby, on the one hand, most securely arrive at the position whence we can, as already observed, best learn to judge properly and perfectly of the nature of Folk's-schools; and, on the other hand, learn best to know the real rank of the schools of our times, and to prize their advantages. "The world's history is the world's judgment," said Schiller, and certainly he therein pronounced an important truth, of which truth where do we find a more evident testimony than here, where the most momentous portion of the intellectual cultivation of the human race is concerned? But to come to the matter.

In far antiquity education was the business of domestic life; and how imperfect it was, under such circumstances, we may easily conceive. The parents, uninformed themselves, could impart to their children but very scanty information; the whole of life was rather a vegetation, a physical rather than an inward and intellectual existence. It was then first, as population increased and state compacts were organized, that a kind of schools arose, because men then learned to see that it was only by intellectual ascendancy that it was possible to work upon the rude mass. The teachers of such schools were the priests; but the scholars were such

alone as, according to their custom, were destined to some high office. We thus see that real Folk's schools were not then in existence; there was, in fact, no conception of them; and what more was necessary to say on the subject of the schools of former ages, we have already given under the head, Universities. Those institutions were calculated rather for the higher range of education, and are to be regarded as the forerunners of our universities, on which account we may here pass them over.

It is only with the time of Charlemagne that we can begin to talk of Folk's-education and Folk's-schools. Besides the Scola Palatii, founded by him, and which was placed under the management of his friend Alcuin, he also originated and promoted in the convents the idea of a female education. He and Alfred of England are the true founders of village and country schools. National education owes to them an improvement the most excellent and rich with blessings; alas! that the age was not ripe enough to give a ready hand of co-operation to these noble reformers. Before this time, ay, from the very promulgation of the Christian religion, the priests had striven incessantly to monopolise the instruction of the people, and to throw it entirely into the hands of their order; a fact most prominently testified by the catechetical schools of the second and third centuries, the later episcopal and cathedral schools, and, after the sixth century, those most influential cloister schools. And as it had thus been their constant policy to secure the absolute possession and direction of popular instruction, this became the case again, after the death of these noble monarchs, when every thing had fallen once more into the old track, and these very institutions, which they had planned and founded, became still more effectual tools in their hands. What might and would result from such a predominating hierarchical tendency, experience has taught us. The selfish interests of a form of religion, degraded to the most crafty state-policy, were made the motives for keeping mankind in darkness. The understanding was oppressed by the diffusion of superstition; and under the hypocritical cloak of sanctity, beneath which the most unhallowed fanaticism concealed itself, the priesthood compelled humanity to wander on in blindness and error. The reforms of Charlemagne were as good as forgotten, and the proper Folk's-schools were swallowed up in the darkness of the Middle Ages. What was done in course of time through the exertions of such men as the Emperor Frederick I. took the direction of the high educational institutions, and

wholly concerned the universities, which had for a long period been striving to make themselves independent, and, in fact, were so. In the fourteenth century a ruddy streak of dawn showed itself, which though but faintly pervading the darkness, yet at a later period harbingered the sun. Gerhardus Magnus first spoke out the idea of a free education with perspicuity. In 1379 he founded an educational institution at Deventer, in this spirit, and thereby led to the creation of similar institutions in the Netherlands, on the Rhine, and in North Germany. Montaigne, Bacon, and Lord Verulam, were powerful advocates of this idea, which, being only more and more stimulated by the reaction-system of the hierarchy, lead to the epoch of the fifteenth century.

The well-to-do Bürger-class began to erect city-corporation, or writing-schools, as they were called, and found themselves obliged to appoint masters to them at their own cost, as the clergy more and more neglected their office of teaching. The clergy, however, exerted all their power against these schools, on grounds which touched them nearly, for they feared a diminution of their income and their power through a greater enlightenment of the people. Under these circumstances the Folk's-schools could not prosper; they either fell speedily, or totally degenerated. The city-schools which were founded in the sixteenth century, and called Latin-schools, were scantily enough endowed, and the proper Folk's-schools were in a still more miserable condition most of those in the villages falling to decay, and those which did still exist scarcely being worthy of the name.

But the dawn of a new era soon broke, and the arduous and holy warfare of the Reformation threw light into the darkness of the human mind. Men were now seen to contend for knowledge, and strove to rend asunder the dishonourable bonds which, in a more animal condition, had been riveted upon them. Luther arose, and with him a new order of things in the conduct of schools was called forth. Many worthy schoolmasters, who had already gone forth from the pedagogic brotherhood of Gerhardus Magnus at Deventer, and from the Rhenish Society of Learned Men, founded by Conrad Celtes for the restoration of classical antiquity, had prepared the way for the great Reformers. How illustriously shine out in the fifteenth and sixteenth centuries the names of Desiderius Erasmus, Johann Reuchlin, Johann Dalberg, Rudolph Agricola, Wilibald Pirkheimer. They are like

sacred signs of an approaching better time for the school affairs of the civilized world; and they all strengthened powerfully the hands of Luther, Melancthon, Zuinglius, since they treated schools, and the whole business of education, in a magnanimous spirit. To point out the active services of these men would lead us too far; it must suffice simply to remark that continually more, and fresh, and faithful teachers came forth, amongst whom, Johann Sturm, Valentin Friedland, also called Trozendorf, Michael Neander, Johann Casselius, and Christian Hellwich, were especially distinguished. If a great want was still here and there visible, yet the path being once broken open, a retreat was by no means to be thought of, and the discovery of Guttenberg contributed not a little to make this impossible. The labours of Wolfgang Ratich and Johann Amors Comenius are of peculiar importance, whose works are known, and in which they treat of the natural and complete developement of all the powers of the human mind, especially of the understanding and the imagination. Pestalozzi's ideas here lie in embryo before us.

Soon after the appearance of these men, and the springing up of schools framed according to their views, the Jesuits made every exertion to draw the management of education to themselves; and they succeeded to a certain extent, since with their usual political acumen, they easily saw that it was necessary for them entirely to imitate the form and matter of the evangelical schools. But the stratagem of these satellites of the hierarchy was soon seen through, and the best consequences were to be hoped, had not the storms of the Thirty Years' War crushed so many promising germs and scattered so much beautiful fruit. School economy, during such an epoch, could only wearily maintain itself; the miserable management of ignorant teachers, the simple consequence of that fanatical rage, made the prosperity of schools a thing beyond hope. Yet this reaction actually hastened the entrance of a better spirit, which soon found its warmest advocates in Fenelon, Ph. T. Spener, but especially in A. H. Franke.

The activity of the last worthy man had an eminently auspicious influence; and other zealous characters soon enrolled themselves in the list of the friends of knowledge; as Godfried Zeidler, who simplified the mode of spelling; Valentin Hein, and Sulzer, who, 1700-1799, introduced an improved mode of teaching arithmetic. But, unfortunately, there soon grew

in the Folk's-schools a deadly poison of all good--Mysticism, which was carried by the teachers to a most mischievous length. Equally blighting lay the pharisaical constraint of evangelical orthodoxy on the school system, not less influentially than that of the Romish hierarchy. It was not till philanthropy raised its head in the middle of the eighteenth century, through the influence of Locke, Rousseau, and Basedow, that the school system appeared earnestly to seek to improve itself. Locke was the first to treat with a philosophical spirit educational tuition, as a connected whole. T. P. Crousatz followed in the same path. In Germany, the fiery Basedow, in 1768, took up the Rousseau enthusiasm, and sought to plant the ideas of this philosopher in his native soil.

We imagine that we have so far conducted the reader that he can easily follow the description of the institutions for popular education of our time. We have arrived at the position we recently alluded to, and have with it reached also, that exact point of union whence all that succeeds diverges. Although it yet remains to be shown how the various kinds of schools have gradually developed themselves, we believe we may pass over this part of the subject, as on the one hand all that is necessary may be inferred from what has just been said, and on the other, they are too much a part of the present not to be well known to all. Let us therefore proceed to an illustration of the system of our Folk's-schools, which divide themselves into higher and lower; and in the first place notice the lower, as

## **THE ELEMENTARY, OR PROPER FOLK'S-SCHOOLS.**

In matters of school economy, the Catholics in Germany continued far behind the Protestants, because they cherished the notion that diffusion of knowledge amongst the people was dangerous to the state; and therefore most carefully cut off all possible opportunities for advancing popular instruction; whereas the Protestants, on the contrary, from the last half of the eighteenth century, spared no sacrifice for the promotion of such an object. Such men as Campe, Salzmann, Trapp, rendered services to instruction in a more restricted sense, since they began to reduce the science of tuition to a system; but Rochou was the first who undertook, in the spirit



of philanthropy, to work a genuine reformation in the Folk's-schools. Then appeared Pestalozzi, who grounded education on the natural developement of the powers and capacities themselves. His system, which proved its worth in the severe trials that it underwent in the hands of Tillich, Plaman, Schwartz, Ewald, Türk, Ladomus, Herbert, Zeller, Harnisch, Kant, Fichte, Schelling, Jean Paul, Arndt, Pöelitz, Stephani, Dinter, and others, found, by degrees, general acceptance; and our present school system may with perfect justice be styled the Pestalozzian. But for the necessary preparatory education of teachers themselves, earnest care was soon taken, and a great number of school-teacher seminaries were founded, in which this class of men must study and qualify themselves, and which to them must stand in the same relation as the universities to the professors of scientific and general knowledge. By these means the general improvement of the business of education experienced only accelerating circumstances; and now even Catholic countries, particularly those in which many Protestants dwell, ceased to hang back, and there is now scarcely a place in Germany which does not possess a school; scarcely a state whose government has not thrown out a plan of education more or less adapted to its end. Yes; foreign nations themselves now acknowledge the preeminence of Germany in school economy.

On a closer inquiry into the organization of these proper Folk's-schools, the great variety of the same however strikes us, and we cannot here omit to notice a circumstance which is of the most essential importance. In many--yes, in most of the country schools, are the school establishments subdivided according to the different confessions of faith; and this circumstance extends itself even to the schools of the smallest villages. Although the greater part of these are placed under the jurisdiction of a High Board, and are formed, more or less, on a common plan, yet the disadvantage is not to be denied, which must necessarily result from such a system of subdivision. We have observed above how much all Catholic countries lay behind in popular enlightenment, which alone flourishes through popular instruction; and we must, we regret to say, remark that this sorrowful experience again manifests itself as an attribute of these aforesaid school institutions. How very different is it in the Protestant schools! If unlimited freedom of teaching is given to those as well as these, yet the opinions taught are very different, and the consequences of an all-too

scrupulous observation of dogmatic forms, not the most agreeable, are seen in the Catholic schools. On the contrary, the Protestant schools follow, free from constraint, every direction of the mind, and the foundation of a philosophical system is here first discernible.

In strong contradistinction to both these, stand the so-called Communal-schools, as those which are intended for children of each denomination. These schools, wherever they exist, exert the most beneficent influence on the people. The foundation pillars of all human happiness. Tolerance and Intelligence, find here the securest guarantees for their enduring existence; since, however much men have striven or may strive to counteract them, it continues still incontestably true, that the first impressions on the minds of children are the most vivid and permanent, and the spirit in later years of life pursues its course in accordance with such impressions. It requires no demonstration to show how rich in blessings is such a school system; and the reader will excuse us turning now to a further pursuit of our theme.

It is particularly to be observed, that various attempts have been made to extend these school regulations so far as to allow boys and girls to be taught altogether in one and the same class. Such experiments were, however, for the most part confined to such places where the circumstances entirely permitted their trial, which was only here and there; and such school dispositions yet exist. But generally, the instruction is given to boys and girls in one building, but in separate rooms.

Before we cast a glance at the mode of school tuition, we will passingly remark, that in most German towns there are, besides the proper Folk's-schools, many establishments for boys and girls, as well for elementary as for more complete education. These stand, however, in no connexion with the Folk's-schools, and do not profess in the slightest degree to employ the same machinery. Yet these educational establishments in the present time deserve so much attention, that to say only what is barely necessary upon them would lead us too far.

The subjects of instruction in the Folk's-schools are these: reading, writing, arithmetic, geography, natural history, history; in the higher classes, mathematics, geometry; instruction in the German language;--extended also to a higher style of penmanship, drawing, and music, seldom more than

choral singing, and instruction in religion, which last is not given by the teachers but by the pastors of the respective faiths.

When each branch of education has not its individual teacher appointed in these schools, the charge of such instruction is consigned to a teacher expressly qualified for it. Mistresses are also appointed for the girls, as well to teach them the ordinary school branches, as hand-work. Of this organization, however, the schools only of the larger cities can boast themselves. In most of the German towns, the parents are obliged to send their children into the schools from their sixth year. If they wish to give to their children an education in another place, more particularly if they would have them privately educated, or would send them to some particular institution, they must for that purpose ask permission of the proper Board. On the part of persons of high position, or of great property, this is very frequently the case, but they are seldom on this account exempt from the payment of the school impost, as this defrays part of the expense of the system, and has, therefore, to be well looked after by government.

The schools are divided into classes, according to the respective studies; that is, into systematic divisions, according to the circumstances of the increasing evolutions of the subjects of study. No age qualifies a child to advance into a higher class, but capacity and acquirement alone. And in order to give to the parents an account of the activity of the school system, as well as of the acquirements of the scholars in particular, annual examinations are held publicly, in which what has been taught and learned is brought forward with all possible despatch, and at which the parents are present, that they may convince themselves of the truth of the matter. These public examinations at the same time serve to excite the scholars to activity, as rewards for diligence and good conduct are distributed, and thus a moral value is added to the political one of these institutions. Whatever relates to the arrangement of these schools in their outward form, in their connexions and relations to the state, and the like, in a word, whatever belongs to the administration of the whole, may, in running our observations through them, be pronounced to be a good.

All the teachers are placed under the control of an upper teacher: in cities where there are at the same time gymnasia, commonly under the director or

rector of the same; or they are under the special oversight of the principal clergymen of the respective faiths. These are, again, dependent on the school college, or Upper Council of Studies, which, in connexion with the Upper Consistorium, constitutes the highest Board. In how far this whole arrangement constitutes one complete and homogeneous scheme of education institutions, including the universities themselves, we will hereafter take an opportunity to point out; we now proceed to describe the higher institutions for instruction which are expressly intended for the people. The next in order are

### **THE REAL SCHOOLS;[\[27\]](#) CALLED ALSO MIDDLE SCHOOLS, HIGHER BÜRGER SCHOOLS, ETC.**

The origin of these schools we owe, as we have said, to Bassedow, who transplanted the ideas of Rousseau to Germany, which found, by degrees, a complete introduction, especially amongst the tradespeople; yet the Real-schools of that period--the end of the last century, are by no means to be considered as synonymous with the present ones, although they then excited a general interest and acquired for themselves a tolerably high position. They agree entirely in this, that they were schools for those who were not intended to go forward to the universities, and yet whose future destinations demanded, in some measure a higher education than ordinary. The subjects of instruction in them were particularly--geography, history, the natural sciences, calculation, technology, etc. The first, however, in a more extended range than in the lower class of Folk's-schools; these, as they at present exist, and especially such as are organized on the most recent plans, are not merely higher Bürger-schools, but indeed such as might qualify for an academical course. People are, however, far from agreed upon the rights of these schools; upon the determination of their relations to the gymnasia, the universities, etc.; at least, in many German states, great debates have arisen upon this debatable point, and which are yet by no means brought to a conclusion.

The Real-schools divide themselves into Higher Gewerb<sup>[28]</sup>--Polytechnical Institutions--and Provincial Real-schools, or Higher Bürger Schools.

Now it is evident, that in consequence of the assumption of the higher subjects of tuition, as foreign languages, the higher mathematics, physics, etc., by the first institutions, a disadvantage may occur to the Gymnasia, insomuch as all those who are expressly educated for branches of state official service, for offices of finance, of the forests, of general administration, etc., are educated in the Gymnasia. These, and other reasons which we will explain, in noticing the Gymnasia, have been, and probably will long continue to be the causes, that no result sufficiently satisfactory to both parties, however much desired, can be arrived at. But the decidedly advantageous influence which the collective body of Real-schools exert, and which it will more and more extend by still continually extending its sphere of action, is not, however, to be mistaken; and if this excites a spirit of hostility, there cannot be a more palpable reason assigned for it than that which is drawn from a rich experience by a great philologist, and thus expressed:--"What is *new* is not always wholesome; but even the necessary *new*, and which afterwards proves itself to be an actual *advance*, is certain in its commencement to be attacked."

Let us now glance at the internal arrangements of these schools; and indeed of the Higher Gewerb-schools--literally Trade schools--as the so-called provincial Real-schools are neither more nor less than better elementary schools, or rather schools preparatory to the Higher Gewerb-schools; and as so many of the real branches of education are undertaken in them. To these provincial or preparatory schools belong the teaching of physics, natural history, the elements of chemistry, modelling, book-keeping, etc.; instruction in the French, English, and Latin languages; drawing and singing; the former subjects, however, only in the higher classes. The subjects of tuition in the Higher Gewerb, or technical schools, are, on the contrary, mathematics, algebra, plane trigonometry, analytical geometry in all its branches and modes of practical application; higher algebra, differential and integral calculus, plan-drawing and machine-drawing, botany and zoology, and physiology of plants, geognosy, geology; experimental chemistry, technical chemistry, analytical chemistry, practical

chemical operations; mineralogy; mechanics, statistic and dynamic, experimental physics, free hand-drawing, modelling in wood and metal, and instruction in German, French, English and Latin languages, and history.

It may easily be seen, from this glance at the subjects of instruction, how comprehensive these educational institutions are. To attempt to describe the advantages that they afford would lead us too far, and lies out of our track; but the subject deserves the attention of the whole civilized world, as its consequences must become continually more striking. The circumstances of our times demand a real education; that is, in the practical arts and sciences. One has long ceased to desire that every man shall be every thing; one wishes rather that every one should be qualified to fill with ability his particular post. The philosophical school compulsion which rules in the Gymnasia is here entirely nonexistent. The all-sided human accomplishment which the Gymnasia aim at, and ought to aim at more or less, is not arrived at in these schools, because it is contrary to their object and intention; but on the other hand, they afford the opportunity more thoroughly to throw the minds of the scholars on those subjects which are the most congenial to them, and which will consequently be most serviceable to them in their profession. We ourselves, far from being admirers of a too strict, and therefore forced and one-sided practical education, cannot help calling to mind the splendid proofs of the advantageous and excellent working of these praiseworthy schools, since they have impressed us with the conviction that in this manner able men have been educated not only for the state, but for science, notwithstanding the short time that these institutions have flourished.

## **THE GYMNASIA**

May now claim our attention, which, particularly through the conflict which has arisen between them and the Real-schools, must possess an especial interest.

We must, in the first place, remark, that the word itself expresses no actual conception of the thing, as a gymnasium properly means an open

place, where the youth were instructed in philosophy,--in fact, an associate-school. In Athens there were three of them: the Academia, the Lyceum, and Cynosarges. The origin of the gymnasium and the nature of its internal business as a higher educational institution, are simply indicated by the term. To trace what modifications these schools have undergone from that period to the present would be a too widely excursive notice for our present purpose. We shall, under this head, understand only such as strongly mark themselves out by their tendency from the schools already described, and which properly divide themselves into the Latin-school, Progymnasium, Gymnasium, and the Lyceum.

The first three are properly schools for future learned men, artists, &c; and in the state in which they exist, as in Bavaria, the studies are commenced in the Latin school, and are ended in the Gymnasium, as the school preparatory for the university.

By the Lyceum, in a restricted sense of the word, we understand such a school as seems to conduct to a certain point, the education of the students of the scientific faculty; although in the first, that is, in the Gymnasia, etc., all subjects of study are facultative. For the rest it is very difficult to give a description of these schools which shall express their real character, since in every one of the German states they have different names with different meanings, and in many places bear various appellations where they possess the same tendency. The Gymnasium and Lyceum equally signify schools which give a course of education expressly preparatory to an academical career, and we shall therefore include both under the general name of Gymnasium.

The elementary instruction, let it have been acquired as it will, must have made a certain advance before the scholar can enter the Gymnasium, since in the lowest classes--the Gymnasium is divided into classes in the same manner as the Folk's-schools--are taught the elements of the Latin tongue, history, mathematics, etc. Here are especial teachers for every faculty of science; that is, one teacher, particularly in the higher classes, teaches one determinate subject.

The study of the ancient classics continues still the chief business, since the German philologists conceive that they constitute the only and

indispensable gymnastics of the mind. This is another ground by which these schools have come into open feud with the Realist tendency of the age--why the Gymnasia have dreaded an encroachment on their rights through the rapid growth and influence of Real-schools; because they feared that the public would come to see in their effects, that there was another mode of awaking the spirit to an internal activity than by the study of the dead languages.

It is not to be denied that through the study of the ancients the spirit is awakened; the sense of the noble and the great is inspired; that the poetical feeling is excited,--the taste purified, and the reason strengthened; that the mind is accustomed to a logical activity, and especially to self-reflection. But the schoolmen go too far with this. They are orthodox, and are contented that the future learned should here find their necessary nourishment. They will, in general, acknowledge no other learning or education than that of the Gymnasium, and torment every one with it who, as a future tradesman, can manage his affairs perfectly without this knowledge, and can bring by it little or nothing out of the school into his own trade. Yet at present the Gymnasia strive so far to meet the acknowledged necessities of the time, that they have adopted some of the educational subjects of the Real-schools, as mathematics, and the natural sciences in the fullest sense of the word. The subjects of tuition, with the exception of the predominant teaching of the ancient languages, are in general those of the other schools; that is, of the Folk's-schools, in a higher degree. The relation to the state is the same as that which we have already made ourselves acquainted with in the Folk's-schools; and we will now only explain a few more of the peculiarities of the Gymnasia.

A totally different discipline prevails in the Gymnasia to that of the Folk's-schools. Corporal punishments here, for the most part, cease in the higher classes entirely. Tasks, shutting up, open reproof, but especially moral restraint, are the means employed for correction. The teachers also stand in a totally different position in regard to their scholars; at least in the higher classes there is less school compulsion, though probably on that account not the less pedantry to be observed. In general, the gymnasiast is already more free, and placed in greater external advantage than the scholars of the other schools; the near prospect of student life calls forth,



not seldom, extravagances, which, however, are contended with more vigorously by the teachers, but through the advanced age of the youths are not readily repressed. Though it is strictly forbidden, yet the gymnasiast frequently resorts secretly to public places of diversion, inns, etc.; he also begins to smoke, and to become regardless of conventional relations. In many cities the gymnasiasts have actually endeavoured, of course only the older ones, to form corporations, and to imitate the university Chores. But spite of all this, the constant and great diligence of the gymnasiasts is not to be denied. They exert themselves, because they know that it is only by that means that they can arrive at promotion; that is, that they can obtain the right to enter the university. We must here break off a moment to notice a particular which is of essential importance.

The Exemption-and-Maturity-Right<sup>[29]</sup> belongs exclusively to the Gymnasia--another cause which has called forth in many German states contentions, the other schools already making claims on this privilege. Nothing can indeed be more vexatious, and even in many cases, unsettling, than for an able scholar of the Real-school, after he has passed his examination, and has given ample proof that he is quite qualified to enter the university, to have again to make the course of the Gymnasium, again to weary himself with the reading and study of the ancient classics, entirely for the sake of the formality of promotion, which might just as well be conferred on the Real-schools, and by which money and more especially time might be spared. From the higher position which these schools have already assumed, it is, however, to be expected that this injustice will be done away with, at least, that the Exemption-and-Maturity-Right will be extended to those Real scholars who devote themselves to state science, and to those professions which are included in it.

We cannot here avoid taking the opportunity of remarking that, through the contention of these two institutions, which we have thus described according to their different motives, there stands before the Gymnasium a reorganization, unless the *ancienne regime* maintains the upper hand; that is, if the onesidedness of the strong philological party, which aims at a total isolation of the two institutions, or rather at a complete prevention of their co-operation, shall not achieve the triumph of upholding the Gymnasia in the most unlimited possession of their antiquated privileges; are not, indeed,

prepared to resist the stream of time by main force, and to deprive the Real-schools of their equally high importance. The conflict is severe, because prejudices are here attacked; but the impetus of human advancement surmounts every difficulty, and the spirit of man knows no restraint which ultimately may not be broken through;--but we must return to our subject.

When the gymnasiast has passed through all the classes, he then undergoes his examination. As in the Folk's-schools, so in the Gymnasia also, there are held annual public examinations for the same purpose; to which, however, is added a government commissioner, for the examination of the Abiturienten; that is, of those who are about to depart, and proceed to the university. This commissioner has to pronounce his solemn judgment upon the performances of the Abiturient, according to which his promotion is allowed or not. This is generally accompanied on the part of the Abiturient by a farewell, or other speech, which is usually composed in Latin or French, and on that of the School College by a public summons to the university, to which is added the necessary school-certificates.

It is now curious to see how the Abiturient will conduct himself from the moment that he turns his back on the Gymnasium. Not a book will be looked at; not a pen will be touched; he recompenses himself immediately for the school torment that he has passed through, by a delightful doing-nothing; and gives himself up in anticipation to the blessed consciousness of student life. The foretaste of awakening liberty leads him to commit a thousand follies; he imagines himself lord of the world, and knows no conventional restraints. The parents have the worst of it, as they are seldom in a situation to put a salutary damper upon the forth-bursting storm of the mind of the youth. To travel is rule the first with which the Abiturient busies himself; that is, in which he seeks to sound the depths, and explore the regions of the desired freedom. His great endeavour is now to knit up acquaintances with students, and so comes he easily into student life. But in many places it is customary that the Abiturient should give a farewell entertainment. Thither are invited the best of his friends from the abandoned school, and his new ones amongst the students; and the whole takes much the character of a Commers. It is, moreover, regarded as a ceremonial act, and is introduced by the singing of the customary song--The Land's Father.

From this period the Abiturient bears the name of Camel, which he has acquired in exchange for the abdicated one of Frog.

It may be sufficient to remark, that the educational institutions of every kind keep tolerably equal step with the universities. That Germany bears away the crown of school economy from all other countries, is not to be denied. Or where is the country which has more flourishing schools than Prussia, Wirtemberg, Baden, etc.

We here conclude with the words with which we commenced--"the nineteenth century is the age of enlightenment;" and Germany propels at the highest speed its spirit towards intellectual consciousness. It possesses a moral vigour which no other nation of the earth possesses, and the giant arms of German art and science embrace the whole wide surface of the globe with an all-living power.

## **CHAPTER XIV.**

### **SONG AN INDISPENSABLE REQUISITE TO THE STUDENT, AS TO ALL GERMANS.**

Where man sings, lie down--there certain peace is;  
Amongst the bad, all song of gladness ceases.

Traverse the whole territory of Germany, every where, in the north and in the south, thou wilt hear German songs.

What is the German's Fatherland?  
So name me, finally, that land!  
"Far as the German's free tongue springs,  
And hymns to God in heaven sings,"  
That shall it be, while sun doth shine!  
That land, brave German, call it thine!

Serious and deep feeling are characteristic traits of the German, and may indeed distinguish his character, so variously modified as it is, amid all the divisions of the German race, and by its manifold points of contact with its foreign boundary neighbours, and thus becoming tinged with so many colours. He who has the skill to clear the original colour from its foreign mixtures, will continually find it lying as the one ground colour, which always remains the same. To this depth and sincerity of feeling the songs and poetry of the Germans are a necessity. As to the man--when all the chords of his heart are shaken by some mighty sorrow; when they threaten to rend asunder under the excess of agony--as then to him comes a flood of tears as a relief; which, as it were, combines the contending feelings of his internal being, and amalgamates them with the most neutral body--water; so song presents itself as a medium to prevent us from succumbing beneath an overwhelming feeling, which the sufferer would fain clothe in words, but finds all words too poor to represent. Let a language be as rich as it will, it

may possibly express all that man thinks, but not all that he feels. Nature has lent the eye to the understanding that it may serve it, and in which it may wonderfully mirror itself. In this microcosm of the eye, her creative power has marvellously repeated, in little, every part of his masterpiece--man; and has so completely furnished it, that it can answer most admirably to its destination--to conduct man to the truth. But nature has bestowed upon her favourite yet another sense, through which the fibres of his brain can instantly be put into vibration. Through this she has rendered his position in society delightful, and endowed him with sensibility to foreign communications.

But shall these be the only advantages which this sense shall procure him? No; through this shall external impressions enter, which, corresponding with the laws of beauty, shall furnish him with a new enjoyment. Through this, feeling can be constantly and directly acted upon--that portion of the human soul where the animal and the divine nature so wonderfully meet. In vain would he attempt to escape from its lordship; its power extends farther than appears at the first sight; and when sufficiently observed, is found to be the ultimate spring of all human operations. Other nations may, if they please, believe that the ear was given them in order to listen to strange language,--the German is not so cruel as to rend Euterpe and Polyhymnia out of the band of the Nine Sisters. Every where in Germany are altars built to these sisters, and the goddesses smile down approval on the people, because they deem themselves worthy to scatter incense before them.

The faith in the mysterious might of music and of song, which so beautifully expressed itself in the Mythology of the Greeks, shone forth also in newer Sagas; and even refined Christendom has not disdained to employ music to work upon the hearts of its votaries. Goethe has done homage to this beautiful faith when, in his Prologue to Faust, he causes Raphael to speak.

The sun, in its old way, goes sounding,  
With brother-spheres in rival song,  
And its prescribed course thus rounding,  
Careers with thunder-speed along.

Thus the Germans rejoice themselves in an affluence of popular songs, although they possess but few national poets. This latter fact easily explains itself, when one reflects how late the German speech arrived at a greater perfection, and that, at the same time that Germany achieved a literary independence and literary greatness, it lost its political freedom, and came out of its captivity a dismembered whole.

Take from Germany its wine, its songs, and we might name yet a third particular of a less middle character,<sup>[30]</sup> and it will become quite another country. The German expresses the most varied feelings in song, though he does not go quite so far as the opera, in which you cannot, without smiling, hear the Czar of Russia conclude a contract with the English and French ambassadors singing, and ratify the Treaty of Peace in the most exquisite melodies. But the Germans acknowledge the truth of what Goethe has said:

What I erred in, what I sought for;  
What I lived through, what I fought for;  
Are but flowers in this bouquet:  
And the young, the old and ailing,  
And each virtue as each failing,  
Speak their language in some lay.

The common man in Germany sings as he goes to his labour; he sings while he works, in order to enliven himself, and when he has concluded he naturally sounds forth his song of satisfaction. A pleasure, without the accompaniment of singing, he does not understand. Thus the foreigner, who has a taste for singing, hears, with surprise, a chorus-song resounding from a public-house, or passing along the streets, which might not sustain a very severe criticism, but which does all honour to the uneducated singers. So they establish themselves in the smallest villages into Gesang-vereine (singing companies), and the author recollects with particular pleasure, a serenade, which he heard in returning late one evening from Schriesheim, in the village of Handschuhshheim; and also the delightful choral-song, which a company of peasants and peasantesses, frequently raised in the summer evenings in the castle-gardens at Schwetzingen, and which in the stillness of twilight, when the splashing of the distant fountains were only heard besides, produced an extraordinary effect.

Thus it happens that songs of simple contents and of simple airs, spread themselves rapidly amongst the people, and by no other means in Germany can you so speedily operate on the popular mind as through the medium of such songs. In almost every different place you hear different songs. As an example of these songs, which are current amongst the people, we may here give a very favourite one, which is sung in a sort of half recitative.

### PRINCE EUGENE.<sup>[31]</sup>

Prince Eugene, that noble captain,  
For the Emp'ror fain would back win,  
Town and fortress of Belgrade,  
And that they at once might do it,  
And the army all rush to it,  
Caused he that a bridge be made,

When this work so far had ran on,  
That with baggage and with cannon  
They could pass the Danube flood,  
By Semlin struck they their tents all,  
And to chase the Turks they went all,  
To chase them far with jibes and blood.

It fell on the twenty-first of August,  
There came a spy through rain and storm-gust,  
Swore to the Prince, and showed him then,  
That the Turks did near him hover,  
As far as man could them discover,  
With three hundred thousand men.

When Prince Eugene thou comprehended,  
He bade that he should be attended  
By his generals and field-m Marshals;  
He caused them to be instructed  
How the troops should be conducted,  
And upon the foe should fall.

Through the parole the word was given,  
That when they count one and eleven  
At the midnight by the clock,  
Every man to horse should go then,  
For to skirmish with the foemen,  
All who strength had for the shock.

All to horse at once then leaping,  
And their swords before them keeping,

Swift and silent they advance;  
The troopers and hussars also then,  
Struck right stoutly, blow for blow then,  
'Twas, in truth, a lovely dance.

Gunners to the walls advancing,  
Play ye music to this dancing,  
With your cannons great and small;  
With the great ones, with the lesser,  
On the Turks! and on the Heathens!  
Till they scamper one and all!

Prince Eugenius on the right wing,  
Like a lion there was fighting,  
As general and field-marshal.  
Prince Ludwig rode to and fro then,  
"On, be brave, ye German brethren,  
Strike the foe with dauntless hands!"

Prince Ludwig he must surrender  
His spirit and his life so tender,  
For a bullet struck him down;  
Prince Eugene was sorely grieved  
Of such friend to be bereaved,  
And had him brought to Peterwardein.

The Bauer, the Handworker, the Sportsman, in short, each and all have their peculiar songs in abundance, which are never out of their mouths. Do all Germans then sing, and sing they everywhere? some one may ask. No, don't fear that you would actually be deafened with singing in Germany. The Bundestag,<sup>[32]</sup> when it holds its sitting; the Landtag,<sup>[33]</sup> when it is in debate; the statesman in the business of his office; the learned man writing his dissertation, and many other people, don't sing; in short, people do not sing in their solemn affairs, though the opera makes them do so. But amongst those who have nothing better to do, the little children who have yet no proper voices, or initiated ears for it, and the very old people who have partly sent their teeth before them into another world, are the only ones that don't sing. The young sing much, the care-free young still more; and the students perhaps most of all.

Singest thou not through all thy lifelong hours?  
Yet in thy youth rejoice;  
We hear alone while lasts the moon of flowers  
The nightingale's sweet voice.



It is this also which gives heart to the student; and how can he who is called the son of the Muses, do otherwise than be obedient to his divine mother? The so-called Commers-Books contain a rich collection of songs, so that the student can be in no embarrassment to find one suitable to the moment. He finds here a song adapted to every occasion, and to every mood of mind. Before all, social songs are in requisition when the students are assembled at their Kneip for a merry meeting. As the larger assemblies of this kind are called Commers, so the song-books are called the Commers-Books.

When a song is sung by a number of them in company, it is the duty of the Foxes to hand round these books. The popular songs live, however, without the books, permanently in the minds of the students. An individual student often sings a song solo. The greater portion of them are only what may be called natural singers; but in a large Chore this is not of much consequence. In most of the German schools a portion, but a very scanty portion of instruction in singing is given, and this mainly with the object of preventing the people from too much disturbing the devotions of the congregations in the churches by their dissonance. By this, however, so much is gained, that every one who has afterwards neglected singing, yet still retains a notion of it. There is besides sure to be found amongst such a throng of students, no inconsiderable number, who possess a really fine voice, and which has, therefore, not been neglected. These are they who in the Kneips often execute a solo, or in the choral-songs undertake the solo part, and others endeavour, by the power and steadiness of their voices, to conceal the defects of those who sing with them. When, as often happens in summer, the company suffer their songs to float in the open air, and when the cups have not gone too diligently their round, it is then a genuine pleasure to listen to them. One of the most beautiful songs, and which is most frequently sung at the German universities, is this, in which the effect of the chorus is often strengthened by the accompaniment of instrumental music:--

### COMMERS SONG.

From high Olympus comes our pleasures crowning,  
From thence our dream of youth was sent;  
Therefore trust brothers, spite of Envy's frowning,  
Who would our youthful joys prevent.  
Solemnly sound ye the jubilant song.  
Revelling brothers with beaker clang.

Deep in the sea of youthful pleasure drinking,  
Joy smiles and beckons from the shore;  
Till on some evening late the bright sun sinking,  
Delights us with its beams no more!  
Solemnly, etc.

So long as pleaseth God, thus friends beloved,  
In gladness shall our life move on;  
And when, some day, the curtain is removed,  
We'll join our worthy fathers gone,  
Solemnly, etc.

Drink, brother, drink! thy loved one,--think upon her,  
She who thy youth's dream blesseth still;  
A glorious "Ho!" now sound we to her honour,  
That through her every nerve shall thrill!  
Solemnly, etc.

And of our brethren is there one departed--  
By pale Death summoned in his bloom?  
We weep, and wish him peace, all saddest hearted,  
Peace to our brother's silent tomb.  
We weep and wish that peace may dwell  
In our dear brother's silent cell.

Very frequently in the students' drinking companies they sing a roundelay, as we lately saw at the evening peep at them at Hoffmann's rooms, where each one sings in turn a song, or, at least, a strophe. This, as we have seen, they term a Sauf-Comment, which we may look at a little more closely, as it is sometimes attended with variations. The president of the Sauf-Comment sings,--

There goes a drinking-law oar table all around, around,  
There goes a drinking-law our table all around.  
Ten quarts and yet one-a  
Ye knew well what I think on-a.  
Ten measures and ten mo,  
Fidibum! let one now go, let one now go, let one now go!

Or,

Three time three are nine-a,  
Ye know well what I opine-a.  
There goes a drinking-law our table all around!

When all have sung round till it comes to one who can find no more song to sing, the Chore then sings--

Our brother, N. N.  
To pitch, to pitch, is turned again.  
Draw thou white-horse good,  
Up to the knees in mud, etc.

The student has, again, other songs for festive celebrations and for fun, as for the initiation of the Foxes, by the Fox-ride; for the Commers; for the departure from the university; nor is he at all wanting in songs proper for a serenade to his beloved. Love, Wine, Fatherland, Friendship, of them the poets of a former age have sung, and of them sing the poets of our own. These the songs of the student celebrate, and the son of the Muses does not forget to enjoy his wine while he sings of it, well knowing how very often the other things exist rather in idea than in actuality.

And who should be more in the humour to sing a merry song than the student, who revels in the enjoyment of the serene present, perhaps shutting out a darker future from his eyes, which is yet separated from him by his examination. This happy time, free from all cares, which darken the later life of him who grasps at riches or at the phantom of renown; this time, he knows well, comprehends but a few years,--"but the whole of life," thinks he philosophically enough, "is but a span of time, therefore let us the more enjoy these years, and celebrate with song the felicity of youth." In this spirit they often sing and act with great glee the following comic piece:

### **AN UNBOUNDED JOLLITY.**

An unbounded jollity is of my life the rule, Sir,  
Since it leads me gaily through youth's rosy paradise:  
Comes a Manichean in, an old dunning fool, sir,

I'm sure to give him much good advice.

"Slife! hear you now, sir, I want my gold."

"Cease jaw, Camel, I've none, and that's soon told."

*Spoken.*--Make thyself scarce. Old Lamentable! Give time! or I'll pay thy long bill with five silver groschen. *Agio.*--We'll knock it all off (pointing to his stick, and showing his five fingers.)

Quickly doth the old fool fly,  
And I laugh till fit to die.  
Pray then when a-fresh the rhino cometh in, sir.

An unbounded jollity, etc.  
Morning to the lectures go; nine-pins in the evening;  
Early, in old house-coat; not till late our toilet made.  
To Commers then haste away,  
For there's pawked in a Fox to-day.

*Spoken.*--"Silence, Fox! hold your tongue when Old Mossy Heads are speaking."--"Ah! Heavens! I can drink no more of these healths. It makes me so ill."--"Hold thy tongue, Fox! Thou hast yet only emptied nineteen choppins of most excellent beer. It is not worth talking of. Study only three years, and thou'lt bring it up to nine-and-twenty."

So we had the Commers here,  
Jolly still with wine and beer,  
For we are but young once, in our life so fleeting.

An unbounded jollity, etc.  
Meet I now an Exquisite, who comes stately sailing,  
Who right flat and swelling larger draws near.  
Then trample I on his toe--then wondereth he;  
I tread it again--then waxeth be wroth.

*Spoken.*---"Hear you there! Was that done purposely with the foot!"--"No; it was done with the heel."--"So! but that appears to me very strange?"--"Do me then the only pleasure; find nothing strange here. You are a Stupid Youth!"

And the duel then is seen,  
For the wit is mighty keen;--

Strike him a thundering Winkelquartè!<sup>[34]</sup>

As unbounded jollity, etc.  
Find I then a sweet maid and loving,  
Then contains Ovidii Ars Amandi, good advice.  
"Ay, but wilt thou marry me?"--"Don't be afraid;  
When I've once my office got, 'twont be delayed."

*Spoken.*--"Aha! that's just as it happens! First I go to Jena, there to study the *Nefas*; then go I to Heidelberg, study there the great *Fasss*.<sup>[35]</sup> That's the way of it."

And then comes the tug of strife,  
With the Pandects, life for life.  
Then after, examen, office calls, and then for marriage.

An unbounded jollity, etc.  
I'm a great philosopher, of the school of Hegel,  
And his system follow I to the life.  
The Beadle is upset, the Philistine is teased;  
Goes all wrong--the Prorector is appeased.

*Spoken.*--"Well, Sir! last night you have again cudgelled and floored five watchmen; and for this you must spend four weeks in the Carcer."--"Your Magnificence, I think nothing of that!"--"You will go on cudgelling watchmen till you get the Consilium abeundi."--"Youth must sow its wild oats;--that's an old rule. Your Magnificence was young once: certainly it's a good while ago; but spite of this, I hope one of these days to become an honest, brave fellow, and do service to my Fatherland, and become a special honour to your Prorectorate."

Thereupon drops he a tear;  
Thinks of his youth--"Ah! it was dear!"  
Gives me an examen summa cum laude.

An unbounded jollity, etc.

Happy are they who carry on with them this free and cheerful disposition into after-life, which for most of those who now live so gaily and happily at the university, brings an arduous succession of labours loaded with cares

and fatigues, which, however, sometimes leave as their reward at the end of their career of life, a consciousness of having discovered a certain portion of truth, and of having been able to benefit their fellow-citizens. Student-life thus belongs to those things which can come only once in our existence, but which are on that very account the fullest of happiness, and must often extend their influence so far as at least to refresh by their memory a later, solemn, and joyless life. The songs of a happy youth accompany him who has entered on the more serious path of his existence, and their melody is able to bring him back for a moment now and then into the dream of his young years. With a song of sorrow the student too, follows to the grave the brother who departed this life, and then turns from the image of death, and rejoices that he yet longer can enjoy the happy Burschen period.

## GAUDEAMUS IGITUR.

Gaudeamus igitur  
Juvenesdum sumus;  
Post jucundam juventutem,  
Post molestam senectutem,  
Nos habebit humus.

Ubi sunt, qui ante nos  
In mundo fuere?  
Vadite ad superos,  
Transite ad inferos,  
Ubi jam fuere.

Vita nostra brevis est,  
Brevi finietur;  
Venit mors velociter;  
Rapit nos atrociter;  
Nemini parcetur.

Vivat academia,  
Vivant professores,  
Vivat membrum quodlibet,  
Vivant membra quælibet;  
Semper sint in flore.

Vivant omnes virgines,  
Faciles, formosæ;  
Vivant et mulieres,  
Vivant et mulieres  
Bonæ, laboriosæ.

Vivat et respublica,  
Et qui illam regit;  
Vivat nostra civitas,  
Mecenatum caritas,  
Quæ nos hic protegit.

Pereat tristitia,  
Pereant osores;  
Pereat diabolus,  
Quivis anti-burschius  
Atque irrisores.





## **CHAPTER XV.**

### **DRINKING CUSTOMS OF STUDENT LIFE, ANCIENT AND MODERN.**

Seize the glittering wine-cup there!  
See ye not, no purply winking,  
Blood of nature, rich and rare?  
Let us grasp it, boldly drinking,  
That a fire-strength may glow  
Through each vein--a new creation!  
Sacred is of wine the flow--  
Is of youth the glad elation!

*Uhland.*

Have the gods drunk nectar!--the gods, exempt from all the cares of mortal existence, and shall then poor mankind be envied the enjoyment of their earthly nectar? No; not without cause was it celebrated by all the ancient poets. Even the great Reformer himself joined in its praise; and Horace says--

Narratur et prisci Catonis,  
Sæpe mero caluisse virtus.

Then come the moralists truly and say, "You should not purposely throw yourselves into an artificial gladness; the true gladness comes from within." Very true; and the genuine healing of sickness comes from within, and you shall and cannot subdue it by art? It is therefore that the Turks believe that you ought not to assist nature in her marvellous operations by a healing means. If that be your faith, do as the Turks do, and drink no wine. But have we not thus a thousand things which are to a certain degree necessary to our well-being, necessary to preserve the proper tone of mind and body? And would you blindly condemn all these? Wherefore then do you imagine that wine was made? Would you banish all poetry out of life, and say

Who then would cheat himself with phantom shapes,  
That with a borrowed charm do clothe existence,  
And with a false possession follow Hope?

*Schiller.*

Will you do that? Then, indeed, must you banish wine; for it is, so to say, an incarnate poetry. For if it were not that, it were nothing to us; and to whomsoever it is not that, him counsel we to refrain, and to hand it over to other and happier mortals. But think well on it ere you banish all poetry out of the world.

The roseate-tinted veil of dreams  
Falls from Life's countenance of pallid gloom,  
And the world showeth as it is--a tomb.

*Schiller.*

Who, then, would wish to live in such a world? No; we value the wine which calls forth the poetry of the inner man of him who is not totally abandoned of the Muses. But you, perhaps, reprobate the enjoyment of wine as too ignoble and material. But is it then the material portion of the wine which confers on us its witchcraft? No; it is the fine spirit, and that ethereal life which the German calls the flower of the wine. They ascend to the exhausted brain, and brace the relaxed chords. Know you then whether the strength which gives to life poetry and fresh grace, may not be one and the same? Whether the strength which is here bound to the material substratum, be not the same which there seizes thee mightily in the creations of Shakspeare? whether it be not the same which lives in the accord of the violoncello; whether it be not the same which dwells so entrancingly in the voice of the beloved? Yes, the spirits of the wine are related to others; and when they discover their brothers in the breasts of men, so combine they vigorously, and bursting their bonds, rush forth into active operation. All those noble feelings which had long, perhaps, by their possessor, who had experienced the bitter deceits of life, been beaten down and slept in obscurity--now, touched by the magic wand of wine, start again from their tomb. But when the spirits of the wine find there only strange and ignoble associates, then raise they with them a fierce conflict, in order from such guests of hell to free man; whose difference from all other

beings, says Goethe, consists in this--that he be noble, helpful, and good! Therefore despise not wine, which is capable of accomplishing such rare ends, which can raise phantasies such as were dreamed in the Rathskeller at Bremen.<sup>[36]</sup> No; we acknowledge the wisdom of him who gave the wine to mankind, and of the good old patriarch who so thankfully received it.

### OLD NOAH.

Noah from the ark had got,  
The Lord came to him on the spot;  
He smelt his offering in the wind,  
And said to thee I will be kind.  
And since a pious house thou art,  
Thyself shall name the gracious part.

Then Noah answered, as he stood,  
"Dear Lord, this water smacks not good.  
Therefore I, poor old man, would fain  
Some different kind of drink obtain,  
Since that there hath been drowned therein  
All sinful beasts, and men of sin."

To Paradise, God stretched his hand,  
And gave him thence a vine-stock grand;  
He gave him counsel good and right,  
Said, "Tend thou this with all thy might."  
He him instructed,--so, and so,--  
Till Noah's joy no bounds did know.

Both wife and child did Noah call,  
His servants and his house-folks all.  
He planted vineyards all about--  
For, trust me, Noah was no lout;  
Built cellars then, and pressed the wine,  
And tunned it into hogsheads fine.

Old Noah was a pious man;  
Soon to a row his barrels ran.  
To God's high praise he drained each cask,  
Nor deemed it, faith, a heavy task.  
He drank, thereafter, as appears,  
Three hundred yet and fifty years.

A knowing man thence see it will,  
That wine well used, can do no ill.  
And farther,--that no Christian more  
Into his wine will water pour,--

Because there hath been drowned therein,  
All sinful beasts, and men of sin.

The Germans never despised their cups. Tacitus, in his time, said of them--"To drink day and night brings disgrace to no one." Tacitus might, in truth, have said pretty much the same of his own people. If in the beginning they mixed their wine with water, this is not to be taken as the fact in an after period. Who does not recollect the son of Cicero, the most celebrated drinker of his time, with whose exploits in tippling scarcely the Germans could match themselves, stout drinkers as they were? It is well known that the ancient Germans transacted their most important affairs when they were elate with Bacchus, and reconsidered them, the next day, with a sober understanding. This custom they retained, in many places, during the Middle Ages, and this was the case in the free city of Bremen. Wine and song have maintained their standing in every true Brotherhood, and this still continues to be the practice in Germany. This ancient German custom then, least of all could be expected to be abandoned in Burschendom, and their songs are, for the most part, sung over the cup.

We may here find a place for some words of Schluck's persiflage on the *Burschen-Comment*.

"The songs which are sung by the Commerses are called Burschen songs, and besides the students, nobody may sing them--since they,

"1. Are only composed in honour of the studentship; and,

"2. Are chiefly composed in Latin, as the language belonging to the learned."

(This is no longer the case. Latin songs become daily rarer yet some still remain in use, as--*Mihi est propositum*.)

"Should a Knote dare to sing a student song, he is to be well cudgelled; not so much on account of the excellence of the song, as on account of the audacity of the Philistine, presuming to desecrate songs sacred to the students especially as it is impossible that he can have so much feeling as to appreciate the elegance and beauty of such songs."

As the occasions on which men sing are very different, it is natural that the contents of the songs should be so too. Some contain--

*Firstly.*--An incitement to joy. Amongst these I reckon "Up Brothers, let us joyful be;" or, an Exhortation to Friendship, as that *bonne amitié* song, with which a Commers is always opened, and whose object is solely to create a friendly feeling in the Old Burschen towards the Foxes.

*Secondly.*--Others are Freedom and Fatherland songs; amongst which, high above all, stands "The Landsfather."

*Thirdly.*--Songs which express the spirit and bravery of the students; as-- "The Bursch of genuine Shot and Corn;" or "The Sword on my left side:" "Know ye the happy way to conquer;" "Brave 'tis 'neath the free blue Heaven," etc. One of these we may here give at length, as a

### **PICTURE OF THE OLD-FASHIONED BURSCH.**

The Bursch of real shot and corn,  
His courage still doth bloom;  
On heavy boot the spur is worn,  
From hat doth sway the plume.

The huge hat makes a gallant show,  
With the sword cut through;<sup>[37]</sup>  
It guards him more from thrust and blow,  
Than were it sound and new.

The Bursch his ornament doth bear,  
Which him such pleasure brings,  
The sword which with a fearful air  
Upon his left side swings.

As Bursch, when through the town he stirs,  
Majestic in all eyes,  
The sparks they lighten round his spurs,  
And fire crossways flies.

What careth he, though hole there be,  
Upon his elbow now;  
The jolly Bursch remaineth he,  
Before whom all must bow.

But wo to thee! if on his course  
In perfumed garb thou rub;  
He'll curse thee for Pomatum-horse,  
And threaten with his club.

For friends still beats his heart so warm,  
He feels their grief and care;  
For them he wields his mighty arm,  
Nor would his own life spare.

Whoever saw him shrink a-back,  
Or do a coward deed?  
Shame on him he would never take,  
Though kingdoms were the meed.

They law how in the battle-shock  
His flashing sword he drew;  
They saw how from its sweep, like smoke,  
The slaves before him flew.

Courage in danger and distress  
Is aye the conquering plan:  
Aye though all hell upon him press,  
He'll show himself a man!

Hears he of Hermann's spirit proud,  
Of his high deeds the fame,  
His German blood warns him aloud--  
"Be worthy of the name!"

He drinks the German vine-juice bright,  
And German feels and great;  
In his right arm dwells giant might,  
And freedom's his estate.

Then live hoch! every German man  
Who thinks and speaks as he;  
But they who falsehood basely plan,  
Extinguished may they be!

Weights care upon his heart's repose,  
He takes his pipe so dear,  
And as the Knaster fumes and glows,  
All troubles disappear.

He is a Bursch,---lives *sans façon*  
Him all their friend may deem;  
His heart is good, although we own  
At times it different seem.

Fair maids he wishes free from wrongs,  
With joy to their life's goal;  
And lauds them still in all his songs,  
With all his heart and soul.

See! though all glasses empty stand,  
Full jugs to us appeal;  
So send the wine from hand to hand,  
And drink the Bursch's weal.

Already from the jug's full flood  
To glass the wine doth flow,  
And to our worthy Brotherhood,  
We'll sound this hearty hoch!

Baden I call my Fatherland,  
As life I prize its weal;  
Therefore I wear the Baden Band,  
And guard with hand and steel.

*Fourthly.*--Others are drinking songs; as "Crambambuli, that is the title;" or "When carousing I shall die;" "The year is good, the brown beer thrives;" "Bring me blood of noble vines;" "The dearest sweetheart that I have;" "I have throughout the forenoon long;" "I and my dear bottle;" "Now sing in dulci jubilo;" or that maiden song, in which the maiden is drunk for, while he who empties most measures is declared the conqueror, and entitled to marry the maiden; while the rest cry and chorus.

He's done it stout, he's done it stout,  
So will he not be laughed right out.

And the maiden, who all the while is perfectly unconscious of these proceedings, and has given no consent to them, is declared to be won, and is pronounced to be the beloved of the victor. Ah, poor maiden! so wouldst thou, not out of love, but truly contrary to thy will, be thrown into the arms of a drunkard!

This maiden song is now, to the honour of the studentship, quite out of use; yet Zackariä describes such a scene as common in the days of his Renommist.

And therefore filled he with beer that mighty glass,  
 And drank it off the first unto that fair endearing---  
 A maiden yet whose name had scarcely met his hearing  
 He held in hand, as sceptre, the solid room-door key,  
 Thus acted he as chief, and to his realm gave he  
 A sacred law, unpausing the measured draught to end;  
 And oft his judge's arm let the heavy key descend.  
 Wo unto him who then this law as rebel brake,  
 When he that thunder-word *pro pæna*, to him spake.  
 Then must another measure his luckless throat o'erflow,  
 Or stood he in great danger the damsel to forego.

\* \* \* \* \*

"But now, ye Brothers--hoch! and let Selinda live.  
 Vivat Selinda, hoch! with roughest throats now roar,  
 Vivat Selinda, hoch! cry mightily once more!  
 Shout for the third time--hoch!"--the very room did quiver,  
 And on the long wet table the glasses ring and shiver.  
 As in old Homer's story, upon the Trojan plain,  
 Mars, like ten thousand men, sent forth a cry of pain,  
 Till the whole army trembled, with rock, and hill, and valley,  
 So trembled now this chamber with this Studenten sally.  
 Then Torf her lovely countenance with such a beauty draws,  
 That each one swearing gave a thundering applause.  
 The Renommist then cried--who inly now grew warmer--  
 Here I myself do choose her--I choose her for my Charmer.  
 "The fiend thou dost!" said Torf, right loath to give her o'er,  
 But Raufbold straight defied him to twenty choppins more.  
 Torf yielded up the contest--strength did his hope betray,  
 And Leipsic's crown was thus far from the faint-heart drunk away.

*The Renommist.*

Certain songs belong to the conclusion of a Commers, or drinking meeting.  
 With the last song, the glasses are turned upside down according to the old  
 song, and the brother revellers, wish each other a good night.

I take my dear glass in my hand  
 And bear it to the Underland.

I fetch again my glass so dear,  
 And hold to th' right and to th' left ear.

My glass unto my mouth set I,  
 And drain it to the bottom dry.

The right thing to the glass do we,  
 What was above must under be.



The glass must walk the land O!  
From one to th' other hand O!

He who in drinking or singing shoots a buck--that is, has broken the rule--must *pro pœna*, or in other words as a penalty, empty an extra choppin or two. He who often associates himself with a Commers, is called a Commers-brother.

---

Give us a prime good glass, so will our praise be ample,  
Only be 't not too scant a sample;  
For when on wine I must decide  
With mouth right full I'd have it tried.

*Goethe's Faust.*

So thought the German students in earlier times, and so think they still. Drinking had reached a dreadful height in the Middle Ages, and many laws were passed, but in vain, to put a check on the madness. It was the same amongst the Burschen, who carried it to a most incredible extent. At the time that those students who were the best drinkers, were most regarded amongst their fellows in the universities, a Westphalian studying in Halle, made a visit to a countryman who was studying at Jena. The Jena student, to show his friend that he understood life, immediately on the first evening, called all his companions together, and they all drank to the welcome visiter so strongly in beer and wine, that on the following morning he had hardly slept off the effects of it before twelve o'clock. Scarcely had he dressed and despatched his dinner, when he was anew conducted to the drinking-place. Thus the revel continued for eight days in succession, when he travelled back to Halle. After his return he related many strange things of the mode of life of his countrymen in Jena, and always added--"Children,--it is very curious in Jena,--there is no forenoon there."

Such madness is now gone by; yet, ever and anon, there are students who might boldly challenge the gentlemen of the old school to a trial at toping, if they would rise out of their graves to it. Beer is the general beverage of the students, and as the best sorts of the same, as the Bavarian, and the formerly celebrated Heidelberg beer, are not strong, the health of

the consumer, even in a long-continued course, is not injured by it, as it is in other universities, where, through the want of beer, wine and spirits are drunk. Beer, at the same time, is the cheapest liquor, and on that account is liked by the student not less than by the common man, amongst whom it is equally the custom to drink much. In one year, when the choppin (pint) of beer cost one-third of a penny, or, about half the usual price, a coachman achieved a most extraordinary feat in drinking. Some students promised to pay for a hundred choppins if he would drink it with only short intervals. He accepted the offer, and had all the hundred measures set in a row on a bench. He drank the first, walked slowly to the end of the hall and back, drank off the second, and so on till finding not another drop, he said quietly to the landlord--"So, now let me have just another choppin for my money."

The students drink generally beer at their Kneips, and if this is done in the open air, a large company is accustomed to pile up the emptied jugs into a pyramid.

Not by trophies, marbled over,  
Will posterity discover  
What we brothers here have done;  
But of triumph our memorial,  
These drained pitchers in their glory all,  
Pile, a pyramid of fun!

*Hauff.*

At Commers, and on other festive occasions, are also frequently drunk wine, or ardent glee-wine and punch. It is a very ancient custom, amongst drinkers, that the glasses must be emptied after certain and manifold practices and prescriptions. Horace describes a similar wont in his time, where the drinkers are accustomed to elect a king, who presided on the occasion. Such rules are now become quite voluminous amongst the students, and are collected into their so-called Beer-Comment. This, therefore, contains the guiding laws of the Beer-Court. We will give this Beer-Comment at the end of the volume, as an example of the elaborate style into which this old and deep-rooted custom of German student-life has come to be carried out. Strange as it may appear to other nations, it is a custom in Germany, old as the universities themselves; and as our object is to probe to the very bottom of student-life, and give a full and faithful

portraiture of it, those of our sober readers who may not think these very wise or commendable laws, may, having read the rest of the book, there close it, without perusing this Beer-Code. We also precede the account of the Commerses with a collection of all the phrases which the Germans employ to clothe in a tolerable garb of decorum that dreamy condition into which Bacchus frequently throws his votaries. These modes of expression were collected by Lichtenberg, and a few only have been added to them.

## HIGH GERMAN

|                        |                          |                             |
|------------------------|--------------------------|-----------------------------|
| He scents wine         |                          |                             |
| He has got a shot      | He has something in the  | He is sated                 |
| He is shot through     | roof                     | He saw wooden cans in       |
| He has got a blow      | He is full and furious   | heaven                      |
| He has got a touch     | He has his load          | He is up to his throat full |
| He has got a Jesuit    | He has been in a good    | He has made himself a       |
| He has got too much    | spot                     | beard                       |
| He is tipsy            | He has something in his  | He goes in a flourish       |
| He is foggy            | head                     | He is well blessed          |
| He has got a saintish  | He has enough            | He is loaded awry           |
| look                   | He has got a bag-wig     | He has made himself         |
| He has a dizziness     | He has drunk a glass too | black                       |
| He is inspired         | much                     | His house is haunted        |
| He is full             | He has pept into the     | He tacks about              |
| He takes a Bauer for   | glass too deep           | He can't keep his legs      |
| an                     | He is illuminated        | He is funny                 |
| earth-bear             | He staggers              | He is well drunk            |
| His head is heavy      | His tongue is too heavy  | He has been present         |
| He has dim eyes        | He can't lift his tongue | He is ready                 |
| He is not right in the | any more                 | He is off                   |
| upper story            | He floats                | He is away                  |
| He has glass eyes      | He makes crosses         |                             |
| He rocks               |                          |                             |

|                        |                             |                              |
|------------------------|-----------------------------|------------------------------|
| He is happy            | He goes as if all houses    | He has Moses' tongue         |
| He takes the sky a     | were his                    | He is led about              |
| bass viol              | He is totally away          | He is under the table        |
| He sees the letters    | He sails with full sails    | He takes a church-spire      |
| double                 | He leans against a          | for a toothpick              |
| He is as sick as       | shutter                     | He has armed himself         |
| heaven-hail            | He is poodle thick          | with a sword                 |
| He is dull and full    | He has his tally            | He has sprinkled his nose    |
| He has followed his    | He has his part             | He has endowed himself       |
| own fancy              | He can't spit over his      | They have buried him         |
| He is <i>à tout</i>    | beard                       | He is hail-blind full        |
| He has daubed          | He makes a <i>pas frisé</i> | He stares like a stuck calf  |
| himself                | He is thick                 | He looks like a duck in      |
| He has a rattle        | He has had too much of      | thunder                      |
| He has a ditto         | a good thing                | He is be-kneipt              |
| He has round feet      | He has been in his cups     | He is split                  |
| He has leaned too far  | He has something in the     | He doesn't come home         |
| over                   | top                         | alone                        |
| He is star-blind thick | He is cat thick             | He brings Geiselbrecht       |
| He yearns after the    | He has washed himself       | with him                     |
| brandy bottle          | He has drammed              | He is a drunken swine        |
| He has lamed his       | himself                     | He falls off                 |
| tongue                 | He has done it pretty       | He is in <i>dulci jubilo</i> |
| He is as full as a     | well                        | He has chopped beyond        |
| bagpipe                | He has taken good care      | the line                     |
| He is lost             | of himself                  | He is tufted                 |
| He is covered          | He has a giddiness          | He cannot walk in the        |
| He sees two suns       | He can scarcely             | line                         |
| He is thick as         | stammer                     |                              |
| poodle-hail            |                             |                              |

In the Low German are some fifty other phrases on the same subject.



## **CHAPTER XVI.**

### **THE COMMERS.**

And there is grandfather, who, letters still extant,  
Though now somewhat ancient, give sure text on't.  
In many a Commers and Burschen-feast,  
As sword-bearing Præses his fame increased.

*Preface to the Renommist.*

Our discourse shall now be of a beautiful feast of the Students--the Commers. We describe the Commers of the present day; since in earlier times this festival bore another shape, and was disfigured by rude customs, so that we may justly say of the Commers, that it has not, like most other feasts, degenerated in the course of years, but has already improved itself. We will hereafter speak of these customs of an earlier time, and of some which in many places still remain, but which do not necessarily belong to the Commers. We understand by a Commers, as it now exists, a festive assembly, which consecrates itself by a higher tone and signification by the singing of "The Landsfather."

The Commers is divided into the general and the special. In the former, the assembled Chores, and all other students who wish it, take part. In describing the constitution of a Chore, we have already spoken of these. In the special Commers, only a particular Chore, with all those that are attached to it, and such other members of other friendly Chores as are invited, take part. The Commerses are distinguished into Entrance and Farewell Commerses, with which the Semesters open and close. The Fox-ride generally takes place at the Entrance-Commers. Each particular Chore, moreover, has its Foundation-Commers, on which it celebrates the anniversary of its establishment. Many Chores also are accustomed to hold a Commers in honour of the birthday of their Land Prince.

First, of the General Commers. To this, assemble themselves all who take part in it, in a spacious room, either in the city or in its immediate neighbourhood.

Those students who are not themselves in any Chore, attach themselves to one or other of them, and each Chore has its particular table; and two presidents sit at the head of each table. The chief president is the Senior of that Chore which has the secretaryship.

When the Commers shall begin, the presidents cry "ad loca!" which command every one must be careful to obey, if he would avoid the consequence of a beer penalty. In these Commerses, the rule is to drink beer, and this is called a Commers in beer. The chief president has now to give out the songs which shall be sung, and he also dictates the particular verses. Certain songs are on these occasions brought forward from time immemorial, as "Heidelberg, live thou! hurrah hoch!" or the following, at a Farewell Commers.

### THE TRAVEL SONG.

Away! we have drunk it, the sparkling wine,  
Adieu, now, ye loved ones, to wander is mine.  
Adieu, now ye mountains, thou fatherly home,  
For mightily drives me the passion to roam.  
For mightily drives me the passion to roam.

The sun in the heaven won't pause without change,  
But speeds on through lands and o'er oceans to range;  
The wave will not cling to the same lonesome strand;  
The storms, they go roaring with might through the land.  
--(The land).

With clouds, fast careering, the bird floats along,  
And sings in the far-land its home-loving song;  
Through forest and field so the Bursche is hurl'd,  
To be, like his mother, the wandering world.  
--(The world).

There greet him the birds which beyond seas he knew;  
From fields of his home-scenes 'tis here that they flew.  
The sweet flowers around him familiarly grow,  
In airs from his country, far wafted, they blow.  
--(They blow).

The birds! O well know they his father's own towers;  
For garlands of love once he planted those flowers.  
And love, it still follows, still gives him the hand,  
And makes him a home in that furthestmost land.  
--(That land).

Before each president lies a drawn sword, with which, as signal of command, he strikes upon the table. It is forbidden to every one, on pain of a beer-penalty, to interrupt the song in any manner whatever. So now the singing and drinking go forward in regular course. At a later hour a supper is eaten, and the Commers is closed by the singing of "The Landsfather," after which there is no more singing, but it immediately becomes free to every one to stay and kneip on as long as he likes.

When "The Landsfather" is to begin, the presidents command "ad loca!" Every one must quietly take his seat, and it is allowed to no one, as otherwise commonly happens at kneipings, to take off his coat, and sit in his shirt-sleeves. All must be conducted solemnly and seriously. All voices join in--

### THE CONSECRATION SONG, OR LANDSFATHER.

Silence all ye, each one call ye  
Unto solemn tones his ear!  
Hark, the song of songs I raise now,  
German brothers, join in praise now,  
Sound it, Sound it back a chorus clear!

Of your Fatherland the song;  
Fatherland! thou land so famous,  
Sacred to thy glory claim us;--  
Germans proudly, swell ye loudly,  
We, our swords, to thee belong!

Life and living to thee giving,  
We are all prepared to bleed:  
Ready at each hour for dying,  
Death, with all his wounds defying,  
If our Fatherland it need.

He who feels not; he who zeals not,



In true worth to be arrayed,--  
He shall not our bond dishonour;  
This our Bride, [\[38\]](#) swear not upon her;  
Nor the German sword degrade.

Song the proudest, swell it loudest;  
Brave and German be we too;  
See the consecrated band here,  
As brave Burschen take your stand here,  
And the free-cap strike ye through.

See it gleaming, softly beaming,  
In my left this stain-free glove;  
Thus I strike the cap through, swearing,  
Honour bright for ever wearing,  
Still to be a Bursché brave!

During the singing of the preceding stanzas, the two presidents hold their swords across each other, each holding his sword in his left hand, and placing the fingers of the right on it, to ratify the oath; and this being done, they pierce their caps through, and leave them hanging on the swords. While they do this, all sing:

Thus thou strik'st the cap through, swearing,  
Honour bright for ever wearing,--  
Still to be a Bursché brave!

Each president then sings thus to his next neighbour while he reaches him the cup:--

Drinker! swimming, bright o'erbrimming,  
Take this Fatherlandish cup!

The presidents give their swords each to their next neighbours. These, who sit opposite to each other, have risen from their seats, and now hold the swords which they have received from the presidents, crossed, over the table. The presidents continue their song:

Thy left hand the keen sword bearing,  
Boring through the cap, and swearing--  
To thy country drink it up!

[Here they empty the cups.

The two who have drunk now sing,--

See it gleaming, softly beaming,  
In my left this stain-free glave!

ALL REPEAT--"See it gleaming, softly beaming," etc.

Each of the two individuals sings on:--

Thus I strike the cap through, swearing,  
Honour bright for ever wearing,  
Still to be a Bursché brave!

While all repeat this in chorus, the caps of the two are spitted on the swords to the former two. With the last words the presidents take back the swords, and as they hand the caps to the next two, sing, "Drinker! swimming, bright o'erbrimming," etc. So go the presidents, repeating the same ceremony with each opposite two, till they reach the bottom of the table. Here they exchange with each other the swords, on which the assembled caps are hanging, but without changing their respective sides of the table. As they do this each president sings:

Come thou, drawn sword, consecrated,  
Of freemen the weapon free!  
With transpierced cape thus freighted,  
Yield it solemnly to me.  
Let us gaily it discumber,  
Cover each one now his head;  
And unspotted in his bed,  
Till next feast-day let it slumber.

ALL SING--Up! ye feast companions, guard them,  
All our hallowed rites and fair;  
All your heart and soul award them,  
As stout men should ever dare!  
To the feast, ye brothers valiant,--  
Worthy of your fathers, stand!  
And may he ne'er wield the brand,

But who noble is and gallant!

Each president now reaches across the table to the brother sitting opposite to him, his cap, which he has taken off the sword, and stretches the sword over his covered head; both the presidents singing:--

So take it back;--  
Thy head I now will cover,  
And stretch the sword it over,  
And live to this our Brother, hoch!  
A dog's-foot who insult him shall!  
Wherever we shall meet him,  
We'll aye, as Brother greet him,  
And live to this our Brother, hoch!

While all are singing, the president reaches to him whose head he has covered, his right hand. The presidents thus gradually, and in succession, cover all heads, till they have again arrived at that place at the table where they have presided. Returned thither, they cover each other under the same ceremonies. In conclusion, all sing:--

Rest thee from the Burschen feast-rites,  
Now, thou dedicated brand,  
And be each one's high endeavour--  
Freedom for his Fatherland!  
Hail to him who still is haunted  
With his father's & me in field;  
And the sword may no one wield,  
But the noble and undaunted!

This is the simple description of a Commers, as it is now celebrated; and when we ask what it is which distinguishes the Commers from other festive meetings, the reply must be, that it consists in the singing of "The Landsfather," as its solemn and ceremonial conclusion. To this celebration we certainly are not at all disposed to refuse our approbation. It contributes strongly to maintain a unity amongst the students, divided and subdivided as they are into different Chores, and separated again from the private people--as the Camels, as a more polite name, are called. They contribute to bring back to the consciousness of every one, that Germany, though separated into so many states and territories, is yet One Germany! The hole

which is pierced in the cap is at once a symbol of death of the Fatherland, and a memorial of Commers pleasures enjoyed in companionship with those of many names and places.

In order to bring under notice certain customs of the Commerses, which, however, are not general, and which in recent years at least have not been practised in Heidelberg, we may here give the regulations of the Beer-Comment thereupon, and which indeed take up the Comment, where it will be found left off at the end of this volume, and conclude it.

## **TITULUS X.**

### **OF THE BEER-COMMERS.**

Section 142.--Beer-Burschen alone can preside, and out-to-be-fought Branders, who then, as presidents, have unlimited power. (By out-to-be-fought Branders, are to be understood those who, in this same Commers, shall be advanced to Young Burschen.)

Section 143.--The Beer-commers proceed in the following manner. After the presidents have cried, "ad loca!" and every one has seated himself, they command silence, and every one must pay the strictest attention to this command, upon which the song begins.

Section. 144.--When the song is ended, one of the presidents cries "*Smollis*, ye brother presidents," which is answered by the other presidents, with "*Fiducit* and *Smollis*, gentlemen;" upon, which all the commanders answer "*Fiducit*."

*Smollis* is, in this place, a kind of salutation; whence comes the word *Smolliren*, by which it is understood that the parties drink to a brotherhood; so that the two new friends or brothers, from this time forward, instead of the polite term "You," use to each other the familiar word "Thou." When two individuals *smolliren* with each other, it is thus performed. The two

klung, or touch their glasses together, drink them quite off, and then reach to each other the right hand, saying to each other, "Be thou my friend."

When this is done with a number in a Kneipe, they are accustomed, holding the glass in one hand, to link that arm with the other arm of the new Thou-brother, and thus turning and crossing to touch each other's glasses and drink them off, as already it is described in the Renommist.

The hands to the Smollis, entwined thus crossing--  
"Fiducit, Sir Brother," together *antossing*.[\[39\]](#)

It is the custom in some universities, that all students address each other with "thou." This is called the "Thou-comment," in contradistinction to others; as Heidelberg, where the "You-comment" is in use. But students who in any manner are often associated in parties of enjoyment, will soon become "Thou-brothers," and it arises of itself amongst those who are of the same Chore. Therein it is the custom that the younger student always offers the Smollis to the elder; if the contrary happens, it must be regarded as a peculiar favour. That in the very different paths of life which succeed the university-years, it must give occasion to some singular scenes, when the early university-companions, who so quickly knit this kind of bond of amity, in after-life find themselves together again, and are obliged to use towards each other their familiar "Thou," we may well imagine.

Section 145.--After this, the song is sung "The Foxes under the bann have gone." Upon which the Crass-Foxes, with bare heads, standing up, must each drink off half a choppin; the Brand-Foxes, with bare heads, sitting, must drink each a choppin.

Section 146.--When the song is sung, one president asks the rest, "Has any of the brother presidents any thing to dictate, or to recommend?" Whereupon, each of the presidents dictates or commands to them who have disturbed in any manner the song or the Commers. But they may not command to any one more than two choppins at one time.

Section 147.--If any one does not drink the quantity dictated to him within five minutes, the president has the right, without further proceeding,

to write him down on the Beer-tablet as a Beer-schisser. The quantity which he has yet to drink is to be added to the four choppins. Yet is the Beer-schisser regarded during the Commers as Beer-honourable.

Section 148.--If the presidents declare that they have nothing further to recommend or to dictate, there follows a short pause, during which each Beer-Bursch can fore-drink to the presidents, what these have immediately to after-drink. But during this pause the quantity fore-drunken to any one of the presidents must not exceed four choppins.

Section 149.--If all is now drunk, the presidents may dictate nothing further, but they close the presidentship with the exclamation--"*Ex est! Colloquium!*"

Section 150.--There may be no fore-drinking during the presidentship, except to the presidents during the pause after their dictation and the commendation.

As already stated, these customs, which must always precede the singing of "The Landsfather," are not every where observed in Commers, and do not necessarily belong to them. In earlier times, the word Commers had a wider comprehension. It meant, in general, a convival meeting, in which a president had the direction and control of the singing and drinking. The meetings were often of a very rude character, and if we even do not hold up the Commerses of the present day as specimens of temperance, yet they acquire a nobler sentiment from the solemnity of "The Landsfather." To those earlier Commerses, rather than to the present, apply those satirical remarks in the Dissertation of the Old Schluck. He makes these observations:--

"A Commers is a drinking-meeting, in which a number of students elect one from amongst themselves, under whose presidency to sing and drink. The drinking goes on partly at their own cost, and partly at the cost of others. He who invites others, as guests, and pays the shot (schmaust),<sup>[40]</sup> is styled host, or hospes, from hoc and spes; as if some one should say, I have placed my hope on him. He who directs the drinking-meeting, is president.

"A Commers is more or less strict. It is a strict Commers when the members of the company mutually pledge themselves faithfully to perform whatever the president commands, be it even with danger of life. The signs of the unlimited power of the president, are--

"(1) A sceptre, generally a house-door key,<sup>[41]</sup> with which he either dispenses with drinking, or exhorts the delinquent to drink or sing, or finally points out the defaulters.

"(2) A naked sword, which is laid on the table, and with which the disobedient are compelled to obedience. Hereupon it is clear:

"(a) That no one, without the permission of the president, may stand up. If any one withdraws himself, without having asked permission aloud, he must, for his culpable stiffneckedness, drink from two to four glasses.

"(b) That no one may refuse to drink the glasses which are dictated to him, since, as shown above, he is pledged to obedience, even at the risk of his life. *Quere*--Can one who has drunken so much that he falls dead in the Commers be obliged to drink more? *Answer*--No! since death discharges all obligations."

These Commerses, of an earlier and ruder time, are discarded. In the Renommist such a one is described, and it concludes with these lines:

Worn fairly out with song, with drinking and with noise,  
Go reeling now along, those three wild roaring boys.  
Mid shattered pipes and glass, their staggering way they strive,  
Till in the distant market, by lamplight they arrive.  
As other men awake, to bed they take their flight,  
And bellow to each other--"Sir Brother, a good-night!"

## **CHAPTER XVII.**

### **THE SPECIAL COMMERS.**

Bumpers in oar left-hands draining,  
We will drink thy long maintaining,  
Ancient, jovial Burschendom!  
Swords in our right hands extending,  
We will fight for thy defending,  
Free and gallant Burschendom!

*Hauff.*

These lines of Hauff's, who himself enjoyed in Tübingen the pleasures of the Burschendom with a fresh spirit, express the sentiments which altogether in the life of the student, but especially in its most beautiful feast, the Commers, are felt and abound. We have described the General Commers; and we have now to make our readers acquainted with the so-called Special Commers, that which each individual corps celebrates at the commencement and conclusion of each Semester. These Commerses are seldom held in the city. We see a jocund train issuing forth from one of the city gates. A troop goes before on horseback, who, in earlier times, were still more distinguished by their peculiar style, but who still may sometimes be seen in full costume, that is, in buckskins and huge jack-boots, Polonaise frocks; on their heads, their Cerevis caps; over their breasts, wearing the broad Chore-band, while they carry in their right hands their naked swords. The rest follow them in carriages drawn by two or four horses; or the Senior precedes in a four or six-horse equipage, and the rest follow in two-horse ones. In their customary negligent student-dress, they lounge at their ease in their carriages, smoking their long pipes. The Foxes show themselves especially consequential, since it is the first time that they have been privileged to present themselves to the eyes of the astonished world in such a public procession. The Pawk-doctor is always invited to this festivity, and frequently honours the Chore with his presence; but the Red Fisherman is an invariable attendant, arrayed in the oddest style, as the black frock-coat,



and his other habiliments, by no means correspond with the open breast and outlying shirt. He is generally posted as servant behind the last carriage.

If now the reader were, on such a day, already at Neckarsteinach, so might he, from the little pavilion in the garden of the Gasthouse<sup>[42]</sup> of the Harp, right commodiously observe the approach of such a train, as it emerges from one of the windings of the road which follows the serpentine course of the Neckar, and permits him even from afar to see the flashing of the drawn swords, and the shimmering of the coloured caps and Chorebands. Or he sees the new guests approaching in a barge which they have mounted at Neckargemünd, where they have left their horses and carriages. The barge is hung with garlands and festoons, pennons stream from the masts; the sons of the Muses, in their many-coloured costume, are picturesquely grouped, and some of them are singing in the overflowing of their spirits to the sound of the jocund music.

The inhabitants see gladly these guests arrive in the place; as the Burschen, on one such day, make a greater expenditure, or in common parlance, moult more feathers than as many honourable inhabitants of the little town do in a whole year. On this account, their approach is first announced to the spectator in the garden of the Harp, by the firing of small cannon, which are planted for the purpose of doing all possible honour to these high guests, on the Dielsberg, a town opposite, situated on a lofty conical hill, where the earliest view of the approaching train is obtained, and by others fired from one of the old castles of Neckarsteinach. The garden of the inn now speedily swarms with the jovial Burschen, who here play off all sorts of pranks and whims.

But within, the whole house is in the most universal bustle. House-servants and waiters run to and fro; in the kitchen all the hands of the cooks are in active agitation, in order to fulfil the command of the landlady. There will sit a sleepy maid nodding in a chair, since for two days, that is, since the Commers was announced to them, there has been no sleep in the eyes of any of the ministering spirits; but she is quickly roused up with a vengeance in order to assist in the general activity. All, however, is still and solitary in the yard; for the poor feather-cattle have been compelled to yield up their young lives in order to parade on the table of these honoured and swarming

guests. Above, in the great hall, is a long table covered. Every window is adorned with green and flowery garlands and festoons, and at that end of the hall where the seat of honour is placed, there is emblazoned on the wall the great and painted coat-of-arms of the Verbindung, embellished with flowers and ribands. The musicians now take their places in the orchestra above; the sons of the Muses appear in the hall, and the feast is opened. After the cloth is drawn the proceedings at table are such as we have described in the General Commers, except that, at this Commers, no beer is drunk, but wine only; and you may soon hear the report of outflying Champagne corks, as the toasts of the Chore are given, or those upon and connected with the Land Prince, when the Commers is celebrated on his birthday.

In the so-called Foundation Commers, it is customary for the Senior, to deliver a short speech, in which he takes a review of the fortunes of the Verbindung, or Chore, from its establishment, and particularly mentions the names of those who have belonged to it, and are now gone forth from it into busy life.

As they do not return from such a Commers, at the earliest, till the noon or the evening of the next day, all kind of follies and madcap playfulness are resorted to, to make the time pass merrily. Amongst these may be classed the "Lord of Fools." A great throne is built up of tables and chairs, upon which one of the students is placed. He is equipped as a king, with his crown, sceptre, and other insignia. The others are his devoted subjects, who bring him a great humper, or large glass, such as every Chore possesses. The Prince of Fools now sings:--

### THE PRINCE OF FOOLS.

|           |                                                                                                                             |
|-----------|-----------------------------------------------------------------------------------------------------------------------------|
| PRINCE.-- | I am the Prince of fooling,<br>Here, o'er the toppers ruling;<br>And ye the gods do send on,<br>My Princeship to attend on. |
| ALL--     | To wait on your divineness,<br>With wine of every fineness,                                                                 |

That's why we here are standing,  
All at your dread commanding.  
Ye sportsmen with your thunder  
Shoot me the foxes under,  
And ye there all before us,  
Blow in your horns a chorus.  
'Ith horn, 'ith horn, 'ith hunter's horn,  
'Ith horn, 'ith horn, 'ith hunter's horn,  
Drink off, drink off, thou Prince of Fools.  
Drink off, drink off, thou Prince of Fools.

PRINCE.--

ALL.--

As they sing this, he empties his humper.

What helps me now my lofty throne,  
My sceptre, wad my Burschen-crown?  
What helps me now my high command?  
I lay it down in N. N.'s hand!

THE PRINCE.--

He now descends from the throne, and the next takes his place, till it has thus gone the whole round.

The convivial meeting sits till late in the night; and the next day they amuse themselves with all kinds of frolics and merriments, in which the Red Fisherman often becomes the butt of no gentle jokes. They sometimes make processions through the village at the head of which one of them rides on the back of the Red Fisherman, or on an ass. They climb the neighbouring ruined castles, which are perched on the mountains, and let their songs thence resound over the country.

These gambols and outbreaks of youthful spirits, full of life, strength, and enjoyment, and which thus are ready to overleap all bounds in the excitement of leaving behind for a day or so all study, and giving themselves up in fine weather, and beautiful scenery, to the full swing of their fancies and feelings, especially such a troop of youngsters being together, have always characterized the students. An old popular ballad describes their pranks in these rural Commerses, as far back as 1650; probably then a little more freely indulged in than at present.

## WAYS OF THE STUDENTS.

Queer chaps are these students, say folks every where,  
Although you should have them but once in the year;  
They make in the village such riot and reek,  
There's nought else left for us but plague for a week.

Now must we be caring for St. Mary's day,  
And every one is wishing that Galli come may;  
Then come they with swords and fowling-pieces too,  
And make in the village a horrid to-do.

There's nothing then in safety; no pigeon, no hen,  
As though they were made but for plunder of men;  
No goose dare even venture out into the meadow,  
These gents with their swords would soon whip off its head oh.

Are gardens with boards and bars all fenced too?  
They burst them asunder that the sun doth shine through;  
In clambering for apples the trees too they break,  
'Tis well if each home but a pocketful take.

With fire and with powder we're in constant fears,  
That e'en our small house be burnt over our ears;  
Their crackers they let on our roofs hop and bound,  
And a devil cares not though they burn to the ground.

Has one a good dog by his house-door to stay,  
And that from his chain could not break away,  
Straight let they him loose, when, troth 'twere no need,  
Potz hagel! they've shot, and the poodle is dead!

Students 'ith Wirthshouse, are jolly and able.  
For all that they need is a great mighty table;  
They drink and they shout, as the house theirs had been:  
They drink and they cry till they're sky-blue and green.

Now they talk Lapodeinish!<sup>[43]</sup> I know not what 'tis;  
But one knows very well, it is we that they quiz--  
Now they dance in the market, they leap and they play,  
And take from the hinds their own dance-place away.

Then turn the men-servants, and cudgel them out,  
Till like mice they are running the streets all about;  
They gather to battle in furious throngs,  
And smite, lunge, and cry with right deafening lungs.

Then they're off through the fields with their play to undo them,  
'Tis just as if thunder should tear its way through them,

They tread down the corn-field, they don't understand,  
What 'tis to eat black bread raised by their own hand.

Is a horse in the meadow, his strength to recruit?  
The students soon seize on the poor weary brute,  
They're up, and their heels in his sides go ding-dong,  
Ah! might he, at least, but go slowly along!

Two centuries have produced a proportionate improvement in the students; though as full of fun as ever, the country people have nothing like the wanton mischief here recorded to fear from them.

The Commers then, being brought to a close, they generally return by boat to the city of the Muses. If this is in the evening, the barge is illuminated, and when they approach the city, fireworks are played off. As they land they proceed to their Kneip, and there wind up the feast. On the arrangements of a Kneip, nothing further is necessary to be said, as we, in becoming acquainted with the Beer-tablet, beheld the only particular in which it differs from other drinking-places; but, in speaking of the different drinks that are consumed in a Kneiping, we must not forget the Crambambuli. In order to prepare this liquor, an earthenware dish is used, into which a sufficient quantity of sugar is poured, and it is then filled up with rum. It is then set fire to; and the company, who sit round the flaming dish, sing--

### THE CRAMBAMBULI SONG.

Crambambuli, this is the title  
Of that good drink we love the best,  
It is the means of proof most vital,  
When evil fortunes us molest.  
In evening late, in morning free,  
I drink my glass Crambambuli.

Have I into the inn ascended,  
Most like some noble cavalier?  
I leave the bread and roast untended,  
And bid them bring the corkscrew here.  
Then blows the coachman--trantanti--  
Unto a glass Crambambuli.

Are head and stomach both distracted;  
For eating have I little zest;

A plaguy cold have I contracted;  
Have I catarrh within my chest?  
What need the doctor trouble me,  
I drink my glass Crambambuli!

Were I a prince of power unbounded,  
Like Kaiser Maximilian,  
For me were there an order founded,  
'Tis this device I'd hang thereon:--  
Toujours fidele, et sans souci,  
C'est l'ordre du Crambambuli!

Comes there no bill my needs to better?  
Have I at play my money lost?  
My maiden, writes she not a letter!  
Come grievous tidings by the post?  
Then drink I, from anxiety,  
A brimming glass Crambambulli.

Ah! if the dear old folks but knew it,  
How we young Gents, their sons, were stead,  
How we must pinch and sorely rue it,  
They'd weep till their old eyes were red.  
Whilst make themselves the Filii  
So bene by Crambambuli.

And has the Bursch his cash expended?  
To sponge the Philistine's his plan.  
And thinks it folly all extended,  
From Burschen unto Beggarman.  
Since this is the philosophy  
In spirit of Crambambulli.

Shall I for fame and freedom stand then;  
For Burschen weal the sword lift free?  
Quick blinks the steel in my right hand then,  
A friend will stand and second me.  
To him I say, Mon cher ami,  
Before a glass Crambambuli.

It grieves me sore, ye foolish-hearted,  
That ye love not, and drink not wine;  
To asses are ye now converted,  
And might be angels all divine.  
Drink water like the cattle free,  
And think it is Crambambuli.

Crambambuli, it still shall cheer me,  
When every other joy is past,  
When o'er the glass Friend Death draws near me,

And mars my pleasure at the last.  
I'll drink with him in companié  
The last glass of Crambambulli.

Then who 'gainst us, Crambambulisten,  
His spiteful mouth with envy screws,  
We hold him for no kind of Christian,  
Since he God's blessings doth abuse.  
I'd give him, though for life cried he,  
No single drop Crambambuli.

---

During the singing the rum has burnt out, and the beverage, of a syrupy consistence, is ladled into the glasses. At eleven o'clock at night, which is the hour of the police, the kneips are closed. For some years it has been the practice in Heidelberg that a bell should be rung at this hour, which should be the signal for all landlords to close their houses. At first this order received much opposition from the students, and they endeavoured to make it ridiculous. As the order was, that at eleven the bells should be rung, on its first appearance in the Heidelberg wochenblatt (newspaper), at this hour all the dogs of the students ran about the city with bells hung to their necks, and their masters, to fulfil the order to the letter, began, to the terror and amaze of the inhabitants, to set all the bells of the private houses in full swing.

## **CHAPTER XVIII.**

### **NEW YEAR'S EVE.**

The year's last hour retreating,  
Peals out with solemn sound;  
Drink brothers! your last greeting,  
And wish him blessings round.  
'Tis gone! with gray years blended,  
That are for ever ended.  
It brought much gladness, many woes,  
And leaves us nearer to our close.

Voss.

The last evening of the year had arrived. It found the two friends Hoffmann and Freisleben in the room of the latter, where the friends were accustomed gladly to assemble. "Shall I light the lamp?" asked Freisleben. "No! let us sit in the dark. When the eye does not distract itself with outward objects, it then turns with delight to those images which memory brings before the mind." So the two sate; and they thought over all which this year had given and taken away; on all, after which they had striven, and which they had achieved; and on much, after which they had desired to strive and accomplish. Each was lost in this internal review, and the silence was only broken by one of the friends being so powerfully seized with the recollection of the past, that he must communicate his feeling to the other. "So then," said Freisleben, "another year of this beautiful university life is over! and when I call to mind that this year is a quarter, or a fifth of the whole, the words of a German writer are irresistibly forced upon me:--"The world may easily roll on, as it has hitherto done, yet for a million years; and in that period, five thousand years would be exactly proportionate to a quarter of a year in the life of a man of fifty,--scarcely a twelfth of our university life!" What have I done in the last quarter of a year? Eaten, drunken, electrified, made a calendar, laughed over the tricks of a kitten, and so are five thousand years of this little world run out, in which I move!"



HOFFMANN.--Away with this calculation! To embellish the life of our friends, and to enjoy ourselves that life cheerily, that is the business of existence.

FREISLEBEN.--The time spent at the university is certainly the most lovely time of our life; but even in that I am amazed to-day how one can be so merry, when one recollects how much more of unpleasant than pleasant the year has brought.

HOFFMANN.--There I differ. Past pain is pleasant in memory, and past pleasure is pleasure both future and present. Thus, it is only present and future pain that troubles us; a strong presumption of a sensible preponderance of enjoyment in the world, which is augmented by this circumstance, that we are constantly endeavouring to create enjoyment, whose fruition we can, in many cases, foretell with tolerable certainty, while, on the contrary, future pain can be much seldomer prognosticated exactly.

"Yes, to be sure! That is now clear, and I understand it," said Von Kronen, who had caught the end of this demonstration, "but that on which I have been reflecting is not yet clear to me. Perhaps you gentlemen who to-day are in so philosophical a mood can enlighten me upon it."

FREISLEBEN.--What will come of it then?

VON KRONEN.--The phenomenon is one of the most mysterious in nature. Yet--

HOFFMANN.--Only out with it!

VON KRONEN.--Tell me then how it comes to pass that cats have holes in their skins exactly where their eyes are?

HOFFMANN.--Thou whimsical herring!

VON KRONEN.--Without a joke, this is one of the three riddles that I will lay before you. If you can solve them, you shall smoke the whole evening

genuine Havanna cigars, that I have received from Hamburg as a Christmas present.

FREISLEBEN.--That's worth something!

HOFFMANN.--Samiel, help!

VON KRONEN.--The first you have; so solve it.

FREISLEBEN.--I will explain it to thee. The nose has here stretched the skin too much outwards, so that it has cracked it on both sides, exactly where the eyes are.

VON KRONEN.--Well hit! Now for the second. Why do the hares sleep with open eyes?

HOFFMANN.--Because their skin is too short to permit them to shut their eyes.

VON KRONEN.--Bravo! Now the third. Where go the cats when they are three years old?

HOFFMANN.--With thy confounded cats! If the talk was of foxes, or of some other reasonable cattle?

VON KRONEN.--Yes! dear Lord Abbot<sup>[44]</sup> put it together, or I must pronounce sentence of asses on you.

HOFFMANN.--Stop! I have it. They go into their fourth year!

VON KRONEN:--

O damsel! O damsel! O damsel! now marry I thee,  
Now marry I thee!

MR. TRAVELLER enters.--How are you, gentlemen? What an Egyptian darkness there is in the streets! It was all I could do to find the house.

HOFFMANN.--There is moonshine in the calendar to-day.

FREISLEBEN.--The police regulations in our city are very much like the clapper-mills in the cherry-trees. They stand still when the rattle is most needed, and make a terrible larum when, on account of the high wind, the sparrows don't come.

VON KRONEN.--Tell me, Hoffmann, can a man blush red in the dark?

HOFFMANN.--Another hard question! That a man may become pale with fear in the dark, I can believe; but blush red scarcely, since a man may be pale of himself, but blush only on account of himself and another.

VON KRONEN.--Ay, that is true; but the question whether ladies can become red in the dark is a very difficult question; at least, one that cannot be settled in the light.

FREISLEBEN.--Ask the magistrate why he does not light the streets better; that would be much more serviceable than these subtleties.

VON KRONEN.--Dear Freisleben, in a country where the eyes of people who are in love shine in the dark, there is no need of lanterns.

FREISLEBEN.--For thy satirical impertinence thou shalt go into the streets with me, on a voyage of discovery after some red wine. We will make booty of some bottles in one of the kneips, and then manufacture some glee-wine. It will relish with the cigars.

MR. TRAVELLER.--Capital! Hoffmann! let us hasten out too. We will buy sugar and spices.

HOFFMANN.--Good! So every one makes himself a useful member of society.

In a short time all were again assembled; the table was moved forward to the stove. A light odour of cigars filled the room, and the wine, which was played around by the flames in the little coffee-kettle, began to sing. The cloves were now thrown in, the guests each took sugar, and Freisleben filled

the glasses. Hoffmann had brought a guitar with him, and accompanied on it the following song:--

Down, down with the sorrows  
And troubles of earth!  
For what is our life made  
But drinking and mirth!

Drink, and be glad, sirs,  
Laugh and be gay;  
Keep sober to-morrow,  
But drink to-day!

Love's a deceiver,--  
He'll cheat if he can;  
Sweet innocent woman  
Is wiser than man!

Trust her not, trust her not,  
She will deceive!  
Who wins her may gather  
The sea in a sieve!

Laying up money  
Is labour and care;  
All you have toiled for  
Is spent by the heir!

Knowledge is wearisome,  
Save when the wise  
Study whole volumes  
In beautiful eyes!

So, down with the sorrows  
And troubles of earth!  
For what was our life made  
But drinking and mirth!

Then drink and be glad, sirs,  
Laugh and be gay;  
Keep sober to-morrow,  
But drink to-day.

"Seven Temptations." By Mrs. Howitt.

All repeat the last verse, and drink.

FREISLEBEN.--Mr. Traveller, that song originates in your Fatherland. She who wrote it shall "live-hoch!" (They touch glasses.) Now, Von Kronen, let us have a German one.

Von Kronen sings:--

### THE SONG OF WINE.

The song of wine is short and fine,  
And joy and drinking doth combine.  
Oh! he who cannot sing it yet,  
Will learn it now we here are met.  
The song of wine, etc.

Ye chat not long your cups among;  
Wine fires the spirit into song,  
He who can sing, high be his laud,--  
He who sings not can hum accord.  
Ye chat not long, etc.

Wine clears the blood, gives bolder mood,  
And makes the heart all mild and good.  
Wine is the death-blow to old Care!  
A glorious call to do and dare!  
Wine clears, etc.

The wine-estate, without estate,  
And without castle 's rich and great.  
Yes, gods we are when wine flows clear,  
And old Olympus yet stands here.  
The wine-estate, etc.

Join hand in hand; in Bacchus' land  
All men are free, and equal stand.  
O magic drink! thou noble wine!  
The golden age for ever's thine.  
Join hand in hand, etc.

FREISLEBEN.--Our absent friends shall live! (They touch glasses.)

MR. TRAVELLER.--Will they return soon?

VON KRONEN.--We expect them to-morrow, and their Christmas presents, which their Frau Mamma and Mamsel have given them. Pittschaft will be

well packaged again, who would not on any account fail to spend his Christmas-eve in his Father-city.

MR. TRAVELLER.--The exchange of gifts at Christmas, as it is practised in Germany, pleases me much; and I am especially delighted with the Christ-tree.

VON KRONEN.--Have you seen the huge tree at the Sattlermüllerei, [\[45\]](#) where the Hanseatic students hold their Christmas?

MR. TRAVELLER.--No. Do the students then also present each other with Christmas gifts?

VON KRONEN.--One or other of the Chores frequently amuse themselves with this sport. I recollect that a society to which I belonged agreed to exchange Christmas gifts, of which none was to cost more than six kreutzer--twopence English money. The most droll things imaginable were brought on the occasion.

HOFFMANN.--The glee-wine is famous; it warms one right through and through. Let us sing a beautiful song. He plays and all sing.

## TABLE-SONG.

### FROM GOETHE.

Heavenly joy entrances me  
Far beyond exploring;  
Shall it one day bear me up  
To the star-lands soaring?  
Yet, in truth, remaining here,  
More is to my liking;  
By the wine-glass and the song--  
On the table striking.

Friends, I pray ye, wonder not  
At my thus deciding;  
For no blessing yet is like--  
On the earth abiding.  
Therefore swear I solemnly,  
Without all concealing,  
That I shall not recklessly

Out of life be stealing.

But as here we all have met  
Time to speed with pleasure;  
Should, methinks, the Beakers chime  
To the Poet's measure.  
Good friends must, a hundred miles,  
Move from one another;  
Therefore you met here, stoest-an  
Brother as with Brother!

Live then he who is of peace  
And of good a donor!  
First and foremost to our king,  
His of right's the honour.  
'Gainst all enemies, the state,  
Still he doth defend it;  
To uphold it planneth much;  
Much more to extend it.

Now the next, salute I her,--  
Her the true alone one!  
And let each, as gallant knight,  
Think upon his own one.  
Should a lovely maiden guess  
Her of whom I'm thinking;  
Let her archly nod to me--  
To her own love drinking.

To our friends!--the two or three--  
Be the third cheer voicéd,  
Who with us in sunny days  
Quietly rejoicéd.  
They who from our night the gloom  
Swift and lightly scatter--  
Lift to them a hearty--hoch!  
Old friends, or the latter.

Broader now rolls on the stream  
With augmented billows;  
"Live they, hoch!" resound the cheer  
Unto all good fellows.  
They who with combined strength  
Plant themselves together;  
In the sunshine of good luck;  
In the worst of weather!

As we are collected here,  
Thousands are collected:  
May their sports and joys run high--

Higher than expected.  
From the spring unto the sea  
Many mills are turning,  
Wider far!--my heart streams out--  
For the whole world burning!



## **CHAPTER XIX.**

### **NEW YEAR'S EVE CONTINUED--SKETCH OF THE HISTORY OF HEIDELBERG UNIVERSITY.**

The company were raised into the best spirits by the song. The splendid cigars, such as seldom wander to the banks of the Neckar; the sparkling wine, which welled out of the little machine as inexhaustibly as cash out of Fortunatus' purse--all contributed to render the conversation, which turned on the recent festivity, animated and delicious. The Christmas festival, one of the very few people's feasts, which divided Germany yet maintained inviolably universal, had given especial pleasure to the Englishman, to whom it was a novel circumstance. Above all, he could not sufficiently extol a walk which his friends had taken him on Christmas-eve.

He who has ever witnessed in Germany a celebration of Christ's gifts to the children, knows well the joyful expectation with which the children await in an adjoining room the ecstatic moment when the doors of Paradise shall be opened to them. How beats their hearts, when at length the bell rings, after whose sound they have for weeks long yearned, and in anticipation of which, they have often calculated how frequently the Sandman<sup>[46]</sup> must do his duty before that moment arrived. And now, the instant that it is become dark, the impatience of the little ones can be no more restrained, and in all, even the poorest houses, the *Bescherung*, or distribution of the presents, begins. The shutters on this evening are closed in scarcely any of the houses, so that in the dark, as you pass along the streets, you see into the rooms lit up and embellished for the occasion. The Christ-tree covered with lights, throws its beams into the very darkness of the street; and the jubilant cries of the rushing-in children are heard, as transported with the view of their individual presents, they fly to each other to show them. This scene his friends had brought to his observation, and he could not sufficiently thank them for it.

A modest supper was now brought out; the friends seated themselves round the table, and while they addressed themselves to discuss it, they heard the reports of pistols every where resounding in the streets. The conversation turned itself upon the festivity of the present night, and on the different modes in which it is celebrated in different countries.

"That shooting," said Freisleben, "is a pleasure that we will surrender to other people; but the Vivat! we will help to accomplish. The Chores, Mr. Traveller, which betake themselves this night to their kneips, make, about twelve o'clock, a procession through the city, and bring to some of the Professors a 'Lebe hoch!' But till the hour arrive, we will endeavour to entertain ourselves with the recollection of a former occasion of this kind. It is so natural, at the conclusion of the year, for us to bring its circumstances once more before us, and with what must ours knit themselves?--Certainly with the University-city. I therefore make the proposal, that every one of us, in rotation, relate something which has a particular reference to remarkable persons and events, occurring or existing in Heidelberg in former times, and which were never wanting in Ruperto-Carolo; and in order to make a worthy beginning, our great historiographer, Von Kronen, may, as he lately was on the point of doing, communicate some of the most striking passages from the annals of the City of the Muses."

The proposal met with general acceptance. The glasses were again replenished; the cigars sent their curling fumes into the air; and Von Kronen, throwing himself back in the corner of the sofa, began--

Heidelberg is one of our most ancient university-cities. Heidelberg, in the unfolding history of German science and German spirit, took a distinguished stand, and yet exists it, in the full-grown image of this scientific life of Germany, an important and essential member. At the mention of this university, start up in the memory renowned names, the recollection of great crises in the history of literature. It is, to the whole student youth of Germany, the spot of promise and of desire. It stands foremost amongst those German universities to which even from abroad, from beyond the Rhine, the Alps, even the ocean, scholars assemble themselves.

The most numerous and the most living traditions of German literature and German spirit amongst the French and English, date from Heidelberg, and Heidelberg is therefore pre-eminently the representative of our education, the type of the German universities, with those nations.

The founding of the university took place in the year 1386; a period in which, though literature flourished in Italy, a deep night still brooded over Germany. The then Emperor Charles IV. had erected a school of general study at Prague, on the model of the Paris university; and the advantages of this institution could not escape the eyes of the Elector, a friend of the Emperor's, in his frequent visits to Prague--advantages which were derived to the whole country from this establishment. He, therefore, resolved to erect a university in his city of residence, Heidelberg. On the other hand, the foundation of the university had a political object. It was intended to prove an instrument for advancing the interests of Pope Urban VI., whose partisan Rupert I. of the Pfalz was. In this cause it stood forth in opposition to the university of Paris, which had declared for the other pope, Clement VII. Notwithstanding this circumstance, it was equally formed on the model of that of Paris, and received part of its first teachers thence. As there, the scholastic studies acquired an exclusive influence. Theology was in the ascendant; the Aristotelian philosophy, and the Canon Law, followed in immediate connexion; medicine, somewhat later, raised itself out of its scanty beginnings. Dialectical contentions take up nearly the whole of the early history of the university. Yet it is to be remarked, that the returned spirit of living experience announced itself, as it had earlier done here, through the predominance of Nominalism. Perhaps the study itself of the physical writings of Aristotle, slight and confined as it always was, might lay the first foundation of the empirical researches into nature; which later, here, as in Paris, came forth so conspicuously. On the contrary, the university closed itself resolutely against the humanity tendency, which penetrated into Germany out of Italy, and which Philip the Upright also was anxious to plant in Heidelberg; but which Frederick II., and his successor Otto Henry, were the first to accomplish, preparing thereby a way for the Classical languages and literature themselves. Through Micyle, Ehem, and Melancthon, the university was reorganized; the predominance of the theological faculty restrained; and thus, together with the philosophical and humanity studies, a wider circle of operation opened to the practical

sciences. The study of law flourished under excellent teachers; in the faculty of medicine professorships of therapeutics, pathology, and physiology, were established.

The storm which now burst out in the train of the Reformation reduced the universities to great straits; religion became matter of politics, and the personal connexions and opinions of the princes, determined often in a very powerful manner the course of knowledge. The unfortunate embarrassments of the Elector Frederick V., led to the storming of the castle of Heidelberg by the Bavarians; to the expulsion of the professors and students; to the sending away of the valuable library; and finally, to the total suppression of the university. Carl Frederick had it entirely to reinstate anew. He did it with a noble zeal, in the spirit and according to the needs of the time. The most distinguished teachers, as Cocijus, Spina, Frank, Freinsheime, and Textor, were called to it; a professorship for State and Popular law, the first founded in Germany, was established; and entrusted to the celebrated originator of this new doctrine, Samuel Puffendorf. A freer spirit arose in both speech and writing; and Carl Ludwig laid it under no restraint.

New agitations of the time, again disturbed this happy condition of the university; the political rule changed with the personal affairs of the princes; and literature felt the influence of this, in the strongest and most immediate manner. The teaching of philosophy was at a later period made over to the Lazarists; a dark reaction commenced against the liberal spirit; and at the same time that the peculiar speculative element of Heidelberg university fell into the shade, the empirical sciences rose up again into new existence on all sides.

A society had already, in 1734, established itself under the auspices of Professor Heuresius, for the cultivation of the history of the Fatherland, which however fell again. In 1769, a philosophical and economical society was founded in Lautern; and in 1774, a school of state economy. Both of these were removed to Heidelberg in 1784, and richly furnished with books and collections. From Heidelberg went forth the first impulse towards a scientific treatment of the doctrines of State economy.

The House of Zähringen now stepping into possession of the Pfalz, thus presided over the university. The second of the newly acquired territories,

the Breisgau, erected in the university of Freiburg a rival to Heidelberg; a circumstance which was not without its effect on the latter. By the removal of the Catholic seminary to Freiburg, the scope and operation of the theological Faculty in Heidelberg were strikingly constricted; but only the stronger, and in this respect in opposition to the Freiburg university, and in more conspicuous superiority, advanced the other Faculties of Heidelberg, especially the judicial and medicinal, and of the philosophical, the section of state economy; which last, through the new organization of the university, constituted an especial department, and was placed in rank, at the head of the philosophical. This scientific tendency has raised itself on the preponderating necessity of the nation and the times; upon it grounded itself the fame and consideration of Heidelberg in foreign countries; and the new government was sagacious enough not to disturb this natural and historical position of the university by ill-timed interference. The demands of modern education were so far conceded to, that, by calling into it men of the highest celebrity in all departments, a combination of the various ruling tendencies of the spirit of the times, a universality of studies, was attempted. The two Vosses were won in order to give new splendour to the university, and demonstrate the taste for classicality; and a new impetus was given to the novel speculative tendencies in philosophy and theology.

But it soon became sufficiently convincing that these elements of education did not naturally assimilate themselves to the scientific life of Heidelberg, but were only artificially engrafted; that Heidelberg has not its mission to represent in itself the spirit of modern science and art; but the simple vocation of working out education and accomplishment suited to the necessities and interests of the practical life of the state and of civil offices, in both their wider and their more circumscribed spheres. It was then suffered to retain the character which it had established for itself, and those endeavours to force it into directions which did not naturally originate in its own bosom and nature, were discontinued. Thus it came to pass that the philosophy and the speculative theology altogether dragged; that the classical and antiquarian studies became one-sided; that even in the practical sciences certain methods became prevalent; that the electrical shocks of the stream of the new literary topics and of scientific revolutions in vain thundered and lightened and raged round the professors of the old--professors who, from their isolated stools, smiled over that rushing and

confused scene of excitement; and that the men of modern culture, the genial spirits, the speculative heads, with one voice called down anathemas on that Heidelberg Philisterium. But this anathematized Heidelberg Philisterium yet possesses an internal strength and freshness, with which the hollow inflation of the *soi-disant* intellectual world found it difficult to measure itself; these old gentlemen, who seem so far removed from the spirit of the age, yet rest themselves in the real soil of the time, in the spirit of the period, in the progression of political and social life, far deeper than those genialists who in high-sounding theories and systems imagine that they have seized on the world-spirit. This scientific life which seems to stagnate, flows on without intermission noiselessly, steadily, but not by fits and starts.

HOFFMANN.--The old gentlemen shall live, and to their health we will rub a salamander. Every one prepare a half-glass, and then I will command.

All seize their glasses, which are half-filled. They rub with them on the table in circles before them, all the time saying--"Salamander, salamander, salam--," Hoffmann commands, One, two, three! and at the three the glasses are emptied; One, two, three! they are again set down on the table altogether with a clap, where they continue rattling with them, till the command again One, two, three! when they are all lifted aloft, and at the final command once more set down altogether on the table with a thump.

## CHAPTER XX.

### **NEW YEAR'S EVE CONTINUED.--UNIVERSITY STORIES.--VON PLAUE.**

HOFFMANN.--I will now, for a change, give some passages from the life and deeds of a hero, whom, were I a Zachariä, I would celebrate in a no less magnificent epic than he has done the exploits of his Renommist. The Herr von Plauen, to whom I allude, studied for more than ten years here, and enacted more mad pranks than the whole united university besides would have been able to do. He was a little, broad-set fellow, of prepossessing exterior and expressive countenance, who stood particularly well with the ladies. His uncommon strength; his accomplishment in all bodily exercises; his overflowing humour continually gushing forth in witty conceits, procured him a constant good reception in the student world, and in the social circles of the city; and he long played in his Chore, as well as in the ball-room, a distinguished part, till his total sacrifice of character, and his really reprehensible actions, which were all alike to him so long as they carried him to his object, completed his ruin. By his strength he frequently put to shame the travelling Hercules who exhibit their powers for money; since, poising himself on a perpendicular pole, he would stretch himself out horizontally, so as to form a right angle with the pole, and at his pleasure, could double up strong silver coins. In the gymnastic ground, which yet existed, no one could stand against him; and in the fencing-school he beat down every one's guard. As he once travelled in the Upper-Rhine country without a passport, and a *gendarme* on horseback, would have detained him, he threw both the man and his horse into the ditch by the roadside, and so left them. He was especially expert in the then so-much-liked shooting of geese, and thus made many a Philistine the poorer. Understand me right, Mr. Traveller; to shoot, in studenten phrase, means to abstract without yet doing any thing unjust or contrary to honour; since, especially in the olden times, this was a student custom. Small things, as penknives, sticks, etc., if they were not dedicated, were shootable. One might take them from another, and with the words--"This is shot," he took possession of them. It

may easily be conceived that it was only the elder students who indulged themselves in this practice against the Foxes, and no one could secure himself from this Spartan plundering but by instantly declaring a thing, which another seemed to have a design upon,--unshootable.

VON KRONEN.--This expression dates itself from the practices of the schools of the fifteenth century. As then the teacher, with his helpers, was only engaged by the inhabitants of a place there for a year or so; so if the parties disagreed, the master, with his assistants, to whom generally a number of boys added themselves, proceeded from land to land, and supported themselves with alms, with singing before the houses, and with all manner of petty plunderings. The scholars, who stood expressly under the protection of the assistants, must deliver to them geese, ducks, hens, and the like, which they became very expert in carrying off from the villages, and which, in their language, they termed shooting.

HOFFMANN.--I have never before heard of this custom of antiquity. It is a pity that so beautiful a practice is become obsolete, or I could, as a musician, make most profitable use of it.

FREISLEBEN:--

Friends beloved! there were finer times once  
Than are these times--that must be conceded,--  
And a nobler people lived ere we did.

HOFFMANN.--But to come back to our story. Herr von Plauen possessed a more admirable dexterity in shooting than any of the schoolboys just referred to could possibly have; and no wonder,--as they were only schoolboys, and he was a student. Plenty of stories are related of him; how he twisted the neck of many a living goose, and popped them under his cloak; how with ladder and hook, he brought many a plucked goose down from the lofty store-room; yes, and how he came most easily at one ready stuffed and roasted.

On Holy St. Nicholas's-day, a worthy citizen of the place, whose little son also was called Nicholas, prepared a feast for some guests, the chief ornament of which was a goose, as fine as ever gabbled and screamed in the



Pfalz. The goose was carried up; the guests had not, however, yet made their appearance, but the little son was impatient, and howling and crying desired a slice from the goose. The father strove in vain to quiet him; he howled and cried on. "Then," said the old man, "I will give the goose to the Pelznickel." (In our country there goes from house to house, on St. Nicholas's-day, fellows in disguise, who inquire into the past behaviour of the children, and give to the good ones apples, nuts, and little cakes, but warn the bad and threaten them with the rod. These disguised personages are styled Pelznickel.) With the word the old man set the dish with the goose in it on the outside of the window! This frightened the little one; he promised to be quiet if the father would take the goose in again; whereupon the father reached the dish in again, but to his astounding, the goose was gone! It was already rapidly on its way to the city of Dusseldorf, (a Wirthshaus in Heidelberg), where the Herr von Plauen and his companions found it smack right delectably with their red wine.

A similar passage once befell our hero in the village Schlangenbach, where he was for a long time the guest of the Amtmann. They both, he and the Amtmann, who had himself been a lusty student, made a call on the Frau Pfarrerin, the parson's lady. They talked of this and that; of husbandry, and of poultry and geese. "Ay," said the parson's lady, "I have a goose hanging above; you may match it if you can. But with what care and labour have I fed it myself; and stuffed it myself with the best Indian corn that was to be got. But, gentlemen, you shall judge for yourselves. I invite you next Sunday to discuss this famous goose."

"And yet," said Plauen, "I will wager that the Amtmann has one that is quite as good."

"Impossible!" exclaimed the Frau Pfarrerin.

"Amtmann," rejoined Plauen, "you won't admit that! I challenge you to invite the Frau Pfarrerin and her husband to-morrow, Saturday, also to eat a goose, and we will afterwards see which goose is the best."

"Done!" said the Amtmann.

"We'll see!" said the parson's lady.

The residence of the plucked goose was soon ascertained by the two. It was up in the chamber in the roof, where it hung, and made many ornamental swings and gyrations in the wind that blew through the dormant windows. It was a ravishing sight, which the world only was allowed to enjoy for this one day. It was brought away in the night, and the next day at noon, most deliciously dressed, was served up before the invited guests.

"Now, how does the goose please you, Herr Pfarrer?" asked Plauen.

"My husband understands nothing of the matter," interposed the Frau Pfarrerin, "but I tell you the goose is good, but mine is much better. You shall convince yourselves; that I promise you."

Alas! the Frau Pfarrerin was not able to keep her word; for on the morrow she became aware, to her horror, that her plucked goose had taken a greater flight than it had ever done while it was yet unplucked. She was excessively annoyed; and to propitiate her, the waggish companions sent her a handsome cotton dress. On the package was inscribed--"A dressing for the goose." The good woman was completely conciliated, and highly delighted; but her husband thought that the words would bear more than one construction.

FREISLEBEN:--

The Pfarrer's wits were sharp and sound,  
So let us all drink to him round.     (They drink.)

HOFFMANN continued.--Another time, in a cold winter, he put, one night, the figure of Hercules, which adorns the Brunnen in the market-place, a shirt on, much to the bewonderment of the market people when they arrived in the place the next morning. Another time, as it was the fair, the students, at his suggestion, got all the strolling organists together in the fair, who each kept on playing a different tune, which, with the accompaniment of the barking of their assembled dogs, produced the most astounding effect.

I must relate yet another of his tricks, which, however, he played off in another university city directly before he came to Heidelberg. An innocent

youth, who was just come raw from the school, recognised in Herr von Plauen a countryman, and begged of him, as he would go away the next day, that he would accompany him to one of the professors, in order to enter himself as an attendant of his lectures, as he really did not know how it was proper to conduct himself on such an occasion.

"With pleasure," answered Von Plauen, gave the Fox at once his arm, and conducted him to one of the professors, who was completely deaf. As they entered the room, the rogue presented the new-comer, with the words,--"Here, thou old Philistine! I bring thee a young gentleman who will do thee the favour to listen to thy lectures. Take care, however, that thou art not too tedious with him, for he is my friend."

The startled Fox seemed to have dropped at once out of the clouds as he heard his friend speak in this manner, and his astonishment mounted to its height as he heard him again say, as he took his leave--"Farewell, old Camel!" which salutation the professor answered with a very gracious bow.

"But for God's sake, then," asked the Fox, "may one then speak in this manner to a professor of the university?"

"So, and no otherwise," replied he, "must you address them all; they are accustomed to nothing else; and moreover, they soon lose all respect for him who does not cock his thumb a little at them. Besides this, I have been particularly civil to-day, that I might not astonish thee too much, as is the case generally with youths when they first come from the school. But thou wilt quickly acquire the proper tone."

"O! if it comes to that," said the Fox, "I'll soon be ready for the gentlemen."

Von Plauen laughed in his fist as he rode forth the next morning through the city-gate; and he soon learnt by letters that his protégé, in proceeding to enter himself with the next professor, whom he addressed in the same style, was speedily sent head foremost down the steps, as he had unluckily happened to come across a professor who not only had an excellent pair of ears, but a very fiery temper.

Some pranks which our hero permitted himself afterwards, laid the commencement of his fall. Once he feigned himself delirious, raged and cried out, for no purpose, but to have the pleasure of spitting in the face of the physician who was called in, having, as it is asserted by some, betted a considerable wager on this point.

He spared the fair sex as little in his wild conceits; which were not, however, always very graciously received. He asked permission from one lady in the open street to be allowed to light his pipe at her eyes. Another time, a carriage, in which were some ladies setting out to the ball, being drawn up across a narrow street, up which he was coming, he opened the door, sprung in, and out at the other door, followed by all his companions in succession, about twenty in number. Once he went with his acquaintance to walk in the Heidelberg Castle. It began to rain heavily, and the mistress of a ladies' school, with her pupils, had taken refuge in the so-called Octagonal House, on the terrace, which was then not completely closed, and had only one entrance. This the wild troop beset, and refused egress to the young ladies, except on the condition that each student should be favoured with a kiss from one of the ladies. The ladies heard the proposal with horror, and long held out siege in the little building; but as night was fast approaching, and not a soul appeared within view, or hearing, on account of the bad weather, they were at length compelled by necessity to accept the horrid condition, and were then conducted safely home by the wilful students. By this exploit, however, Von Plauen, sunk dreadfully in credit with the world of beauty, as he was well known and immediately recognised.

Finally, our hero was counselled or ordered to withdraw himself, for a stated period, from the university on account of his repeated duels, and concluded with himself to pass the half-year of his exile in the Hessian Neckarsteinach. As he was intending to withdraw without paying his debts, he found that his testimonial was taken possession of by his landlady: for Mr. Traveller, you are perhaps aware, that if a creditor fears that a student meditates quitting the university without satisfying his just claims, he lays before the Amtmann of the university the amount of his bill, and the exit-testimonial, without which a student cannot be admitted to another university, is refused him till he has discharged his debts. Plauen immediately procured all the Hellers (each in value of the twelfth of a

penny English, or two hundred and forty to the gulden, or twenty-pence English) that the place afforded, and sent them, to the whole amount of his debt, to the poor landlady in a bag, which, of so small a coin, were so many as took her several days to count them out.

On a fine spring day he was, to every one's astonishment, seen dressed as for a festival, leading in a rich silk riband, a lamb gaily adorned with flowers, along the banks of the Neckar. To those who wondered at his proceedings, he said that this was the custom of his Fatherland on that particular day. So went he on to Ziegelhausen, where he spent the night, and where he was the better entertained at the Wirthshaus, because he had attracted many people into the house by this unusual spectacle. The next morning he made a present of his lamb, which, however, was speedily reclaimed by its real owner, from whom Plauen had "shot" it; and then betook himself to Neckarsteinach. Here he played the pious Catholic. On Corpus Christi day, when the Catholics parade in solemn procession round the town, singing and praying, and say mass at certain altars which are erected in the open air, he followed the priest, himself clothed for the occasion, and carried the train of his robe. Soon afterwards he showed every where a letter sealed with black, which he professed to contain the intelligence of his mother's death. Every one took the deepest interest in his apparently deep-felt grief, and the more so as he caused masses to be said in all the churches whose priests he had before so much flattered. His mother, however, lived long afterwards, and the whole was only invented on purpose to have the masses said. Equally false was a later assertion, that he had received information that they had appointed him a canon in his Fatherland; and from that time he went about the little place in full costume, and carrying a cross.

When the period of his banishment was completed, he returned to the city on a day in the evening of which there was to be a ball. An officer who was a countryman of his, then resided in Heidelberg, and had frequently visited him in Neckarsteinach. He hastened to his house, and then found that he was absent on a journey. As an old acquaintance, he ordered his rooms to be opened, managed easily to open his commode, and to draw out a new uniform of the officer's. Into this, which was indeed much too tight for him, he forced himself, and appeared in it that evening at the ball, where

he told the people one lie upon another, of his having succeeded to this new post of honour. He looked, however, comical enough in the uniform, which was so narrow that when his partner in the dance let fall her rosette, he was not able to stoop to pick it up for her.

Von Plauen soon found again a swarm of acquaintance, and again played over his old tricks. One of his acquaintances received from his native town, which was somewhere not very far distant, a large and most famous cheese, and a hamper of good wine. The others soon got wind of it, and wanted to persuade him to make a merriment over these things. But he assured them that he could not touch a single thing of them, as he expected an immediate visit from his family. His father, he said, had written him that he yet hoped to eat of the cheese with him, and to drink a glass of the wine with him; and on that account he should leave every thing untouched till they arrived.

They pressed him no farther, but one day at noon, as the lawless set knew that he was fast at his lecture in the college, they rushed into his chamber, drank the wine, and filled the bottles with water; and the cheese they scooped so skilfully out from beneath, that nothing but the outward rind remained standing. They set it again in the dish so that nothing was to be seen. It may be imagined what was the poor fellow's dismay as he set the cheese before his newly-arrived relations, and saw it, at the first cut, fall into mere fragments of peel; and what a face the old man made as he came to taste of that flat water instead of his famous Rhine-wine.

Soon afterwards, the student thus treated, missed a sum of money, of some three hundred gulden, which had been remitted him in order to defray the expenses contingent on the taking of his doctoral examination. Von Plauen, who had spent the night with him shortly before the theft was discovered, fell under strong suspicion, more especially, as, at the same time, he was accused of forging bills of exchange. He was thrown into the university prison, and his examination begun. But he did not await his sentence. One evening, as he knew that the fat beadle to whom the care of the prison was entrusted, remained alone in the house, he tore the lock from the door with his hands and hastened down into the beadle's room. The beadle had the keys belonging to the different rooms in the house, just then in his hand,--"How came you here, Herr von Plauen?" demanded he. The

prisoner seized a knife that lay on the table, and warned him that if he did not deliver up to him the keys, he would stick the knife into his fat paunch. The terrified man instantly surrendered the keys; the prisoner shut him in his own room, secured him, and escaped from the house. He hastened over the bridge. There he threw himself over the gate, which then was closed every evening; but he stepped up to the window of the gatekeeper, knocked, and laid down a kreutzer, saying, "I will cheat no man of his money."

He was pursued, but without avail; and various reports are in circulation concerning his latter fortunes. Some say that he became a fencing-master in England, and yet lives there; others, that he continually gave himself more and more to drinking, and finally died in the hospital of a great German city, where, in the last hour, he called for a choppin of beer, and drank it o

FREISLEBEN.--So let us, in a better liquor, wish that he had left a better memory. His tricks, if they were not always the best, have at least served to amuse us; and so may it go well with him in the other world, where, as his deeds certainly could not conduct him upwards, let us hope, though somewhat against hope, that a deep and final repentance prevented his going inevitably downwards.

They touch glasses.

## **STORY OF THE BLACK PETER.**

Mr. Traveller, the turn now comes to you to relate something; but it really is a difficult task for you to have to relate something which is connected with Heidelberg.

MR. TRAVELLER.--Luckily I have recently heard the history of the life of a student, who formerly studied here, and I think it is sufficiently interesting;-I shall, therefore, relate as much of it as I recollect.

Some twenty or thirty years ago, a young man came to Heidelberg, whose name was Schwartzkopf, a native of Fulda in Hesse. His father had been an officer in the Hessian service, but he died early, and his widow was

compelled to straiten herself severely, in order to be able to educate her only son out of the proceeds of her small property, and still smaller pension. Nature had made amends to the son of the widow for his poverty by many fine endowments of person and mind, and proudly gazed the affectionate mother on her darling son, as with little solid cash, but on that account with the more well-intended exhortations, and with many tears, she dismissed him on his journey to the university. Many were the anxieties that filled her mind when she thought that her son indeed possessed a good heart, but was still very giddy and of easily persuaded mind. He, with joyful spirits, and full of good resolves, proceeded to his new place of residence. He studied the greater part of the first year with zeal, and he wanted not good friends with whom he could spend his hours of the Muses in the most agreeable manner. His evil angel then caused him to be involved in a duel, and on this occasion he made some acquaintances that were of disastrous influence to him. Through them he became acquainted with play, to which he soon gave himself up passionately. It is true that at first he played only in his leisure hours, when his old friends were not about him; but he soon came to neglect these, and his leisure hours soon became continually less and less able to satisfy his desire for play, and then his studies were sacrificed. His friends grew tedious to him, because they had other interests; his books were covered with thick dust; and if he sometimes attended the lectures, they showed only how far he had fallen behind in the race of knowledge, and he hastened in vexation to the kneip, in order to drown in beer and play the upbraidings of his conscience. Thus he continued to live on for a long time; he returned to his room only to pass the night, even not that always. In the morning he fled from it as early as possible, because all there looked desolate. His books were at length sold, and by degrees he had disposed of every thing to the Jews, except the wretched clothes on his back, in order to feed his unhappy passion. Many a time would he fall into a horror, when he awoke out of a dream, which had carried him back into his early life, and saw around him that empty room, or when he received a letter from his affectionate mother, which was full of tender warnings,--from his mother, who denied herself even the most necessary things, that he might not want that money which he thus consumed on his ruinous habits. But these terrible reflections drove him only for a brief space out of his wild life, for he was already too deep sunk in it, and felt no longer the strength necessary to work himself out of the gulf.



It was then that he one day received a letter addressed by a strange hand, and sealed with black. His mother was dead, and the letter was from his guardian. Far as Schwartzkopf was already fallen, yet this letter deeply shook him; it embittered the melancholy intelligence beyond words, since his guardian, a severe man, wrote him, that he had driven not a few nails into his mother's coffin; that he had wasted his property; that he should immediately return home, in order to be made acquainted with the real state of his affairs, which left him little other alternative than that of becoming a soldier in the ranks. His state of mind for the first few days was horrible, and he was at the very point of self-destruction; but this went by, and he concluded, after more quiet reflection, that it was the best to turn his footsteps homewards, in order, if possible, to move his guardian to more moderate measures, or, came it to the worst, to enlist into the army. His debts were paid, and he put up the slender remains of his possessions in his knapsack, with which, early one morning, he passed through the gate leading towards Frankfort.

In the evening of the second day he had arrived in a great wood, which extended towards Fulda. The forest seemed to stretch itself out endlessly before him. It was already nearly dark; and a violent wind against which he had to labour, bent the tall and gloomy pines, which groaned awfully. Full of melancholy he wandered forward; the memory of the past came over him with subduing power; and he almost wished that one of the mighty trees might be dashed down by the tempest, and bury him in its fall. He began to sing a song, in order to chase away those painful thoughts,--when, as he turned an angle of the path, a rough voice cried "Halt!" and at once three men sprung out of the bush. The coarse hunting-garb, the pistols and hangers with which they were armed, and the disguised faces, left him in no doubt that they were some of the gang that kept that part of the country in disquiet.

The student feared them not; fear had never been any part of his nature, and least of all now, when life to him was made indifferent by despair.

"Leave me alone," said he, "I have nothing for you."

"But with your permission," said one of the robbers, "we will make a rather nearer acquaintance with your knapsack."

"With all my heart," answered the student quietly, handing over to them the knapsack, at the same time that he filled his pipe, and asked one of them for a light, as he had himself lost his fire-apparatus. He seated himself to rest on a block of stone by the side of the road, and requested the robbers not to detain him too long, as he had yet far to go to his night's quarters. They could not refrain from a laugh at the *sang froid* of the student.

"You seem to me sad fellows," said Schwartzkopf, "that you don't understand your business better; at thirty paces distance you might have seen very well, that you would get nothing, from me."

"Be silent, hound!" cried one of them, "or in a moment we will cut thy throat."

"And a right noble deed too," added the student, "for three men to cut the throat of one. If you were not miserable Philistines, I should be obliged to call upon one of you to give satisfaction for that word, hound!"

"By all the devils, he is right, Heiner," said another; "he has a right to it, since he has shown himself so brave, and as there is nothing in the knapsack, except a few miserable articles of covering."

"Does the fellow think I'm afraid of him?" cried Heiner.

"Ay, to be sure I do," said the student, quietly smoking on. The robber was raging, and demanded on the instant to fight the audacious student; but his comrades disapproved of it. It was too dangerous an undertaking to decide this affair on the highway. They proposed to adjourn to their encampment; and offered in a manner friendly enough to the student, if he were not killed in the combat, to give him quarters for the night. He was obliged to content himself with the matter, and so they put themselves in motion. They went on long, still deeper and deeper into the thick of the wood, and on the way made inquiries from the student, whom they watched pretty well, as to the circumstances of his life; which he related to them truly.

At length they came to an open place in the forest. Here the surrounding hills formed a sort of basin, which on the one side was shielded from the

wind by a pile of rocks, and on the other by a screen of stupendous trees. A little spring gushing out from the foot of the rocks, wound itself through the carpet of grass, upon which the robber-troop, consisting of about twenty men with their wives and children, had built some huts. The sentinels on the outposts had first announced their approach, and they were speedily surrounded by the troop. When they learned the intention of Heiner and the student, they gave it their hearty applause; and as soon as all had refreshed themselves with food and drink, a battle-ground was selected; Schwartzkopf received a hanger, and the robbers formed a circle round the combatants. The women kindled great pine-torches, in order properly to light up the scene.

The robber fiercely attacked his opponent; and the whole scene had a singular aspect. The powerfully built figures of the men, whose bold features yet more strongly stood forth in the light of the torches, as they, smoking their short pipes, looked on the strife, full of expectation of its issue; and the women dispersed amongst them in singular and various attire, which they had selected for themselves out of the plundered stores. All watched the fight in deep silence; which was only broken by the clattering of the swords, the dashing of the water, and the rush of the winds as they raged through the woods. The student, by far superior to his antagonist in skill of fence, parried with the utmost coolness, quietly meeting with his sword every blow of his opponent; but as the robber began to press upon him closer and closer in a furious attack, he suddenly struck in before the stroke of his adversary, and in the same instant the robber let his sword drop, and the blood spouted hotly from the arm-wound through his sleeve.

The men had seen the contest with astonishment; the arm of the wounded robber was bound up, and the rest of them gathered together in a group in earnest consultation. The student continued standing alone, doubtful whether he should make an attempt at escape, or should wait the upshot of the consultation, which might be fatal to him. He concluded to wait.

A robber now stepped up to him, and said, "Our captain fell in a skirmish a few days ago. We have all seen, with admiration, your perfect coolness, your courage, and your swordsmanship; when you arrive at home little

good awaits you; remain with us, and be our captain, and so will you find a better life than amongst those miserable soldiers." Schwartzkopf hesitated only a short time. He weighed the attraction of the proposal against the life which he had otherwise before him. He reflected how dangerous it would be to refuse; and if scruples arose in his mind, he silenced them again by the thought that he could again give up this life when he pleased. After a short rumination, he gave his pledge of adhesion and fidelity to the robbers. The intelligence spread itself with rapidity through the whole robber troop; the wives brought wine-cups, and all drank to the health and prosperity of the new captain. They caroused till deep in the night, and drank brotherhood to Schwartzkopf, who, under the name of Black Peter, was speedily known and feared through the whole country round.

About half a year from this event had flown away. The complaints of the country people in the neighbourhood of Fulda, of the oppressions of the robber band, had ceased. But from time to time it undertook greater exploits, with such calculation and astonishing boldness, as testified the new spirit that was come amongst them since they were led by the Black Peter. The real name of Peter Schwartzkopf, from which this was derived, was not recognised. The former student, of whom people had so often read in the newspapers, was believed to be dead, or to have fallen into the hands of the recruiting officer, and to serve in foreign lands. The captain, however, was known as the Black Peter, from two other causes. He always wore a black mask; and he had never been seen otherwise than riding on a black horse. The inquietudes of the war had hitherto made impossible any earnest attempt to put down those disturbers of the public security; and this was rendered the more difficult as the band never lingered long in one and the same place, but, immediately after the perpetration of some bold deed, vanished from their haunt, and exchanged it for the Bergstrasse, or the country of the Main.

Already the storm of war had retired many weeks from the neighbourhood of Fulda, and the robber band appeared also to have left the country, perhaps out of fear of a more vehement pursuit. The inhabitants of the little city of Schlüchten rejoiced themselves in the prospect of the enjoyment of a more refreshing rest than they had for a long time been favoured with.

One afternoon a heavily loaded travelling-carriage rolled slowly into the city, and aroused universal attention as it drew up before the Gasthaus Zum-Stern. A swarm of lounging Bauers collected about it, and out of every window peered curious countenances. But how much greater was the astonishment as the people learned from the coachman and valet, who, both of them clad in military costume, looked, in their mustaches, most formidable fellows, that their master, a Graf of high standing, had been attacked on the way by robbers, and now lay severely wounded in the carriage; and that they only owed their escape and life to the fortunate interposition of a patrol party belonging to the Graf's own regiment.

At this intelligence the whole city was thrown into an uproar, and not the least the landlord of the Star, who with his loud and eager orders for the proper care of the noble gentleman, made the heads of all his people dizzy. The stranger Graf was finally lifted out of the carriage by his servants, aided by some of the others. He was a tall, stately man, pale with the loss of blood; his eyes were closed, and many deep wounds in the head were only rudely and hastily bound up. While he was carried to his bed and given into the care of the surgeon, who was called in, the Amtmann was hastily sent for; and, from the statements of the coachman, who caused at the same time his own arm-wounds to be bound up, dictated to his clerk a long protocol. The whole police corps, with an addition of some armed Bauers, immediately set out in pursuit of the robbers, without, however, being able to discover the least trace of them.

In the meantime the stranger lay in the most frightful delirium. The servants forbade any one, besides the surgeon, from entering the room; such, they said, being the orders of their lord. The surgeon wondered sometimes at the fearful phantoms that haunted the imagination of the strange nobleman, which the servants calmly remarked proceeded entirely from the last battle, and from the attack of the robbers.

For some days the Graf hovered between life and death, but shortly a decided improvement manifested itself in him; and after many weeks he was so far recovered, as to be able to receive the visits of the first people of the place, who anxiously desired to make the acquaintance of so distinguished a personage; and indeed, shortly afterwards, to return them.

He styled himself Graf Pappenheim; gave out that he was a native of the north of Germany, and had quitted his regiment on account of a difference with his superior officer, and was about to retire to his estate. He possessed a great partiality for Hesse, as his mother was a native of that state, whence he himself had a Hessian accent in his speech, which was strong enough to strike the ear of the people. In short, the Graf was a most genteel man in society, had the most agreeable manners, and was soon a favourite in all the circles of the little city. When the Bauers had at first seen the many heavy chests of the stranger, they said, "he is a rich man, the Graf;" and said they again, with one accord, as they saw him first ride out on a black horse, purchased of the Chief Forest-master, "he is a very handsome man, the Graf."

The Graf brought a new life into the little city; he was the soul of all companies, and himself gave the finest entertainments in the Star; in short, he had always something new with which to entertain society. He treated every one with the most condescending courtesy, but above all the lovely daughter of the Chief Forest-master, who was not a little envied on that account by the other ladies. As it now one day became known that the Graf had proposed for the Forester's lovely daughter, and contemplated buying an estate for himself in the neighbourhood for his future abode, many of the young ladies made truly a sour face; but all said, "We have long thought that," and hastened to present to the young lady their congratulations.

The marriage was immediately afterwards celebrated at the new castle of the Graf, with the greatest eclat. About five miles from the city lay, in the midst of a wood--a former hunting castle of the prince--a wide-stretching building. This the Graf had recently purchased. The Chief Forest-master thought indeed the castle much too solitary, and of too great an extent; but his son-in-law quieted him on that head, with the prospect of the noble hunting which they could here enjoy together. That the carriage was always at the command of his wife, and he hoped constantly to have company from the city with him. The extensive accommodation was, moreover, very convenient to him, as, on account of the not yet perfectly restored security of the country, he should send home for the greater part of his servants to attend him here. And it was not long, in fact, before the rooms of the castle were filled with about a score of fresh servants. They were altogether

strong, wild-looking fellows; and the Graf said that he had selected these expressly, because people yet, here and there, talked of the robber band; and it was possible that they might some day attempt an attack on his house or property. It was the more necessary for him to do this, as he was himself a restless spirit, and could not live without now and then making a little expedition. But this he could not do unless he felt at the same time that he left his house in perfect security.

The people in the city considered this all very reasonable, and conceived a still greater opinion of the affluence of the Graf, who was able to maintain so great an establishment. The Forest-master's daughter lived with her husband in the happiest manner; and when he sometimes, accompanied by some of his servants, made a little excursion into the country round, she invited always some of her friends from the city, and never sent them back without the most beautiful gifts. The Gräfin, indeed, wondered with herself, that her husband, who otherwise gratified all her desires the moment they were uttered, never took her with him on these little excursions; but she loved him too well to chagrin him by pressing entreaties. The winter was now come, and yet the excursions of the Graf did not cease. They were it is true, more seldom, but they often stretched themselves into weeks; and the young wife frequently felt herself excessively solitary when she, with her maid, the only other female who was in the castle, sate in the large room, and the wind without shook the naked branches of the trees fearfully.

During this period the vicinity was not at all disturbed by the robber band, notwithstanding the repeated accounts of housebreaking and highway robberies in the countries of the Main and the Neckar. The Graf seemed almost totally at ease on that subject, for he often took with him all the servants, with the exception of two or three, in his journeys. The young wife made many reflections on this strange conduct of her husband, who always so suddenly resolved on these marches; yes, sometimes even was awoken by a servant in the night, and at once went forth numerously accompanied. It also struck her that many of the presents which he brought her were clearly not new; and if she asked him the cause of it, he told her that they had been sent for by him from his native seat, and that he had been in a neighbouring city to fetch them.

In that part of the castle in which the servants resided, was a room which was always closed to the women, as there, the Graf said, were preserved family documents of the highest importance, to which none but himself must have access. Strange did it seem when Lisette, the chambermaid, asserted to her lady, that she had often seen one of the servants in that room with her lord; and the Gräfin was equally annoyed at the familiarity between master and servants, when the Graf, till late in the night, in one of the rooms appertaining to the servants, was accustomed to talk and drink with them. "They are true souls," said he, "who have been brought up with me, and I must be good to them, as I have caused them to come into a country so strange to them."

All this, and the relations of Lisette, who, amongst other things, asserted that she had seen the Graf, on his entering the house, take off a black mask, disturbed the poor lady in the highest degree, and she resolved at last to throw light on the mystery, let it cost what it would, but till then to conceal her anxiety from her relations.

One evening, as she heard the Graf and his followers come riding in, she hastened quickly into the neighbourhood of the suspected room, into which her husband was accustomed always to go first, and concealed herself in an unused fireplace. With beating heart she saw the Graf enter with two servants. With light steps she approached the mysterious door and listened. What she then heard was sufficient to inform her of her dreadful fate. The Graf, and the notorious robber-captain, the Black Peter, were one and the same person. Near to fainting, the unhappy wife glided away to her own room. Soon after the Graf appeared, and expressed his regret that, on account of family intelligence which he had received, he must yet ride out again this night, but would be back by break of day.

Scarcely had the Graf and his troop ridden away, when the poor wife called her maid, communicated to her the dreadful truth, and both determined on instant flight. They left the lights burning in the chamber, and stole silently down into a room below. Happily the one robber whom they had left behind, was yet within the mysterious chamber. They escaped through the window, and made directly for the nearest way to the Forest-master's house. Like two alarmed roes they hastened on through the night,



and often shrunk together when the moon lighted up a distant tree, so that they fancied one of the robbers stood behind it. Continually looking round to see that no one was pursuing them, they at length came distantly into view of the Forest-master's house. Their anguish became almost insupportable when so near the goal; they thought to themselves they might yet be overtaken. At last they reached the house, full of joy that they yet saw a light in the room of the Chief Forest-master. He rose up in amaze, when he heard a knocking at so late an hour; but how much greater was his astonishment as his daughter flew to him, and sunk breathless in his arms.

As soon as the old man was able from his exhausted daughter to learn the cause of her thus wandering in the night, his wrath burnt fiercely at the false son-in-law. He called up his huntsmen: the Bauers in the little city were armed, and with all possible speed they set out for the wood castle. But the robber had vanished with the mysteries of the closed chamber. It was empty. All the other rooms were still just in the state that the fugitives had left them, but gold there was none to find.

The next day, the castle was surrounded by soldiers that were sent out from Fulda, but the robbers had evacuated the country, and came not again. After many vain attempts, it occurred at last that one of the robbers was seized on the Bergstrasse. This led to further discoveries; and finally, they had the good fortune to take prisoner the captain himself. He was confined over the Manheimer Gate in Heidelberg, and was to be delivered over to the Hessian authorities, when he escaped in a most extraordinary manner out of his prison, but was speedily recaptured. After an examination, in which he was hard pressed without their being able to bring any confession from him, he was dismissed at eight o'clock in the evening. At half past nine o'clock the same evening, the gaoler announced to the magistrate who had presided on the inquiry that the Black Peter had escaped from his confinement. The watch had shot at him, but had missed him.

It was found that, without any negligence on the part of his keepers, he had got out in a scarcely imaginable manner, in his shirt only. He had taken the whole of the circular window of his prison with its frame out. By means of a sharp holdfast, with which the frame of the window had been secured, he had broken the two new and good locks of the chain with which he was

chained crossways; taken off the chains; torn up his bedclothes, and twisted them into a rope-ladder, from ten to twelve feet long, and had slipped through the wonderfully narrow opening of the strong window-shutters, which, by proof made there and then, would admit the passage of no other head. When he had reached the bottom of his rope he had still nine or ten feet to drop to the earth; and the shot, which was instantly fired at him, passed close to him.

Immediately on his escape he sprung into the neighbouring Neckar, and concealed himself under the floor of a swimming-school, which was erected on a boat, where he continued many hours up to the mouth in water. He saw the pursuers on both banks of the Neckar, and in the swimming-school itself. It was not till after midnight that he attempted to wade through the Neckar, which, luckily for him, was then very low; but he had not reached the other bank of the river when he became aware of the watchers placed there also. He continued yet for a long time sitting on a rock in the middle of the flood. Finally, he made another attempt, reached the bank, sprang up it, and by a rapid and breathless flight succeeded in reaching, in spite of all the straining efforts of his pursuers, the hills and the woods.

In order to make his appearance in the wood the less striking to people that he might happen to meet, he slipped his legs through the sleeves of the shirt, and held the lower part of the shirt about his neck with his hands. He thus ran on to a great distance. He met two Bauers in the woods, to whom he feigned himself crazed and dumb, and begged of them by signs, and was so lucky as not only not to be seized, but to obtain an alms from them, with the pity of the givers. With this alms he purchased some bread at a solitary mill in the mountain. The people inquired the cause of his singular dress, or rather want of it; and he invented a lie which answered his purpose. He fled still farther; till, at evening, he was arrested by some Bauers of less easy faith, and who had already become apprised of his flight, and the reward offered for his recapture. He was brought back to his prison, and soon afterwards delivered over to the Hessians, and confined in a high tower. But even from this he effected his escape in the most ingenious manner possible.

One morning, the sentinel who was on duty at the foot of the tower looking up, observed a hole worked in the wall, from which a tolerably long rope hung. He immediately and with all speed gave intelligence of the circumstance to the police officers. All hastened up into the tower, and saw with amazement a hole made through the wall, of the width of a man's body of ordinary size. Into the wall, a piece of iron, part of the broken chain, was driven, and to this the rope was fastened; the rope itself was made from the torn up cover and tick of the prisoner's straw bed.

They could not sufficiently wonder how a man could pass through such a hole; how he could trust himself at such a terrific height to such a brittle rope; and how he could by any possibility, when he reached the end of this rope, the length of which was insignificant in comparison with the height of the tower, drop to the ground without certain destruction.

While they were thus lost in these wonders, the prisoner, who all the time was in the room concealed under the straw taken out of his bed and heaped up behind the door, crept silently out, passed the open standing door unobserved, descended the stairs, and completely effected his escape.

He lived afterwards in various places and by various means; and on the breaking out of the war, enlisted for a soldier. The Battle of Waterloo, which cost so many honourable men their lives, ended also his.

"And his former wife?" asked Hoffmann.

"She soon died of grief, or, as they say in England, of a broken heart."

## THE STUDENT STARK.

After a short pause, Freisleben addressed himself to the telling of his story: and for that purpose drew forth a letter. After he had seen that the company were supplied with glee-wine, he said--

We have had enough of evil and evil deeds, and it may, therefore, be permitted me to relate something out of the life of a good man; namely, out of the life of my friend Stark, whom you have become acquainted with in his passing through here lately, face to face.

His father was the pastor of the village of Greenwiesel, and had, as is only too much the case with the country clergy, a very scanty income. The boy received his first instruction in the Folks'-school of the place, and afterwards from his father, who, being an industrious man, contrived to spare so much time from the duties of his office, as was necessary to the due progress of his son. Private teachers he could not afford, nor the expense of his maintenance in a neighbouring town, so that he might attend the Gymnasium there. This was only an advantage to Stark, as he could not easily have enjoyed an education which was at once so well grounded, and so free from all pedantry, as that which his father gave him. An old officer who had long spent his pension in the village, and was a friend of the pastor's, spared no pains to instruct him in the mathematics, which he loved above all things. But the scholar listened with still more delight to his instructor when he talked to him of the armies in which he had served, and of the battles in which he had been engaged against the French. The intercourse with the old officer, and the books which he put into his hands, contributed not a little to inflame the boy's enthusiasm for liberty and Fatherland. With avidity he devoured the German history of Kohlrusch, and was accustomed then to rush forth into the wood, in order that he might stretch himself under the German oak, and felt altogether as German should. Nowhere was he so delighted to be, as abroad amid God's free nature; and as the other boys of the village could not understand his internal feelings and impulses, he was thus daily accustomed to roam about alone, which occasioned him many a reproof from his father. If it was fine

weather, he used to take out his Tacitus with him, his favourite author, or he recited with a loud voice a passage from Ossian, of which the old officer had given him a German translation. Nothing, however, gave him greater pleasure than to battle with the winds; and the more it thundered and lightened, the more drenchingly poured down the rain, the more exulting was his feeling of the strength of his youth. When wet through, and looking wild, he returned home, his mother would clasp her hands in wonder at his foolishness, as she termed it. Yet she loved him extremely, as he on his part, above all things, loved his parents and his sister, and did every thing to please them that he could discern would be acceptable to them.

The first bitter tears that he shed, and bitter ones indeed they were, was when his old friend and instructor, the old officer, died. But a still greater misfortune soon befell him and his family. At the time that young Stark should have entered one of the higher classes of the Gymnasium of a neighbouring town, the old pastor was seized with an apoplectic stroke, as he returned from preaching. His speedy death spared him the painful reflection, that he left a widow and two uneducated children helpless in the world. The family removed to the next town, and there hired a poor dwelling in a small side street. The young Stark, who attended the Gymnasium, felt, indeed, that he must consider himself as the head of the family, and must provide for it. He discharged his duty in the most exemplary manner. Besides that, he received his school instruction free, he also enjoyed a stipend which was awarded him in consequence of his having passed a brilliant examination. It was very small indeed, but Stark knew how to circumscribe his wants. He laboured zealously, in order to advance as rapidly as possible, while at the same time he devoted every leisure hour to instruct a considerable number of boys in the city, in their elementary learning. With the united proceeds of this stipend and these labours he maintained his family; and thus, when he had toiled through the day as learner and teacher, the evening found him by his study-lamp, where he sate fixed till late in the night. But he was cheerful and contented. His strongly-grounded constitution enabled him to support these exertions, and the glad consciousness of being able to stand independent, and to provide for the necessities of his mother, and of one dearly beloved sister, made sweet to him that monotonous life.

Another removal of the little family was necessary when the young man went to the High School. For the rest, his family continued to live after that removal as they had done before, and Stark pursued his studies with double diligence, in order yet better to maintain them. His teachers in the university took an interest in the brave youth, and amongst the students he found congenial friends, who, more favoured by fortune, took a pleasure in procuring him many enjoyments of life, without touching too closely on the delicacy of his feelings. They visited him gladly in his modest room, where, besides the most necessary articles of furniture, there was nothing to be found but books, and some maps which he made use of in his studies, and which hung on the whitewashed walls. Yet was no one happier than he when he shared the frugal meal in the evening with his family, or with a friend chatted over a glass of beer and a pipe. He went very simply, but yet very neatly dressed. His tall, strong figure; that earnest, somewhat pale countenance, to which the slightly aquiline nose, the friendly, thoughtful eye, and a background of black whiskers, gave interest and effect, produced on the beholder a highly favourable impression. Every one with pleasure heard him speak, for his voice was strong and well-toned, his speech fluent, and when he became zealous, carried you irresistibly along with it. But when he sung, he affected every one. His bass voice was, however, too powerful for a small room. It made every window vibrate, and was, indeed, a voice made to sing the songs of German freedom under the German oak.

Cruelly did fate startle him out of this monotonous yet quiet and happy life. A nervous fever which then raged, snatched away his mother; and his only sister, who had been her true nurse on her sick bed, soon followed her. Stark was strongly bowed down by these severe losses. So much the more did he attach himself to a maiden, whom he had now known for some years, and to whom he had now been for half a year affianced.

The father of Emily, his promised bride, lived near the city. Emily had a very attractive person, was always merry and good-humoured, and possessed many good qualities; but was in the highest degree giddy and fickle. My friend would never admit the last characteristic. He was blind enough only to see in the maiden, noble and beautiful qualities, which he worshipped. But he came to be bitterly convinced to the contrary. A wealthy merchant's son, who just then was commencing business for himself,

announced himself as a lover of Emily to her father. The father, although pleased with the proposal, yet gave his daughter free choice, and she was heartless enough to prefer the characterless, pretty, and glib-tongued merchant, to the poor Stark, who, since his recent trials, truly had become more grave, and might possibly have wearied her with many melancholy retrospections of his lost mother and sister. Emily shrunk from writing herself to my friend, but informed him, apparently in an unfeeling manner, through a third person, that the connexion must be broken off; and assigned as reasons, besides some other unimportant things, that her father was favourable to the pretensions of the other lover, and had forbid her to hope for his consent to a union with Stark.

Her father, who through the whole affair conducted himself as an honourable man, answered a letter which my friend addressed to him. This answer kept strictly to the truth; but at the same time expressed a wish that it might be the last; moreover, requesting the return of the letters of Emily. I will here communicate to you the letter which my friend wrote to the false one. He permitted me, as I was long the confidant of his attachment, and frequently the bearer of his letters, to take a copy of this, and also to show it to any good and tried friend. You may in it see the real nature of his character.

"EMILY!--Thy father has requested me to renounce our verlobment; to break off the correspondence. I had already written to give him this assurance, but he had not the goodness to receive the letter. Consequently I have not given it him, and his will is for me no unconditional law.

"But thou appearest to be of the same mind, and thy wishes shall be sacred to me till my last breath. Fear not that I will embarrass thee with further importunities: only I cannot deny myself the melancholy pleasure, once more, in this last letter, to speak to thee from my heart. I will justify myself to thee, justify thou also thyself to thyself. My heart shall and must be silent: I have cause to fear that its language will no longer be understood; and I will not desecrate its sensibilities. It has for some time been my employment to read over again all thy letters with a bitter feeling. It is as if the lovely deception yet still played round my heart; as if it could not awake out of the sweet dream. I know many kinds of doubts, but none gives such a

scorpion sting as the doubt with which thou hast inspired me. I have been happy,--happy in my vain belief! and I thank thee for it. Thou mayst be proud;--no other woman has made me so happy as thou. Thou mayst be very proud;--none can henceforward make me happy. Thou bringest me back to my old philosophy respecting the fair sex, and indeed at the right time.

"Emily, thou hast not dealt nobly, not honestly, with me, not wisely with thyself. Why hast thou not told me the truth? Thinkest thou that I shun the truth, even when it strikes me to the earth? I observed thy change immediately with the holiday. I ran to and fro, full of anguish, like one possessed. No greeting came from thee--no affectionate inquiry--no question after a letter, which I had, in fact, written seven times and tore again to pieces. My spirit was on the rack. Then informed me, Neuburg, that the connexion must cease; that thou wished it--thou! who only a fortnight before, sent me the most sacred protestations! Thy father had taken away all hope from thee; had menaced thee with his curse!

"Of all this nothing was true, as I learned from thy father's letter. What course, thinkest thou, then was left me to pursue in accordance with my character, but to write to thy father directly, as from thy messenger I must understand that he knew all. Hadst thou but said the truth to me, I should, after a short struggle, have returned every thing to thee.

"Thou complainest of my pride, and takest great pains to humble me. Perhaps thou mayst succeed; perhaps not. Thy father will receive no further letter from me; thy mother, none; thou thyself perhaps, none. That cannot humiliate me. I find my conduct tolerably consistent,--as consistent as a man in my state of mind can be.

"What shall I now do? It was thy desire,--thine, and thine only to break off. Thou wouldst have spared me, and thyself, and thy parents, many painful feelings, if thou hadst acted with somewhat more consideration. It seems as if thou hadst made it thy pleasure to wind up my sensibilities to such a height, in order then to make me feel my nothingness. Thou hast succeeded. The maiden who, but shortly before, hung on my neck, and prayed assurances of my truth, has now not once the courage to say that she loves me. I am too serious for gallantry; and thou hast wofully erred, if thou



hast classed me amongst such men. It seems we have neither of us known each other, and need therefore make no complaints of each other. That I have disturbed thy peace, forgive me. That thou hast created in me so many beautiful hopes, only again to destroy them; that through thee my joys are dashed to the ground, that will I forgive thee; lament my simplicity, and again class thee amongst the ordinary crowd of maidens.

"Could I but do that, Emily, I should yet be happy enough. My seriousness has not pleased thee; and, in order to cure it, thou hast poured bitterness into it. I complain not of thy parents; they act according to their notions of duty; but how thou actest according to thy conception of duty, I cannot perceive. Thou hast neither acted towards thy father nor towards me as thou shouldst. The reasons which thy father gives are valid enough, as thou givest weight to them; but one thing more than all has struck me--it is called the fickleness of women.

"Thy father does thee justice. Emily, thou shouldst have been honest with me. I am not the man that will abuse the tender heart of a maiden. I challenge thee to speak the truth. Have I not been open-hearted with thee? Have I stolen thy affections? My whole soul hangs yet on thee, and never will it be able to loose itself from thee. If thou wert unworthy of me, would I weep and lament over thee? Tell me then candidly thy desires, and trust me that I have generosity enough to satisfy them all, even if it cost me my life. Thou canst charge nothing upon my honour. Thou would long ago have had thy letters, if thy father had not demanded them. He shall not receive them, but he shall read them if he desires it, for his own satisfaction and thy justification. Hast thou written any thing that thou art ashamed to acknowledge? Hast thou cause for shame? Then are we both to be pitied; thy father and I, and thou most of all. Then shall they, to extinguish all mistrust, be destroyed in thy presence. If I am reluctant to come into thy father's presence, yet I will not be ashamed before him. I am wont to compel respect, if indeed I can acquire no attachment. I can well imagine how many disadvantageous things people will tell thee at my expense. If thou canst believe them without examination, then, indeed, have I expended on thee every sentiment of my heart in vain. I pity thee in all my misery far more than myself, since I shall probably so long as I live continue a living reproof to thee. My conduct will be thy punishment. I assure thee, love, that

I shall never lose thee out of my soul. I have with no other maiden stood in a nearer relationship. Thou art the only one that has firmly fixed herself in my heart. Go whither thou wilt, I shall bear thee with me to the grave. Thirty years hence thou wilt most probably hear from me exactly the same tone, if thou art by any circumstance reminded of me.

"Emily, thou shouldst have dealt more honestly with me. By God! I would have sacrificed every thing for thee. Wilt thou be happy when at thy wedding I sing a song of sorrow, that my friends may weep with me?

"Emily, I pray thee, for God's sake, by the happiness that thou yet hopest, be worthy of thyself: I cannot believe any thing bad of thy heart. Be the friend of thy father, if thou canst no longer be my beloved. If my kiss has not ennobled thee, then am I an outcast, or thou a creature without mind. Do nothing--nothing secret. What I did was done on thy account; otherwise I walk ever in the light. For my sake, also, show this letter to thy parents; I will not, when occasion requires it, conceal from them that I have written this letter.

"Allow me once more to deceive myself with the sweet delusion of the harmony of our souls. Thou hast destroyed a beautiful work, love, which thou shouldst not have done, or shouldst not have helped to build it up. Thou askest what I think, and not what I feel? I am infinitely sorrowful; and of what kind my affections are thou mayst read hereafter in my countenance. I may, perhaps, never again be so happy as to speak another syllable with thee, but my heart will accompany thee, since I am unchangeable!

"S. ----."

It is an old, old story,  
Yet bides for ever new;  
And he to whom it chances,  
It breaks his heart in two.

*Heyne.*

It came not truly so far with my friend; but happiness of his life was for a long period destroyed: the manly and high-toned character of his mind, however, saved him from sinking permanently under the weight which would have prostrated many a one of equally sensitive and strongly-devoted temperament. But, as an English poet has said, he resolved not to sacrifice

His name of manhood to a myrtle shade.

The fervour of his passion for political liberty, his admiration of heroic actions, and his pride in his native country, were very near, in the excited state of his mind, leading him to involve himself in the grand but ill-digested plans of the Burschenschaft for the consolidation of Germany into one magnificent empire; and probably the blowing up of those plans by the government measures which followed on the wild deeds of Sand and others, just at that crisis, saved him from the fate which most probably would have awaited one so ardent and qualified to take a prominent part--flight, or exile, from his native country. Therefore, turning his eyes away from this hopeless track, he studied with renewed severity, passed a splendid examination, and soon after wrote a work on the German political constitution, which at once attracted attention, and excited the admiration of all the lawyers in Germany. It was soon translated into most of the languages of Europe, and brought him a call from the principal university of one of the first states of Germany, where he now occupies the chair of jurisprudence with the most splendid reputation. He is no less distinguished by the clearness and grasp of his reasoning powers, than by the eloquence of his style, by which he contrives to diffuse a charm and a life into the driest topics; and he is equally so for the liberality of his principles, and the ardent devotion of his mind to the liberties of mankind. He is beloved by the students who attend his lectures, for the affability of his manners, and by his cordial readiness on all occasions to give them his advice in any of their troubles or perplexities. Having himself fought his way through a narrow and a rugged path, he knows how to sympathize with others in the same circumstances. His triumphs over his own impediments have not inspired him with arrogance; nor the sorrows and disappointments of his dearest hopes seared his sensibilities, but on the contrary, softened and mellowed his heart. In public, he wears in his pale and grave countenance

traces, not only of his native tone of mind, but of the shattering baptism of spirit that he has passed through; but in the social circle, though often on his first entrance silent and reserved, the warmth of his imagination and heart are sure to triumph over the sadness of habitual reflection; and he charms every one with the poetry and the animated references to the great deeds and great men of his Fatherland, that show you that he is still at heart the same as when he listened in breathless attention to the stories of the old officer, or sung out Ossian on the forest hills.

Of Emily, we have little to say. Hidden, herself, in the retirement of private life, she would have seen with an inextinguishable regret the splendid career and wide fame of the man whom she had abandoned, had she possessed a mind worthy of becoming the companion of such a man and of such a destiny; but the great error of Stark's life was that of investing a lovely but not high-minded woman, with the poetry and the magnanimity of his own spirit. But he himself is a striking example of the virtues, the talents, and the indefatigable labours by which many a German Professor fights his way out of narrow circumstances, and through the shades of native obscurity, into the broad light of fame and public usefulness. Such instances are not rare, and they----but, hear I right? it even now strikes twelve!

In confirmation of this was heard on all sides the reports of fire-arms.

"Prost Neu-Jahr! gentlemen," cried Freisleben. "Prost Neu-Jahr!" resounded they in reply. Freisleben declared that his story was at an end; they drank off their glasses *anstossing* for the first time in the new year, and hurried into the street.

---

## **CONCLUSION OF NEW YEAR'S EVE--THE TORCH TRAIN--THE EXPLOIT OF THE RED FISHERMAN.**

Following the distant sound of the fire-arms, they soon came to the troop of students, which was marching round to bring to the Prorektor, and to

some of the most popular professors, a "Vivat!" Music went before, accompanied with torches; and a noisy swarm of students followed it,--some in cloaks and great coats; some in dressing-gowns, and with their long pipes in their mouths. You could easily see that they had all of them suddenly started away out of their kneips, where they had celebrated the termination of the old year. They now arrived at the dwelling of a professor. The musicians placed themselves in the centre of the street, surrounded by the torches; the students closed in around them in a dense circle, and the music played a tune. A student then stepped forward, and gave a loud "hoch!" to the Professor. All joined in it three times, while the music blew a flourish, and the pistols thundered off all round. As the third "hoch!" ceased, a window opened above, a dark figure showed itself, and immediately below "Silentium" was commanded. All were still, and the Professor spoke as follows:--

"Gentlemen! Ever since I have resided in Heidelberg as teacher, have you annually paid me this testimony of your respect and esteem; but were I to live to be as old as Methuselah, and was this scene every year renewed, it would give me a fresh satisfaction.

"Gentlemen! Let the world judge of our worth as men; let the republic of the learned, which you are growing up to become a part of, decide on our services as learned men, on our ability as teachers,--the means of alone coming to a just conclusion on those points will still lie constantly in the hands of the student youth. May they always use them with wise consideration, and free from all party spirit. So long as we are able to labour with the vigour of men for the good of the High-School, will our honest endeavours to fill our posts worthily as teachers, not be in vain; and we rejoice in this glad consciousness that we find in the acknowledgments of the student youth, only an echo of that which our inner self declares. But when the zenith of our career is past, so comes by degrees the weakness, and with it the doubtfulness of age; and then does it delight us to find in the acknowledgments of others, the conviction that, although our hair has become whitened with the snow of age, yet our labour still preserves its freshness and its green. And the Ruperto-Carola is also an ancient and venerable stem, which ages in their flight have already visited with their storms; but, if these storms have often and fiercely shook it, they have never

been able to uproot it. So long as teachers dwell under the shadow of this tree, who, anxiously seeking its prosperity, cherish and nourish the old trunk; so long as scholars make to it their pilgrimage, who seek knowledge earnestly, so long shall Ruperto-Carola flourish and bloom."

[Here the Professor went over the past year in review, and stated what it had brought both of good and evil to the university, and then continued.]

"May Ruperto-Carola ever possess scholars, of whose approval an honest man will be proud! May yet many an age on the festive day resound the cry of--'Vivat Ruperto-Carola!'"

The sons of the Muses here joined in with their thundering "vivats!" The music made a flourish--the pistols resounded.

"Once more," cried the Professor, in conclusion, "my hearty thanks for this proof of your love. May your Fatherland receive you in a while with pride from our arms, where it yet only reluctantly leaves you for your good. May you live long and happy!"

The professor withdrew from the window; the music played yet another tune, and the troop then marched onwards. The four friends having separated themselves from the throng, in order to return home, heard yet for a long time, the distant uproar of the merry students, and the sounding of the fire-arms.

We must here further observe, that not only such night-music is brought; but also on some occasions, in order to do the more honour to the professors, the so-called solemn night-music, attended by a greater procession of the students, who carry torches, and have their appointed marshals and officers, to maintain order in the procession. The description of a torch-train will yet follow. Before this arrives at the house of the Professor, two or three deputies proceed thither in a carriage. These, in full gala costume, wait upon him for whom the compliment is intended, and make him a short address. The Professor returns them his thanks, and as he has always become aware of the intention of the students, he has his bottle of champagne ready, which he sets before the deputies, and *anstosses* with them. They retire as the torch-train approaches the house, and when the

customary hohs! have been given: first, by the students to the honour of the Professor; and then by the Professor in his speech to the prosperity of the university, the officers who have stepped forward for the purpose clash their swords wildly together. Before retiring they generally sing--"Stosst an! Heidelberg live thou!" and the torch-train marches away.

In some places, as in Munich, it is the custom that the Prorektor when the New-Year's-night "Hoch!" is brought him, invites the students in, and treats them with punch. It may readily be imagined how much of this liquor is consumed on such an occasion, and into what a predicament a Professor once fell in Munich, who had prepared his punch, but waited for the students in vain, who out of dislike omitted to pay him this visit of honour.

But it was destined that the Englishman and his three friends, to whom we must now return from this digression, should not on this night yet retire to rest. They had just arrived in the Karl-platz, as a man galloped past, crying out with all his might,--"The ice goes! The ice goes!"

This messenger was from Neckargemünd, sent to announce to the inhabitants of Heidelberg this event, which the people living on the banks of the river, and especially the boat-people, always look forward to with great anxiety, and take their measures of precaution accordingly. But especially in that winter were people full of apprehension, as the ice-covering had acquired an extraordinary thickness; and indeed, in some places, could no longer be called a covering, since the flood in shallow places was completely frozen to the bottom. After a fierce and early-occurring season of severity, the actual warmth of spring suddenly broke out, and the soft south wind melted the snow so rapidly on the hills that the waters ran in streams down their sides. But all was in readiness; and as soon as the four students reached the bridge, they saw, wherever the houses on the banks of the Neckar did not completely occupy its strand to the edge, groups of men, who had provided themselves with cressets with rolls of pitched torches, called pitch garlands, and awaited the spectacle with eager looks. The bridge itself was covered with men, and scarcely a place at the balustrade was to be fought out. From this place an interesting scene presented itself. So far as you could see the banks of the Neckar, the torches

flamed, and threw their flickering lights on the surface of ice, on the crowding spectators, and on the neighbouring landscape.

In the city itself, most of the houses were lit up for the festival, while above them, in the country, the mountains and the old castle shrouded themselves in the deepest gloom. Most of those who had assembled on the bridge, were men in their ordinary dress, who had, on the announcement of the ice-break, hastened hither from the punch-bowl. But others had been roused from their beds, and exhibited themselves in costumes singular enough, over which they had hastily thrown their cloaks; out of which their nightcaps peeped above.

The explosion, as of distant thunder, was now heard, and the floods of water that rushed up through the disrupted ice were seen pouring over the surface. The ice in the neighbourhood of the bridge cracked and groaned aloud; deep fissures opened, and ran with lightning speed far and wide. But as the mass of waters still rushed nearer and nearer, and the ice continued to resist its pressure, the floods rose, and forcing into the streets, made the people assembled on the banks flee back precipitately. On the other side of the bridge, all hands in the mean time were busy removing the piles of fire-timber which were ranged there, and in conveying them to a safe distance. The huge fragments of the already up-torn ice were sent with fury over the ice-surface that yet resisted; in some places, piling itself up into actual bulwarks, and in others was heaved into the streets. Thus it happened, that a little boy who, forgotten of the rest in their flight, had escaped to the top of a pile of wood, above the bridge, was, by one of the masses of ice which was forced forward by the water and driven directly under the pile, carried aloft, together with the pile. Ere any one could spring to his assistance, the moment was come when the opposing ice could no longer maintain its resistance to the accumulating flood. It burst with loud explosions, and raising itself furiously with the other fragments rushed forward towards the bridge. Through the long contest, the water had acquired the most terrible agitation, and when the victory came at once, it formed itself into a headlong stream, which carried the mass of ice on which the boy was, rapidly towards the middle of the flood. The boy, surrounded by the raging element, shrieked in the most fearful manner for help. His cries of misery were scarcely to be heard, but they were not necessary to fill every



spectator with terror and commiseration. But who shall help him! Many an able swimmer was there, but none would undertake so desperate an enterprise. Some cried out to throw a rope from the bridge, that the boy might lay hold of, but this was impracticable, for in the moment in which the ice-masses struck the piers of the bridge, they were scattered into fragments, and the stone bridge itself trembled with the shock of their dashing against it. Already the ice-mass, on which the boy sate in despair, approached the piers. Every spectator watched the horrible catastrophe with breathless expectation; when the masses of ice which now passed in countless numbers, blocked up first one and then another arch of the bridge. There was a momentary pause in the progress of the ice. At the crisis of this terrific spectacle, a band of lively music approached the bridge. It was the wild troop of students, who, having completed their round, and finished all their Vivats! and Lebe Hochs! were marching past with their torches, and amongst them was seen the Red Fisherman, who holding in one hand a torch, and in the other a pipe, was striding on with open breast, and in his shirt-sleeves.

"Ackermann! Ackermann!" shouted the multitude, "he must help! He alone can do it!"

The approaching train rushed upon the bridge; the torch-bearers flew to the balustrades to cast a light upon the scene--the music ceased in an instant. The Red Fisherman, on whom all eyes were turned, cast but one glance towards the child; threw his torch on the ice below, and ran down from the bridge to the banks of the Neckar. It was high time, for the ice-masses again began to put themselves in motion. Boldly the fisherman sprung from one block of ice to another; already was he near the boy, when the ice broke beneath him; yet he fought desperately against the rushing water. He reached the boy, and endeavoured to raise himself upon the ice-mass;--at the same moment it went to pieces, and both the fisherman and the boy disappeared for some seconds. The people gave them up as lost for ever, when a voice was heard from the other side of the bridge, crying "A rope! a rope!" It was the fisherman himself, who stood on the basement at the foot of the pier with the boy in his arms! He stood up to the middle in water, but he held fast by a projection of the pier. A rope with a large piece of wood tied to it was speedily let down by some of the fishermen, and Ackermann

with the boy was hauled up with the help of the students. As soon as his head appeared on a level with the parapet, he handed over the boy to the people, and then himself leaped over the iron balustrade. With a loud "Vivat!" he was here received; and the musicians blew the finest flourish that they had executed on this remarkable New-Year's night. The troop of students accompanied the Red Fisherman with loud acclamations, who quickly put himself in dry clothes; not regarding some slight wounds which he had received from the ice-masses. The students took him into their midst, and "Free-night! free-night!" resounded on all sides.

This cry of triumph means that they will revel the whole night through; and this takes place either at the room of some student, or at a kneip. In the last case, the permission of the police is necessary. These free-nights are only held on extraordinary occasions, or, as in many cases, when without any particular cause the sons of the Muses find themselves in a thoroughly joyous humour.

These were especially frequent formerly amongst the so-called Lumpia. This means a union of students, who bind themselves for a certain time to give themselves up to the Lump; that is to doing nothing, and to the wildest pleasures,--to drinking, playing at hazard, and so on. To the honour of the students these wild engagements are rare, and are in the strictest manner prohibited by the laws.

The Red Fisherman warmed his stiffened limbs at the kneip with punch, and a collection was made on the spot, whose proceeds were handed to him as his reward. The four friends in the mean time had taken the child, and brought it into a neighbouring inn, where it was undressed and put to bed, until the mother, who did not till some time afterwards learn the whole of the circumstances, could be fetched.

After the many events of the night, the wearied party hastened home, to dream over again what they had witnessed, variously metamorphosed by fancy, and one image mixed up and exchanged with another.



## **CHAPTER XXI.**

### **THE MARCHING FORTH.**

We Burschen freshly forth to the number of seventeen hundred; thou at our head, and butchers and tailors and shopkeepers behind us, and innkeeper and barber, and all the trade guilds of the city, swearing to storm the place, if a hair of the Burschens' heads is but crumpled.--*Schiller's Robber.*

Before we permit the Student to depart from the happy Burschendom into Philisterium, we will see in what manner he generally takes his farewell of the university.

For this, there are three ways: either the quiet way, in which we shall presently see Mr. Traveller depart; or the still quieter one in the stillness of the night, in order to avoid the hands of his creditors; or, finally, the compulsory one, which the Bursche must generally take who has made too much noise in the world.

We have already made ourselves acquainted with different excesses on which lie the penalties of banishment, and we will here speak of the greatest of all these excesses, at least of that, in respect to its application to members, the very greatest--the Marching Forth. As the duel is resorted to, to enforce justice from one student towards another; so it is the Marching Forth, in which the students not merely leave the bounds of order, but the university-city itself, which is regarded as the means of avenging the injured body upon the whole city, for an encroachment upon its rights. That the reader may obtain a clear notion of the Marching Forth, we will describe the one which took place amongst the students of Heidelberg, in the year 1828.

The Museum in Heidelberg, a building dedicated to social entertainment and pleasures, was built in 1827, and completed in the following year. The rules for the management of the institution, which, after careful

consideration and proof, were adopted, did not in some particulars please a part of the students; others, however, found nothing to object to, and about seventy students immediately enrolled themselves as members. Instead now of leaving every one to his liberty, a part of the discontented came to the conclusion, that the museum must, so far as the university was concerned, be put altogether under the bann. As it was now found that they laboured zealously to this end, the teachers took the proper measures to prevent such a circumstance. A member of the senate, in whom the better portion of the students had always the strongest moral reliance, endeavoured by every means to make such of the students as stood high in the respect of their fellows, clearly to comprehend, that such a bann had the severest enactment of academical law against it; that it might render the Baden students unfortunate for life, if they allowed themselves to become partisans; that it might lead to the most angry contentions, if those who had already become members of the Museum, would not suffer themselves to be compelled to such an act of evacuation; and the Senate could not remain unconcerned spectators, by any means, of such disorder, not just then especially, as on the near approaching name-day of the Grand Duke, the Museum was to be solemnly and ceremoniously opened.

But the intelligence quickly spread, that the Burschenschaft, which by degrees and secretly had again sprung up, had pronounced the bann with great formality and haste, and that they were labouring with all their might to compel all other persons into the undertaking, and even to draw the natives into the matter along with them. Active measures were therefore unavoidable on the part of the Senate. It accordingly decreed, on the 13th of August, that immediately with the break of the following day, the members of the Burschenschaft should be brought to trial on account of the promulgation of the bann, and that they should be arrested in such a way, that there might be no concerted plan laid, upon what they should state in their defence, and in such a way also that no student should be absent from home.

On the 14th of August, the beadles received at a quarter to four in the morning, the order to pronounce house-arrest to some, and to remove others to the university prison, preparatory to their being called up for hearing. The trial began immediately, and would have been completed the same day, had

the laws found obedience. But immediately on the sitting of the court, there arose in every street, the cry of "Bursch, come forth!" This is a call which every student must unconditionally obey, on pain of proscription. It is therefore, as a compulsion in opposition to the laws, and as the most convenient method of speedily raising a tumult, punished with the sharper expulsion.

So ran the ringleaders through the city with a loud "Bursch, come forth!" drew the students together from all quarters, and rushed with them, with great uproar, into the front of the university, where the Senate had speedily assembled, and stood in presence of the tumultuous throng at an open window. Instead of applying to the Prorector, as they should have done, had they ground of complaint, they even treated with contempt two summonses from the Senate to send deputies to explain their claims or demands, and immediately in the face of the Senate proceeded, with loud outcries, to make a desperate onset on the door of the adjoining academical buildings, with sticks and kicks, so that the upper beadle, to prevent further mischief, was obliged to liberate the incarcerated students. This being accomplished, they commenced their march forth towards Schwetzingen.

The whole city was in uproar. The shops were closed out of fear of the wild faction. Every where chaises rattled through the streets; the boot-foxes ran here and there; the inhabitants looked full of trouble out of their windows; when a student, with his sword in his hand, galloped through the streets with the fearful cry--"Bursch, come forth!" Most of the students went along with the train, only because the Comment, or Students' Code of Laws, demanded it, without well knowing for what purpose. The wild throng rushed into the houses of the dilatory, in order to rouse them out of bed. Hastily, every one packed up what was most necessary and threw it into the carriage, or buckled it upon a horse; and when no longer carriage or horse was procurable, the boot-foxes must become baggage-bearers.

In order to rouse all into a necessary degree of resentment, and to keep it up, the ringleaders circulated false stories. They spread it every where that the authorities had dragged the students out of their beds in the night; that they had thrust them into a hole where none could stand upright, and where there was not a single seat to rest upon; while the fact was, that they who

were said to have suffered so much maltreatment in the night, were conducted to the academical buildings in clear daylight. Yet, in the excitement of the moment, these false reports found credit, and with the "Bursch, come forth!" which raged like a running fire through the streets, they availed in a very short time, to bring the whole student host together.

They who were on horseback placed themselves at the head of the procession; rode hither and thither, in order to quicken the motions of the dilatory, and to maintain the whole train in order. A long line of carriages followed them, of every description that could be got together in the haste of the occasion. Part were chaises, in which the students rode; part were wagons, on which were hastily loaded their packages. All the students had armed themselves in haste, as well as they might, with swords, rapiers, and pistols. They who found no place in the carriages, or on horseback, went on foot, and a great swarm of boot-foxes followed who were loaded with all kinds of house-gear, as pipes, dressing-gowns, coats, and so on. A vast crowd of people, consisting of school-youths who had to thank the students to-day for a holiday, and of all kinds of people who, in a university city, draw support from the students, added themselves to the train, and increased the uproar and alarm, with curses and insults, that the students should be suffered to go away. The inhabitants of the city looked down in wonder and curiosity from their windows roused from their sleep by the noise, and gazed on the motley throng who, with shouts and singing of Burschen-songs, swept by.

At length the rear of the train disappeared through the city gate, and a strange silence reigned in the deserted town. The doors opened, and the Philistines stepped out into the streets together, to talk over the fatal story. In the mean time a professor might be seen, with serious countenance and hasty steps, hurrying through the streets, and people looked doubtfully after him, or one or another of the citizens detained him to snatch a couple of words as to what was to be done in this necessity of the Fatherland. Here and there also might be seen a solitary student who had not been able to join the train in time, now hastening towards one or other of the city gates; since every one is compelled, on pain of entire proscription, to quit the city in case of a Marching-Forth, even if he does not join the train.

When the train arrived in Schwetzingen, the discontented saw that the territory of Baden was not safe for them, and that by passing the frontier they would enjoy more freedom. Suddenly there followed them from many quarters the report "The dragoons come, to fall upon us!" and all ran with wild haste to Ketsch, a village on the Rhine, where they caused themselves to be ferried over into Rheinisch Bavaria. This false report of this falling of the troopers upon them had thus arisen. Immediately on the occurrence of the excess here related, the Senate held it necessary for the protection of the city, hastily to request a hundred dragoons to be sent for from Mannheim. These hundred dragoons marched out of Mannheim, about nine miles below Ketsch, only at half-past two o'clock in the afternoon, after the students had, in fact, crossed the Rhine at Ketsch; and they never directed their march at all against the students, but rode direct to Heidelberg. As it was then there well ascertained that the Marchers-Forth had taken up their quarters for the present in Frankenthal, where part of them were lodged in the town, and part of them had encamped in the neighbourhood under tents, and that many of them had become involved in the transaction through erroneous information, a member of the Senate was requested by the Curatorium to proceed to Frankenthal, and to endeavour to bring the young men to reason. This took place on the sixteenth of August, but without success. On the contrary, the emissary of the Senate was sent back with a remonstrance, very numerously signed, which concluded with a menacing clause, and demanded that the Senate should guarantee the whole body of students against all penalties, on account of this transaction, and should cause Heidelberg, without delay, to be evacuated by the troops. It was also added, by word of mouth, that the bann pronounced on the Museum, could not be retracted.

A similar endeavour, made through the university Amtmann, on the eighteenth of August, received as little attention, although the Museum, in many points, had yielded to their demands, and thereupon was immediately relieved from the proscription. The resentment against the Senate continued unabated; and therefore, on the evening of the eighteenth, in all haste, the academy was declared to be under the bann; this, however, was not done through the voting of individuals, but effected by the dreaded ringleaders pronouncing the bann, demanding then the others to accede to it, though many were opposed to it; and thus the resolution was passed in a painful



silence, since individuals saw dangers on all sides of them if they refused. Yet in that night, and in the course of the next day, numbers quitted Frankenthal, and returned towards Heidelberg. Here, when they came to understand exactly the real circumstances of the case, there was regret and general discontent. A great number of the most noble young men loudly declared the bann to be dishonourable, to be null and void, because brought about by deception; to be contrary to all custom and precedent, and thereupon came some of the most artful proceedings to be talked of: for example, that in the remonstrance sent to the Senate, there were forged names of students who were absent at the time, and that the menacing clause had been surreptitiously introduced. In fact, the natives of Baden had had no part in the declaration of the bann.

On the twentieth of August the classes again were opened, while the trials were still proceeding. The ringleaders were punished with expulsion; others were banished for a certain term; and a greater number imprisoned for a longer or shorter period. The attention of the court was turned by these events afresh on the still continuance of the Burschenschaft, and it was pursued with yet greater severity of proscription than before. But the Studentschaft had so far achieved its original object, that its demands on the Museum were for the most part conceded.

Such Marchings-Forth are of rare occurrence, yet this is not the only one that has taken place in Heidelberg. Many years before this, occurred a something similar one, on account of contentions with the military, which then lay in Heidelberg.

A student, as he went past the watch-house, forgot to take the pipe from his mouth. He came into contention thereupon with the soldier on guard, who called an officer, by whom the student was very much insulted. This gave occasion to a Marching-Forth, which, however, proceeded no further than to Neuenheim, about a mile from the city, whence the students at once returned, all their demands being complied with; which, were, that a full amnesty should be guaranteed for all that was past, and that the soldiers should be removed. Moreover, the military were obliged to post themselves on the bridge, the officer at their head, and so present arms while the

students marched past again into the city in triumph, and with music playing before them.

Where soldiers and students are brought together in one city, collisions are inevitable; at least in the smaller cities, where both cannot be sufficiently mixed and lost in the great mass of the people. Many contentions have heretofore arisen out of such collocation; and thus occurred also the Marching-Forth from Giessen in the year 1819. The military having in the most unallowable manner acted towards the students, and one of the students coming to a quarrel with an officer, was extremely insulted by him. There appeared in consequence of this a ministerial rescript, in which it was ordered that the military in future should only be called out against the students by a requisition from the Senate, and that all acts of illegality already alleged against the military on the part of the students should be strictly investigated, and every just satisfaction made to them. There immediately appeared a judgment on the part of the military college, by which the officer who had insulted the student was condemned to fourteen days' close arrest, which was immediately to take place; and was, moreover, required, in the presence of the rector of the university and of the colonel of the officer, to beg pardon of the student. The aforesaid ministerial rescription was now made known to the students by four deputies of the Senate, who waited on them in the place of their retreat; whereupon they immediately resolved to return to Giessen, and to restore every thing to its old course and order.

To give yet another example of a Marching-Forth, we may take the disturbance in Göttingen in the year 1818. Contentions arose between the then students and the members of some of the trade guilds; amongst others, with that of the butchers' guild. The house of a butcher who had especially insulted the students was very much damaged, and the windows of another house beaten in. A commission was despatched by the government to Göttingen to inquire into and quell the disturbance. The means, however, which were adopted in order to bring the incensed student youth again within the bounds of order, were not the most fitting; and the calling in of the military only made the matter worse. The students refused to succumb to a strange power. They boldly attacked the hussars; these drew their swords, and in the skirmish many students were dangerously wounded.

About eight hundred of the students now marched out to Witzenhausen. They sent by the hands of four deputies, a memorial to the Senate, who delivered it and returned. In this document they complained, that one of their fellow-students had been maltreated by a butcher, and that the butcher had not been visited with the punishment due to his offence; that the sending of a royal commission altered the condition of their rights; that the authority of the same had been so far illegal that the reigning prince had not yet confirmed it; and finally, that the people had been attacked by the military in time of peace, whereby many had been wounded.

The ministry, thereupon, issued a rescript, which commanded the whole body of students to return, and if they refused obedience, threatened them with the loss of every claim to future employment by the state, as well as of all stipends that they might enjoy.

After an absence of more than eight days, the greater part of the students, who had scattered themselves through the country, returned, exerting, however, on their side a right of retaliation, by declaring the university to be for two and a half years under the bann to all foreigners. The foreigners immediately took their departure, and only about six hundred students were left in Göttingen,--about half of the number who had studied in it before those disturbances took place.

In Witzenhausen the people had fleeced the students of nearly all their cash. All necessaries of life, during their abode there, were raised to a monstrous price, and the burgers of that place charged them individually for a week's lodging as much as a louis-d'or. Therefore now, to quit Göttingen, they were obliged to dispose of every thing that they could possibly spare.

Many natives also, spite of the menaces of the ministers, quitted the cities; and Göttingen, in fact, presented a melancholy aspect. The departure of the foreigners was injurious to the city, in two respects; many workmen depended on them for subsistence, and besides this, they left many debts behind them. It was natural, in these circumstances, that many workmen too should quit the place, since their means of livelihood had failed, and thus the emptiness of Göttingen became still more apparent.

The sentence of the ministry upon these disturbances condemned one student to entire expulsion; many to the Consilium abeundi, or confinement in the university prison; and the master butcher also was punished with eight days' imprisonment, with bread and water. There was a further commission appointed for the trial of the originators of the bann, and these also were punished.

Thus peace and order were again restored; and in order to maintain these, precautionary measures were adopted; namely, every one studying in Göttingen, and every fresh comer, must sign a declaration, that he would take no part in the carrying into effect the bann pronounced against the university; and that he would never, either by word or deed, allow it to be supposed that he acknowledged that bann as actually existing. Spite of all these regulations, it was a very long time before Göttingen was able to regain its former state of prosperity.

These Marchings-Forth may serve to show how jealously the students defend their privileges, not only against individuals, but even against the state. The student avenges himself upon any one by whom he is unjustly attacked. A ludicrous story connected with these practices occurs to our recollection, which happened very shortly after the tragic act of Sand.

An actor, who played heroic characters in the theatre at Darmstadt, was at the supper-table in the inn there, and gave a loose very freely and sourly to his remarks upon students and universities. A student from Heidelberg, who was present, and had in his possession a letter to deliver to this very actor, determined to punish him a little for his observations, and therefore on this evening did not present him the letter. In the morning he went to the dwelling of the actor, caused his room to be shown to him, and finding him alone, inquired with a dark countenance--"Are you the Herr Court-actor F---r?" "Yes."--"Are you really the Herr Court-actor F----r?"--he reiterated sternly. "Yes!"--"Now!" cried the student, with a loud voice, and thrusting his hand into his bosom. The poor hero, who imagined he had got a dagger there, darted at full speed away. The student laughing called him back. "Stop!" said he, "stop! it is only a letter!"

In recent times, when people are not so pliant towards the students, the Marchings-Forth have more and more disappeared. In the year 1838, the

students conceived that their rights were infringed by the gendarmerie. They assembled at the Hirschgasse; one of them stated the case to the rest, and invited them to subscribe a memorial on the subject to the Senate, requesting the removal of those gendarmes. As the doors were in the meantime all guarded by the Chore people, so all complied with the invitation. When all had signed, they returned to the city in one body, two and two abreast; sang "Free is the Bursch," and presented their memorial to the Prorector. They derived, however, little satisfaction from this proceeding; and as the document contained expressions dishonourable to the Senate, some of the ringleaders were punished.

But the cry "Bursch, come forth!" has not always been employed for the purpose of effecting a Marching-Forth in opposition to the laws. It has on many an occasion served to assemble speedily the Burschen for the noblest objects. It was thus in Heidelberg, when at one time the bitterness against the Jews had spread itself through Germany. Suddenly a great throng of Handwerksburschen in this city also, and others of that class who have nothing to lose and always a chance to win something in every revolution, had got together, and scoured the streets, crying "Hep! Hep!" They hastened to the houses of the Jews, to plunder them and mishandle their inmates. The city soldiers were called upon to disperse the rioters, but in a cowardly manner refused to do their duty. People were in a great perplexity how to protect the unfortunate Jews. Some students met the then Prorector, who was on his way to the Senate, and engaged to him speedily to restore quiet if he would only allow them to cry, "Bursch, come forth!" The Prorector took the responsibility upon himself, and scarcely was the shout of "Bursch, come forth!" raised, when from all sides came running the students, armed with their swords. One of those who came first, placed himself at the door of one of the richest Jews in the city, against whom the mass of the mob were most desperate, and drawing his sword, called to the pressing throngs, full of zeal for the good cause--"Only over my corpse lies your way into this house!" The assailants fell back with terror; other students speedily came to his aid, and chased away the rabble. One of the professors took a sword from the hand of a student, and led on the sons of the Muses. They surrounded the houses which the rioters had already forced their way into, holding their drawn swords before the windows so as to prevent all escape, while others, rushing into the house, seized the plunderers, and gave them

into the hands of the police. Peace was in a very short time restored. The Jews made a public acknowledgment of their thanks to the academicians, and the Senate cited before them such of the students as had most distinguished themselves, in order to thank them themselves, and through them to thank all the others who had given such timely and successful aid.

In other circumstances of danger too, the students have often distinguished themselves. This has been especially the case in fires, where, placing themselves in long rows from the scene of burning to the river, they have made the water-buckets pass from hand to hand with astonishing celerity, and all the time have relieved their work with singing.

Once also they executed, in Heidelberg, justice in the promptest manner. It was when, at the instigation of Prussia, Baden lost again the freedom of the press, which the Grand Duke Leopold had conferred on it at his entrance on the government. Over this circumstance a great bitterness was felt in Heidelberg. Just at this crisis the Prussian students at that university celebrated the birthday of their king, as they are accustomed to do every year. This took place in a Commers in Neckarsteinach, and as they are often accustomed, they returned to the city in the evening in an illuminated barge, down the Neckar, with fireworks. A report had spread itself, that the people, who beheld the spectacle from the Neckar bridge, would insult the Prussians, when they passed under the bridge. The police were concerting preventive measures, when the other students requested to be allowed to maintain the peace. It was granted to them; and in the evening, they awaited quietly in their kneips the intelligence of the approach of the festive barge. They then spread themselves amongst the crowd upon the bridge. As the boat now drew near, and the customary "Vivat, the king of Prussia!" was heard resounding from it, the mob on the bridge began to bawl out a "Pereat!" and one Handwerksbursch was bold enough to fling down a stone. In a moment such a storm of cuffs and boxes on the ears was rained down from all quarters on the disturbers, that they were compelled to fly from the hands of those who were an overmatch for them; thus the bridge was speedily evacuated by the whole tribe, and the barge came to its anchorage without further molestation.

Another cause which often compels the students to quit the university, and indeed in all stillness, is debt. That the young men at the High-School may readily fall into debt, is easy to conceive. Most of them were till this time at schools where they were quite dependent on their parents, and have now, for the first time, considerable sums in their hands; and beyond this, the way into debt is made so particularly easy to the student. The landlords, the shopkeepers, and all others, who derive an advantage from the students, freely give credit, or *pump*, as the students term it. They do it the more willingly, since it is a good opportunity to make the account a little larger (since the English and students, as the student says, generally chop above the ear, that is, suffer themselves to be overcharged); and moreover, the students look on it as a certain prerogative, of which many are compelled to avail themselves, who, especially in their first year, need more than their remittances. A master tailor who was much in mode amongst the students, once attempted to put an end to this silently acknowledged privilege, but it cost him dear. This man sent round a list amongst his colleagues, by which every one who signed his name bound himself to give no more credit to any student. But this list had not circulated far, when the students became aware of the fact. They assembled themselves that evening at their kneip, armed with their swards, proceeded thence to the house of the tailor, dashed all the windows in, broke open the doors, and rushed into the workshops and store-rooms of the tailor; where they cut to pieces, and bored through all his pieces of cloth and ready-made clothes, so that they were totally ruined. The actors, indeed, were punished, and required to pay all the damages, but the tailor had for ever lost the business of the students, and his fellow-tradesmen took warning from the transaction.

The academical laws have endeavoured to put a check on this facility of debt-making, by determining that all demands for credited wines and spirituous liquors, excepting the regular choppin of wine or beer set before his guests by the landlord or master of an ordinary,--all demands of the masters of coffee and billiard-rooms, as such,--all play debts, demands for carriage, sledge, or horse-hire for more than one journey, which may be made on students, shall not be recoverable in a court of law; and it is also enacted to what extent credit for all necessities of life, for books, and such things, may be given, so as yet to leave a legal right of recovery. In order to make themselves secure against a student, whom they are afraid may

attempt to quit without discharging his debt, the creditor is accustomed to take the usual and effectual way, that is, to go and lay an arrest on his departure-testimonial, which will then not be handed to the student by the university office, till he has paid his debts; by which means it becomes very difficult to quit the place without a fair settlement with his creditors. One way, however, remains for him. In the university cities are people who lend money to the students at a high rate of interest. These the student pumps, as he calls it,--and, as claims for money lent to students are untenable before the court, these people generally get the loss when a student runs off, as well as all those other creditors who have not protested against the delivery of his testimonial. This burning through, or running through the rags, as starting without paying is called, was formerly much more frequent than at present. If it now sometimes happens, yet the cases are very rare in which they do not afterwards pay as soon as they are in circumstances to do it. When these escapes were made, it was generally at midnight; or in this manner,--the youth's companions accompanied him in a Comitatus, or one of their regular departure-processions, but another student was set in the first carriage, in the place of honour, as though it were he who was leaving. When they had, however, quitted the city, the real departer took the place of honour, and the pretended one then quietly returned to the city. On such occasions was sung the song, of course not till the immediate danger was past--

Forth from here, the Manichæans watch us.

The Manichæans are the creditors, so called after the old much reprobated sect of the Manichæans, who in the third century held the doctrines of the Persian heretic Manes.

Upon a wearied steed, a Jena student flew,  
In stumbling career, the fields and meadows through;  
And full of dread, with which the Philistines imbued him,  
Still wildly looked behind, lest creditors pursued him.

*The Renommist.*



Mr. Traveller had now, in Heidelberg, studied for half a year the customs and general life of the students. Gladly would he yet longer have sojourned amongst his new friends; but he could only remain on the continent till autumn, and wished to make use of this time, in acquainting himself with some others of the most celebrated of the universities of Germany. After long delay, a day was finally fixed during the Easter vacation. His way lay through Leipsic and Berlin, and it was agreed to set out in a hired carriage as far as Weinheim, there, till the arrival of the post-wagon, to celebrate the last farewell. Towards five o'clock, on the appointed morning, Freisleben and Hoffmann went to call their friend Von Kronen, and were astonished to find the long-sleeper already up and prepared. "I'll tell you how it happened," said he; "I had given my boot-fox orders to rouse me out of bed at four o'clock, be it as it would. This morning, while it was yet quite dark, he rushed into my room with his lantern, and startled me out of the sweetest dreams, with the cry of 'Fire! fire!' 'Where then, where?' I demanded. 'Get up,' said he, 'in a moment, and come with me.' I sprung out of bed, threw on my clothes, again demanding, 'Tell me though, where is the fire?' He then quietly answered, 'Here, you see it, in my lantern!'"

The friends laughed at the ingenuity of the boot-fox, and hastened to Mr. Traveller. They found him already dressed, and busy with his boot-fox, in packing the dress-suit in which he had yesterday paid his farewell visits to the professors. The room looked desolate and inhospitable; and on the walls on every side peeped forth the nails, on which had been suspended pipes, pictures, and other house-gear. On the floor, packing paper lay every where in heaps; here and there lay a pair of old shoes, some old boxes, and the like; upon one chair a trunk, and on another a hat-case. In one corner of the room lay a heap of books which were to be sent direct to England. The writing-desk was open, and there lay the purse, the watch, and all that belongs to the pocket, whilst a stick, and the umbrella in its case leaned against it.

Astonished at these changes, Freisleben's spaniel ran about the room, smelling at every thing in the most particular manner. The carriage now rattled up; the stout driver made his appearance, and announced that all was ready. Hastily the maid brought in the coffee, and hastily was it drunk. The driver and the boot-fox carried down the luggage; Mr. Traveller put on his

travelling coat, the friends lit their pipes, and all hastened to the carriage. The maid was below and wished a happy journey; the boot-fox, to whom some remaining pipes and the little coffee-machine was given, said--"I thank you many times; and, fare you well;" and as the carriage set off, the old House-Philistine thrust his head with his white nightcap out of the window above, and with sleepy voice cried--"a happy journey!" But the maid remained standing at the door, and looked after the carriage till it turned the next corner.

Mr. Traveller carried with him from Heidelberg only happy recollections, and rarely can we say this of a place; therefore, as the carriage swept round the turn of the road at Neuenheim, he bade a last and regretful farewell to the little city which, stretched along the bank of the Neckar.

Having arrived in Weinheim, the friends first took a walk up the lovely Birkenau Thal. They had just returned thence, and seated themselves in the inn to a breakfast *à la fourchette*, when a whole troop of youths arrived on foot. They were clad in blue-and-white frockcoats and blouses, with belt round the waist, wore for the most part straw hats; carried each a stout knapsack on his back; in their hands held short cudgels; and had a basket-flask suspended by a riband that passed over the breast. They were Wurtzburg students, who had penetrated by Wertheim into the Odenwald, and had traversed that ancient and forest land in every direction. Von Kronen and Freisleben found amongst them some old acquaintances. They gave them a hearty welcome; and the new-comers, who were full of life and good humour, related many of their travel adventures,--how they came to a village where it was the Kirchweih, or wake; and how the young bauers came to hard cudgels with them, because they had enticed from them the loveliest maidens on the dancing ground; of the Wild Hunter, the Felsenmeere, or Sea of Rocks, and of the solitary Jäger-house, where they had been obliged to pass the night on straw, as there were no beds to be found for so many guests. They felicitated themselves on all the pleasure that they promised themselves in Heidelberg. The whole company was very merry; they did not spare the excellent Hupberger, and totally forgot that on the heels of this welcome must come a speedy parting. But suddenly the landlord stepped in, and announced that the Eilwagen had arrived. The whole company broke up hastily, and accompanied Mr. Traveller to it. It

was high time when they arrived at it, and the Englishman had scarcely leisure to take a hurried leave of his friends. He promised to send them notice of the other universities that he should visit, gave them another hearty shake of the hand--the postilion had blown his bugle, and the wagon rolled on its way. "Tell the English," cried Freisleben to him, as he still looked out of the window, "that the German students are not so bad as they have been described to them." "Honi soit qui mal y pense," replied Mr. Traveller. While this passed, the other students had raised the

### **SONG OF THE DEPARTING BURSCH.**

A Mossy Borsch now forth I wend,  
O God! Philister's house defend.<sup>[47]</sup>  
Yes, native home, I come to thee;  
Myself must now Philistine be.

Farewell, ye crooked streets and straight,  
Through you no more I walk elate:  
With songs no more make you astir,  
With noisy joy and clink to spur.

Ye Kneips, why would ye me delay,  
My sojourn here has passed away.  
Oh! beckon not with your long arm,  
Make not my thirsty heart thus warm.

God bless the College! How she there  
Stands in her stately grandeur fair!  
Ye twilight halls, both great and small,  
Ye win me back no more at all.

And thou too, from thy gabled height,  
O Carcer! see'st in vain my flight,  
For wretched lodging, night and day,  
A Pereat, greet thee thus for aye!

But bloom thou--and, as thus I go,  
Old Battle-house, still "Live thou, hoch!"  
Yet many a victor-garland be,  
Thou house of honour, won in thee!

Then come I--ah! to Liebchen's door,--  
Look out, dear girl, look out once more!  
Look out with thy sweet eyes so clear,  
And with thy dark and clustering hair.

And shouldst thou e'en have me forgot,  
A like reward I wish thee not.  
Go, thou mayst seek a lover new,  
But be he gay, like me, and true.

But farther, farther, now awaits  
My course, stand wide ye ancient gates!  
Light is my heart, and glad my track;  
My blessing, city, waft I back!

Ye Brothers! now, around me press,  
Let my heart feel not its distress.  
On gallant steeds with gladsome song,  
Go ye with me the way along.

In the next Dorf will we alight,  
In our last wine our friendship plight.  
Now, here ye Brothers,--wo's the case!--  
Our last glass take!--our last embrace!

*Gustav. Schwab.*

## **CHAPTER XXII.**

### **THE STUDENT'S FUNERAL, ETC.**

And of our brethren, is there one departed--  
By pale Death summoned in his bloom?  
We weep, and wish him peace, all saddest hearted;  
Peace to our brother's silent tomb.  
We weep, and wish that peace may dwell  
In our dear brother's silent cell.

"What becomes then of the student at the last?" the reader will ask--"of him whom we have to this point followed in silent observation through all his ways, and along his whole course?"

If, as has often been the case, we were to consider the Student-life as a disease, we should say with the Pathologist:--"Every disease can, by possibility, have, only one of three terminations: the first, in health; the second, in some other disease; and the last, in death." But we are far from looking upon it in this light. Yet we can, regarding the Student-life in its great outlines as a state of health, assign it the same issues, with the exception that we hold the Philisterium, to use the student's own language, to be the natural sequence of the natural university life.

It is truly a sorrowful reflection, that of the numbers who seek the university at the same time, it is only the smaller portion of them who reach that goal after which they strive, or should strive. Not that we mean to say that death snatches away so many from the midst of them. No; the mortality in general, and especially in Heidelberg, amongst the student youth, is very small indeed. But what we now have in our eye will be more clearly shown, if we explain ourselves on the nature of the object to be attained by the student. Has he, indeed, attained that object, when he has piled up in his head laboriously and without order, a store of things worthy to be known in his peculiar profession? No, that is not it; although people who are destitute of an enlightened grasp of mind, are accustomed to see great perfection in

the education of a young man who, returning from a learned institution, is found to have gathered up all facts like a schoolboy with amazing diligence, so that when any one says A to him, he can immediately say B and C. We believe, for our part, the fruit of inquiry to be this: that the young man learns to perceive that the individual study to which he especially devotes himself, is only one branch of the great tree of knowledge; that no science, sundered entirely from the rest, can proceed prosperously to its own completion; that a science pursued alone and in an isolated manner, cannot be properly called a science; but that all the sciences stretch forth their sisterly hands to each other, and form themselves into a beautiful circle, out of which they will not suffer themselves to be torn by an unskilful person.

He will perceive, that a well-grounded study of professional science even, can only base itself on a philosophical foundation; and that he who, on the contrary, falls into one-sidedness, must become merely a clever plodder, or a charlatan. He will perceive that the arts and sciences are as intimately connected, as the capacity for the true, the good, and the beautiful is united in the spirit of man with the understanding. But is there one who has acquired no single perception of all this; has he only crammed into his head the dusty chaff of learning; has he, in the acquisition of this false learning, lost the taste for all that is good and beautiful!--it had been better that he had never entered on this field, which for him has had no result but that of drying up his brain with the heat of a confused and unfruitful knowledge.

Truly, there are yet other results of student-life than such as these: namely, those of a spurious erudition; results which for the quondam student, are yet more sorrowful, and which fill the heart of the spectator with pity and abhorrence. We mean the consequences which habits of drinking, and of other wild practices--such as the miserable passion for play, draw after them. It is true that we see many wretched creatures glide trembling about, who have laid the first foundations of their aberrations at their university. But we see equally many, or more such miseries, who never visited such an institution: and if we find many sorrowful histories in the university city, of the students who had taken their own lives because they had plunged themselves into inextricable debt; if we hear many a one at the end of his academical career lament bitterly over his lost and

misspent time; we may be seized with a horror of such places as strong, as when we read what Jean Paul has depicted in such fearful colours of a similar unfortunate:--"And he brought out of the whole rich life nothing but errors, sins and diseases; a wasted body and a weary soul; a breast full of poison and an age full of remorse. His beautiful youthful days now changed themselves into spectres, and dragged him back to that sweet morning where his father had first placed him, at the point of the diverging paths of life, the right hand of which leads into the sun-path of virtue, into a wide quiet land, full of light and of harvest-fields, and of angels; and that of the left conducts down through the mole-burrowings of crime, into a black cavern full of down-dropping poison, of darting snakes, and of a damp and sultry vapour. Ah! the snakes hang on his bosom, and the poison drops on his tongue, and--he knew where he was. Wild, and with inexpressible horror and anguish, he cried to heaven--'Give me my youth again! O Father! place me again on the diverging path that I may choose differently!'"

I say, we, and more especially the foreigner, hearing and seeing such things, should regard those places with horror. But let the latter think, how many young people here are collected together; and that amongst them must of a certainty be many very thoughtless, and no few of them decidedly bad characters. Let him recollect that these numbers, who have just escaped from the strict bondage of the schools, now suddenly stand free, torn loose from all family bonds, to act without restraint, and at their own pleasure. Let him reflect that they are in a place where opportunities for every species of extravagance are so freely offered; where, if their purses are exhausted, so many are at hand ready to lend. Let him again reflect, that the student is exposed to all those temptations at an age at which the passions rage often with a fearful strength; at an age which causes him to stagger between its extremes. Let him, and let us, weigh all this, and then we cannot wonder, if many a one in this contest goes down; if many a one fails to accomplish the aim of his ideal activity; and we shall even rejoice that so many honourably pass through the ordeal, and choose the right. Goethe's *Wahrheit und Dichtung* presents us with a passage which is particularly applicable to this subject.

"All men of good disposition feel, in the progress of their education, that they have a double part to play in the world--an actual and an ideal one,--

and in this feeling is to be sought the ground of every thing that is noble. What of the actual is allotted to us, we find only too clear; what concerns the ideal, we can seldom come into a distinct conception of. The man may seek his higher destiny on the earth or in heaven, in the present or in the future; but on that account he remains exposed to a constant wavering from within, and to a constantly disturbing influence from without, till he once for all takes the resolution to declare that is the right which is conformable to his individual condition and character."

But before we take our leave of those who, as we have said, have chosen the right, and now leave the university to enter upon a new life, let us cast one sorrowful retrospective glance at him, whom death so early has snatched away from his brethren. And here it rejoices us to behold how the student seeks to honour and preserve the memory of the for-ever departed.

When youth, in its strength, in its beauty and freshness, is snatched away, and is borne to the grave, who does not feel sorrow at heart, even if he were a stranger to the departed? But in such sorrowful moments we feel a peculiar pleasure in mounting higher and higher into a sentiment of grief, till the exhausted spirit dissolves itself in an infinitude of wo. In the decoration of the funeral procession with every symbol of sorrow, we behold the desire of friends to do the greatest possible honour to the deceased in the eyes of the world, and to bring even this to participate in the mournful interest. If then this be the intention of the last honours, no one has perhaps more completely accomplished the object than the student, when he accompanies his departed friend to his last resting-place by night, and with the light of torches.

In the streets a curious multitude has gathered together to behold the solemn train, and moves hither and thither. The tolling of the funeral bell, announcing the setting forward of the train, has brought us also to the window, and in silence we look forth into the yet dark streets. Busy fancy carries us quickly far away to the parents of the deceased, who now, in unspeakable grief, bewail perhaps the only son, him whom they hoped soon again, after the years of separation, to have folded in their arms; who, so thought they, should now cheer and enliven their old age. Then conducts it us to his solitary death-bed, where in vain he called on the names of those



whom he loved--of those who watched his childhood; where sorrowfully he thought of their pain; where, finally, he thanked the friends who, though they had been but for a short period united to him in friendship, had, through their sympathy and faithful affectionate care, softened and made consolatory his last hours.

An uncertain and ruddy light now plays upon the houses and the waving folk's-mass, and the night brings to us the long-drawn tones of the trumpets, which, wailing with sorrow, make every chord of our inner life vibrate. Now they call back to us the dear ones that we have already borne to the grave, and the uncertain light of the torches causes their forms to sweep before our excited imaginations in a spirit-train. Now these thrilling notes seem to lament the transitoriness of all earthly things, and to complain of the dreadful ordinations of heaven.

The scene becomes continually clearer and brighter; the individual torches and their bearers appear distinctly, and behold! the mass of people separates before our eyes. To right and left they shrink back, as if the multitude feared that advancing train would yet snatch another out of this moving throng, out of the gladsome drift of life into the chill of the grave.

A numerous band of music comes at the head of the procession, lighted by torch-bearers. Then follows the funeral car, covered with black cloth and drawn by black horses. Upon the car lies the Chore-band, the Chore-caps of the deceased, and two crossed swords, all covered with mourning crape, and surrounded with mourning wreaths. We remark also particularly one smaller garland; it is formed of white roses, and is, so we are told, from the sorrowing hand of some unknown fair one.

This car, this coffin, incloses the mortal remains of the student whom so lately we saw traversing these streets in the freshness of youth, whose strong arm has lifted one of these swords in defence of his honour. This city, the witness of his fresh and lively existence, will soon have forgotten him.

Through life's course unto his goal  
With the tempest's speed roan driveth;  
Then within the true friend's soul  
Yet a little while surviveth.  
*Uhland.*

Immediately before the car, go two of the beadles carrying fasces wreathed with crape. On each side and behind the car, walk the companions of the Chore, all in simple black mourning, and with hats. Immediately behind the Chore also we see two clergymen in black costume walking. This whole group is surrounded by the torch-bearers. Then come all the other students who were acquainted with the deceased, and who have added themselves to the train. Before them goes the leader of the procession, with two attendants or marshals. The peculiar mourning costume--the buckskins and great jack-boots--the large storm or two-cocked hat, bordered with black and white crape, with sweeping feathers--the great leathern gauntlets--the sword trailing in its sheath--the broad Chore-riband, veiled in crape; all these particulars point him out. His two attendants are similarly attired, but without the storm-hat. The students then follow two and two, in divisions according to their Chores, and others add themselves. In two long lines they advance slowly on each side of the street, and from time to time we observe an officer marching between these lines, distinguished by his cerevis cap and riband, while he carries in his hand his sword, its colours also veiled in crape, and its sheath hanging from his left side. These maintain the order of the procession. Formerly it was customary for them to be more ceremoniously attended, similarly to the leader of the train. In the same costume as the leader of the train, however, comes its closer, also accompanied by his two attendants; and these personages are chosen by the Chores from amongst their tallest members, as a matter of state.

Thus the procession moves on slowly through the streets, and we see a seriousness expressed on the countenances of most of the attendants, which the peculiar paleness that the torchlight is wont to give, greatly heightens. While the murmur of the thoughtless multitude announces to us the termination of the train, let us hasten, by a shorter cut than they, to the Friedhof, the churchyard where the students are interred. Here the train assembles itself around the open grave. The clergyman steps into the midst of the silent throng, and having pronounced his address, closes it with his last benediction. Then steps forward one of the friends of the deceased, to clothe in words once more before the assembled crowd, his painful feelings. Yet once more calls he to their remembrance the true friendship of the departed, his manly worth, and his genuine German mind. Yet once more he dwells on all that they have lost in him. A few stanzas are sung, from the

beautiful hymn "From High Olympus," which he had so often joined them in. And now the coffin must descend; and all press forward to discharge to him their last duty, by throwing each a handful of earth upon him. Lastly, the lowered swords are crossed over his grave, and their clash is the signal for the return of the train.

We perceive in many of these funeral ceremonies a similarity to those with which the deceased soldier is interred; and this is still more strikingly shown in the manner in which they return to one of the larger squares, there to burn the torches--a manner which we can by no means approve.

No longer solemnly and silently tread back the throng; but instead of mourning airs, we hear the march, nay, even the merry waltz and the gallopade. Arrived in one of the larger squares, the train march round it, and turning towards the centre, at a given signal, let their torches fly up into the air, and fall on a heap in the midst. They whirl up, describing many a fiery circle and convolution ere they reach the flaming pile; and now, while this one animated and huge torch lights up all around with a strong radiance, and the dark and giant clouds of smoke, which rolling up, mixed with the many-coloured flames, spread themselves to the heavens, the voices of the assembled students join in chorus the music-accompanied song of

Gaudeamus igitur,  
Juvenes dum sumus.

And we see how speedily youth can step from one feeling to another. We see also the thought--"Though an individual falls, the great whole yet continues; it was for that, that he laboured, and his exertions have not been in vain;" we see this thought expressed in--

It shall live! the Academical Freedom!

which bursts forth from a thousand voices, amid the clashing together of the swords.

Finally, the torch-pile having nearly consumed itself in its splendid light, is extinguished--an image of the high-aspiring youth who has been borne to the grave; and--

As nothing had occurred now all is silent;  
The bells have pealed out, the songs are ended.

*Uhland.*

We have deferred the description of a torch-train, which is, on solemn or festive occasions, conducted in honour of a professor, etc., to this chapter; and it is only necessary here to remark, that on these occasions, the mourning attributes and contingencies of course being absent, the general arrangement and proceeding is the same.

Only such students who have distinguished themselves in a Chore, and are on that account well known to the whole student body, are buried with the honour of a torch-train. Others are interred in the day, and the attendants follow either on foot or in mourning coaches. The permission for a torch-train must always be obtained from the Academical Senate.

The students in like manner join themselves to the funeral train of a teacher of the university, with the rest of the members of the High-school, as well as other mourners. If it be that of a professor little known or little esteemed, only those of his own faculty attend; but if it be the funeral of a man distinguished for his eminent talents as a teacher, for the excellence of his character, and for his services to the university, they scarcely omit one of their number.

## **CHAPTER XXIII.**

### **THE COMITAT.**

But we have hitherto only turned our attention to the images of death; let us now accompany the more happy youth who sails out of the joyful Burschen world into Philisterium, on his progress. During the student period, the academician generally far separated from his connexions, sometimes pays them a visit in the vacation.

And when again he visits us!--O God! my wish is won!  
I see him with his black mustache the real Muses' son!  
"The Ferien<sup>[48]</sup> now ended--I must away--adieu!  
And now until I've finished, I come no more to you."

If the student always so lived as during the whole last year or half-year of his university-life, we might have been spared the labour of writing the tenth and other chapters of our volume. There he sits now, in his solitary little room. Instead of frolicksome brothers, the old folios surround him; he has even forgot the Commersing, and instead of that he sips his cup of coffee, in order again to revive the exhausted spirit of his life. His duelling wrath is directed against the flies that disturb him in his studies, and his pipe is the only friend that cheers his spirit in his solitude.

Students who have lived jovially, are accustomed to denote that they have arrived at this melancholy termination of their campaign by exchanging the cap for the Philistine hat, and their cronies are reasonable enough then to perceive, that nobody may disturb them in these their arduous exertions, as, indeed, the Burschen-life cannot last for ever. After these glorious exertions, the son of the Muses plunges boldly into the doctoral examination. This is partly made in writing, partly orally, and is conducted under the superintendence of the Dean, who also selects the questions, to which the youth under examination, isolated in a room of the Dean's house, gives his answers. The examination is seldom closed under a

week; after which he receives, as its result, from the examining professors of the faculty, one of the usual degrees of the university, unless his acquirements have been so indifferent, that his evil-star, as the students say, has caused him to fall through.

The usual degrees are these four--"Summa cum laude;" "Præclara cum laude;" "Insigni cum laude;" "Magno cum laude;" (feliciter evasit, as the student jocosely says.) In most states the doctoral examination precedes the state examination, and the examinee acquires the right to be admitted to the latter when he has passed his doctoral examination, and has written a dissertation. In other states, as in Baden, the reverse is the fact.

Is the new doctor then dubbed?--he has sworn his oath on the fasces, and he hastens to announce this new distinction to his delighted connexions, and to apprise them of his speedy return home.

See! Father, see! a letter! his student days are done,  
A Doctor they've created, with high applause, thy son.  
By the next post, so writes he, to-morrow e'en to dine!  
He comes--"Then, mother, fetch thou thy last flask of good wine."

*Chamisso.*

When now the quondam Bursch returns home, in order then to prepare himself to pass the State's examination, the portal of Philisterium, his university companions accompany him in procession out of the city. This accompaniment they call the Comitatus.

What rings and sings in the street out there!  
Open the windows, ye maids so fair.  
'Tis the Bursché, away he wendeth--  
The Comitatus him attendeth.

*Uhland.*

Such a comitatus was, in former times, more stately and striking than at present. Before rode in Kollar and Kanonen, that is, in buckskins and jack-boots, the assembled Chore-brothers, wearing the Chore-caps and bands, in their right hands their drawn swords. Then followed in a carriage with four

or six horses, the senior in the fullest gala dress, and wearing the storm-hat, and holding two crossed swords. Then followed in a carriage drawn by the same number of horses, the Departing Bursch. He sate on the left side in the old Burschen dress, with the old cap on, while on his right hand sate two Foxes, dressed in the highest gala uniform, who were attending on him with the greatest assiduity, performing every possible service for him, especially in lighting his pipe for him. On each side of the carriage was generally wont a student also to ride. The rest of the students who joined the procession, now followed in two-horse carriages, and the Pawk-doctor did not fail to appear in the train. The train-closer came last, in the style in which we have before described him, either on horseback with his drawn sword, or in a carriage holding the crossed swords. So moved on the picturesque procession to the next place, where they once more assembled themselves to enjoy the Burschen-life. Finally, the Mossy Bursch must say a last farewell to the university city; finally, must he tear himself from the arms of his companions, and hasten towards his home. He carries with him out of the city of the Muses many a delightful remembrance, and brings to his parents and relations, to whose arms he returns, as the testimony of his scientific acquirements, the diploma of Doctor.

### THE OLD BURSCH.

Think'st thou thereon how in the Burschen season,  
So light and free, life unto thee did show?  
Think'st thou thereon--how, and with fullest reason,  
Lovely it seemed to feel young friendship's glow?  
Rememb'rest then, what glad throngs thou didst see soon  
As Brothers greet thee--true in joy and wo?  
When near us lies nor foul deceit could won?--  
Speak, Ancient House! oh! think'st thou yet thereon?

Rememberest thou, the good old time and tide then,  
In German coat, long hair, and open breast;  
Heft under arm, [\[49\]](#) the rapier by the side then,  
With zeal and courage we in college pressed,  
And fought our way all through the deep-and-wide fen,  
Of the most learned lecturer's wild-goose quest.  
Then by conceit nor rank imposed upon?--  
Speak, Ancient House,--oh! think'st thou yet thereon?

Thinkest thou yet how the Philistines fearéd,  
Yet still gave credit when the Bursché came;

To the Prorektor when with complaints they faréd,  
The Landsmannschaft did straight the Bann proclaim?  
Thinkest thou yet how boldly then we daréd  
With lovely maids, who still, so mild, so tame--  
How in Commers to heaven we have gone--  
Speak, Ancient House! oh! think'st thou yet thereon?

Rememberest thou each tragi-comic action--  
How we did fight, since I had thee touchirt?  
But when the bleeding wound gave satisfaction,  
How heartier than ever we smollirt?  
And how we then, both true unto our paction,  
In Carcer two long moons each other cheered?  
In Carcer even clinked glasses,--cared for none?  
Speak, Ancient House! oh! think'st thou yet thereon!

I think thereon! oh! ne'er shall I forget it!  
The good, the dear, the ancient Burschentide!  
Oh! that 'tis gone! that heaven each brief term set it!  
East, west, the brothers scattered on each side!  
And villany! since then I oft have met it!  
Yes, life disgusts me--all so cold and wide!  
Courage, Old House! sing "Gaudeamus" on!  
Canst "thou" it yet? Ah! God! I think thereon!



## **CHAPTER XXIV.**

### **SUMMARY OF THE ACTUAL MERITS AND DEMERITS OF STUDENT LIFE.**

Prove all things; and hold fast that which is good.

The life and habits of the student are closed with the last chapter. We have accompanied him from the time when he advanced from the school into the free atmosphere of the university, till that in which, turning his back on the joyful Burschen-world, he sailed forth into the Philisterium. The English reader has attended us on a progress through a strange country, which lay so near him, and yet was so enigmatical to him; and we hope that his trouble has not proved irksome to him. It is true that the Student-life has its rough and eccentric side; and this, as falling most prominently under the eye, has not escaped the foreigner. On the other hand, many have endeavoured, in their writings, to represent these in the most exaggerated manner. But the Student-life has also a beautiful and a poetical side, and this many do not think worthy of their time and attention, while others have no sentiment for it, and therefore no perception of it. When, moreover, in English periodicals are exhibited such caricatures and calumnious portraitures as genuine delineations of what would be, truly, very singular proceedings and persons; if the reader has carried away with him these as true, because they have been written in Germany and with an air of authority, we need not wonder that he turns from these monstrous and bizarre pictures with shuddering and contempt, and if he laugh at the folly and reprobate the immorality of the German youth. But after we have sketched the true features of German Student-life, we leave it to the reader to make his reflections upon it, and to extract the grains of wheat from the chaff.

There remain for us, however, still several questions which the more particularly demand answers, because hereupon the most singular notions prevail. What gains the student by this academical life? What does he carry with him out of it? and what does he leave behind in it? and what becomes of him next!

When we have decided upon the advantage which the student derives from the academical life, we shall then feel ourselves prompted to say a few words upon the tendency of certain institutions of the German universities; on the scientific and moral spirit which prevails amongst the students. We shall further proceed a little to explain some singular-seeming customs and practices, and, so far as these are concerned, as we always speak particularly of Heidelberg, to cast some glances of comparison upon other German and foreign universities. In such a parallel it is also interesting to observe how the universities, as institutions of education, operate thus essentially on the political relations of states, and on the other hand, how they are determined in their developement by these. These proposed points are difficult; and their thorough discussion would lead us too far. We must therefore content ourselves with distinctive indications.

Justly says Thiersch--"The universities are a vastly intertwined and entangled whole, at which people and ages have laboured, in order to bring it to its present extension."

The first and only true object of the academician is, and for ever remains, the study of science. This constitutes the central point, which all intently seek, and where all find themselves, without regard to external circumstances. Knowledge, and the strife after it, are sacred to the student; and these are the anchor, which, dropped into the heart of every one, has lashed to it that internal spiritual bond which embraces the whole class. The single aim of the academician is the free pursuit of knowledge.

It is true that the majority of those who seek the university, have the object, at a later period, of entering on state offices; and the acquisition of knowledge made at the university, places them in a condition to be able properly to discharge the duties of those offices, which are the means of their future existence. But the later practical application of this knowledge, which is so far the medium of his profession, comes before the eye of the

student in the background. In the society of young people who are in the pursuit of knowledge, in the intercourse with teachers whose object is the diffusion of the same, and surrounded by external institutions which all bear upon the advancement and the facilitation of study, he remains far from the thought that knowledge is to be regarded as a milch-cow, which will furnish him hereafter with butter. The unfolding of his intellectual capacity in every direction; the following out one or the other in particular, appears to him the business of life in these years. It is exactly this which essentially distinguishes the corporation of students above every thing else;--of which the student is so proud. He despises the Philistine, who, in all circumstances of his life, is only thinking of his petty gains.

It is grounded psychologically on this feeling of individual worth as a disciple of wisdom, that the Burschen honour springs up, and holds every student equally high and equally dear. As a corporation, one stands for all, and all for one; and without drawing a moral death upon it, this honour cannot suffer itself to be wounded. Study is pursued at the German universities with zeal and radicality. Proofs of this, are the great numbers of young men who every year pass through the State's-examinations, and testify their ability in all the offices of their country: proofs are, the writers of Germany, who owe their accomplishment to these institutions: proofs, finally, are, the preponderating number of well-educated men compared with those of other countries, who draw their support from the academical foundations. But we must not go so far. Let any one compare the German student, whose acquirements are weighed by a competent judge, with the student of any foreign university.

Manifold indeed have been the complaints of the laziness of the first period of the academical life; and we can only repeat what we have said on this subject in an earlier portion of our volume. There is an abrupt transition from the studies of the Gymnasium to those of the University; and the newling at the university wastes and wears away much time, especially in the first months, and indeed during the whole first semester, before he has accustomed himself to the free condition, and the free and fresh atmosphere of the university. But is this of such mighty importance? It is the transition into a state of greater self-dependence which demands this sacrifice; and he only who has no conception of the strengthening and fortifying influence of

university life,--he who does not perceive with what higher advantage this material loss is counterbalanced, can alone break out into lamentations on this head. He who is accustomed to chase youth out of one pen into another, and to begrudge every free breath, every lighter moment, every refreshment of over-passing Muse--who trembles and shakes lest by such trivial circumstances they should have lost both body and soul; will indeed judge otherwise, but deserves, in fact, to be sent back into the school of literary and pedagogic necessity, out of which he was expelled by some mischance. That portion of the youth however, who have arrived on the threshold of the university honest and well-disposed--and this portion is so predominant that the remainder appears in comparison insignificant--this large and elect portion of the better endowed, soon pass through the first rude shock of difficulty and surprise, and through the mere pleasure-rambling in the garden of the Muses. The student zealously busied to develop his intellectual constitution, healthily and in all its members, will find himself in the strongest manner supported by the regulations of the German university; and of these we will speak anon.

On the other hand, the free intercourse with his cotemporaries operates most favourably. When the youth enters the university, he steps at once into a corporation composed of the most opposite materials. Every student brings with him the peculiarities of his Fatherland, in manners and speech; and how manifold is the variety! To say nothing of the foreigners who frequent our different universities, what a difference is there yet between the different races which speak the German tongue. What gradations from the cold, ceremonial North German, who clings fast to etiquette, and with difficulty attaches himself to others, to the good-natured South German, who, knowing little of outward forms, readily finds a friend to whom he can ally himself. Every foreigner retains the characteristics of his own land, and often takes a pride in exhibiting them, by which means he becomes a person detached from the mass. We find the strongest antagonisms of this kind; and it might make one doubtful of the reciprocating influence of this cause, had we not found by experience that the result was a favourable one. The intellectual bond of knowledge here embraces the sons of all nations; and thus these apparently heterogeneous elements can only operate auspiciously, since the advantage is not to be overlooked which the close

and mutual contact affords, of learning to know foreign manners and customs, and for each to recognise his own in the true light.

And here we must again call attention to the fact, of the essential difference between the result of academical life, and that of burger life. As to the moral side of the question, there have not been wanting people who have laboured to represent the university as a gulf which swallows up the flower of the youth, as a pool out of which only a few are happy enough to escape without ruin of soul and body. These are ridiculous and malicious exaggerations. No one will attempt to deny the dangers of university life, the temptations to deviations from propriety; and according to time and situation must every university, in a greater or less degree, be exposed to these; but every one who is not blinded by excess of prejudice or enmity, knows that, besides those who give way to temptation, by far the greater number return to their friends from the High-school, as sound in body and mind as they came to it.

The hope would be idle, to chase evil quite away; such a hope is opposed to the total experience of all people and times, to the nature of advancing manhood, and to that degree of freedom, which must be allowed to youth in the years of its growing developement for the prosperous completion of this developement itself, and which every where, though it may be under different forms, will be afforded. There is no law, no precaution, which can possibly preserve the youngling on the higher steps of his career if he does not watch over himself; and one cannot forget the just observation of the old English vicar, that the virtue that needs continual watching, is not worth the cost of a sentinel. But this is the common lot of all manly youth; and we may boldly assert, that aberrations amongst the other classes--amongst the younger ranks of the military, of the mercantile, and of other departments of trade, are not less, but probably more extensive; yes, it is satisfactory to know that in these respects the academical life is in a progressive state of steady improvement.

But if we inquire further what are those things which most particularly strike the foreigner in the student; those things which are most ridiculous, and disapproved; we find that, briefly, they are the following,--the singular

dress of the student, the strong smoking, and his habits of beer-drinking and duelling.

That the student in early times, more than at present, adopted a singular costume, arose from two causes, either out of convenience or vanity. In both cases, the matter is a very innocent one, and the academical boards did wisely to permit him these fancies, so far as they were not the signs of an interdicted *verbindung*. The life at the university, as we have had now abundant occasion to observe, is a peculiar one. When this extends itself so far that a separate court of justice is allowed to the students, is it at all to be wondered at, that the Student who feels himself in every respect so distinct from the Philistine, should also seek to express this distinction by his costume? He only does this so long as he belongs to the High-school, and with the conclusion of this period, ceases also naturally, the occasion for this peculiarity. Considerations of *convenance* weigh little with the students amongst themselves,--they weigh little with them towards those who surround them, as it is by no means an object of the student to seek advantage from those moving around him, nor to render himself particularly acceptable to them. Therefore in small cities these peculiarities of dress, chosen according to every individual fancy, strike the eye more; while in larger cities the student, playing a more subordinate part, unites himself more to the general mass of society, and loses himself more in family circles. There he will surrender himself to the existing order and convenances of society, since, so soon as he enters the salon, he conducts himself strictly by the rules of etiquette. But he is no slave of fashion. This is repugnant to his freedom of thought; and he believes himself to have as good a right to choose his own dress, as the lawgiver of fashion has from the capital of France to prescribe what shall be held good ton in external appearance. He is by no means so tyrannical as that personage, since he desires from no comrade that he shall herein follow his example; since he leaves, herein to every one perfect freedom, and allows the native student to observe the stricter ceremonial of his father-city.

And is his, really as it often is a most fantastic costume, more singular or more contrary to nature, than the fashionable attire in which many show themselves in the capitals of the whole world, and above all, in which they present themselves to the eyes of the public in the fashionable watering-

places? Is he indeed the only one who herein overleaps the bounds of etiquette? They who have seen the grotesque paraphernalia in which the foreigners from beyond the Channel suffer themselves to appear in Germany, will certainly not assert this. And these do this in a foreign country; the student only in his German Fatherland. Are there so many sects too, who distinguish themselves by their peculiar dress, and shall this be so sharply objected to in the student?

The smoking of tobacco is an accusation which the student shares in common with the other classes of the community, and which only looks the more striking in him. We will not defend this practice, on which so much has already been said, nor that of beer-drinking; but we must again take leave to observe, that in all this there is no compulsion. The reader has probably alarmed himself by perusing the Beer-code, which we have given at the end of this volume. It is well known that in older times much more was drunken at the university, and that this pernicious custom, especially in some of the German universities, prevailed to a most lamentable degree. In those times many of these beer-laws might be of great advantage, insomuch that they restrained from greater excesses. As they now exist, no student is subjected to them, who does not voluntarily submit himself to them, by associating himself with the companies that assemble at the *kneip*. And even here it is at his perfect option, at any moment, to declare that he will drink no more, only he cannot break this declaration without paying the penalty.

We are as little disposed to defend the duel. A reconciliation of disputes between contenders, by the exertion of and through the means of reason, either in the disputants themselves, or through their friends; or if this were found impracticable, through the establishment of a court of honour amongst the students, or through an appeal, in serious cases, to the academical court, would certainly be a more civilized proceeding. We may, indeed, hope that this will be accomplished in time, and the more so, because the number of duels at the universities, compared with former times, is already so much diminished, and as the voices of many students are now raised against this practice. Yet we must not judge the students too hardly on account of the duel, but ought to take into the account the following considerations in mitigation of our opinion.

No one is compelled to fight, who in the commencement declares that it is contrary to his principles. Let it be recollected, that in the university cities, more than elsewhere, young people are crowded together, and compelled briskly to push and jostle each other, as it were, in their course. Let it be remembered, that though we may pronounce of the bulk of them, that they are well-educated youths, yet at the same time, in comparison with the circumstances of other young people, it is undeniable that far more frequent and greater occasions for antagonist attrition occur amongst them--in part, no doubt, on account of the greater pecuniary means in their possession, and still more on account of the unavoidable necessity of social life amongst themselves, especially in the lesser university cities, in which they cannot mingle with the family circles.

The foreign universities, where the duel does not exist, cannot be brought in evidence on this head, because they want other peculiarities of the German universities, which are of apparently great advantage. The constitution of the English universities, in particular, is totally different to ours, and more resembles that of our seminaries, where the students enjoy no such freedom. It must also be remembered that the regulations of our universities make them accessible to those without property, and who spring out of the lower classes, while in England only the rich young men, and those out of the higher classes of society, can possibly exist, with a few exceptions, at the great universities of England. The advantage of the German universities in this respect no one can deny, if he only turns his regard on the great number of the most distinguished of the learned men of Germany, whose talents have, through this very accessibility of the universities, been made beneficial to the public.

On the other hand, one cannot expect from the student who has sprung from one of the lower grades of society, the same degree of refinement as graces those of a higher stand. Thus, no wonder, if through these who have been accustomed to move in a ruder sphere of society, occasions for contentions are more readily created. It must be remembered that the student, be he who he may, regards himself on an equality with his fellow-student; but on that account so much the more jealously watches over his own honour, and on that account also more readily believes himself insulted. Hence the customary formula of a challenge, "Stupid youth!"



which inevitably draws a duel after it, is characteristic, as it clearly indicates that the feeling of burschen-honour is grounded on the dedication to knowledge, whose disciples can naturally in no way be so insulted as by the epithet "stupid," which implies that he is totally unfit for a priest of Minerva.

Let these facile occasions of strife be borne in mind, and then let persons of practical experience be asked how many young people of other grades are wounded and even killed in scuffles and cudgellings, they will then be induced to judge more leniently of the duel amongst students, and rather pardon the extremes of a feeling of honour, than that the chance should possibly arise of a provoked student becoming in effect the homicide of his fellows.

Thus we may regard the duel, under its regular form, as a sort of discipline which the students exercise amongst themselves, and thus banish every ruder and not seldom dangerous explosion of passion. We say the duel in its regular form, and thereupon recall to the reader's memory the following particulars. According to the regulations for the arrangement of duels in Heidelberg, every challenge must be withdrawn when the opponent declares that he gave the insult in a state of intoxication. Every duel shall, before it is undertaken, be made known to the Senior-Convention, and by it an accommodation shall be attempted.

When these regulations are violated, this does not arise from the regulations themselves, but from the partisans who have neglected to demand from the seniors the execution of their own laws. The completion of the duel, according to the Comment regulations, by sword stroke and not by lunging, and with defensive costume, which covers almost every exposed part of the body, renders any dangerous consequences almost impossible. There is no instance, from time immemorial, of any such regularly and formally completed duel in Heidelberg, being attended with fatal consequences, or one which rendered life thereafter a burden, as is only too frequently the case at universities where the duel in *every* form is punished more severely than as a breach of discipline, and where, on that account, more dangerous but more easily concealed weapons are resorted to.

By these observations we would by no means defend duels, but merely, in some degree, excuse them. Laws against such customs, which are fast rooted in old prejudices, are seldom very effectual. As little as the fist-law could by power and at once be extirpated, so little, according to our opinion, can this be accomplished with the duel. It is true that there lies in the hands of the German governments, by means of the State's-examination, a power of punishing and suppressing this practice which foreign realms do not possess. They might, it may be said, pass a law, that whoever had been engaged in a duel, should forfeit his right to the State's-examination, and thereby state service. But it must be answered, that this would be in the highest degree severe for a small offence, which in itself the regular duel really is; thus, to punish a young man in such a manner that this one folly should put an end irrevocably to the whole of his life's prospects and career. Further, it has been seen, that exactly at those times when the duel of every kind was the most strictly interdicted and repressed, the most dangerous duels by lunge and shots became more than ever frequent. And yet these draw a punishment after them which has often made a young man miserable for the remainder of his life. So long as it is not the general opinion amongst the students, that the duel cannot be held as satisfaction, so long will they, in case of actual insult, not be deterred by the most stringent punishments from resorting to it. Till then, would it not be the most reasonable course to visit the most dangerous kinds of duelling with the most severe punishments of the law, but to pursue the ordinary and less dangerous not so harshly? If this alone remains to the student, he will by degrees convince himself of the ridiculousness of such a sham-fighting, and the duel will, as it is already become less piquant, cease altogether. It will be the duty of the teacher to promulgate better views upon the nature of duelling by speech and by writing, and thus to conduct their pupils out of the spirit of it. This the greater number of them have even taken suitable opportunities of doing. As an example we quote a part of the speech which the Obermedizinalrath and Professor Dr. J. N. Ringseis delivered on the 3d of December, 1828, in the hall of the High-school at Munich, at a time when the duel there had become exceedingly predominant and reckless.

"It is a sign of a noble mind to regard true honour as the highest good, as higher than life itself. He only who does not fear death, really possesses life. We will all strive after higher honour; and every one of us must be

prepared at any hour to sacrifice our life for it. It is a duty through noble manners to honour ourselves; he only who maintains a nobility of conduct himself, can respect the manners of another. It is honourable to belong to a brave union; more mightily works the spirit of every one in union. It is honourable to love your native place, be it on the Isar, the Danube, the Rhine, or the Main, since what German territory has not a host of glorious recollections? It is an honourable, proud feeling to be able to wield the sword skilfully, as if it were a member of our body. But he who honours himself, his society, his native home, honours this feeling in another; he who recognises the sacred destiny of the sword to be the protection of the highest good of mankind, dishonours it not by unholy aims. The officers of our army covered themselves with evergreen laurel,--how rare is the duel amongst them! The hero youth of the universities of North Germany performed miracles of bravery in the memorable Liberation war; and the duel was, amongst those who returned, almost without example. Rare indeed is it in the circles of the highest society; to the noblest nations of antiquity, the Greeks and Romans, it was wholly unknown.

"I repeat not the thousand-times-reiterated arguments against the irrationality of the duel, since I know well that they have fought, even excellent men, although convinced of the perversion of the practice--have fought, bowing to the lordship of opinion, spite of the certainty of losing office, property, freedom, and life itself. Truly there belonged to such conduct a kind of obstinate bravery; but greater, nobler, more worthy of the sight of heaven is the courage which tames itself; the courage of him, who although fearless, although practical in arms, although secure from discovery and punishment, yet fights not; the hero-courage of a free obedience, which our poet sings:--

Courage has the Mameluke--obedience in the Christian law.

"How is it, friends, that we feel ourselves too effeminate to contend for this loftiest laurel of courage and obedience? Certainly the nobler, the more honourable, in every accomplishment the more advanced, a man, a union, a people,--there for ever is and was the more rarely to be found the duel. What, then, must be thought of men to whom the duel is become a chief

business of life? of youths called hereafter to become the leaders and the lights of your people? How, ye jurists! ye who hereafter will nicely weigh in the balance the right--will sharply reprove insolent opposition to the law--and would rather suffer shame and death than perpetrate the smallest injustice,--will you open the way through audacious contempt of the laws?

"Medical men! called to wound that they may heal, not to destroy, will you commit that double crime against the state?

"And could a philosopher--a theologian, so grossly deride the Divine Teacher's word--'Do good to those who hate you; bless those who curse you; pray for those who spitefully use you?'

"And, noble friends! can true honour prevail, where drinking, quarrelling, and insult give the shameful occasions for the duel? True honour! where he who refuses to fight a duel is exposed in rude verses in public places, and is even maltreated with vulgar violence? True honour! where in aggravation of disobedience, dishonourable lies are also added? I glow with shame to the very depths of my mind, that any amongst us, however few in number, could be so mean as to deny the deed, could harden themselves shamelessly to make the denial a point of honour! Oh! hideous spectre of honour, without the courage of truth and of obedience! The courage of truth and obedience is the highest honour; and he who binds himself to a union pledged to lies and to disobedience, he has from the beginning no conception of honour; unfit for a priest, unfit for a judge, unfit for a physician!

"O my friends, I see you burn with a noble indignation; you are all on fire for honour, for the highest honour of manhood. Up then! there is a vast, a boundless field of laurels for you, for us all, to contend for. Shame to ignorance! shame to immorality! shame to the rude might of arms, without knowledge, without morals, without obedience! shame to obedience towards unions in things which God and the king forbid! In knowledge, in morals, in obedience, in glowing love to King and Fatherland--in them let every individual endeavour to outstrip another, every union the other, our university all others. I call you, my friends, to such a noble contest; and to it call you your honour, the fame of our university, the fame of the Fatherland, and of our King!"

These abuses, which we have just now alluded to, that is, the passion for the duel, and the strong drinking, are the causes which make the Verbindungs, which are known under the name of Landsmannschaften and Chores, odious. In fact, if one puts these dark adjuncts out of mind, then the student life, and in particular the Chore life, has only a cheerful aspect. The close incorporation of students into unions, which have regular meetings in some particular place, from which every uninvited disturber of order is banished; meetings for social entertainment and exhilaration; for practice in bodily exercises, as in fencing and gymnastics; these could only serve to a more speedy accomplishment of active and intellectual men, and would be certainly approved of by all reasonable persons. These dark adjuncts have brought the Chore life into great unpopularity, and have induced many governments to prohibit the Chores themselves, as the vehicles which contain and maintain these pernicious practices. Yet it must be remembered that practices so deeply rooted are not to be expelled by force, but only through the advancing march of humane knowledge; and it must be further acknowledged, that the Chores by the maintenance of order in these things themselves, only prevent a greater outburst of the wild Burschen-spirit. The governments have made use of the Chores frequently in order to bring the student youth to a quicker adoption of resolutions which would be for the good of the university, or of the state; and this continues to be the case in those states where they are yet allowed.

Let us imagine the Chores purified from their dross; they would then represent unions which had their own constitutions, and where those in reality who distinguished themselves most in outer life, would take the first places. Let it not be believed that in such a case the proper acknowledgment would be denied to him who, unincumbered with social life, devoted himself exclusively to knowledge. This happens by no means to those who belong to the present Chores under their present circumstances. That the student jealously watches over his honour; that he easily imagines this honour affected, grounds itself on the equal standing which he gives to every one of his fellow-members. He makes this sufficiently obvious himself, in that he will not permit the usual duel between the Student and the Philistine. We cannot blame this strict vigilance over the Burschen honour; but the means resorted to, to restore wounded honour, are truly foolish, and worthy of punishment. If we imagine the duel superseded by

the sentence of a court of honour, which condemned the guilty to beg pardon, or some other proportionate punishment, there would be nothing further to be desired.

But the reasons which the government assigned for the proscription of the Burschenschaft were totally different. They were determined to this prohibition by this principle; that the student who is at the High-school in order further to develop his intellectual faculties, and to arrive at a scientific and political freedom in his views--that he, the scholar, is not called to step forth here already as a teacher of the people; that he is not called upon to overturn the constitutions of states, before he has yet learned properly to analyse their nice and elaborate construction; since it is a true assertion, that it is much more easy to pull down than to build up; and it was a piece of presumption in the youth to attempt to hurl down by violence a fabric, which the best and wisest of the people had with their best strength erected.

In Heidelberg, since the Marching-Forth of 1828, the Burschenschaft, as its especial promoter, was anew strictly proscribed, but the Landsmannschaften were sanctioned; and from each new-springing Verbindung the word of honour was taken, by the academical board, that it was no Burschenschaft. After some years, however, these Landsmannschaften were forbidden also.

So far as the Burschenschaft was a union which, on account of its ideal object, claimed prerogatives beyond the other Verbindungs, in so far by that prohibition is its return to the High-school made impossible. But so far as the Burschenschaft spirit is a real constitutional spirit, we may in Heidelberg assert with pride, that it never was abandoned by the young burgers of our High-school, and that all our present existing Verbindungs are animated by this same noble feeling. This constitutional mind has already displayed itself prominently on so many occasions, that it is not necessary to bring evidences of it. We may simply allude in confirmation, to the interest which the students have always manifested in the proceedings of the Landtag, and to the testimonies of acknowledgment which they have always given to those teachers who have there exerted themselves for the good of the people, and for the maintenance of constitutional freedom. We

may notice the sympathy with the unhappy state of Poland, which the students publicly, by word and deed, expressed to the Polish officers who passed through the city. Hence, because these unions do not assume as their object the preparation for the realization of some certain idea, but merely a pleasant social life during the university years, it does not follow that the hearts of these young do not beat warmly for knowledge, for right and freedom, and that no individual amongst them pursues this noble aim, nor does it follow that these unions set themselves in opposition to such more ideal aims as may already be begun there to be pursued.

An esteemed German philologist says--"Most of our German universities bear the humane character of fine manners and chivalric bearing. They array themselves in the clear, radiating colours of the dreams of youthful pleasure; and is there conspicuous, indeed, in the academic life itself, the foam of a bubbling fermentation, this clears itself with time, and becomes in the end a noble and strong spirit." A finer panegyric we cannot pronounce; but we may corroborate it, when we add to the observations already made, how much the spirit of the young man is stimulated at the university to activity; and with what noble energy, which so eminently distinguishes the student class, he employs this activity in all directions. As there is no rule without its exception, so there is, indeed, such here; but we must not lay the measuring-wand of a general judgment on these few extravagances, though in the full elucidation of the subject we may not pass them entirely without observation.

Abroad, people have had such singular notions of the German students, that they could not for their lives conceive what could be made, in after-life, of such wild fellows; and have been amazingly astonished to hear, that they afterwards became like other reasonable people, and administered all sorts of offices of the state conscientiously, and with the most exemplary and calm discretion. We recollect a passage in the humorous work of Mr. Hood, "Up the Rhine;" at which certainly many a German student has already heartily laughed, as he has read it there as something new--that "it is notorious that these Burschen come in, according to the proverb, as Lions and go out as Lambs,--some of the wildest of them settling down in life as very civil civilians, sedate burgomasters, and the like."

Let it never be forgotten that the students represent a peculiar class, of which they who compose it, however, are but temporary members. Shall the student then carry over with him into the Philisterium, his singular attire, and his Chore-colours? It would seem as if foreigners had quite supposed this must be so. But we would ask them whether it ever occurs that a member of parliament makes a speech in his place in the House, arrayed in the student-gown which he wore at Cambridge? Shall the student, indeed, carry with him his sword, that with eccentric courage he may defend the Burschen honour, when he has himself long become a Philistine? Shall the quondam student forsake wife and children, in order to go and vindicate the injured majesty of studentdom, in order to join himself to the Marching-Forth? Could such things be, then must the German academies truly be regarded as so many great lunatic asylums, and nothing better or wiser could be done than to extirpate them, root and branch.

A few words yet remain to be said on the actual advantage derived by the German student from this life, and carried forward with him out of the green Burschendom, into the seriousness of his later vocation, and on what his after-vocation may be.

The great business of the student, as already stated, is the pursuit of science; and it is less the mass of knowledge here harvested, which brings him future advantage, than the capacity which he acquires, let him move in later life in what circle he may, of comprehending and acting in a pure scientific and philosophical spirit, upon every matter which may be thrown into his path. The student-life has many favourable influences on the character of a young man. Though the Bursch, as it regards his social position, naturally allies himself most closely to his landmen, yet he feels himself compelled by those causes already pointed out, to exert a general tolerance towards his brethren, which though often abandoned and again submitted to, yet inoculates him with a greater degree of sufferance, which on his departure from the academical, for a more general life, unfolds itself more freely, and extends itself to all social relations. The student, indeed, as such, knows little tolerance towards non-students; yet the patience which he learns to exert towards his fellow-students, is not without its consequence, and when he steps out of his confined sphere, it then clothes itself in another outward form, and takes a general direction. The student maintains



strictly and perseveringly his own views, though consequently, often erroneous ones; but this serves in after-life, to lay the ground-work of greater steadfastness of character. This firmness continues with him to his grave, though his views and principles modify and purify themselves, as his growing intelligence directs him more and more into the track of truth. And as the student stands upon his honour, for which full of the highest enthusiasm he glows, and joyfully offers up property and life, so stands he in the bonds of truth and friendship. Such bond of friendship is to him sacred as his own life, and it is to him continually a guiding-star through the gloomy paths of existence. It is to him the noblest treasure which he carries with him into the tumult of life, and he continues to it inviolably faithful.

In addition to this, the student has learned to arrive at the poetical side of life. He has continually sought and enjoyed pleasure and satisfaction; and let no man imagine that these foretell only a future trifler. No, he is thereby invited to enliven the stupidity of every-day life, and to throw new interests around the path of existence. That, however, every character, according to its own individuality, more or less favourably develops itself, and that these influences of student-life here described differ in degree in different individuals, needs no stating. We seek only to show general causes, and these are certain. Scientific merit, self-confidence, consciousness of being able to thank his own individual strength for his existence, the honour of men, and the truth of friends,--can more beautiful or delightful results than these be found? Even on the outward appearance of the quondam Bursch, the student-life has a favourable influence. The moment that the young man has entered the Philisterium he adopts the existing convenances, so far as appear conducive to his purpose, but only so far as that he can yet maintain that independence of fashion which he has already asserted. His outward manner of life continues free and unrestrained; and this, united to the practice of making a greater tour after his examination has passed, as well with scientific as with other objects, gives to the former academician a higher bearing, an acquired tact, which adheres to him through existence, and again pronounce in their consequences the greatest advantages of student-life.

That the Burschen-life, through the greater freedom which it enjoys, may also bring great disadvantages to him who has abused it, and which may

poison later life; who will attempt to deny? We have already pointed out the rocks and breakers of this ocean of transition life. The Burschenschaft agitations of a former period also plunged many into misfortune; but this danger is now in a great measure past, and for the last time gleamed up a political tendency for a few moments in the *Verbindung*, like glimmering *ignis-fatui*, in the years 1830-32.

When the student now quits the university, where he has left behind him the follies of youth, and bearing with him a greater or less amount of intellectual acquisition, he enters immediately on the service of the state. After his State's-examination it is very customary to make a tour, before the young man for ever knits himself to one abode. Besides those who in practical state's-service, or as teachers in the schools and universities, work themselves forward, step by step, with more or less speed, according to the degree of their ability and of their diligence, or in proportion as they are favoured by fortune,--others exert themselves in the wide field of daily literature, zealously labouring to win the fame of authors and of poets. But follow whichever path he may, let fortune smile on him or not--let him crown himself with laurels, or strive for the wreath of glory in vain--never will he who has been a genuine Bursch, become a Philistine; that is, in that sense in which the student understands it. The words of the celebrated Arndt express most lucidly this meaning of the word Philistine. "A Philistine is a lazy, much-speaking, more-asking, nothing-daring man; such a one who makes the small great, and the great small, because in the great he feels his littleness and his insignificance. Great passions, great enjoyments, great dangers, great virtues,--all these the Philistine styles nonsense and frenzy. He will rather have life in the pocket edition than in the folio, so that it can but be carried through with the very least possible acting, thinking, and daring. Rest, and rest again, and at any rate; a state of laziness, that he loves, that he desires, that he preaches up, and for that he cries to heaven and earth, if there is any chance of his being disturbed in it."

Into these faults he will never fall, who has once imbibed the principles of a German university; and will only in so far belong to the Philistines, as the student in a wider sense terms every one a Philistine who no longer belongs to the Burschen.

What we have now been saying may convince us how beneficial is the influence of the student-life on that which follows. Nobler principles of action awake in the breast of the academician, and are nourished; that here and there starts up amongst them something perverse, is not denied; but the kernel is good, it germinates, it grows into a tree, and bears excellent fruit, which the quondam Bursch and his cotemporaries are destined to enjoy.



## **CHAPTER XXV.**

### **A REVIEW OF THE POLITICAL ASPECT OF STUDENT LIFE.**

If we have hitherto regarded the life and pursuits of the university in an isolated manner, and entirely on its own account, yet it can by no means have escaped the reader that this life does not stand so completely sundered from the general stream of events, but that the mind and spirit of the university life is determined by the spirit of the times, and that, on the other hand, it operates again powerfully on the developement of the institutions and condition of the times. This must have become sufficiently clear to us in noticing the earlier Burschenschaft, and to increase and complete that conviction, we have only to take a hasty review of what has been now written, and to add a few other remarks.

The universities reflect the spirit of the times: its progress, its weakness, its strength, are all imaged forth again in the science of the age; and the schools are therefore exposed to the changes and revolutions of the times, but are not unconditionally subjected to them. They have strengthened that spirit of the time and of the people in their exhaustion, by their inquiries and results; and not less through teaching and the invisible power with which they have elevated and ennobled the minds of the youth. They have enriched the sciences, and adorned public affairs with beauty and wisdom. They have in part laid the foundations of the intellectual greatness and high accomplishment of Germany; in part strengthened and guaranteed them; and are the pillars of the fairest and most unrivalled glory which our country in the most recent times, and before the eyes of all Europe, has achieved. The university is the central point and the heart of science. From all sides stream to it the spirits which are athirst for knowledge; and as they are ennobled, again from that central point disperse themselves through all the members of Germany, diffusing through them fresh nourishment and a splendid growth. The teachers and accomplisners of the people go forth out of them. The battles of the church were fought out in the university; and if,

as it happened in the contest of the Reformation, the faith of the Princess was forced upon the High-school by the hand of power, yet the teachers and scholars of the university seldom bowed before it. The teachers abandoned a place, which would lay their consciences in chains, and sacrificing office and income, sought an asylum in foreign lands. They often found a refuge in another university which held the same faith as themselves; they carried with them the troop of their scholars, who, as their faithful bodyguard, attended them; and there fought anew and victoriously for the success of the good cause.

The Professors of the High-schools have pre-eminently cooperated in working out the constitution of the German States, and many excellent men amongst them have contended for the freedom of the people, and have boldly stood forward against every usurpation of despotism. We need only give one example, and that of the most recent date; we need only call to the reader's mind the Seven Professors of Göttingen, who opposed themselves to the arbitrary violation of the constitution of the state with all their power, and on that account in the most unprincipled manner were ejected from their professorships. This scandalous, and in Germany till then, unheard-of example of despotism, notoriously threatened the destruction of the Georgia-Augusta, and for a long time annihilated its prosperity; but other states, by their reception and establishment of these professors, have shown that they approved of their proceeding, and the exiled professors were every where received by the German students with the testimonies of the deepest veneration. If the Bundestag did not condemn the King of Hanover as guilty, yet the judgments are well known, which many German universities at its desire gave in, and in which they expressed in the most strong and unqualified language their sense of the injustice of the deed. We call to mind that the tyrant called on the King of Wirtemberg to punish the audacity of the professors of Tübingen who had sent in such a judgment, according to the enormity of their crime,--an audacity which in Hanover would be expiated in chains; but the noble monarch answered that in his land the freedom of teaching was a sacred possession, which he would never infringe; but, for the rest, he observed sarcastically, he left it to the High Court of Justice at Celle to pronounce sentence on the guilt or innocence of his faithful professors.

If the universities in such a manner grapple mightily with the circumstances of the times, so are they, on the other hand, influenced by them. They receive from the times the impressions, the tendency, the frivolity as well as the earnestness, and distinguish themselves only from the other circles of society in this, that in them the good and the evil of the times more rapidly unfold themselves and take a determinate form. The moral effeminacy of the nation at the time of the French domination, operated on the ignoble natures amongst the youth, scattering and dissolving; while it spurred on the nobler to those Verbindungs out of which, at a later period, went forth hosts to do battle for the liberation of the nation from a foreign yoke. After the rising of the nation and its consequence--victory over the foe,--as all hearts felt themselves elevated, all exertions felt themselves refined, the new form of the time stood forth in the yet pure aims of the Burschenschaft, which at the time when the Tugend-bund extended itself, constituted, on its first appearance, a continuation of the brotherhood-in-arms, the Waffengenossenschaft, which with the student youth returning from the war, had this object,--to purify academical life from its dross, and to present it as an image of the union and ennobling of all the German races. Hereupon followed the period of undeceiving, of counteraction, of degeneracy, which run into so unrestrained a career, that to the wise and prudent, the beautiful time of enthusiasm, appeared as the dream and frenzy of good-natured fools. As the youth would not abandon the objects of their endeavours, whether rational or chimerical, but, on the contrary, held them equally fast as something great and noble, a portion of them fell a secure prey to the unquiet, the revolutionists and political intriguers, who abused their inexperience, and poisoned their noble endeavours by infusing a resistance to public order. The teachers of the universities were blamed by many, as though they were chargeable with being concerned in these aberrations of the youth, or, at least, were so far culpable that they had not prevented them.

So far as a direct participation of the teachers in these political disturbances is concerned, we may be well assured that, if only a single professor had at any time been an accomplice, or indeed only a concealer and protector, of the guilty, the exact, the strict, and in many places for years protracted inquiries, would to a certainty have come upon the trace of their crimes, and the guilty would have been conducted from the

professorial chair to the dungeon. There remains only the question, whether they, though taking no part in the views and proceedings of the young people, were yet aware of them, and took no steps to prevent them. But were the youths who fell under the power of the law, the only ones who trod the same dangerous path? Were there not amongst the others, some, perhaps even as many, who, through the warnings and exhortations, or through the moral influence of distinguished teachers; and, in short, through the better spirit which every well conducted university developes amongst the nobler part of the youth, were preserved from that mischief? But, so far as the actually implicated students were concerned, the professors were in the same case with the Boards, expressly organized for the watching over the youth, and the matter was quite unknown to them, since the youths who were mutually pledged to that object, concealed it from the eyes of the professors just as scrupulously as from those of the university Commission of inquiry, and the Boards of police. But to the liberation of Germany from the dominion of Napoleon, the High-schools contributed no little. Joyfully their scholars gave themselves up to death, and scholars and teachers roused the nations to bravery through inspiring songs; of which the names of Arndt, Schenkendorf, Körner, Hauff, Follen, Voss, Stolberg, Scharnhorst, and Haupt, stand as glorious testimonies.

Yet once more the youth wandered from their laudable endeavours in the years 1830-33, and one portion of them although a small one, suffered themselves to become the work-tools of political fanaticism. The revolution in Poland, and the unhappy fate of that country, had made a vivid impression on their minds. Demagogic agitators again were busy in secret; private Verbindungs were formed; the catastrophe of the French Revolution of July occurred, and flung the firebrand into the powder magazine. People thought they must follow the example of France, and began loudly, with writing and by speech, to attack the governments and to abuse the princes. But the youth who attached themselves to these agitators, were no longer the old Burschenschaft, who steadfast to their one idea,--"One Fatherland, which should declare itself the worthy antagonist of the arch-enemy France; one church, and freedom," fought out this with word and deed: no, the modern Burschenschaft, an abused work-tool of a greater party, had sworn death to the hereditary princes, and did not shrink, as a means of achieving such an object, to offer the hand even to the old enemy, to France itself.



They would dare the highest extremes; and, allured by the apparent quietness of the government, the assembly at Hambach, which has become so widely celebrated, was held in 1833, where the French colours, and the tri-colour of the Burschenschaft, fluttered from the same staff. There, death to the princes was sworn, and within a short time revolutionary movements broke out in all parts of Germany. A number of the academic youth plunged themselves into misfortune through the attempt at Frankfort, since the governments now found it necessary to exercise stringent measures with all their power, and all partisans of such demagogue Verbindungs were quickly either arrested, or, having been timely warned, fled.

It may well be supposed that from this time forward, a much stricter eye was kept upon every sort of Verbindung of the students. No Landsmannschaft dare lift its head, and the academical liberty was in many particulars restricted. Another injurious effect also became apparent. Many states, more particularly Prussia and Russia, forbade their subjects to frequent any but their own universities, and no university felt the loss occasioned by this order more than Heidelberg, where the attendance of Prussian subjects has only again been recently permitted.

Yet, after all, only a small portion of the student youth, suffered themselves to be carried away by these imprudences; and what might be the reacting effect of these lamentable occurrences, the reflection of the students on themselves and on their calling, on what became them and was for their real advantage, further strengthened and quickened by the seriousness with which the governments pursued the guilty, produced in them a greater exactness, and gave thereby a higher moral firmness to the academical life, so that far from being represented as a sink of wickedness, as some people believe it, it may much more justly be regarded now as a fruitful, purified, well-drained, and well-sown, field. The channels, constructed to lay dry the boggy places, are cleared; the unsound spots are probed and made good; and if the watchful superintendence of circumspect and well-disposed Boards, and the professional faithfulness of the majority of the academical teachers continue what they are, this corn-field of our future will yet bear continually more beautiful and affluent harvests.



## **CHAPTER XXVI.**

### **A PARTING GLANCE AT OTHER UNIVERSITIES: GERMAN AND FOREIGN.**

We have in conclusion, only to say a few words of comparison between the university of Heidelberg and the other German universities; and between these generally and those of other countries.

In the description of a German university, we have always had that of Heidelberg in our eye, touching only occasionally one or another of the other German universities. The institutions of these are essentially alike, yet each one has its own peculiarities; and this is not to be wondered at, when one reflects how many influences determine the course of the developement of a High-school. It shapes itself on the circumstances of the times, according to the will of the Princes under whose protection it stands; according to surrounding causes, in respect to nature and art; and more than all, according to the spirit and character of the teachers. To take a comparative review of these peculiarities of the other universities of Germany would be highly interesting; but when we reflect that in such a course all alleged influences must be carefully weighed; and, in fact, that not merely the present but all the past fortunes of the High-schools must be brought under the eye, it will at once be seen that so wide a scope of observation does not belong to this work. We can as little go into the narrative of the foreign universities; because personal inspection is wanting to us, and because we can give little faith to the statements of foreigners--statements which often contradict each other, and for the most part are as little worthy of credence, as those fabulous accounts of German universities which have been circulated abroad. The last few years have brought us intelligence of the English universities, which represents them as the nurseries of all that is mischievous and corrupt, and which paints them in colours as repellant as, at the same time, have been daubed over the caricatures of German universities there. The false representations which foreigners, who, in fact, have lived for some years at a German High-

school, have made of the diligence and moral condition of the same, warn us not to pronounce a similar opinion on academical institutions which we have not seen with our own eyes. We will only here devote a few lines to some advantages which our institutions appear to us to possess over those of England.

The great wheel of the mechanism of a German university is, next to the payment for the lectures, the division of the teachers into ordinary and extraordinary professors, and private teachers. Through the income appointed by the government, the professor is not dependent on his hearers, and is not tempted to care more for his income than for science. The first duty of a professor is towards science; not towards the students. That is the principle of all genuine university professors; and in this exactly differs the university essentially from the Gymnasium. The state must secure a moderate income to the professor, independent of the number of his hearers; since a lecture which has only seven or eight attendants may be of incalculable benefit to science; as for instance, those on the higher analysis, or the higher philology. A great mathematician ought not, in order to acquire emolument merely, waste his time in teaching the inferior branches of his science. But on the other hand, the state is not bound to give to every individual a scientific education gratuitously, and to its own ruin; and it would be unjust to extract money from the pockets of all citizens for the benefit of only a very small number. A suitable and secure income, which furnishes a professor with what is necessary and with leisure; and paid lectures, which in proportion to his success shall better his condition,--these, in this respect, constitute the true means; since a professor should never forget the higher interests of science, nor in the brilliant lustre of a transcendent genius content himself with only a certain degree of success, and only a moderate number of hearers. There is also this advantage to be added, that the students frequent with more zeal and perseverance the lectures for which they pay.

What happens in these respects in France is exactly the contrary. In the French faculties of language and science, the doors are thrown open, and every man can enter without paying. This at the first view appears excellent, and worthy of a great nation. But what is really the consequence? That an audience is like the pit of a theatre; one goes in, and then goes out again, in

the midst of the lecture; another comes once, and then comes no more if the professor does not tickle his ear. The attendants listen with distracted attention, and in general you see more amateurs than students. The professor who does not lose a *sous*, let him do his work as ill as possible, either neglects it, and expends little trouble or talent on his lectures, or loving fame, anxious for his reputation, and yet despairing to win a serious audience, labours at least to assemble a numerous one. In this case there is an end to science; for in order to make it attractive, he must sink himself to the level of his hearers.

There lies in this great number of attendants an almost magnetic influence, which bows to its yoke even the strongest minds; and he who would be an earnest and admirable professor for attentive students, becomes for frivolous, airy, and superficial hearers, light and superficial himself. In fine, what remains to the multitude of that instruction to which they have given a gratuitous attendance?--a confused impression, just about as profitable as that which an interesting drama in the theatre would have left behind.

But is this to be compared for a moment with the persevering zeal of fifty or a hundred hearers even, who have paid beforehand for the lectures; who follow their progression obstinately, in order to sift them, and to give themselves an account of them, without which they have thrown away both their time and money. Thus excellent is the arrangement that the student shall pay something, and at the same time the state shall guarantee to the distinguished and learned men who are chosen as professors, a secure and fitting support.

The three degrees of teachers at the High-schools of Germany are in the happiest manner divided from each other, and yet bound together. The foundation, the root of the professorship, the inexhaustible and everspringing nursery of the German university, are the young doctors, to whom it is allowed, under certain conditions, and with the permission of the faculties, to deliver public lectures. Every able young man may thus arrive at the higher offices of teaching, but none without raising, at least good expectations. He is tried, but without entering into any actual engagement with him; without any thing being promised to him, or given him. If he does

not by correspondent results, realize the hopes which have been entertained of him; if he fails to attract hearers, and to do honour to the faculty which admitted him; it is seen that a vain anticipation has been attached to him, and he is not raised to the rank of extraordinary professor. He himself, after some years, withdraws himself from the hopeless pursuit, which brings him few hearers and little profit, and betakes himself to some other career. On the contrary, if he fulfil the hopes raised by him; if he gather numerous hearers, and write works which excite attention; he is then declared Extraordinary professor, a title which is irrevocable, and which gives him a small fixed salary, which, with the income derived from his hearers, encourages him, and supports him in his career. If he maintain this happy progress, if he prove himself an able man, the state, in order to retain him, increases by degrees his income, and finally names him Ordinary professor.

This distinguished title is never given on account of hopes: which may be found false by experience, but on account of tried effects, of distinguished talents, and established reputation. It is very rare that this title is received before a certain age; and there is not a professor in Germany, who is not a man of a reputation more or less distinguished, since this position is entirely the reward of his talents. Great and successful results, be they in writing or lecturing, these in Germany nominate the Ordinary professor, and an unlimited choice is afforded in the multitude of young teachers. Talent, with the aid of time and perseverance, wins the prize, and that is the genuine and proper contest. As age and time dull the zeal and diminish ability, and the professor now grown old, neglects or does not advance with the advances of science; an innovator in his youth, does he now become a loiterer, what is to be done? His hearers, ever attracted by the spirit of the time, desert his lectures; and seek those of an Extraordinary professor, or perhaps those of a private teacher--young and zealous, and often to excess, fond of innovation and bold inquiry; and the university suffers not through the retreat of those, who formerly served it faithfully and well. This happy mechanism rests on the distinction into extraordinary and ordinary professors, and private teachers; which in France correspond with the titulaires, adjoints, and agrégés.

Let us now only reflect how different altogether is the practice in France. A man is put in the list of competitors for a few weeks, amongst such young

people as frequently have not written two lines; have taught scarcely a single year; and now, after giving in some stated proof, are often in their twenty-fifth year endowed with an irrevocable title, which may be held till their seventieth year without doing any thing; which, from the first day of their nomination to the end of their life, draws the same salary, whether they have many hearers or few; whether they distinguish themselves or not; whether they thenceforward live in ignorance, or become celebrated men!

Another great disadvantage in France is, that in this country the different faculties of which a German university is composed, are separated from each other, scattered about, and in this isolation are as it were, lost. Here are faculties of science, in which lectures upon chemistry, physics, and natural history, are held, without a medicinal faculty at their side, which might thence derive benefit; there--faculties of law, and of theology, without history, literature, and philosophy. So are there perhaps twenty miserable faculties scattered over the whole surface of France, and nowhere a genuine home for science. Thence comes it, that in France study is for the most part so unphilosophically pursued; although able professional men are accomplished in jurisprudence and medicine, the studies which are there the most in esteem.

We leave it to the English reader, who is better acquainted with the universities of his native land, than we are--to decide, how far the deficiencies here attributed to the French universities also affect those of Britain. Oxford and Cambridge, the two most ancient universities of England, have remained true to the old institutions, to the old mode of living altogether in colleges, which the German public has long abandoned as not answering the purpose. They have a greater self-dependence and independence than the German ones, which are submitted to the superintendence of the state. Yet the German institutions in this respect reap many advantages, so long as the government is no despotism. Through such high-standing Boards, boards which respect the interests and claims of all parties, and administer to them all justice with strict impartiality, the chairs of science are preserved from incapacity; the meritorious are made known and elevated; obstructions are removed; help is duly administered, morals are protected, defects are remedied, better and more effectually than can be done by a corporation alone, and without such a well-disposed and wise

superintendence of their interests; and which places the university in a condition to exercise a fresher and more unimpaired strength in the great pursuit of science and of accomplishment, and with more decisive effect; and to remain mistress of the great movement of inquiry and of knowledge.

That the advantages of the German High-schools are, however, acknowledged in England, is proved by the foundation of the liberal University in London in the year 1825, wherein they have sought to combine many of the German plans, whose value was recognised, with the old English ones. But yet more than by this fact, is paid the tribute of recognition of the excellence of the German High-schools, by the great number of young men who, not alone from the European countries, but from distant regions of the earth, hasten to place themselves at the feet of their teachers.

No country has so many and such excellent universities as Germany,--and the proofs of their advantages exist in the great number of illustrious learned men and authors, which quench their thirst of knowledge at these immortal wells of science; men, whose creations daily more and more receive abroad their just recognition, and in no country more than in England.

## **THE**

### **GENERAL BEER-COMMENT OF HEIDELBERG.**

Many a one is a more true Diogenes, not when he is in  
the tub, but when the tub is in him.

## **TITULUS I.**



## **DIVISION OF THE STUDENTS AS IT REGARDS THE BEER COMMENT.**

§ 1. All Students are divided into Crass Foxes (or Fat Foxes), Brand Foxes, and Beer-Burschen.

2. Every student, during the first course of his academical career, is a Fat Fox.

3. He becomes a Brand-Fox when he is burnt at one of the regular kneips of the respective Chores, with the proper solemnities; yet this shall not occur before the Farewell Commers of his first, nor later than four weeks after the entrance Commers of his second, semester.

4. The Brand-Fox becomes a Beer-Bursch, if he be *pawked* in (initiated), at the end of his second course, but after the Farewell Commers, or at the commencement of his third course; this, however, shall only be done in beer.

5. Comes one here who has already studied two semesters at another known university, he must at the commencement of his third semester be here *pawked* in, or otherwise, till he be pawked in, he can only, as it regards the Beer-companies, be considered as a Brander.

6. Every one who has studied three semesters at another known university, has on that account the rights of a Beer-bursch.

7. A Fox who is the Chore-bursch of an existing verbindung or union, has the rights of a Beer-bursch, yet must he suffer himself to be *pawked* in as a Beer-bursch.

8. The following is the mode of pawking in. At one of the appointed kneips of the respective Chore, the in-pawking Beer-bursch drinks to the in-to-be-pawked at least half a choppin of beer, after the singing of every strophe of a song then sung, and the in-to-be-pawked must *a tempo* drink as much. Moreover, it is well understood that the in-to-be-pawked pays for the beer of the in-pawker which is thus drunk.

## TITULUS II.

### OF THE FORE AND AFTER DRINKING.

§ 9. From the Foxes, whether Crass or Brand Foxes, the Beer-bursch is not bound to take a beer challenge; yet can the Brand-fox *nachstürzen* (that is, command the person who is going to drink before him, to drink twice the quantity that he proposes). Amongst themselves the Foxes have equal rights.

10. No one must accept a challenge of less than half a choppin, or more than four choppins at once. The graduated quantities of the Comment, are a half, a whole, two, three, and four choppins.

11. The interval between the fore and after drinking of each agreed-upon quantity must be no more than five minutes (that is, the acceptor must drink his quantity within five minutes after the challenger). And every earlier challenge must be drunk before the latter one.

12. If four choppins are agreed upon, so must the foreswearer or challenger, drink each choppin separately within five minutes of each other; and not till he has drunk these four choppins, must he take a challenge from another person. Also, the challenger must have first drunk his whole contracted quantity before his antagonist is bound to drink his.

13. He who has a challenge of four choppins on his hands, is not bound to take another challenge till that is drunk out.

14. If a challenge is made, and the challenged excuses himself on the plea that he has already four choppins to drink, the challenger is justified in obliging the challenged to show him each of those four allege choppins as he drinks them.

15. If a challenge is given, and the challenged *nachstürz*, the quantity, (that is, insists that it shall be doubled,) the challenger is obliged to drink

the doubled quantity.

16. The challenged may not more than double the quantity proposed by the challenger.

17. The *nachstürz* become invalid the moment the prescribed quantity exceeds two choppins, except in a challenge *à faire*.

18. If one pauses during the drinking, leaves a Philistine in the glass, (that is, if he leaves the bottom of the glass still covered with beer,) it is to be considered that he has not drunken his quantity, and he must instantly drink another in the proper manner.

19. The case is the same when an umpire declares that so much beer has been spilt in the drinking as would cover the bottom of the glass.

20. In every quantity which is drunk in successive portions, the §§ 18 and 19 shall apply to the party whom the umpire shall have declared to have drunken informally.

21. As well in the fore as the after drinking, the antagonist can select an umpire, who, if he judges that the fore or after quantity is deficient, must see that it is made complete, and that it is properly drunken.

22. No one is bound to accept a challenge of more than one choppin at a time out of a vessel which will hold more; unless the two drinkers agree differently between themselves.

### **TITULUS III.**

#### **OF ANSCHISS-SAUFEN; OR DEFINING OF WHAT ARE PENAL CASES IN DRINKING.**

§ 23. Foxes, whether Crass or Brand Foxes, may neither *touche* an honourable Beer-bursch in beer, that is, challenge him to a beer contest; nor, if he be challenged by an honourable Beer-bursch, may he *nachstürz*, or

double the quantity. If one of them does this, then must he be *verdonnert*,<sup>[50]</sup> or condemned in thunder, to pay for a *viertel*, that is, sixteen choppins. The Foxes have also here equal rights amongst themselves.

24. The degrees of the beer challenges are the following:--A LEARNED MAN stands for a half-choppin; a choppin is a DOCTOR; two choppins, a PROFESSOR; three choppins, an AMTMANN; four choppins, a POPE.

25. If any one has given his cerevis, that is, made an assertion on his beer-word against another, and it cannot be proved who has given his cerevis wrong, so must the two drink out a Learned Man--such cases, however, excepted as are before the Beer-court.

26. No one is bound to accept *ex abrupto* more than a *Learned Man*; yet must the Foxes accept, *ex abrupto* every challenged *Doctor*, from an honourable Beer-bursch.

27. The provoker to a beer-challenge must be challenged within five minutes. If he will double on the challenge, he must do it immediately, and according to the fixed gradations of §24.

The settling of the challenge must be completed within five minutes after the challenge is given; and the drink-duel must be immediately contested, if the challenged has not yet an older scandal<sup>[51]</sup> to defend.

28. Every earlier scandal must take precedence of a later. If any one asserts that he has yet an earlier scandal, he must name the person with whom it depends. The antagonist has a right to name an umpire, who must take care that the scandal is effaced in its regular order, or otherwise the umpire must write the name of the first on the beer-table with the penalty belonging to the offence.

29. The proceeding in fighting out a scandal is as follows:--Each pawkant or combatant appoints a second, of whom the seconder of the challenger, on his cerevis, makes the weapons equal. If the weapons, however, appear unequal to the other second, he can call an umpire, who decides whether they are equal or not. If the umpire declares that the weapons are not equal, he who calls the umpire, has, after the scandal is

fought out, to propose the proper penalty for the second who failed to make the weapons equal, according to § 131, No. 11 (a).

30. At the place of the challenged the weapons are made equal, and the beer-scandal is there fought out.

31. If the weapons are equal, the second of the challenged gives the following commando, "Seize it! put to! loose!"

32. Before this commando, the drinking must not begin; and should it begin, either of the seconds must cry halt, and the weapons must be again made equal. But halt cannot be cried after the word "loose" is given.

33. Both parties must drink instantly on the command being given, whereupon the commanding second, after both have drunk, first declares his judgment, and then the other second either admits this judgment or not. If the latter be the case, so the seconds themselves must drink off a Learned Man, be the quantity what it may for which they stood seconds, except in the cases stated in §§ 34 and 35.

34. Drinks not one of the two combatants on the given commando, the prescribed quantity, or bleeds he, or pauses during the drinking, or leaves a Philistine in the glass; so is he a defaulter, and must, within five minutes, drink once more the prescribed quantity. If he do this not, he is put under the beer-bann, and the quantity which he has failed to drink is written on the beer-tablet against him.

35. He is equally a defaulter if he breaks his glass in setting it down, or overturns it, except, in the last case, he can set it up again before his antagonist is ready.

36. Every one must second the moment he is called upon to do so; yet if one second be a Beer-bursch, he is not obliged to accept a Fox as his opposite second. If any one refuses, without a sufficient ground of excuse, to become a second, he is to pay the penalty of a viertel.

37. The parties concerned in a beer-scandal, must, neither with one another, nor with others, engage in a fresh scandal, neither can others

engage them in such. But should this happen, the provoker must immediately revoke, or be condemned to a viertel.

38. The beer-scandal arising between seconds, as in § 33, is to be fought out in manner following: The second who declared himself first, names his umpire, before whom the scandal is to be fought out, and through whose declaration it is to be concluded.

## **TITULUS IV.**

### **OF ENGAGEMENT À FAIRE.**

§ 39. The engagement *à faire* is the contract between two to measure themselves in beer drinking.

40. Those who will make an engagement *à faire*, must let this be proclaimed clearly three times by a beer-honourable Beer-bursch; whereupon all who are already concerned with these parties in a beer-scandal, may state their claims, so that they may fight out their scandals with them before this new engagement comes on.

41. Both combatants must, at least, empty one choppin in every five minutes, or be the quantity greater they must still do the same.

42. Neither of these combatants may accept any thing from a third, nor fore-drink to him; neither may they provoke to a fresh scandal or be provoked to it. Those who do, fall under the penalty of a viertel.

43. They may not officiate in beer-affairs; nor be seconds, witness, nor umpires; nor sit in the Beer-comments, nor convoke, or cause such to be convoked; they may not aid in removing the beer-bann, or drink with him from whom it is to be removed, otherwise they are condemned to a viertel.

44. This Beer-strife is ended by one or the other declaring that he can drink no more, but not by agreement to drink no more. He that yields must quit the kneip within five minutes, or will be condemned to two viertel.

Besides this, he is regarded as under the bann for the rest of the day; but during the five minutes that he stays, he is not obliged to accept any fresh challenge.

45. The conclusion of the Beer-strife shall in the same manner as its commencement, be loudly proclaimed by a beer-honourable Beer-bursch.

## **TITULUS V.**

### **OF THE DECLARATION.**

§ 46. If any one has no desire to either fore or after drink, or to concern himself in beer-suits, he must cause this to be declared by a beer-honourable Beer-bursch. If from the beginning he drinks no beer at the kneip, he need not declare himself.

47. He who receives this declaration is bound to proclaim it aloud.

48. The declared may not be challenged in beer. Should this happen, the challenger must instantly revoke, or he will be condemned in a viertel. If the declarer challenges, he falls under the same penalty.

49. If any one has already drunken beer in the kneip, and then says, without having declared himself, that he goes away, he must not accept a challenge. But if he remains in the kneip five minutes after this declaration of going away, then every one can fore-drink him; and in so far as he does not after-drink according to the regulations, he may be mulct.

50. Each declaration can then only be accepted, when the declarer has drunk out all his contracted quantities, and all scandals in which he has been engaged have been fought out.

51. He who in the commencement of a kneip declares that he is unwell, is for the evening declared, but he cannot during that evening take back his declaration.

52. If a declarer appears before the Beer-convention as a complainant, he must bring two witnesses.

53. The declaration is removed:--

(1) Through fore or after drinking of any quantity, even should the declarer use the proviso, "without prejudice to my declaration."

(2) By making a counter declaration.

(3) By the declarer mixing himself in beer-suits.

54. They mix themselves in beer-suits, who--

(1) Demand or give the cerevis.

(2) Sit in a Beer-convention; witness, call a Beer-convention, or cause it to be called.

(3) Is an umpire, a second in a Beer-scandal, or drinks with him who is to be released from the bann.

(4) Who challenges in beer.

(5) Who engages himself with another *à faire*.

## **TITULUS VI.**

### **OF THE UMPIRES.**

§ 55. A beer-honourable Beer-bursch only can be an umpire.

56. Every one must obey the call to be an umpire, unless he can advance some available excuse. If, without being able to do this, he declares, he must be mulct in a viertel.



57. If a Fox accepts the office of an umpire, he falls under the penalty of a viertel.

58. The umpire may stand with none of the parties in a beer-scandal; but should this be the fact, the case cannot stand over, but another umpire must be called.

59. When an umpire is called forth, he cannot be challenged of any one: the offender in this case is punishable with a viertel.

60. If any one holds the judgment of an umpire to be unjust, he is at liberty to summon him before a Beer-convention; but this must be done before the quantity which has been made equal by the umpire, is drunken.

61. The umpire can always be called before the Beer-convention, on account of his decisions, except when he pronounces the penalty incurred in the act of releasing one from the bann, or upon him who drinks with him; in which case the condemned person cannot appeal to a General Beer-convention.

62. If the decision of the umpire is declared unjust by the Beer-convention, he goes into Beer-banishment; but if that be not the case his accuser is without further procedure condemned to Beer-banishment.

## **TITULUS VII.**

### **OF THE BEER-CONVENTIONS.**

#### **(a) OF THE SPECIAL.**

§ 63. The Beer-convention is that competent Board which is called by a beer-honourable Beer-bursch, in order to decide upon a fact before it, of a nature to be punished by a beer-penalty, or on other beer-business. It consists of three Beer-honourable beer-burschen.

64. A Fox may not sit in a Beer-convention; if he dares to do that, he is to be be-thundered in a viertel. He falls under the same penalty if he calls a Beer-convention.

65. So soon as a Beer-convention is called, the functionaries and all parties concerned must neither *touche*, *foreswear*, nor fore nor after drink so long as the business lasts. As little may this be done by another person towards them. Whoever violates this rule is regarded as a disturber of the convention.

66. The Beer-convention being called, is conducted as follows. The beer-judge summons the accused; the accuser then lays the case before the court, which he confirms on his cerevis, which the convention demands from him, and makes his petition. Hereupon he names his witness, who is questioned on the alleged fact, and his cerevis also taken upon it.

67. The accused is now required to bring forward his defence; whereupon the convention also demands his cerevis, and his witness is heard, also on his cerevis.

68. Accuser and accused, as well as every one of the judges, have the right to demand that the witnesses of both parties state the facts upon which they give their cerevis, fully.

69. When the two parties, with their witnesses, have been heard in this manner, the beer-judge demands whether either party has yet any thing further to advance. If this is not the case, the minutes are closed, and the judge immediately pronounces his judgment.

70. The beer-judges give their judgments in the same order of succession in which they were called to be judges by the accuser. The last-voting judge must, on a penalty of a viertel, within five minutes after the closing of the minutes, write on the beer-table the name of the be-thundered, or appellant.

71. The agreeing judgments of two beer-judges constitute a sentence, with the exception of the cases in §§ 81 and 84.

72. No beer-judge is allowed to state publicly the grounds of his judgment, when he gives that judgment.

73. No beer-judge may give his vote before the examination is concluded, and the minutes closed. If he fails in this respect, either of the parties can expel him from the Beer-convent. In this case, the accuser has to call another judge. The same is the case when a beer-judge closes the minutes before the examination is complete. If the case is disputable, the party who has the right to expel, may call an umpire, who shall decide.

74. If the Beer-convention has cited the accused, and he omits to appear and make his defence, he is, on that account, held to be convicted.

75. No one can refuse to be a beer-judge because he would act as witness to the accused; but the accused can object to a judge, in case he takes the office, being received as his witness, but this, at the latest, must be done before the examination of the witness of the accuser had been heard, upon which the accuser must choose another judge.

76. The accuser must put in his petition before his witness is heard. A petition once put in, cannot be changed. If the accuser puts in a false one, or none at all, the case will be decided in favour of the accused.

77. Every accusation must be confirmed by the witness or the beer-tablet. If this is not the case, the accusation is nullified, and the accuser is nonsuited.

78. If the assertions of both parties are positive, the judge must decide in favour of the accused.

79. An assertion is negatived when it totally contradicts the fact of the opponent without supplying another fact, which supersedes the first fact.

80. Every beer-honourable student, be he Fox or Beer-bursch, can appear as witness before a Beer-convention.

81. A witness becomes amenable to punishment by giving false evidence on his cerevis. Whether he has given a false cerevis remains for the Beer-

convent to decide, before which he has appeared as witness, which, without further proceeding, can immediately be-thunder him as beer-banned, and mulct in a viertel; but this requires that all the Beer-judges shall be unanimous.

82. Each party may only call three witnesses in succession. If none of these speak out satisfactorily, it is to be held that he has no witness. For the rest, neither party can present more than one sufficient witness in support of its assertion.

83. Such witnesses as were not present at the fact on which the Beer-convention has to decide, are held as false witnesses.

84. Intruding witnesses; that is, such as without being called by name as witnesses by the parties, offer themselves as witnesses, shall not be accepted, and are to be punished with the beer-bann. The judges must, however, be unanimous on this head.

85. A beer-judge having once given his vote cannot recall it.

86. No beer-judge can, during the proceedings, speak to any of the parties concerned, out of the regular course of inquiry. He who does this is punishable with a viertel.

87. In no case is any one allowed to disturb the proceedings. He who does this for a fourth time, having thrice been ordered to be quiet, is to be be-thundered by the same Beer-convention to the Beer-bann, and penalty of a viertel without further delay. The beer-judges must, however, be unanimous.

88. When a punishable fact is not laid before a Beer-convention within three days, it cannot be laid at all, unless the actual absence of accuser or accused creates sufficient hindrance. But a cerevis given for a future day, or which requires time to prove whether it may not be false, forms an exception. Farther, a cerevis given for a future day is not nullified by a Beer-bann falling between that time and the time for which it is given.

89. A Beer-convention may only be postponed three days, and only then when the witness of the accused is absent.

90. If one is accused on account of a quantity not drunken at the right time, or not drunken at all, the said quantity is to be added to the penalty in his be-thundering.

91. If a quantity has been fore-drunken to the be-thundered, before the commencement of the Beer-convention, which he has not after-drunken, then must they who have fore-drunken this quantity on his be-thundering show this same quantity to the Beer-convention, corroborating their assertion with their cerevis and a witness, whereupon also this must be added to his Beer-penalty.

92. The same is the case when he has contracted a beer-scandal with any one before the Beer-convent sate, and has not fought it out: but the latter party with whom he has made this contract, must drink the prescribed quantity before the Beer-convent.

93. Not more than one Beer-convent can be called over one and the same person on account of the same fact, except if a Beer-convention is postponed; or a Beer-convention being called, is rendered null by a Fox, or one under Beer-bann having been called upon it, and in it having sat.

94. A Fox may neither for himself nor for another call a Beer-convent, but he must procure this to be done through a beer-honourable Beer-bursch. The last can, however, call himself as one, in case other beer-honourable Beer-burschen are wanting for the Beer-convention.

95. Only one Beer-convention may be called at the same time in the same kneip.

#### **(b) OF THE GENERAL BEER-CONVENTION.**

96. The general Beer-convention, which must consist at least of five Chore Burschen, is the highest and last Court of Appeal; and therefore its

decision is final and unalterable.

97. Every Saturday evening, at an hour fixed in the beginning of each course, is the General Beer-convention held, to which every Verbindung then existing in Heidelberg, must send a Chore-bursch, who must, however, be a beer-honourable Beer-bursch. Should less than five Chores exist, the S. C. must take care that still five beer-judges must sit in the General Beer-convention.

98. These judges must assemble themselves, at the appointed hour, at the kneip of the Secretary, under the penalty of a quarter-crown for coming late, and of a half-crown for not coming at all. A beer-judge comes late when he is not present on the striking of the fixed hour.

99. In case that, at the fixed hour, the Beer-judges of all the Verbindungs are not present, five beer-judges are sufficient to open the court and proceed to business.

100. When the required number of beer-judges are present, the Beer-convent must be opened with the stroke of the appointed hour. If they find no appellant, they must wait half-an-hour. If no one appears at the expiration of this time, the judges are authorized to withdraw.

101. If, after the expiration of this half-hour, five judges agree to wait longer, they can still represent the General Beer-convention; but the General Convention must be closed at the end of an hour, unless instantly occurring and pressing business make that impossible.

102. It is free to the accuser as to the accused to appeal to the General Beer-convention, against a sentence of the Special Convention; but this must be done within five minutes after the declaration of the sentence, and the judges concerned must be cited at the same time. The appeal must come on at the General Beer-convention, at the fixed place, the next Saturday evening.

103. If the appellant exceeds this time, without being able to show the impossibility of then proceeding with the business on which the Beer-convention has to decide, he loses the right to appeal, and moreover, must

pay a viertel. If on the contrary, one cited to appear before the General Beer-convention is prevented, he can, though a proxy, bring forward his excuse; upon the acceptance of which the General Beer-convention is to decide. If it finds the excuse satisfactory, the business stands over to the next General Beer-convention.

104. An appeal to the General Beer-convention can indeed be revoked, but this must be done within five minutes after declaring an intention to appeal, and, in fact, before a Beer-convention called for the purpose. If it be revoked later, the revoker must pay a viertel.

105. He is excluded from the right to appeal to a General Beer-convention who has been declared to be a false or intruding witness by a special Beer-convention, and is, on that account, be-thundered; and so is he also who has more than three times disturbed the proceedings of the Special Beer-convention.

106. The proceedings of the General Beer-convention in matters laid before it, is the same as that of the Special Beer-conventions, with the following exceptions. If the parties cited before the General Beer-convention do not appear, nor appoint proxies, they may, after the accuser has made his complaint, and corroborated it by witnesses, be punished for contempt of court.

(1) Moreover, any one who has to appear before the General Beer-convention, must present himself before the table with uncovered head.

(2) No beer-judge of the General Beer-convention is bound to take a beer-challenge from any one while he sits in the General Beer-convention.

(3) The General has the right to punish with the punishment, for the disturbance of Beer-conventions, prescribed by the Comment, any one who, during one and the same proceeding, shall have broken the silence enjoined four times; and he who more than four times shall have broken the same, shall, moreover, be reported to the S. C. and by it be fined a half-crown.

107. The majority of voices decides here, as in the Special Beer-conventions. Is the number of the represented Chores equal, the representative of the Chore to which the secretary belongs gives the casting vote.

108. No appellant can lay his complaint before the General, till he has set before it a viertel; but, in case he carries his charge through, he has the right to name one of the condemned to the General, who shall reimburse him this viertel.

Should the accused be be-thundered, so go they every one into Beer-banishment, and have two viertels to set forth; but that viertel which has been reimbursed by one of them to the accuser is reckoned off.

If the appellant is cast, he is equally condemned to two viertels. But as he has already set one viertel before the General, he is only written down on the beer-tablet one viertel. If he was the accuser before the Special Beer-convention, the General has to give its commission, to wipe him out from the beer-tablet, and to write him down as chargeable with a viertel under its order. If he was the accused, so must he, according to the commission of the General, be wiped out of the beer-tablet with the B. A., and with the prescribed penalty of the Special Beer-convention, together with the new viertel, be written down on the beer-tablet, under the order of the General.

The appointed penalties are written down in the Special Chore-kneip.

109. During the vacation, the number of five beer-honourable Beer-burschen are authorized to represent a General Beer-convention, without respect to Verbindungs. Such a General Beer-convention in the vacation, must be called within eight days, or, otherwise, if no sufficient grounds of excuse are brought forward, the sentence of the Special Convention remains in full force; the appellant is be-thundered, and the right to further appeal is lost.

## **TITULUS VIII.**



## **OF THE BEER PENALTIES.**

### **I. SIMPLE.**

#### **(a) OF THE BEER-BANN.**

110. The Beer-bann is that punishment by which the beer-honourable student, while he is be-thundered to four choppins, loses all his beer-rights in the Special Kneip in which he stands inscribed.

111. The Beer-bann, besides the loss of all beer-rights, has also this consequence, that the be-thundered, neither mediately nor immediately, can bring his beer to the table where the Beer-honourable kneip. Should he do this, every beer-honourable is at liberty to throw the beer of the be-thundered upon the ground.

112. The beer-banned appellant, indeed, equally forfeits all beer-rights, yet can he bring his beer to the table where the beer-honourables kneip, and he may not be called a beerschisser, or beer-banished-man, and can for and after drink with any beer-honourable that he can engage to do so.

113. But on account of such quantity either for or after drunken, a Beer-convention cannot be called by either party.

114. No beer-honourable is allowed to either fore or after drink with a beer-banned man; does any one this, he goes into beer-banishment.

115. A beer-banished man can never be called before a Beer-convention and be be-thundered on account of a fact which renders him liable to beer-banishment, but only on one which renders him liable to pay a viertel. He then renders himself liable to a viertel when he calls a beer-honourable, or a beer-banned appellant, a beerschisser.

116. If any one perpetrates an act against a beerschisser, which renders him liable to a setting forth of a viertel, the beerschisser can call this person before the Beer-convention, but he must do it through a beer-honourable Beer-bursch, and lay his complaint through the same, strengthening also his accusation by two beer-honourable cerevises.

117. A term of eight days is appointed to the beerschisser (the beer-banned) from the day of his be-thundering, during which time he must cause himself to be fought-out in the following manner. If he exceeds this term, and that without special grounds of excuse, as sickness or absence, he is be-thundered in two viertels; which penalty, from eight days to eight days, if he does not fight himself out, is doubled.

118. The fighting cutis in this manner. The beerschisser, who will fight himself out, requests a beer-honourable Beer-bursch to call his name out in the kneip on whose beer-tablet he stands inscribed; but this can only be done in the presence of three beer-honourable Beer-burschen. The out-fighter must at every one of the four choppins, three times slowly and formally demand who will drink them with the beerschisser. The fighter-out is not an umpire. If any one is not satisfied with the proceedings of the fighter-out, this last must name an umpire.

119. The beerschisser must from five minutes to five minutes drink each of the choppins.

120. If any one announces that he will drink a choppin with the beerschisser, this person must name an umpire, who must make the weapons equal, and who, as in a Beer-scandal, has to command.

Each one to be fought-out has at least two choppins to drink.

If two out of the whole four choppins are not yet accepted the fighter-out has to drink out the remaining quantity with the to-be-fought-out person, in the regular time, and in the presence of an umpire.

121. He who, as umpire, has commanded during the last choppin which the beerschisser, as such, drinks, must immediately proclaim him three times loudly and formally in the kneip as beer-honourable.

In case the beerschisser has already drunk two choppins, and no one announces himself for the fourth, the fighter-out has this duty to perform.

The order must, at the same time, be given, and where it is possible, to a Fox, to wipe the beerschisser from the beer-tablet.

If the umpire proclaims the out-to-be-fought as beer-honourable too early, or too late, he himself goes into beer-banishment.

122. Both parties must drink at once, on the word of command. If the beerschisser does this not, he is be-thundered to a viertel; if the other, who, according to the declaration of the fighter-out, has to drink with the beerschisser, drinks not at the same time, he goes into beer-banishment.

123. If the beerschisser does not drink, after the command is given, his choppin in the five minutes, he continues a beerschisser, and the choppin not drunken by him is written on the beer-tablet in addition.

124. In all these cases the commanding umpire has the right to pronounce the penalty on the defaulters, without further proceeding, and cause them to be written on the beer-tablet, nor can he for this be called to account.

125. If one has been be-thundered on account of an unperformed quantity of fore or after drinking, he must drink the quantity still due, from five minutes to five minutes, after he has again been declared beer-honourable.

126. This must be done before those whom he has to drink after; or, should they be absent, before two beer-honourable witnesses.

127. The beerschisser has all the choppins that have been drunken with him during the fighting-out by the out-fighters immediately to pay for.

128. If the beerschisser has requested any one to call on him to be fought-out, he cannot again revoke the call; if he does this, he is mulct in a viertel.

129. The beerschisser has the right, during the pawking, or fighting-out, to have the beer necessary for the out-pawking upon the table at which the beer-honourables kneip.

130. Only one beerschisser can be pawked-out at one time.

131. He goes into beer-banishment--

(1) Who gives a false cerevis.

(2) Who offends against § 34.

(3) Who permits a beer-touche, or provocation, to stand against him beyond the regular time, and neither challenges, fixes the time, nor fights out, without having any sufficient ground of excuse to give. The sufficient grounds are--

(a) Older scandals, but not fore or after drinking quantities.

(b) If he has received no beer, spite of its having been immediately ordered, after challenge or fixing of the time has taken place.

(4) Who has declared a beerschisser, either by word or deed, to be beer-honourable. This happens through--

(a) He who contracts a scandal or fights one out with a beerschisser, and kneips with him in beer; that is,

(a) He who fore or after drinks with a beerschisser. (§ 114).

(b) He who has his beer standing on the same table with that of a beerschisser.

(c) He who plays with a beerschisser at a beer-play.

(d) He who with the beerschisser pours out of the same vessel, or drinks with him out of the same glass.

(b) He who "catches out"<sup>[52]</sup> a beerschisser in the kneip, where the same stands inscribed as beerschisser on the beer-tablet.

(c) He who calls a Beer-convention upon a case against a beerschisser, which does not render him liable to a penalty of a viertel. (§ 115).

(d) He who submits to the same a beer-case for decision, or calls him as witness.

(e) He who too early proclaims the fought-out, beer-honourable. (§ 121).

(5) He who too late declares the fought-out, beer-honourable. (§ 121).

(6) He who calls a beer-honourable, or a beer-banned-appellant, a beerschisser.

(7) He who does not set out the appointed quantity within eight days.

(8) He who in pawking-out a beerschisser commands on a bad choppin.

(9) He who ought to drink with a beerschisser in his out-fighting, and does not drink at the right time, or drink at all.

(10) He who makes a quantity common; that is, fore or after drinks a quantity with a third person also, which he ought to drink with one only.

(11) The umpire whose decision before a Beer-convention is declared to be unjust (§ 62).

(12) The second who has to make the weapons equal, but who, according to the decision of a called-up umpire, has unjustly declared them to be equal.

(f) He who declares the decision of an umpire to be unjust without being able to show that it is so.

(13) Intruding witness. (§ 62).

(14) He who does not call a Beer-convention on account of a fact which is directed against himself, and which is punishable with

beer-banishment.

(15) He who does not within five minutes drink the quantity dictated to him by the President of the Beer-convention. (§ 146).

### **(B.) OF SETTING FORTH BEER.**

§ 132. Every viertel to be set out (that is, four measures, four jugs, or five bottles) is written down on the beer-tablet, and must within eight days, be set before a Beer-convention. He who exceeds this term, goes into beer-banishment. The Beer-convention which has be-thundered him, has at the same time to give the order that he and this quantity be wiped off the beer-tablet, and that he be written down anew under this date.

133. The Beer-convention, and he who sets it out, have equally participation in this beer, and should the setter-out be a Fox, he too, who called the Beer-convention for him; but the Beer-convention can, if it please, make this quantity over to the General company.

134. A viertel must set-out--

(1) The Fox who *touches*, or provokes a beer-bursch to a challenge in beer, or in a beer-challenge doubles on him. (§ 23.)

(2) The Fox who has called a Beer-convention, or sits in one. (§ 64.)

(3) The Fox who becomes an Umpire. (§ 64.)

(4) The Fox who touches the beer-cudgel of the President in a Beer-commers.

(5) Every one who, being called on to second, refuses without sufficient ground. (§ 36.)

(6) He who offends against § 37.

(7) He who offends against §§ 42 and 43.

(8) He who touches in beer a Declarer, and does not immediately revoke the touche. (§ 48.)

(9) A Declarer who touches another who has not declared. (§ 48.)

(10) He who refuses without justifiable ground to act as umpire. (§ 48.)

(11) He who cribs beer in drinking, or spills the beer of another, or fouls it.

(12) He who forgets his Smollis.[\[53\]](#)

(13) He who touches an Umpire, knowing him to be such.

(14) He who insults or calumniates a Beer-convention.

(15) He who declares the decision of a Beer-convention to be unjust; but this shall not include the appeal to a General.

(16) The Beer-judge who offends against § 34.

(17) He who declares that he will appeal to a General, and yet does it not on the proper day. (§ 103.)

(18) He who has declared that he would appeal to a General, but makes this later than five minutes after his declaration. (§ 104.)

(19) The beerschisser who sits in Beer-convention, or at all acts in beer-suits.

(20) The beerschisser who, after he has allowed himself to be called upon to be fought-out, revokes. (§ 128.)

(21) The beerschisser who in the fighting-out does not drink in time. (§ 122.)

(22) The beerschisser, who calls a beer-honourable or beer-banned-Appellant, a Beerschisser. (§ 115.)

(23) He who alters or writes down any thing on the beer-tablet, or expunges any thing, without the right to do it (§ 136.)

(24) He who writes down, by his own fault, the name of the be-thundered, or of the accuser-appellant, wrong. (§ 139.)

(25) The be-thundered or accuser-appellant who purposely spells his name wrong to the writer-down. (§ 139.)

(26) He who, indeed, writes down the name of the be-thundered, or of the accuser-appellant on the tablet correctly, but who states a false date or a false quantity.

(27) He who does not convey the commission of writing down or expunging within five minutes.

(28) Every one whose duty it is to write down or expunge from the tablet, and does not do this within five minutes.

(29) He who gives to another without due authority, an order to alter, or to write down upon, or to expunge any thing from the tablet. (§ 138.)

(30) He who does not call a Beer-convent upon a fact which renders liable to the setting-forth of a viertel.

(31) When one is caught-out--that is, if he lifts the lid of a covered glass (and jugs and bottles are also included) in which so much beer yet remains as will cover the bottom, so far that another can insinuate his hand between the vessel and the lid, and thereupon cry "caught-out;" or when one is caught-out who covers an empty glass, though this latter person is under no necessity to cover the empty glass again.



(32) He who catches out without cause--that is, he who catches one out, who in the lifting of his lid has said--"without catching-out;" or who, while the beer is pouring puts his hand between; or who makes an erroneous catching-out with an empty glass.

(33) He who speaks ill of any of the Faculties.

## **II. SHARPER BEER PENALTIES.**

§ 135. The sharper beer-penalty is, when any one is be-thundered at the same time to more than one viertel, or to beer-banishment and beer-setting-forth.

### **(a) HE IS CONDEMNED TO MORE THAN ONE VIERTEL,**

(1) Who offends against § 44.

(2) The accuser who, going before the General, fails to make good his accusation, and is mulct in two viertels. (§ 108).

(3) The Beerschisser, who does not cause himself to be fought-out within the proper period, falls under the penalty of § 117.

### **(b) THEY ARE CONDEMNED TO BEER-BANISHMENT AND BEER SETTING-FORTH:**

(1) False witnesses, (§ 81.)

(2) Those who disturb the proceedings of the Beer-convention for the fourth time, either by speaking, crying out, singing, or whispering to one another, after silence has been three times commanded. (§§ 87 and 106.)

(3) All those who act contrary to § 65.

**(c) THEY ARE CONDEMNED TO THE SETTING OUT OF TWO VIERTELS AND TO  
BEER-BANISHMENT.**

(1) The Beer-judges whom the General Beer-convention reproves.

(2) He who abuses this Beer-comment, or alters any thing in it.

**TITULUS IX.**

**OF THE BEER-TABLET.**

§ 136. In every special kneip a Beer-tablet is to be hung up; upon which the names of Beerschisser, Viertel-out-setters, and Accuser-appellants are written, under different rubrics, with addition of their respective dates and quantities.

137. No one may write any thing upon the Beer-tablet, alter, or expunge any thing, who has not received a commission to that purpose, from a beer-judge, an umpire, a president of a beer-commers, or from one who has declared the Beerschisser to be Beer-honourable.

138. He who has received the commission for expunging or writing down, must do this within five minutes: otherwise he is be-thundered in a viertel. He who gives an unauthorized commission falls under the same penalty. But in this case, he who has received the commission to write down or expunge, is not punishable.

139. If any one has received a commission to write down a be-thundered in the Beer-tablet; but the be-thundered declares that he shall appeal to the general Beer-convention, the writer-down must note this by the addition of the two letters B. A. under the name of the be-thundered. So also the writer-down must place in the proper rubric him who has proceeded as accuser

before a special Beer-convention, and declare that he will appeal to a General one.

140. Every one who has received a commission to write any one down in the Beer-tablet, has a right to ask the same how he writes his name, whereupon that person must clearly spell it out to him. If the commissioner does not ask the name of the to-be-written-down, or has this person spelt his name out rightly to him, and he yet, in both cases, write it down wrong, he is thereupon be-thundered in a viertel, without in this case the one to-be-written-down being freed from his penalty. But if the to-be-written-down gives him his name wrong, then he falls under the penalty.

141. He who has written down any one with authority on the Beer-tablet, and has written him down wrong, is to be called before a future Special Beer-convention. This Beer-convention has to take care that the fault of him who received the commission be amended.

[The remainder of this Beer-Comment is given in the chapter describing a Commers.]

## **FOOTNOTES:**

[Footnote 1](#): The author here makes no charge against the great numbers of high-minded and gentlemanly young men who pass through, and confer distinction on, our universities; but, as before observed, alludes only to that class and those parties, which are not only depicted by the Westminster Review, but so fully described by the Editor of the Quarterly Review, in "Reginald Dalton."

[Footnote 2](#): The term *Rechtspracticant* implies the commonest, the lowest, and most tedious stage of a statesman's career: in fact, while he is acting as a clerk or pupil in the amtmann's office, he acquires *practical* knowledge of the administration of justice.

[Footnote 3](#): The words in the original are "on their Cerevis," a student term, "on their beer;" meaning, in the beer-court, on their honour.

[Footnote 4](#): Inhabitants of the Marsch.

[Footnote 5](#): In the Graffschaft Mark.

[Footnote 6](#): Play on the grandiloquent words of Kotzebue.

[Footnote 7](#): About a pint.

[Footnote 8](#): Probably to prevent Kotzebue's retreat.

[Footnote 9](#): No person in Germany can fill any office in a state, not even that of a postmaster, or captain of police, nor follow any of the high professions, those of law, divinity, and physic, after he has passed his college examinations, and taken his degree, without having undergone another examination before a board expressly appointed by each state.

[Footnote 10](#): The founder of the Orphan-House.

[Footnote 11](#): The established word for shirt-collar in Germany is the very odd one of Vater-mörder, literally "Father-killers;" and they are said to have acquired this name from an anecdote manufactured on their first introduction, in order to ridicule their extravagant size and stiffness, as worn by buckish young men. It was said that so large and stiffly-starched had a young student his collar, that when he went home, in rushing to embrace his father, he run him through the neck with the point of it, and killed him on the spot.

[Footnote 12](#): This word, to suit the air, must be pronounced postilyòn, with a strong accent on the last syllable.

[Footnote 13](#): Cicero, humorously here thus pronounced, because a party among the classics insist that it was anciently so pronounced.

[Footnote 14](#): Labours hard, like an ox.

[Footnote 15](#): As we have no word or short phrase in English to express this German custom, we retain their own term, which means touch your glasses together; their mode of expressing civility, as in our drinking to each other, and used by them on all occasions of festivity and rejoicing, as in giving a health, a vivat, or a toast.

[Footnote 16](#): The Chore colours.

[Footnote 17](#): A dandy.

[Footnote 18](#): While translating this passage, the tidings have come across the river, that a student is shot dead in the wood opposite to my windows behind the Hirsch-gasse, in a duel with pistols.--Tr.

[Footnote 19](#): In English money, from about three to seven pounds.

[Footnote 20](#): The bell which it rung at a quarter to eleven at night, at the hearing of which all persons are to evacuate public-houses, and betake themselves home.

[Footnote 21](#): The university of Heidelberg.

[Footnote 22](#): The everlasting subject of regret to the merchant in Kotzebue's comedy *Pagen-Streiche*.

[Footnote 23](#): Because it was the Burschenschaft riband, and therefore a great desecration to be worn by a Knoten.

[Footnote 24](#): A well known Wirthshouse.

[Footnote 25](#): A Besom is a girl.

[Footnote 26](#): The Senior.

[Footnote 27](#): Schools in which all the real and practical branches of education necessary or advantageous to the business of life, are taught, in contradistinction to the ideal and more ornamental branches, as literature, metaphysics, the more critical prosecution of the classics, etc.

[Footnote 28](#): These are not to be confounded with common *Gewerb*-schools, which are merely for mechanics: by keeping in mind the *Higher* *Gewerb*-school, the distinction is clear.

[Footnote 29](#): Right of matriculation in the universities on the ground of the applicant having properly matured his studies in the Gymnasium.

[Footnote 30](#): Here the learned author undoubtedly alludes to the universal passion for smoking. Germany is truly, in every sense a *piping* nation.

[Footnote 31](#): This is translated with the same free defiance of rhyme and metre as distinguishes the original, and which may find plenty of parallels in our own old ballads of the people.

[Footnote 32](#): States Confederation.

[Footnote 33](#): Parliament of a State.

[Footnote 34](#): A slanting cut in the left cheek.

[Footnote 35](#): Great tun.

[Footnote 36](#): A tale of Hauff's under that name.

[Footnote 37](#): See the Special Commers.

[Footnote 38](#): We have here introduced Körner's idea for the sake of euphony.

[Footnote 39](#): Touching their glasses. The humorous Schluck says that Schmollis is by some derived from the obsolete word Schmollen--to blow one's-self up, to make one's-self great; that is, before another, by drinking. Schmollen, at the same time means to be angry, to make a face, etc.; meanings, however, which are not to the purpose. Others derive it

from the two syllables, Schmal aus (schmalus, schmollis,) equivalent to clean out, that is, the glass to the last drop, as the old song says--"There remains not a nail's proof even within."

[Footnote 40](#): Remark of the translator of Schluck's Latin. "This is false. No real student does pay his shot."

[Footnote 41](#): A stick, or rather a cudgel, but a rapier is the most reasonable.

[Footnote 42](#): Inn.

[Footnote 43](#): Lateinisch (Latin.)

[Footnote 44](#): Bürger's Abbot, with the king's three questions. The same legend as the Abbot of Canterbury and King John.

[Footnote 45](#): The Wirthshaus of Sadler Müller.

[Footnote 46](#): It is a popular expression in Germany when children are rubbing their eyes, a symptom that they are sleepy and ready for bed--that the Sandman has thrown sand in their eyes.

[Footnote 47](#): House of the Philistine in which he had lived.

[Footnote 48](#): Holidays--the vacation.

[Footnote 49](#): College portfolio, which the student is continually carrying about under his arm. With the exception of the sword, this is one of the most striking descriptions of a student of the present day imaginable.

[Footnote 50](#): Literally be-thundered.

[Footnote 51](#): The cause and matter of the challenge, and the business of the strife itself till decided.

[Footnote 52](#): In the Kneip they drink out of glasses with lids. If the user of a glass as he sits so far lifts up the lid that the next person can pass two fingers under, and cries "abgefasst," "I've caught thee out!" the person is said to be "caught out," and pays a penalty in beer. To avoid this, he must

when he lifts his lid, say "ohne abzufassen," "without being liable to be caught out."

[Footnote 53](#): His agreement with another to thee and thou, and, forgetting it, addresses him as you.

**THE END.**



\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE STUDENT-  
LIFE OF GERMANY \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment



including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.